Campbelltown (Sustainable City) Development Control Plan 2015

VOLUME 1

Development Controls
For all types of Development

Creating Campbelltown's Future 2025

campbelltown.nsw.gov.au

Campbelltown City Council, PO Box 57, Campbelltown, NSW 2560

Volume 1: Development Controls for All Types of Development

List of Amendments to the Plan :

Amendment No	Date of Adoption by Council	Effective Date
Amendment No 1	21 June 2016	27 July 2016
Amendment No 2	25 October 2016	8 November 2016
Amendment No 3	22 November 2016	8 September 2017
Amendment No 4	13 December 2016	17 November 2017
Amendment No 5	10 April 2018	25 April 2018
Amendment No 6	9 April 2019	7 May 2019
Amendment No 7	9 July 2019	17 July 2019
Amendment No 7a	12 November 2019	26 November 2019
Amendment No 8	14 April 2020	4 May 2020
Amendment No 9	6 June 2020 (Council meeting 10 March)	29 June 2020
Amendment No 10	8 December 2020	30 June 2021
Amendment No 11	3 August 2021	18 August 2021
Amendment No 12	2 November 2021	29 November 2021
Amendment No 15	12 October 2021	21 December 2021
Amendment No 14	8 February 2022	23 February 2022
Amendment No 16	12 April 2022	26 April 2022
Amendment No 17	12 April 2022	26 April 2022
Amendment No 18	8 March 2022	19 May 2022
Amendment No 19	14 February 2023	15 May 2023
Amendment No 20	12 September 2023	15 December 2023
Amendment No 21	13 August 2024	2 September 2024

Table of contents

Part 1 Preliminary 1

1.1 Introduction 2

1.2 Aims of the Plan 10

1.3 Campbelltown 2025 and the Plan 10

1.4 Definitions 12

1.5. Acronyms 18

Part 2 Requirements Applying to all Types of Development 19

2.1 Application 20

2.2 Site Analysis 23

2.3 Views and Vistas 25

2.4 Sustainable Building Design 26

2.5 Landscaping 28

2.6 Weed Management 29

2.7 Erosion and Sediment Control 30

2.8 Cut, Fill and Floor Levels 31

2.9 Demolition 34

2.10 Water Cycle Management 35

2.11 Heritage Conservation 38

2.12 Retaining Walls 42

2.13 Security 44

2.14 Risk Management 46

2.15 Waste Management 50

2.16 Provision of Services 60

2.17 Work On, Over or Near Public Land 63

2.18 Work on Land Adjacent to the Upper Canal Corridor 65

2.19 Development Near or on Electricity Easements 67

2.20 Development on Land Adjacent to, or Affected by a Gas Easement 68

2.21 Accoustic Privacy 70

Part 3 Low and Medium Density Residential Development and Ancillary Residential Structures 73

3.1 Application 74

3.2 Desired Future Character for Low Density Residential Neighbourhoods 76

3.3 Desired Future Character for Medium Density Residential Neighbourhoods 69

3.4 General Requirements for Low and Medium Density Residential Development - Zones R2, R3, R4 and R5 70

3.5 Ancillary Residential Structures - Zones R2, R3, R4 and R5 78

3.6 Low Density Residential Development - Zones R2, R3, R4 & R5 81

3.7 Medium Density Residential Development - Zone R3 98

3.8 Residential Subdivision 127

Part 4 Rural Residential Development and Ancillary Rural Residential Structures 139

4.1 Application 140

4.2 Desired Future Character for Rural Residential Areas Zoned RU2, ... RU5, E3 and E4 142

4.3 General Requirements for Rural Residential Development - Zones 143

RU2, RU5, E3 and E4 143

4.4 Ancillary Rural Residential Structures - Zones RU2, RU5, .. 147

. E3 and E4 147

4.5 Rural Residential Development - Zones RU2, RU5, .. 150

. E3 and E4 150

4.6 Rural Residential Subdivision 154

Part 5 Residential Flat Buildings and Mixed-Use Development 159

5.1 Application 160

5.2 Desired Future Character for High Density Residential Neighbourhoods (R4) 162

5.3 Desired Future Character for Mixed Use Precinct (B3 and B4) 163

5.4 General Requirements for Residential Flat Buildings and Mixed Use Development 164

5.5 Residential Flat Buildings (Zone R4) 178

5.6 Mixed Use Development (Zones B3 & B4) 185

5.7 Mixed Use Development (Zones RU5, B1 & B2) 188

Part 6 Commercial Development 194

6.1 Application 195

6.2 Desired Future Character for neighbourhood and local centres (Areas Zoned B1 & B2) 197

6.3 Desired Future Character for (Areas Zoned B5) 200

6.4 General Requirements for Commercial Development 201

6.5 Neighbourhood Shops (R3 and R4) 219

6.6 Subdivision 221

6.7 Commercial Waste Management 222

6.8 Parenting Facilities 224

Part 7 Industrial Development **226**

7.1 Application 227

7.2 Building Form and Character 227

7.3 Car Parking and Access 232

7.4 Landscaping 235

7.5 Outdoor Storage Areas 236

7.6 Industrial Waste Management 237

7.7 Environmental Management 238

7.8 Residential Interface 240

7.9 Industrial Unit/s 241

7.10 Subdivision 242

Part 8 Centre-based Child Care Facilities **244**

8.1 Application 245

8.2 Licence Requirement 245

8.3 Building Form and Character 246

8.4 Car Parking and Access 252

8.5 Landscaping 255

8.6 Play Areas 256

8.7 Advertising Signs 257

Part 10 Places of Public Worship **258**

10.1 Application 259

10.2 General Design Requirements 259

10.3 Car Parking and Access 265

10.4 Landscaping 268

10.5 Waste Management 269

Part 11 Vegetation and Wildlife Management **270**

11.1 Application 271

11.2 Management of Native Vegetation and Wildlife Habitat 273

11.3 Permits and Development Applications for Vegetation Management 277

11.4 Design requirements for developments in koala habitat on lots less than 1 hectare 286

Part 12 Telecommunication Facilities **288**

12.1 Application *289*

12.2 Background *289*

12.3 General Requirements *289*

12.4 Electromagnetic Radiation *291*

12.5 Landscaping *292*

12.6 Heritage *292*

Part 13 Sex Industry Premises **294**

13.1 Application *295*

13.2 Background *296*

13.3 Location Requirements *297*

13.4 External Design Requirements for Sex industry Premises *298*

13.5 Car Parking *299*

13.6 Waste Disposal and Collection *300*

13.7 Sanitary Facilities *300*

13.8 Health and Safety *302*

13.9 Council Registration *303*

Part 14 Parking of Heavy Vehicles on Residential, Rural and Environmental Protection Land **304**

14.1 Application *305*

14.2 Background - Classification of Heavy Vehicles *305*

14.3 Number of Heavy Vehicles - Permissibility by Zoning and Site Area *306*

14.4 General Requirements *308*

Part 15 Animal Boarding or Training Establishments **310**

15.1 Application *311*

15.2 General Requirements for Animal Boarding or Training Establishments *312*

Part 16 Advertising and Signage **314**

16.1 Application *315*

16.2 Types of Signs and Definitions *316*

16.3 Relationship to other Environmental Planning Instruments, Australian Standards, State Polices and Guidelines. *321*

16.4 General Requirements - Advertising and Signage *322*

16.5 Signs within Residential, Rural and Environmental Protection Zones *327*

16.6 Signs within Business, Industrial and Special Purpose Zones 329
16.7 Signs on mixed use residential development 333
16.8 Signs on Heritage items and within Heritage Conservation Areas 334
16.9 Service Station Signs 337
Part 17 Boarding Houses **338**
17.1 Application 339
17.2 General Requirements for Boarding Houses 340
17.3 Car Parking and Access 346
17.4 Landscaping 348
17.5 Waste Management 349
17.6 Management Plan 352
Part 18 Tattoo Parlour Premises **354**
18.1 Application 355
18.2 General Requirements for Tattoo Parlour Premises 356
Part 19 Seniors Housing and Housing for People with a Disability **362**
19.1 Application 363
19.2 General requirements for seniors housing and housing for people with a disability 364
19.3 Additional controls relating to waste management 365
19.4 Additional controls relating to public health 367
Appendix 1 - Biodiversity Statement 371
Appendix 2 - Weed Management Plan 372
Appendix 3 – Noxious Weeds 373
Appendix 4 – Statement of Flora and Fauna Impact & Draft Koala Management Plan 384
Appendix 5 – Erosion and Sediment Control Plan 385
Appendix 6 – Cut and Fill Management Plan 386
Appendix 7 – Unsuitable Plant Species for a Child Care Centre 387
Appendix 8 – Aboriginal Heritage Impact Assessment 391
Appendix 9- Heritage Impact Statement 392
Appendix 10 – Repealed 393
Appendix 11 – Arborist Report 394
Appendix 12 – Traffic Impact Assessment Report 395
Appendix 13 – Crime Prevention Plan 396
Appendix 14 – Obtaining a Stormwater Easement 397

Part 1 Preliminary

1.1 Introduction

1.1 Introduction

1.1.1 Name of the Plan

This Plan is called Campbelltown (Sustainable City) Development Control Plan 2015 (the Plan).

1.1.2 Purpose of the Plan

The Plan has been prepared in accordance with Section 74 C of the Environmental Planning and Assessment Act 1979 (the Act) and Clause No 16 of the Environmental Planning and Assessment Regulation 2000 (the Regulation). The purpose of the Plan is to provide more detailed provisions to supplement Campbelltown Environmental Planning Instruments.

Council (the consent authority) is required under Section 79C of the Act, to take into consideration the relevant provisions of the Plan in determining development applications on land located within the Campbelltown Local Government Area (LGA).

1.1.3 Land to which the Plan applies

Volume 1 Development Controls for all types of Development of the Plan applies to land within the Campbelltown LGA, where the Campbelltown Local Environmental Plan 2015 (the CLEP) applies.

Volume 2 Site Specific Development Control Plans of the Plan applies to certain lands as indicated by each site specific DCP listed under Volume 2.

Certain areas within Campbelltown Local Government Area have their own site specific DCPs. Some of those site specific DCPs are included under Volume 2 of this Plan, while others are standalone DCPs.

Where a site specific DCP does not include specific development controls for a certain type of development, the development controls under Volume 1 shall be used to assess the development applications received by Council. An example: the development controls for child care centres are not currently included under the site specific DCPs, as such development controls under Volume 1 that relate to child care centres will be used to assess child care centres applications within the areas where site specific DCPs apply.

Where there is an inconsistency between the provision of a site specific DCP and Volume 1 of the Plan (whether the site specific DCP is included under Volume 2 of the Plan or a standalone site specific DCP), the provision under the site specific DCP shall prevail to the extent of the inconsistency.

Volume 3 Deferred Areas Development Control Plan of the Plan applies to the areas that have been assigned a 'Deferred Matter' status under the CLEP as shown on the Land Application Map under the CLEP. In addition, certain parts of Volume 1 apply to the land where Volume 3 of the Plan applies, as stipulated under Part 1 of Volume 3 of the Plan. The Land Application Map under the CLEP is available at www.legislation.nsw.gov.au.

Volume 1 of the Plan, where relevant, shall supplement the site specific DCPs for

the areas within the Campbelltown LGA and the areas that are subject to the State Environmental Planning Policy (Major Development) 2005 and State Environmental Planning Policy (Sydney Region Growth Centres) 2006.

1.1.4 The Consent Authority

Campbelltown City Council is the consent authority for local development within the LGA.

1.1.5 Development Assessment

The Environmental Planning and Assessment Act 1979 is the principal law regulating the assessment and determination of development proposals in NSW.

1.1.5.1 Development Types

The following is a summary of the development types under part 4 of the EP&A Act 1979:

Exempt development

Exempt development is incidental development that is of minimal environmental impact and may be carried out without the need to obtain development consent from Council. The type of development that is exempt from the need to obtain development consent is set out in State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 and Schedule 2 *Exempt development* under the CLEP.

Complying development

Complying development is development that meets specific criteria set out mainly in State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 and other State environmental Planning Policies. To carry out a complying development, a complying development certificate must be obtained from Council or an accredited certifier. If the application is successful, the Council or Private Certifier will issue a certificate usually subject to conditions. The type of developments that are complying development are set out mainly in State Environmental Planning Policy (Exempt and Complying Development Codes) 2008.

Note:

State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 is available for view/download from the NSW legislation web site at:

www.legislation.nsw.gov.au

Local development

Local development is development that requires development consent from Council.

Integrated development

Integrated development is development (not being State significant development or complying development) that, in order for it to be carried out, requires development consent and one or more of the approvals under other Acts such as Fisheries Management Act 1994, Heritage Act 1977, Mine Subsidence Compensation Act 1961, Mining Act 1992, National Parks and Wildlife Act 1974, Petroleum (Onshore) Act 1991, Protection of the Environment Operations Act 1997, Roads Act 1993, Rural Fires Act 1997 and Water Management Act 2000

Designated Development

Designated development is development that is declared to be designated development by an environmental planning instrument or the Environmental Planning and Assessment Regulation 2000, but does not include State significant development despite any such declaration.

A list of developments and criteria which are classified as designated development can be found in Schedule 3 of the Environmental Planning and Assessment Regulation 2000. Examples include agricultural produce industries, aircraft facilities and coal mines.

1.1.6 Monitoring and Review of the Plan

Council is required to keep its CLEP and the Plan under regular and periodic review to ensure that these Plans:

a) continue to be useful and relevant;

b) can be judged as to their effectiveness;

c) reflect an adequate and appropriate capacity for development; and

d) provide for the appropriate protection of the environment and natural resources.

The Plan shall be reviewed every five (5) years or as considered necessary by Council.

1.1.7 Variation to Planning Controls and Standards within the Plan

Council may consider variations to the requirements of the Plan in certain circumstances. Requests for variations are required to be in writing and shall clearly demonstrate the reason(s) why the variation sought would not adversely impact on the environment or local amenity, would not erode the relevant standard and that compliance with the requirements of the Plan are unreasonable or unnecessary in the circumstances of the case. Council gives no assurance that it will permit any variation(s) to the requirements of the Plan. Variations will only be considered in exceptional circumstances.

Compliance with numerical provisions of the Plan does not guarantee the granting of development consent. Each application will be considered on its merits, having regard to the objectives in the Plan and matters for consideration under Section 79C of the Act.

1.1.8 Structure of the Plan

The Plan identifies objectives and design requirements for all aspects of development permissible with consent under the CLEP. The Plan comprises the following:

Volume 1: Development Controls for All Types of Development

Part 1 Preliminary

Part 2 Requirements Applying to all Types of Development

Part 3 Low and Medium Density Residential Development and Ancillary Residential Structures

Part 4 Rural Residential Development and Ancillary Rural Residential Structures

Part 5 Residential Apartment Buildings and Mixed-use Development

Part 6 Commercial Development

Part 7 Industrial Development

Part 8 Child Care Centres

Part 9 This part has been repealed

Part 10 Religious Establishments

Part 11 Vegetation Management and Wildlife Habitat

Part 12 Telecommunications Facilities

Part 13 Sex Industry Premises

Part 14 Parking of heavy vehicles on on Residential, Rural and Environmental Protection Land

Part 15 Animal Boarding or Training Establishments

Part 16 - Advertising and Signage

Part 17 - Boarding Houses

Part 18 - Tattoo Parlour Premises

Part 19 - Seniors Housing and Housing for People with a Disability

Appendices

Volume 2: Site Specific Development Control Plans

Part 1 Minto Renewal DCP

Part 2 Glenfield Road Area DCP

Part 3 The Link Site DCP

Part 4: Site Specific Development Controls for Certain Heritage Items

Part 5: University of Western Sydney - Campbelltown

Part 6: Edmondson Park Smart Growth DCP

Part 7 Mount Gilead DCP

Part 8 Menangle Park DCP

Part 9 Blairmount DCP

Part 10 Urban Renewal DCP

Part 11 Caledonia DCP

Part 12: Glenlee Precinct DCP

Part 13: Maryfield's DCP

Part 14: 22-32 Queen St Campbelltown DCP

Volume 3: Deferred Areas Development Control Plan

Part 1 Preliminary

Part 2 Residential and Ancillary Development on Urban Land

Part 3 Residential Development on Non-Urban Land

Part 4 Residential Flat Buildings and Mixed-Use Development

Part 5 Commercial Development

Part 6 Industrial Development

1.1.9 Relationship to other Plans and Documents

a) The provisions contained in the Plan are in addition to the provisions within SEPPs and the CLEP. In the event of any inconsistency between this Plan and the CLEP, the CLEP will prevail. Where there is an inconsistency between the Plan and any other DCP (other than those DCPs referred to under section 1.1.3), the provisions of this Plan shall prevail.

b) This Plan repeals:

- *DCP No - 27 Queen Street Historic Precinct ;*
- *DCP No 109 - Raith;*
- *DCP No 120 - Parking of Commercial Vehicles and Trucks within Residential, Scenic Protection and Rural Areas;*
- *DCP 121 - Woodcrest Heritage Item and Residential Development; and*
- *Campbelltown (Sustainable City) DCP 2014*

c) If a development application or an application under Section 96 or 96AA of the Environmental Planning and Assessment Act 1979 to modify a development consent has been made before the effective date of the Plan in relation to land to which this Development Control Plan applies and the said application has not been finally determined before the commencement of this Development Control Plan, the application must be determined as if this Development Control Plan had not commenced.

1.1.10 How to use the Plan

The following steps provide a general guide to using the Plan. If you require any further information or assistance, please contact Council's Technical Support Officers on (02) 4645 4608.

Step 1

- Check the permissibility of the development under the relevant planning instrument;
- Determine the category of the development by referring to section 1.1.5 (development categories).
- If the proposed development is 'exempt development' refer to State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 (E&CDC SEPP) and Schedule 2 *Exempt development* under the CLEP.
- The E&CDC SEPP is available for view/download from NSW Legislation web site at *www.legislation.nsw.gov.au*
- If the development is 'complying development' refer to the E&CDC SEPP .
- If the development is 'local development' proceed to Step 2.

Step 2

- Refer to Section 1.1.3 Land to which the Plan applies to find out which Volume of the Plan applies to your land.
- If Volume 2 applies, ensure that the development satisfies the objectives and design requirements of the relevant DCP under Volume 2 of the Plan.
- If Volume 2 does not apply, proceed to Step 3 below.

1.1 Introduction

Step 3

- Read Part 2 (Requirements applying to all development) and refer to Section 2.1 (Table 2.1 – Thresholds) to determine which sections are relevant to the development.

Step 4

- Read the relevant part of the Plan that applies to the development.
- Ensure that the development satisfies the objectives and design requirements of each relevant section.
- Ensure that all relevant action/management plans are prepared in accordance with the specifications within the relevant appendix

Engineering Design Guide for Development

The Plan is to be read in conjunction with the Engineering Design Guide for Development (EDGD). The EDGD forms an integral part of Council's planning document set and shall be adhered to in any development proposal. The EDGD sets out the minimum standards to be achieved and best practice should always be followed. All proposals will be assessed on technical merit.

1.1 Introduction

Important Note:

- **For definitions of terms used throughout Volume 1 of the Plan, refer to Section 1.4 Definitions of Volume 1.**
- **The majority of terms used throughout Volume 1 of the Plan are defined under the Dictionary of the CLEP.**
- **For definitions of terms used throughout Volume 3 of the Plan, refer to Section 1.2 Definitions of Volume 3.**
- **For acronyms and abbreviations used throughout the Plan refer to Section 1.5 Acronyms of Volume 1.**
- **All development proposals must comply with the relevant requirements of the Building Code of Australia.**

Note:

The Environmental Planning and Assessment Act 1979 and Regulation (2000) are available for view/download from the NSW legislation web site at:

www.legislation.nsw.gov.au

Note:

Figures included under this Plan are for illustration purposes only and are not to be interpreted or taken in any way or form as a development control.

1.2

Aims of the Plan

1.2 Aims of the Plan

The aims of the Plan are to:

- Ensure that the aims and objectives of the CLEP are complemented by the Plan;
- Ensure that the principles of ecological sustainability are incorporated into the design, construction and ongoing operation of development;
- Facilitate innovative development of high quality design and construction in the City of Campbelltown;
- Ensure that new development maintains or enhances the character and quality of the natural and built environment;
- Ensure that new development takes place on land that is capable of supporting the proposed development;
- Encourage the creation of safe, secure and liveable environments;
- Ensure that new development minimises the consumption of energy and other finite resources, to conserve environmental assets and to reduce greenhouse gas emissions; and
- Provide for the design requirements for a variety of housing within the City of Campbelltown.

1.3 Campbelltown 2025 and the Plan

Council has adopted *Campbelltown 2025 - Looking Forward*, an overarching town planning strategy that informs all Council planning policies. Campbelltown 2025 -*Looking Forward* aims to guide the planning decisions within the City to ensure that sustainable planning outcomes can be achieved.

Campbelltown 2025 Looking Forward contains a "vision" for the City, along with six (6) strategic directions to facilitate realisation of the vision.

The Plan has been developed to be consistent with and add value to the strategic directions:

a) Growing the Regional Centre.

b) Building a distinctive Campbelltown sense of place.

c) Protecting and enhancing the City's environmental assets.

d) Getting around the City.

e) Building and maintaining quality public infrastructure.

f) Creating education, employment and entrepreneurial activities.

1.3.1 The Vision

In 2025 we will live in a safe, prosperous, just, and proud community that enjoys a healthy lifestyle and access to high quality amenities.

We are proud to celebrate our diverse culture, creativity, and spirit at home with our families and at the places where and at the times when we come together as a community.

Prosperity and wellbeing stems from a diverse economy, where the skills of our workforce adapt to changes in emerging technology and markets. New enterprises are committed to the principles of cleaner production and environmental efficiency.

There is an emphasis on self-containment and sustainable community living. More than 50% of the people who live in Campbelltown City who are employed, work in Campbelltown. Business centres are a focus for community amenity and interaction, not just shopping centres. This has been assisted by the integration of in-centre living opportunities within the centres, as part of vibrant mixed use developments.

We move around our City and region in safe and environmentally sustainable ways, promoting public transport as the primary means of mobility. Integrated land use, development and transport planning minimises travel times and promotes more convenient access to amenities and employment areas.

The City has grown to be the 'hub' of the Greater South Western Sydney Region, where access to high level retail, commercial, education, health, community, recreation and cultural amenities is assured. This has been a major conduit for employment development, as has been the University of Western Sydney, the TAFE and the Campbelltown Hospital.

Campbelltown is renowned for its 'leading edge' built environmental character, setting it apart from other metropolitan localities. This is reinforced by a distinctive landscape quality incorporated into the design and treatment of urban environments including the preservation of indigenous vegetation and other natural landscape features. Our cultural heritage, indigenous and non-indigenous, is respected.

The bushland, the Scenic Hills, rural landscape settings, the rivers, and our unique flora and fauna have been protected in recognition of the valuable contribution they make to our quality of life, and the City's identity.

Scarce natural resources - water, soil and clean air, are now appropriately valued, and we use them wisely in the interests of future generations.

The City has achieved much and prospered. We have maintained our natural environmental qualities, yet built a contemporary and striking City image that is renowned across Sydney. New economic development opportunities have been secured and our community spirit and culture flourishes. The City of Campbelltown looks forward to a sustainable future.

1.4

Definitions

1.4 Definitions

Note:

- **The majority of terms used under the Plan are defined under the Dictionary of the CLEP.**
- **The definitions under this section of the Plan complement the definitions under the CLEP.**

Adaptable dwelling means a dwelling that is designed to be able to be adapted to accommodate, or is intended to be used permanently for seniors or people with a disability.

Adjoining land means:

- land that is adjacent to an allotment not in the same ownership; or
- land that is directly opposite another allotment; or
- land that is separated from another allotment only by a road, pathway, driveway, battle-axe handle, or the like.

Amenity means those qualities and characteristics of a site and its neighbouring area that contribute to the comfort and pleasantness of the local environment.

Asset protection zone means a buffer between development and bushfire hazards.

Average Recurrence Interval (ARI) means the average period between the recurrence of a storm event of a given rainfall intensity.

Battle-axe allotment means an allotment that does not have direct frontage to a public road other than via a driveway (handle).

Bin Storage Room means a room/s provided in a central location/s within a development to communally store the waste bins for that development.

Building Sustainability Index (BASIX) means a web-based planning tool designed to assess the potential performance of new development against a range of sustainability indices including landscape, stormwater, water, thermal comfort and energy.

Burra Charter (The Australia ICOMOS Charter for Places of Cultural Significance) means a guide for the conservation and management of places of cultural significance and is based on the knowledge and experience of Australian ICOMOS members (ICOMOS - International Council on Monuments and Sites).

Bushfire prone land means land which has been identified as bushfire prone land on the Campbelltown Bushfire Prone Lands Map as certified by the Commissioner of the NSW Rural Fire Service.

Bush rock means natural surface deposits of rock from rock outcrops or from areas of native vegetation. Rocks may be loose rocks on rock surfaces or on the soil surface, or may have been removed from rock outcrops by excavation or blasting. In the Campbelltown area, most bushrock is derived from either sandstone or shale formations. The removal of bushrock is listed as a key threatening process under state threatened species legislation.

Communal open space means the open space/landscaped area of a development used

or intended for use for recreation and relaxation purposes by residents or occupants and that is under the control of an owner corporation or similar organisation, which is not for the exclusive use of individual residents or occupants of any single dwelling. It does not include driveways, visitor parking spaces or private open space.

Conventional allotment means the creation of a Torrens Title allotment in which no dwellings are proposed as part of the development application.

Conservation management plan means a document prepared in accordance with the requirements of the NSW Heritage Office which establishes the heritage significance of an item, place or heritage conservation area and identifies conservation policies and management mechanisms that are appropriate to enable that significance to be retained.

Council Strategic Planning Document (CSPD) means the CLEP, the Plan, S94 Development Contribution Plan, S94A Development Contribution Plan, Planning Agreement and Plans of Managment prepared by, or on behalf of Council.

Crown means the portion of the tree consisting of branches and leaves and any part of the trunk from which branches arise.

Crown maintenance pruning means pruning that does not reduce the volume of the crown and retains the structure and size of the tree. It comprises deadwooding, crown thinning, and formative pruning.

Crown modification pruning means pruning that changes the form and habit of the tree.

Crown thinning means selective removal of small branches (less than 40 mm in circumference) that does not alter the overall size of the tree by more than 5%.

Dangerous tree means a tree that imposes a threat to a property or humans and/or:

- has substantial stem damage (e.g. more than 50 percent cross-section area stem damage);
- is in extreme declining health or unstable (e.g. more than 50 percent lateral roots damaged/unsound);
- has a split trunk.

Dead tree means a tree that is no longer capable of performing any of the following processes:

- Photosynthesis via its foliage crown (as indicated by the presence of moist, green or other coloured leaves);
- Osmosis (the ability of the root system to take up water);
- Turgidity (the ability of the plant to hold moisture in its cells);
- Epicormic shoots (the production of new shoots as a response to stress, generated from buds under the bark or from a lignotuber – at ground or underground stem).

Deadwooding means the removal of dead branches.

Deep soil planting means the area of land within the site that has at least 3 metres of soil directly below the whole surface of the area.

Domestic outbuilding means a building or structure used for purposes ancillary to the

main dwelling(s) on an allotment and includes awnings, pergolas, gazebos, garden sheds, garages, carports and the like, but does not include a swimming pool or a dwelling.

Dormer means a gabled extension built out from a sloping roof to accommodate a vertical window.

Dying Tree means a tree that has declined to a point that no remedial action will prevent death.

Environmental weed means a plant that adversely affects the integrity, conservation status, habitat characteristics and aesthetic values of natural eco-systems (including native and exotic species).

Flood Planning Level is the 100 year Average Recurrence Interval flood level plus freeboard in accordance with Table 4.1 of Council's Engineering Design for Development.

Flowpath means the overland route taken by any concentration of, or significant sheet flow of stormwater on its way to any drain or stormwater system, creek, river or flood plain in a storm.

Formative Pruning means pruning of young and establishing trees with the general aims of directing plant growth and/or developing a sound structure.

Freeboard means a factor of safety used in relation to the setting of floor levels. It makes allowance for wave action, localised hydraulic behaviour and stormwater system blockages.

Habitat resources means specific ecosystem elements that provide valuable foraging substrates and shelter sites that are important to the survival of a range of species and include hollow-bearing trees, hollow logs and bush rock.

Habitable room means a room used for normal domestic activities and includes a bedroom, living room, lounge room, music room, television room, rumpus room, sewing room, study, play room, family room, sunroom and the like. It excludes a garage, bathroom, laundry, water closet, pantry, walk in wardrobe, lobby, clothes drying room, and other spaces of a specialised nature that are not occupied frequently or for extended periods.

Hollow-bearing tree means trees where cavities have formed in the trunk or branches of a live or dead tree to provide wildlife with foraging, shelter, roosting and nesting habitat.

Hollow logs means terrestrial woody habitat that includes the accumulation of senescent trees, hollow-forming tree limbs and branches on the ground.

Injury and wilful destruction of vegetation means damage to vegetation and includes:

- Lopping and topping;
- Poisoning;
- Cutting, tearing, snapping and breaking of branches and roots that is not carried out in accordance with acceptable agricultural practices or is done for invalid reasons such as vandalism;
- Ring barking, scarring the bark when operating machinery, fixing objects (eg. signs) by nails, stables or wire, using tree climbing spikes in healthy trees or fastening materials that circle and significantly restrict the normal vascular function of the trunk or branches or making a blaze on a

tree as a marker point;

- Damaging the vegetation's root zone by compaction or excavation, stripping of top soils, burial, or the alteration of natural ground level or the water table which causes damage to the vegetation or any part of the vegetation.
- 'Under scrubbing', unless carried out by hand tools.

Leasable Floor Area means the gross floor area of a building excluding stairs, amenities, lifts, corridors and other public areas.

Lop or Lopping means cutting between branch unions or at internodes on growing vegetation with the final cut leaving a stub.

Noxious weed means a weed declared by an order under the Noxious Weeds Act 1993.

On-site service facilities means facilities that are required for the purposes providing electricity, sewerage, communication and the like. This includes aerials, satellite dishes cable broadband and other service media.

Other Vegetation means any plant life not defined by this Part as a tree and includes any sapling, shrub, scrub, understorey plants, ground cover (being any type of herbaceous vegetation) and plants occurring in a wetland that:

- Provides habitat or likely habitat for threatened species, populations and endangered ecological communities as defined within the Threatened Species Conservation Act; or
- Is located within a riparian zone or within 40 metres of the top bank of a creek, river, watercourse, wetland, stream or other aquatic habitat;
- Is located within a wildlife corridor as delineated within Council's Biodiversity Strategy;
- Is located within Koala habitat as delineated within Council's draft Koala Plan of Management; is located on land owned by Council or under its care, control and management;and
- Forms part of native vegetation.

Outbuilding means a building or structure used for purposes ancillary to the main dwelling(s) on an allotment and includes awnings, pergolas, gazebos, garden sheds, garages, carports and the like, but does not include a swimming pool or a dwelling.

Owner means:

- The person or persons listed on Council's rates file to be the owner of the land at the date of notification; or
- The owners corporation in the case of land that is within a strata scheme under the Strata Titles Act, 1973, or a Leasehold strata scheme under the Strata Titles (Leasehold) Act, 1986; or
- The Association in the case of land that is a community precinct or neighbourhood parcel within the meaning of the Community Land Development Act, 1989.

Parenting Facility means a room which is equipped with facilities for feeding (including

1.4 Definitions

breast feeding) and caring of babies/infants.

Place of Aboriginal heritage significance means a place that has the physical remains of pre-European occupation by, or is of contemporary significance to, the Aboriginal people.

Primary street means the area between the front elevation of the building/structure and the road to which it is orientated.

Privacy screen means:

i) a structure that provides a screen or visual barrier between a window of a habitable room or an outdoor area on a lot and an adjoining lot that:

– (i) has no individual opening more than 30mm wide, and

– (ii) has a total area of all openings that is no more than 30% of the surface area of the screen or barrier, or

ii) a window, the whole of which has translucent glass and is fixed and not able to be opened.

Prostitution means the provision of a sexual act or sexual service in return for payment or reward.

Pruning means any pruning that is not crown maintenance pruning and include Crown Modification Pruning as defined by AS 4373-(as amended).

Public consultation means the public exhibition and/or public notification of CSPDs or development applications.

Public domain means an area that is adjacent to the development site, which is under the care, control and/or ownership of a public authority.

Public exhibition means a formal public showing of information (whether by electronic means or displays of hard copies) that is in Council's opinion relevant to a draft Council Strategic Planning Document or a development application for a period of time and manner as prescribed under relevant sections of Part 9 of the Plan and any other relevant planning legislation.

Public notification means notifying property owners in writing of Councils Strategic Planning Documents and development applications.

Public submission means a letter, petition, email, fax or similar written representation received from individuals or groups of people regarding Councils Strategic Planning Documents or development applications.

Remove, Removal and Cutting Down means to dismantle vegetation for example by chainsaw, or to separate the vegetation from the ground where it is growing or dislodging it with earth-moving equipment in order to kill the vegetation, including its branches, foliage, trunk, stump and root system will not regrow. This includes the poisoning of the stump and/or roots and/or taking away, or grinding or burning out of its remains to prevent growth.

Secondary street means the area between the side and/or rear elevation/s of the building/structure and any additional road/s to which it adjoins.

Solar collectors means any building element or appliance specifically designed to capture or collect the suns rays for the benefit of the occupants {e.g. windows including clerestory

(or highlight) windows, solar hot water collector panels, photovoltaic (solar-electricity) cells/panels and the like}.

Suitably qualified person means a person who through suitable education and or experience, accreditation (trade or professional) and knowledge may be reasonably relied upon by Council to provide advice within an area of expertise related to the relevant task.

Treatment train means a sequential series of treatment processes that are designed to improve stormwater quality from its source to the point where it is released to a natural watercourse.

Threatened species, population or ecological community means a species, population or ecological community that is listed under the NSW Threatened Species Conservation Act 1995, Fisheries Management Act 1994 or the Commonwealth Environment Protection Biodiversity Conservation Act 1999.

Tree means a perennial plant with at least one self supporting stem which,

i) has a height of more than three (3) metres, or

ii) has an outside circumference of at least 500mm at ground level; or

iii) has a branch and foliage crown spread of at least 4 metres.

Vegetation means a tree or other vegetation.

Virgin Excavated Natural Material (VENM) means material (such as clay, gravel, sand, soil, and rock) that does not contain any other type of waste and which has been excavated from areas of land that are not contaminated with human-made chemicals as a result of industrial, commercial, mining or agricultural activities and which do not contain sulphuric ores or soils.

Waste Management Plan (WMP) means a plan demonstrating the details of how waste will be managed during the demolition, construction and ongoing operations of a development.

Waste Service Room means a room provided on each floor of a residential flat building to provide residents with convenient access to a disposal point for general waste and recycling streams.

Water Sensitive Urban Design (WSUD) seeks to ensure that development is carefully designed, constructed and maintained so as to minimise impacts on the natural water cycle. This can be achieved through a design approach that strives to maintain or replicate the natural watercycle through an incremental, “treatment train” approach, one that optimises the use of rainwater on site while minimising the amount of water transported from the catchment.

Wheel Out-Wheel Back means a service involving Council’s domestic waste collection contractor entering a property, collecting and emptying the 240 litre waste bins from storage areas and returning the bins to the bin storage area from where they were collected.

Zone of influence means the area likely to be influenced by building loads, and is a factor of the structure of the ground on which the building is to be located.

1.5 Acronyms

1.5. Acronyms

APZ	Asset Protection Zone
ARI	Average Recurrence Interval
BASIX	Building Sustainability Index
BCA	Building Code of Australia
CLEP	Campbelltown Local Environmental Plan 2015
CSPD	Council Strategic Planning Document
CPTED	Crime Prevention Through Environmental Design
DA	Development Application
DCP	Development Control Plan
E&CDC	State Environmental Planning Policy (Exempt and Complying Development Codes) 2008
EDGD	Engineering Design Guide for Development
ESD	Ecologically Sustainable Development
EP&A Act	Environmental Planning and Assessment Act 1979
EP&A Reg	Environmental Planning and Assessment Regulation 2000
EPI	Environmental Planning Instrument
FSR	Floor Space Ratio
GFA	Gross Floor Area
IDO	Interim Development Order
LEP	Local Environmental Plan
LG Act	Local Government Act 1993
LGA	Local Government Area
m	Metre
OEH	Office of Environment and Heritage
PoM	Plan of Management
RFDC	Residential Flat Design Code
RMS	Roads and Maritime Services (previously RTA)
SEPP	State Environmental Planning Policy
sqm	Square metre
WMP	Waste Management Plan
VENM	Virgin Excavated Natural Material

Part 2
Requirements Applying to all Types of Development

2.1
Application

2.1 Application

This Part contains general design requirements for development.

All development is required to conform to all relevant requirements contained in this Part. Table 2.1 below demonstrates which sections are relevant to the development having regard to the possible environmental impacts of the development by listing thresholds for each section. The table asks specific questions about the development and where the answer to a question is "Yes", the development shall consider the nominated section of the Plan.

Note: EDGD stands for Engineering Design Guide for Development which is available from Council's website at www.campbelltown.nsw.gov.au.

Note: The CLEP provides aims, objectives and requirements for a number of matters covered under this part including (but not limited to) heritage, salinity and flooding.

Table 2.1 Thresholds

Section	Question	Threshold
Site Analysis	Will the development involve the construction of a building or the Torrens title subdivision of land?	If yes, refer to 2.2
Views and Vistas	Will the development involve the construction of a building or the Torrens title subdivision of land?	If yes, refer to 2.3
Sustainable Building Design	Will the development involve the construction of a building?	If yes, refer to 2.4
Landscaping	Will the development involve the construction of a building or the Torrens title subdivision of land?	If yes, refer to 2.5
Weed Management	Is the site occupied by any noxious weeds (as listed in Appendix 3)? Will the development involve the construction of a building within land zoned for rural, waterway or environmental protection purposes?	If yes, refer to 2.6
Erosion and Sediment Control	Will the development involve: a) Disturbance of soil on the site? b) Any potential for the disturbance of soil on the site?	If yes, refer to 2.7 and the EDGD
Cut and Fill	Will the development involve: a) Any excavation of the site? b) Any filling of the site? Is the proposed development below or at flood planning level?	If yes, refer to 2.8 and the EDGD
Fill and Floor Levels	Will the development involve the construction of a building?	If yes, refer to 2.8 and the EDGD

Section	Question	Threshold
Demolition	Will the development involve any demolition?	If yes, refer to 2.9
Water Cycle Management	Will the development involve any of the following: a) A site that is below the flood planning level? b) A site that is within 40 metres of a water course? c) drains directly to a water course? d) is inundated by the predicted 100 year ARI event; or e) Work that is of a large residential scale (> 2000sqm site area) or any new commercial/ industrial building?	If yes, refer to 2.10 and the EDGD
Stormwater	Will the development involve the construction of a building or the Torrens title subdivision of land?	If yes, refer to 2.10 and the EDGD
Water Demand Management	Will the development involve the construction of a building or the Torrens title subdivision of land?	If yes, refer to 2.10
Heritage	Will the development involve: a) A site occupied by a heritage item? b) A site located near a heritage item? c) A site located within a heritage conservation area? d) An area located within an aboriginal place of heritage significance? e) an area that may have aboriginal objects?	If yes, refer to 2.11
Retaining Walls	Will the development involve: a) The construction of a retaining wall? b) The renovation of a retaining wall?	If yes, refer to 2.12 and the EDGD-
Security	Will the development involve the construction of a building?	If yes, refer to 2.13 and the EDGD-

2.1 Application

Section	Question	Threshold
Risk Management - Salinity	Will the development involve the construction of a building?	If yes, refer to 2.14.1
Risk Management - Bushfire	Will the development involve: a) Land identified as bushfire prone land on the Campbelltown Bushfire Prone Land Maps? b) Any activities in areas occupied by or adjoining areas of native vegetation?	If yes, refer to 2.14.2
Risk Management - Mine Subsidence	Will the development involve the construction of a building on a site located within South Campbelltown Mine subsidence district, or Appin Mine subsidence District?	If yes, refer to 2.14.3 and the EDGD
Risk Management - Public Health	Will the development involve the provision of cooling towers?	if yes, refer to 2.14.4
Waste Management	Will the development involve the construction of a building? Will the development involve the change of use of a building?	If yes refer to 2.15 and the EDGD
Provision of Services	Will the development involve land that is not currently serviced by water, electricity and/or waste water sewage services?	If yes refer to 2.16
Work On, Over or Near Public Land	Will the development involve work on, over or near public land?	If yes refer to 2.17
Land adjacent to Water NSW Upper Canal	Will the development involve work near Water NSW Upper Canal?	If yes refer to 2.18
Development near or on electricity easements	Will the development involve work on, over or near electricity easements?	If yes refer to 2.19
Land adjacent to or affected by a gas easement	Will the development involve work on, over or near gas easement?	If yes refer to 2.20
Accoustic Privacy	Will the development involve the construction of a building? Will the development involve the change of use of a building?	If yes refer to 2.21

2.2 Site Analysis

The site analysis is the foundation of good design and is used as an initial source of information upon which to base the design and configuration of development taking account of all environmental constraints and opportunities, as they relate to the unique features of the site and nearby land.

Objectives:

- Identify the constraints and opportunities for the development of the site.
- Provide an understanding of how the development relates to the site.
- Identify the capability and suitability of the site for development.

Design Requirements

a) A Site Analysis Plan shall be lodged with the development application for all development involving the construction of a building and the Torrens title subdivision of land. The scope of the site analysis will depend on the scale and nature of the development and shall address:

i) contours, slope and north point;

ii) existing landscaping and vegetation;

iii) existing buildings and structures;

iv) location of windows and other openings on adjoining buildings;

v) roads, access points, parking, and traffic management devices and the like;

vi) linkages; open space networks, pedestrian/cycle paths and the like;

vii) easements, services, existing infrastructure and utilities;

viii) hydraulic features, drainage lines, water features, drainage constraints, and the like;

ix) natural hazards (e.g. flooding, bushfire);

x) solar orientation, overshadowing,

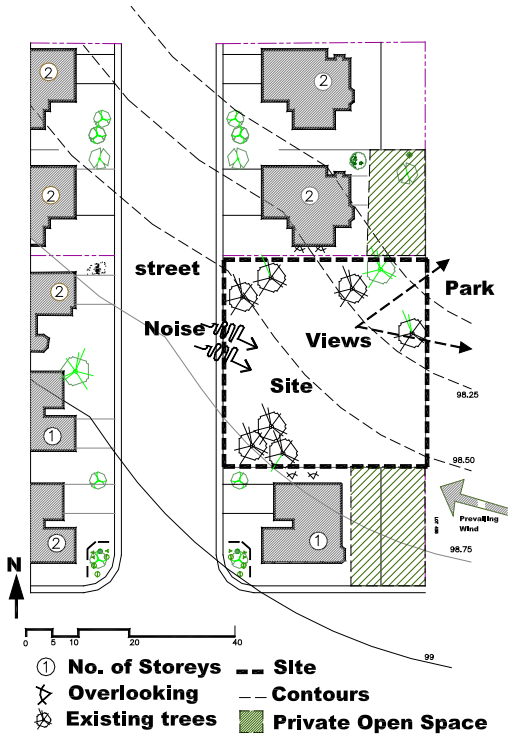

Figure 2.2.1 - Example of a site analysis plan.

2.2 Site Analysis

prevailing winds;

xi) views and vistas to, from and within the site;

xii) a streetscape analysis;

xiii) special environmental features such as threatened species habitat, endangered ecological communities and wetlands;

xiv) items and relics of and/or aboriginal place of heritage significance ; and

xv) any identified road widening applying to the subject land.

2.3 Views and Vistas

Objectives:

- Protect the scenic value of Campbelltown's natural and built environment.
- Protect significant views and vistas from and to public places.

Design Requirements

a) Development shall appropriately respond to Campbelltown's important views and vistas to and from public places. These include views and vistas to and from:

   i) the Scenic Hills;

   ii) rural/semi rural landscape areas;

   iii) the Georges and Nepean River corridors;

   iv) areas of significant public open space (formal and informal); and

   v) heritage items.

b) District views and existing significant view corridors as viewed to and from public places shall be protected.

c) The opportunity to create new view/ vista corridors shall be taken wherever possible and appropriate.

Figure 2.3.1 - Example of a significant view corridor.

Note:

In certain circumstances Council may require the preparation of a visual analysis study as part of a development application or a planning proposal.

2.4

Sustainable Building Design

2.4 Sustainable Building Design

Objectives:

- Encourage building design and siting to reduce energy consumption.
- Encourage the use of solar power in building design.
- Encourage the use of water recycling.
- Ensure that residential buildings meet the requirements of BASIX.

2.4.1 Rain Water Tanks

a) In addition to satisfying BASIX, residential development is encouraged to provide a rain water tank for new buildings.

b) A rain water tank shall be provided for all new buildings containing a roof area greater than 100sqm for all development not specified by BASIX. The rain water tank shall have a minimum capacity in accordance with Table 2.4.1.

c) All rainwater tanks shall comply with *AS3500 (as amended) - National Plumbing and Drainage Code Guidelines for Plumbing Associated with Rainwater Tanks in Urban Areas* and *Sydney Water's Guideline for Rainwater Tanks on Residential Properties*.

d) The rainwater tank incorporated in new commercial and industrial development exceeding 5,000sqm shall be connected to the plumbing in the building to provide water for toilets.

e) Where it is intended that the development be strata title subdivided, the tank shall be sited in a location to be common property.

f) Above ground water tanks shall be located behind the primary or secondary building line.

Figure 2.4.1 - An example of a domestic rainwater tank.

Figure 2.4.2 - Solar hot water panels facing north.

2.4.2 Solar Hot Water

a) All new buildings are encouraged to provide a solar hot water system.

b) Where the site is connected to the gas main, the solar hot water system is encouraged to be gas boosted.

2.4.3 Natural Ventilation

a) The design of new buildings shall be encouraged to maximise opportunities for cross flow ventilation, where practical, thus minimising the need for air conditioning.

2.4.4 Light Pollution

a) Outdoor lighting shall be designed to minimise pollution from the unnecessary dispersion of light into the night sky and neighbouring properties.

2.4.5 BASIX

The Building Sustainability Index (BASIX) is an interactive, internet-based planning tool designed to assess the potential performance of residential development against a range of sustainability indices. The focus of BASIX is on the key indices of water and energy, and the related indices of landscape, stormwater and thermal comfort, reflecting the NSW Government's decision to establish water consumption and greenhouse gas emission reduction targets for all new dwellings built in NSW.

For Development standards requirements for a BASIX certificate refer to www.basix.nsw.gov.au

Figure 2.4.3 - An example of a building that has been designed to maximise cross flow ventilation .

Note:

A BASIX Certificate is not required for relocatable homes. However, a BASIX Certificate would be required as part of a development application (or complying development certificate application) to install a flat-pack kit. For more information on this matter, refer to the Department of Planning and Environment website at:

www.planning.nsw.gov.au

Table 2.4.1 Rainwater Tank Capacity

Roof Area	Capacity of Rainwater Tank
101 m^2 to 200 m^2	3,000L
201 m^2 to 1,000 m^2	5,000L
1,001 m^2 to 5,000 m^2	10,000L
5,001 m^2 to 10,000 m^2	20,000L
10,001 m^2 to 20,000 m^2	50,000L
above 20,000 m^2	100,000L

2.5
Landscaping

2.5 Landscaping

Objectives:

- Maintain and rehabilitate the natural environment and assist in the conservation of Campbelltown's landscape character.
- Provide landscaping that complements the scale of development.
- Enhance the appearance of development.

Design Requirements

a) Landscape design shall enhance the visual character of the development and complement the design/use of spaces within and adjacent to the site.

b) Landscape design shall retain and enhance the existing native flora and fauna characteristics of a site wherever possible.

c) Landscape design shall add value to the quality and character of the streetscape.

d) A Landscape Concept Plan is required to be submitted with a development application for:

i) Semi-detached dwellings;

ii) dual occupancies;

iii) attached dwellings;

iv) multi dwelling housing;

v) residential flat buildings;

vi) mixed use development;

vii) boarding houses;

viii) shop top housing;

ix) child care centres;

x) places of Worship;

xi) commercial development;

xii) industrial development;and

xiii) any other development that in the opinion of Council a landscape plan

Figure 2.5.1 - Example of appropriate landscape treatment within the primary building setback.

Note:
An invasive species is a species occurring, as a result of human activities, beyond its accepted normal distribution and which threatens valued environmental, agricultural or other social resources by the damage it causes.

Note:
For information on native species refer to Council's Native Gardening Guide and Tree Planting Guide which are available at:

www.campbelltown.nsw.gov.au

is required.

e) The Landscape Concept Plan shall illustrate mature height, spread of species, trees to be removed/retained and shall be prepared by a suitably qualified person.

f) Landscaping shall maximise the use of locally indigenous and other drought tolerant native plants and avoid the use of invasive species.

2.6 Weed Management

Objectives:

- Ensure that weeds within Campbelltown LGA are managed in an ecologically sustainable manner.

a) A Weed Management Plan shall be submitted with any DA within land zoned for rural, environmental protection or waterways purposes that:

   i) is proposed on site of two (2) or more hectares in area; or

   ii) have a significant infestation of noxious or environmental weeds present

   iii) is within 100 metres of a watercourse;

b) Despite Clause 2.6 a) above, a weed management plan shall be prepared and submitted as part of a DA where Council is of the opinion that such a plan is needed.

Note : Refer to Appendix 2 of Volume One the Plan for the requirements of a Weed Management Plan.

Note : Refer to Appendix 3 of the Volume One of the Plan for a list of Noxious Weeds within the Campbelltown Local Government Area.

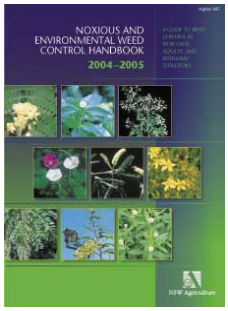

Figure 2.6.1 - Noxious and Environmental Weed Control Handbook (available for download from:www.dpi.nsw.gov.au/agriculture/pests-weeds/weeds/publications/noxious-enviro-weed-control

2.7
Erosion and Sediment Control

2.7 Erosion and Sediment Control

Objective:

- Ensure that any potential loss of soil from a site and/or into the stormwater system is prevented by means of:
    - appropriate planning prior to the start of construction works; and
    - the effective interception, diversion and control of stormwater within the site.

Design Requirements

a) An Erosion and Sediment Control Plan (ESCP) shall be prepared and submitted with a development application proposing construction and/or activities involving the disturbance of the land surface. For requirements relating to the preparation of an ESCP, refer to Appendix 5 of Volume 1 and *Council's Engineering Design Guide for Development available from Council's website at www.campbelltown.nsw.gov.au* .

b) Site activities shall be planned and managed to minimise soil disturbance.

c) Catch drains or diversion banks shall be designed and constructed to divert water around any area of soil disturbance.

d) All stockpiles shall be located within the sediment control zone and shall not be located within an overland flow path.

Figure 2.7.1 - Example of a stabilised, all weather access point.

2.8 Cut, Fill and Floor Levels

Objectives:

- Minimise the extent of earthworks associated with development.
- Ensure that development appropriately responds to site conditions with proper consideration given to land capability and privacy/amenity of adjoining properties.
- Ensure that excavation is minimised and properly retained.
- Ensure that adequate freeboard is provided to protect development from overland flows and flooding.

2.8.1 Cut and Fill

Design Requirements

a) A Cut and Fill Management Plan (CFMP) shall be submitted with a development application where the development incorporates cut and/or fill operations.

Note: For the requirements relating to a CFMP refer to Appendix 6.

b) For any dwellings within residential zones, the maximum level of cut shall not exceed 1.0 metre below the ground level (existing) and the maximum level of fill shall not exceed 1.0 metre above ground level (existing), when measured at any corner of the building platform.

c) Any excavation within the zone of influence of any other structure requires a 'dilapidation report' (prepared by a suitably qualified person) demonstrating that adequate ameliorative measures are to be implemented to protect the integrity of any structure.

d) Development incorporating any cut or fill shall comply with the following requirements:

   i) minimum cross fall of 1% to any adjoining waterway; and

   ii) batters to be no steeper than 2H:1V ('H' stands for the term 'horizontal distance' and 'V' stands for the

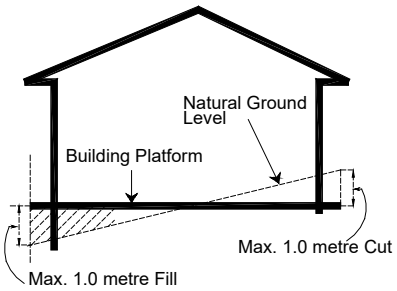

Figure 2.8.1 – Cross section of cut and fill on a residential site.

Note:

For additional information and requirements on how to address salinity, refer to Salinity Section of *Council's Engineering Design Guide for Development (available from Council's website at www.campbelltown.nsw.gov.au)*

term 'Vertical distance';

iii) batters to be no steeper than 6H:1V for public areas.

e) All fill shall be 'Virgin Excavated Natural Material' (VENM).

f) No fill shall be deposited in the vicinity of native vegetation.

g) All basement excavation shall be setback a minimum of 900mm from the property boundaries.

h) Provisions of basements shall not result in non-compliance with deep soil planting controls contained within this plan.

Note:

All filling works shall satisfy Council's Specification for Construction of Subdivision Roads and Drainage Works and AS 3798 Guidelines for Earthworks for Commercial and Residential Development (refer to Council's Engineering Design Guide for Development available from Council's website at www.campbelltown.nsw.gov.au.

2.8.2 Surface Water and Floor Levels

Design Requirements

a) Development shall not occur on land that is affected by the 100-year ARI event unless the development is consistent with the NSW Floodplain Development Manual.

b) All development on land affected by stormwater flow from main stream, local creek or over land flow shall satisfy the relevant fill and floor level requirements as specified in Table 2.8.1.

c) All development shall have a ground surface level, at or above a minimum, equal to the 100-year 'average recurrence interval' (ARI) flood level.

d) For development on land not affected by an overland flow path the minimum height of the slab above finished ground level shall be 150 mm, except in sandy, well-drained areas where the minimum height shall be 100mm. These heights can be reduced locally to 50mm near adjoining paved areas that slope away from the building in accordance with *AS 2870 (Residential Slabs and Footings Construction)*.

e) Buildings involving basements,

Figure 2.8.2 – Proposed building platform.

Note:

The minimum heights refer to under Clause 2.8.2 d) are to the top of the finished ground level after completion of paving and similar.

Note:

The development shall satisfy Sydney Water's requirements for 150mm clearance between finished floor level and the surface of the sewer surcharge gully.

hospitals, seniors living dwellings and educational establishment with more than 50 students shall comply with the provisions of Council's Engineering Design Guide for Development available from Council's website at www.campbelltown.nsw.gov.au.

f) Any solid fence constructed across an overland flow path shall be a minimum 100mm above the finished surface level of the overland flow path.

g) Where underground car parking is proposed, measures shall be taken in design and construction to ensure escape routes, pump out drainage systems (which include backup systems) and location of service utilities (including power, phone, lifts) are appropriately located in relation to the 100 year ARI event, in accordance with Section 4.13.8 of Council's Engineering Design Guide for Development available from Council's website at www.campbelltown.nsw.gov.au.

Note:

Any allotments located on land that has been filled, shall be burdened by an 88B restriction regarding that fill and shall be noted on the respective Section 149 certificate.

Table 2.8.1 Floor Level Requirements

Development Criteria	Where the depth of flow is:	Minimum Freeboard above the predicted 100yr ARI Flood level
Floor Level for any dwelling room* including all commercial or industrial areas	< 300mm	300mm
	> 300mm	500mm
Floor Level in relation to any creek or major stormwater line including detention basins for any dwelling room# including all commercial or industrial areas	Any depth	500mm
Garage or shed Floor Level**	<300mm	100mm
	>300mm	300mm
Underside of solid fencing where overland flow is to be accommodated	Any depth	100mm (min)

** For the purpose of Clause 2.8.2 b) 'a dwelling room' is any room within or attached to a dwelling excluding a garage or shed.*

*** Garages and sheds with floor levels set to these standards will not be permitted to be converted to dwelling rooms at any time in the future.*

2.9 Demolition

2.9 Demolition

Objectives:

- Ensure that demolition is carried out in accordance with the relevant legislation and guidelines.
- Ensure that demolition does not have an adverse impact on the environment, buildings, footpaths and roadways or upon the safety, health and well being of the community.

Design Requirements

a) A development application involving demolition shall be considered having regard to the following information:

   i) a detailed work plan prepared by a suitably qualified person, in accordance with AS2601-2001- The Demolition of Structures (as amended);

   ii) details of the licensed demolition contractor engaged to carry out the work (including name, address and building licence number);

   iii) a hazardous materials report that lists details of methods to prevent air, noise and water pollution and the escape of hazardous substances into the public domain;

   iv) details of any asbestos or other hazardous substances to be removed from the site and/or damaged during demolition; and

   v) a dilapidation report where any demolition work is to be undertaken within the zone of influence of any other structure.

b) Where appropriate, demolished materials shall be recycled for reuse on site.

Note: All demolition work shall comply with AS2601-2001 - The Demolition of Structures (as amended).

Figure 2.9.1 - Demolition waste materials separated and stored on-site until they are safely removed for reuse, recycling or disposal.

2.10 Water Cycle Management

Objectives:

- Ensure that water cycle management appropriately responds to site and water catchment conditions.
- Ensure that Water Sensitive Urban Design (WSUD) principles are incorporated into development.
- Retain and reinstate (where appropriate) the natural water course into stormwater management measures.
- Ensure that the development is protected from mainstream, local catchment and overland flow aspects of flooding.

2.10.1 Water Cycle Management

Design Requirements

a) A comprehensive Water Cycle Management Plan (WCMP) shall be prepared and submitted as part of a development application.

Note: For requirements relating to the preparation of a WCMP refer to Council's Engineering Design Guide for Development available from Council's website at www.campbelltown.nsw.gov.au .

Note: Refer to Table 2.1 Thresholds for when a WCMP is needed.

Figure 2.10.1 - Example of a WSUD approach to water quality.

2.10.2 Stormwater

Design Requirements

a) All stormwater systems shall be sized to accommodate the 100-year ARI event (refer to Section 4 of *Council's Engineering Design Guide for Development available from Council's website at www.campbelltown.nsw.gov.au.*

b) The design and certification of any stormwater system shall be undertaken by a suitably qualified person.

c) Water quality control structures shall be located generally off line to creek paths or other watercourses. Major

detention storages shall not be located on areas of native vegetation or within riparian areas.

d) Development shall not impact on adjoining sites by way of overland flow of stormwater unless an easement is provided. All overland flow shall be directed to designated overland flow paths such as roads.

e) Safe passage of the Probable Maximum Flood (PMF) shall be demonstrated for major systems.

f) A treatment train approach to water quality shall be incorporated into the design and construction of major systems.

g) A major/minor approach to drainage is to be taken for stormwater flows. Generally the piped drainage system shall be sized to accommodate the difference between the 100-year ARI flow and the maximum safe overland flow, with minimum requirements as set out in section 4 of *Council's Engineering Design Guide for Development available from Council's website at www.campbelltown.nsw.gov.au*.

h) Stormwater collected on a development site shall be disposed of (under gravity) directly to the street or to another Council drainage system/ device. Where stormwater cannot be discharged directly to a public drainage facility, a drainage easement of a suitable width shall be created over a downstream property(s) allowing for the provision of a drainage pipe of suitable size to adequately drain the proposed development to a public drainage facility.

Note: Rubble pits and charged lines are not generally considered a suitable drainage solution.

i) All proposed drainage structures incorporated within new development

Figure 2.10.2 - Water quality devices can improve water quality and give an important visual enhancement to a development area.

Note:

Refer to Appendix A14 - Obtaining a Stormwater Easement for additional information.

shall be designed to maintain public safety at all times.

j) Development shall not result in water run-off causing flooding or erosion on adjacent properties.

k) Stormwater run-off shall be appropriately channelled into a stormwater drain in accordance with *Council's Engineering Design Guide for Development available from Council's website at www.campbelltown.nsw.gov.au*.

l) Where applicable, the development shall incorporate the creation of an appropriate easement to manage stormwater in accordance with *Council's Engineering Design Guide for Development available from Council's website at www.campbelltown.nsw.gov.au*.

2.10.3 Stormwater Drainage

Design Requirements

a) A stormwater Drainage Concept Plan shall be prepared by a suitably qualified person, and submitted with all development applications, involving construction (except for internal alterations/fitouts), demonstrating to Council how the stormwater will be collected and discharged from the site.

b) The stormwater concept plan shall include the following information as a minimum:

   i) locations, layouts and sizes of stormwater pipes and pits;

   ii) minimum grades and capacity of stormwater pipes; and

   iii) existing and proposed easements, site contours and overland flow path/s.

2.11 Heritage Conservation

2.11 Heritage Conservation

Objectives:

- Ensure that new development takes appropriate account of the significance of heritage items, heritage conservation areas, relics and their settings.
- Respect the City's heritage resource.
- Promote the protection or conservation of those resources wherever possible.
- To conserve the environmental and cultural heritage of the City in accordance with the the principles contained within the Burra Charter.

2.11.1 Aboriginal Heritage

Design Requirements

a) All developments that have the potential to impact upon Aboriginal cultural heritage must provide an assessment in accordance with the "Due Diligence Code of Practice for the Protection of Aboriginal Objects in NSW", published by the Office of Environment and Heritage (OEH). This requires an initial investigation of the potential impact of a development on Aboriginal Cultural Heritage in circumstances where the proposed development involves disturbance to cultural sites (eg. Aboriginal culturally modified trees), or the ground surface. This initial investigation is to be undertaken by the applicant and requires an assessment of whether there are:

   i) any known Aboriginal sites within the development site (determined by undertaking a search of the Aboriginal Heritage Information Management System (AHIMS) database (which is maintained by the Office of Environment and Heritage); and/or

   ii) any other sources of relevant information of which a person is already aware; and/or

   iii) Whether the development is on a site that is not disturbed land and

Note:

The controls provided under this section are in addition to the requirements provided under Clause 5.10 *Heritage Conservation* of the CLEP.

Figure 2.11.1 - Aboriginal rock art.

is:

- within 200m of waters, or
- located on a ridge top, ridge line or headland, or
- located within 200m below or above a cliff face, or
- within 20m of/or in a cave, rock shelter, or a cave mouth.

b) Where the initial investigation confirms the presence or likely presence of Aboriginal objects or the above landscape features, further assessment and visual inspection must be conducted in accordance with the "Due Diligence Code of Practice for the Protection of Aboriginal Objects in NSW" by a person with expertise in Aboriginal cultural heritage management.

c) If this assessment indicates that there are, or are likely to be, Aboriginal objects, and/or an Aboriginal Place in the area of the proposed activity, more detailed investigation and an impact assessment shall be required and must be prepared by a person with expertise in Aboriginal cultural heritage management. Where it is determined that harm could occur to Aboriginal objects then an Aboriginal Heritage Impact Permit application must be made to the OEH (and be approved prior to works occurring).

d) The assessment shall be prepared in accordance with the following documents:

   i) Due Diligence Code of Practice for the Protection of Aboriginal Objects in NSW (2010);

   ii) Code of Practice for Archaeological Investigation of Aboriginal Objects in New South Wales (2010); and

   iii) Aboriginal cultural heritage consultation requirements for proponents 2010. Part 6 National

Note:

Land is disturbed *if it has been the subject of a human activity that has changed the land's surface, being changes that remain clear and observable. Examples of activities that may have disturbed land include the following:*

i) soil ploughing,

ii) construction of rural infrastructure (such as dams and fences),

iii) construction of roads, trails and tracks (including fire trails and tracks and walking tracks),

iv) clearing of vegetation,

v) construction of buildings and the erection of other structures,

vi) construction or installation of utilities and other similar services (such as above or below ground electrical infrastructure, water or sewerage pipelines, stormwater drainage and other similar infrastructure),

vii) substantial grazing involving the construction of rural infrastructure,

viii) construction of earthworks associated with anything referred to in paragraphs (ii-vii).

Source: National Parks and Wildlife Regulation 2009

Parks and Wildlife Act 1974 (2010).

e) The assessment shall take into account the following documents:

i) Operational Policy: Protecting Aboriginal Cultural Heritage (February 2009);

ii) OEH Guide to investigating, assessing and reporting on Aboriginal cultural heritage in NSW (2011).

Note: The Office of Environment and Heritage web site has further information about how to do a detailed investigation and Aboriginal Heritage Impact Permit applications (www.environment.nsw.gov.au).

Note. For the purpose of this Section:

Aboriginal culturally modified tree *means a tree that, before or concurrent with (or both) the occupation of the area in which the tree is located by persons of non-Aboriginal extraction, has been scarred, carved or modified by an Aboriginal person by:*

(a) the deliberate removal, by traditional methods, of bark or wood from the tree, or

(b) the deliberate modification, by traditional methods, of the wood of the tree.

Figure 2.11.2 - Rock shelters often contain artefacts in the form of rock art or occupation deposits.

2.11.2 Heritage

Design Requirements

a) Any development application made in respect to development on land that is:

   i) occupied by a heritage item; or

   ii) adjoining land occupied by a heritage item; or

   iii) located within a heritage conservation area,

   shall provide a Statement of Heritage Impact (SHI) that assesses the impact of the proposed development on the heritage significance, visual curtilage and setting of the heritage item or conservation area.

b) Any development on land occupied by an item of heritage, or land located within a heritage conservation area shall be designed by a suitably qualified person and have regard to the provisions of any relevant study or Conservation Management Plan (CMP) .

c) Unless otherwise advised by council, a Conservation Management Plan (CMP) shall be required for all proposed development involving the adaptive reuse of a heritage item, or major alterations and additions.

Note: The CMP shall be prepared by a suitably qualified person in accordance with the relevant guidelines of the NSW Office of Environment and Heritage.

Note: For requirements relating to the preparation of a heritage impact assessment report refer to Appendix 9.

Note: A Heritage Impact Statement must be prepared by a suitably qualified person in accordance with the document "Statements of Heritage Impact" published by the NSW Heritage Branch and available for view at:www.environment.nsw.gov.au

Note:

Additional site specific heritage development controls are included under Volume 2 Part 4 Site Specific Heritage Controls. The site specific heritage controls apply to the following heritage conservation area/heritage items and their curtilage:

- Queen Street Heritage Conservation Area;
- Woodcrest Heritage Item; and
- Raith Heritage Item.

Heritage Impact Statement is a document consisting of a statement demonstrating the heritage significance of a heritage item or heritage conservation area, or of a building work, archaeological site, tree or place within a heritage conservation area, an assessment of the impact that proposed development will have on that significance and proposals for measures to minimise impacts.

Figure 2.11.3 - Careful consideration shall be given to any development that has the potential to impact on items of heritage and their setting.

2.12 Retaining Walls

Objective:

- Ensure that retaining walls visible to a public place are compatible with the character and scale of development within the streetscape and other public domain areas in the locality.

Design Requirements

a) Any retaining wall that is not complying or exempt development as specified in the E&CDC shall be designed by a suitably qualified person.

b) In the case of retaining walls constructed to support proposed fill on an allotment, the following design criteria shall apply:

   i) No filling shall be permitted within 2 metres of any property boundary unless sufficient details are submitted to Council illustrating how privacy, overshadowing, stormwater management and access issues have been addressed to Council's satisfaction.

c) In the case of retaining walls constructed to support proposed cut on an allotment, the following design criteria shall apply:

   i) The retaining wall shall be setback a minimum of 450mm from the rear and side boundary of the lot containing the cut.

Note: Council will consider on merit, a zero setback of retaining walls, only where neighbours' consent has been obtained and submitted as part of the DA. This must include consent for the creation of a 900 mm maintenance easement over the neighbouring property.

d) Any retaining wall shall not adversely alter surface flows to adjoining private land.

e) Any retaining wall and associated

Figure 2.12.1 - Example of a retaining wall.

structures shall be designed to be located wholly within the property boundary, except where written or legal agreements have been reached between relevant parties to Council's satisfaction.

f) Any excavation within the zone of influence for any other structure or building requires a Structural Engineering Report (prepared by a suitably qualified professional) demonstrating that adequate and appropriate measures are to be implemented to protect the integrity of any structure.

g) Where retaining walls are proposed along the side boundary of the property, the side setback where the retaining wall is proposed shall be increased from0.9metres to 1.2 metres.

h) Any retaining wall requiring work on neighbouring properties shall require the consent of the adjoining owner/s.

i) Retaining walls higher than 600mm shall be designed by a structural engineer and made from appropriate material.

j) Any retaining wall(s) proposed on land designated as being bush fire prone must be constructed of non-combustible materials.

2.13
Security

2.13 Security

Objective:

- Ensure that development incorporates security features in accordance with the principles of Crime Prevention Through Environmental Design (CPTED) to:
    - minimise opportunities for crime; and
    - enhance security.

Design Requirements

a) Development shall be designed to:

i) maximise, where possible, casual surveillance opportunities to the street and surrounding public places;

ii) minimise dead ends and other possible entrapment areas;

iii) clearly identify and illuminate access points to buildings and designated public places; and

iv) clearly differentiate between private and public space.

b) External lighting shall be designed to:

i) encourage the use of safe areas;

ii) define safe corridors for movement of people; and

iii) allow facial recognition of approaching pedestrians at 15 metres.

c) Development shall incorporate appropriate landscaping, fencing and security devices to assist in crime prevention.

d) Commercial and industrial buildings that are not secured from public access after close of business shall have external finishes that are graffiti resistant.

e) Development applications for multi dwelling housing, attached dwellings residential flat buildings, mixed-use

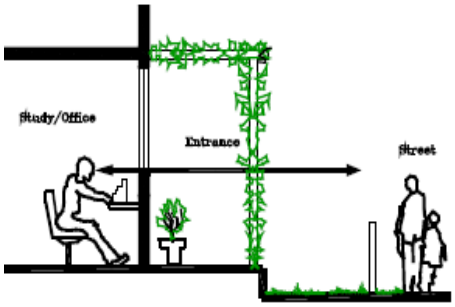

Figure 2.13.1 - Illustration of how buildings may be designed to provide for passive surveillance to and from a public place.

development, boarding houses, shop top housing, commercial development, industrial development and large scale subdivision comprising more than 10 dwellings/units allotments or incorporating works to be dedicated to Council shall be accompanied by a crime prevention plan to be prepared by a suitably qualified person addressing how the development embraces the principles of Crime Prevention Through Environmental Design.

Note: For requirements relating to the preparation of a Crime Prevention Plan refer to Appendix 13.

2.14

Risk Management

2.14 Risk Management

Objective:

- Ensure that hazards of the site are addressed so as to minimise the risk of:
    - injury to persons/property;
    - damage to the environment; and
    - financial loss.

2.14.1 Salinity

Design Requirements

a) Any development :

i) within 50 metres of the top of the bank of a watercourse;

ii) located in an area that has bare soil patches or salt scalds;

iii) occupied by soils that appear 'puffy' when dry, or greasy when wet;

iv) located in an area that is occupied by salt tolerant plant species;

v) located in an area that has white staining on nearby house foundations or walls; or

vi) located on soils that are derived from Wianamatta Shale;

shall be designed in accordance with Section 5.8 *Council's Engineering Design Guide for Development available from Council's website at www.campbelltown.nsw.gov.au*.

b) A detailed Salinity Analysis and Remedial Action Plan shall be prepared and submitted with the development application if:

i) the site has been identified as being subject to a salinity hazard; or

ii) an investigation reveals that the land is saline.

Figure 2.14.1 - Salt damage in the brickwork of buildings identifies a possible salinity problem in the area.

2.14.2 Bushfire

Design Requirements

a) Development shall be designed and located so as to minimise the risk of loss of life or property from bushfire.

b) Development on bush fire prone land (as detailed on the Campbelltown Bush Fire Prone Lands Map) shall comply with the requirements of *Planning for Bushfire Protection, (NSW Rural Fire Service) as amended*.

c) Development applications relating to land identified on the Bushfire Prone Land Map shall be accompanied by a Bushfire Hazard Assessment Report prepared by a suitably qualified person.

d) All 'Asset Protection Zones' shall be provided within the boundary of the subject land. National Parks, Crown Reserves, water catchments, easements, Council managed reserves, riparian corridors other private land shall not be considered as part of asset protection zones unless approved by the NSW Rural Fire Service.

e) Adequate water reserves for fire fighting shall be available and accessible on site as specified in *Planning for Bushfire Protection, as amended*. Hazard reduction (burning or mechanical) proposals shall be in accordance with the *Campbelltown Bush Fire Risk Management Plan and the Bush Fire Environmental Assessment Code*. Landowners wishing to undertake hazard reduction shall contact the *NSW Rural Fire Service (NSWRFS)* for any requirements. Applications to undertake hazard reduction will be assessed by the *NSWRFS* under the *Bushfire Environmental Assessment Code*. Guidelines for hazard reduction include:

   i) as far as possible, the frequency, time of year and intensity of any

hazard reduction burning in native vegetation is to approximate the natural regime; and

ii) periodic weed monitoring and control shall be undertaken after bushfires and hazard reduction burning, and appropriate action taken as necessary.

f) Any development proposing the removal of native vegetation for APZ purposes shall investigate the environmental impact of the removal of that vegetation.

Note:

Refer to Volume 1, Part 4 Rural Residential Development and Ancillary Rural Residential Structures—for additional specific requirements in relation to bushfire requirements.

2.14.3 Subsidence

Design Requirements

a) Any development on a site located within South Campbelltown Mine Subsidence District, or Appin Mine Subsidence District may be at risk of the effects of subsidence from past and/or future underground mining. An appropriate engineering outcome shall be achieved.

b) An applicant shall make appropriate enquiries and have plans stamped with the Mine Subsidence Board regarding any construction requirements for any type of development involving the erection of a building within a mine subsidence district prior to a development application being submitted to Council.

Note: A copy of the South Campbelltown Mine Subsidence District map can be inspected at Council's Civic Centre or at www.minesub.nsw.gov.au.

2.14.4 Public Health

Design Requirements

a) Cooling towers shall be located in accordance with the requirements of the following standards:

i) Australian Standard No. AS/NZS 3666 Part 1, *Air-Handling and Water Systems of Buildings-Microbial Control Installation and*

Commissioning (as amended).

ii) Australian Standard No. AS/NZS 3666 Part 2, *Air-Handling and Water Systems of Buildings-Microbial Control Operation and maintenance (as amended).*

iii) Australian Standard No. AS/NZS 3666 Part 3, *Air-Handling and Water Systems of Buildings-Microbial Control Performance-based maintenance of cooling water systems (as amended).*

2.15 Waste Management

Objectives:

- Ensure waste systems are easy to use and that, where necessary, collection vehicles are able to access buildings to remove waste.
- Ensure that developments meet requirements for long term sustainability and best practice.
- Ensure developments achieve effective waste and resource recovery management.
- Ensure that developments protect and enhance the quality of life for the community.
- Ensure healthy and safe practices for the storage, handling and collection of waste and recycling materials.
- Prevent stormwater pollution that may occur as a result of poor or incorrect storage and management arrangements for recyclables and waste.
- Promote the principles of Ecologically Sustainable Development through appropriate resource recovery and recycling, leading to a reduction in the consumption of finite natural resources.

2.15.1 Waste Management Plan

Design Requirements

a) A detailed Waste Management Plan (WMP), prepared by an appropriately qualified waste management professional, shall accompany development applications for certain types of development/land uses, as detailed in Table 2.15.1 and for any other development that in the opinion of Council a WMP is required.

b) Plans submitted with a development application shall detail the following (as applicable):

   i) the size and location of waste and recycling storage areas;

   ii) routes for occupants to access waste and recycling areas;

   iii) collection point and/or access route for collection vehicles;

iv) ventilation of waste and recycling storage areas;

v) location of garbage chute and service rooms;

vi) bin and storage area washing facilities; and

vii) occupants' disposal points for all waste streams.

Note: Waste Management Plan forms are available on Council's web site at www.campbelltown.nsw.gov.au.

Figure 2.15.1 – Example of management of construction waste.

2.15.2 Waste Management During Demolition and Construction

Design Requirements

a) Waste and recyclable streams shall be stored separately on site.

b) All storage areas/containers for each waste and recycling stream shall be kept on the site at all times and shall be indicated on the site plans/drawings as part of the WMP.

c) Where material cannot be reused or recycled, it shall be disposed of at an

Table 2.15.1 – Requirements for submitting a WMP

Development Type	Demolition	Construction	Ongoing
Dwelling houses (including secondary dwellings and out-buildings)	✓	✓	×
Dual occupancies, semi-detached dwellings	✓	✓	×
Multi dwelling housing, manor houses, attached dwellings	✓	✓	✓
Residential flat buildings and boarding houses	✓	✓	✓
Mixed use development	✓	✓	✓
Centre-based child care facilities	✓	✓	✓
Seniors housing and housing for people with a disability	✓	✓	✓
Building fit out	×	✓	✓
Commercial development	✓	✓	✓
Industrial development	✓	✓	✓

appropriately licensed waste management or recycling facility. Details of disposal arrangements shall be specified in the WMP for each material type.

d) Convenient and safe heavy vehicular access to waste and recycling material storage areas shall be provided.

e) The removal, handling and disposal of asbestos or other hazardous materials shall be carried out in accordance with WorkCover NSW, NSW Environment & Protection Authority (EPA), Office of Environment and Heritage and other regulatory authority guidelines and requirements.

2.15.3 On-going Waste Management

Design Requirements

a) Provision shall be made for all waste and recycling storage containers to be located behind the primary and secondary building line and out of public view.

b) Any room(s) for storing garbage and recycling recepticles shall be located in a position that provides convenient access for residents, maintanence and waste collection staff. Bin storage rooms shall complement the development and not be visibly obtrusive when viewed from any public place.

c) A waste collection point shall be nominated demonstrating that waste-loading operations can occur on a level surface not adjacent to steep gradients, vehicle ramps and pedestrian access points.

d) The path for wheeling bins between waste storage area(s) and the collection vehicle shall be free of steps or kerbs and have a maximum gradient of 1V:8H.

e) For safety and ease of manoeuvrability, the distance required for residents, building managers and caretakers to wheel bins to their collection point shall be the minimum achievable.

f) Where the bin-carting route from the storage area to the collection point exceeds the maximum distance or gradient, or a large

number of bins need to be moved around the site, a dock leveler, bin lift or tow tug device may be used.

g) Where any such device listed above is proposed to be used, details of the device and its proposed operation must be provided. This information must demonstrate that the device can be used safely by a nominated competent person, and that the use of the device will not conflict with other activities to be carried out on the site (such as vehicle access).

h) The maximum travel distance between any storage area/point and the collection point for all bins shall be 30 metres.

(Note: In accordance with Part 2.7 the EPA's "Better practice guide for resource recovery in residential development", dated April 2019.)

i) Where it is intended that collection vehicles are to drive onto private property to collect waste and recycling, the development shall be designed to provide for:

  i) the safe and efficient service of the development with minimal need to reverse;

  ii) adequate clearance to accommodate waste collection by a heavy rigid vehicle, in accordance with the dimensions detailed in Table 2.15.2.

  iii) vehicles to enter and exit in a forward direction;

  iv) pavement construction that is sufficient to withstand a heavy rigid collection vehicle of 24 tonnes gross vehicle mass.

Note: No waste incineration or waste compaction devices shall be located on the site.

j) Where bins are to be collected from the kerbside, at least 1.5m of clear and unobstructed footpath area per dwelling must be provided within the confines of the site's frontage (not impeding driveways or neighbouring lots) to allow for the presentation of bins and kerbside clean up material.

k) The bin storage area must be located in a

position that does not require any bins to be transported through any habitable room to reach the collection point.

l) A development must be designed in a manner that allows for servicing by Council's waste collection vehicles, regardless of the intended servicing arrangements.

2.15.4 Environmental Sustainability and Best Practice

Design Requirements

a) Systems shall be designed to maximize waste separation and resource recovery;

b) Innovative and best practice waste management collection systems and technologies shall be supported where appropriate; and

c) Designs shall be flexible to allow for future changes in waste generation rates, materials collected and methods of collection.

2.15.5 Effective Waste and Resource Management

a) Collection services shall occur in a safe and seamless manner;

b) Access to resource recovery and waste disposal services shall be safe and convenient for all residents; and

c) Functional and adequate storage spaces be provided for all waste and recycling streams, including temporary storage areas for bulky waste materials.

2.15.6 Clean, Safe and Healthy Living Environments

a) Negative impacts on amenity for residents, neighbours and the general public such as visually unpleasant waste storage areas, bad odours and noise from bin collection shall be minimised.

b) Illegal dumping and litter from bins shall be minimised through good planning and installation of adequate storage and waste recovery infrastructure.

c) Safe and easy access to waste and resource recovery storage areas shall be provided for residents, building managers and collection service providers.

d) All resource recovery and waste systems shall be easy to use and, where necessary, collection vehicles shall be able to safely enter sites and access buildings to remove waste and recyclables.

e) Healthy and safe practices for the storage, handling and collection of waste and recycling materials shall be provided.

2.15.7 Vehicle Turning Circles

a) Turning circles and clearances to kerbs, existing buildings or other obstructions shall be designed to accommodate the largest collection vehicle that could service the property (heavy rigid class in most cases).

b) Any turning circle considerations shall also include allowances for driver steering error (manoeuvring clearance) and overhangs. Better practice design always requires vehicle entry and exit from a development with the vehicle travelling in a forward direction.

c) Where there is a requirement for collection vehicles to turn at a cul-de- sac head within a development, the design shall incorporate either a bowl, T- or Y-shaped arrangement.

d) Vehicles shall not be required to make more than a three-point turn.

e) Vehicle turning circles can be reduced from those in the Table 2.15.3 by using mechanical turntable (or similar) equipment (subject to Council approval).

Note: A manual override will be required for any turntable. Turntables allow safe entry and exit for heavy vehicles in a forward direction where space is limited. Some RFBs have turntables fitted for cars and other small vehicles. A turntable for a waste collection vehicle needs to have an additional minimum 12.5m diameter circular clearance zone.

Figure 2.15.2- Example of Rear-loading waste collection vehicle

Figure 2.15.3 - Example of Side Loading Vehicle

Figure 2.15.4 - Example of Front-lift waste collection vehicle

2.15.8 Improving Resource Recovery

2.15

a) Waste management systems shall be convenient and simple to use.

b) Effective systems shall encourage proper use, reduce illegal dumping, maintain cleanliness and amenity of the building and its surrounds and reduce contamination.

Note: Contamination occurs when the incorrect items are placed in the wrong bin. High levels of contamination in recycling or organic bins are likely to result in materials being rejected at the recycling facility and ending up in landfill.

Table 2.15.2 - Indicative dimensions of waste collection vehicles

	Side loading collection vehicle	Front loading collection vehicle	Rear loading collection vehicle*
Overall length	10.4 metres	9.2 metres	8 metres
Overall width	2.5 metres	2.5 metres	2.5 metres
Operational height**	5.2 metres	6 metres	4 metres
Operational Width	4.65 metres	4.65 metres	4.65 metres
Travel height	4 metres	4 metres	4 metres
Weight (vehicle only)	13 tonnes	16.5 tonnes	13 tonnes
Weight (payload)	9.5 tonnes	11 tonnes	9.5 tonnes
Turning circle radius	12.5 metres	12.5 metres	12.5 metres
Wheel Base	5.5 metres	5.5 metres	5.5 metres

Note * These specifications are indicative only and may vary depending on vehicle brand, model, axle configuration etc.

* * The maximum reach of a side-arm is 3.0 metres; and ** Unobstructed height - refer to Figures 2.15.2, 2.15.3 and 2.15.4 for types of waste vehicles.

Table 2.15.3 - Vehicle Turning Circles

Vehicle Class	Length	Design Width	Design Turning Radius	Swept Circle	Travel Height
Medium rigid vehicle	8.8m	2.5m	10.0m	21.6m	4.5m
Heavy rigid vehicle	12.5m	2.5m	12.5m	27.8m	4.5m

Note:

Methods to encourage resource recovery and minimise contamination include:

- locating recycling and organics bins adjacent to waste bins;

- providing adequate storage space within each dwelling for sorting materials ready for disposal into the correct bin;

- providing separate bins for each dwelling, marked with the unit number to encourage ownership of bins;

- displaying information signs in common areas clearly identifying waste, recycling and organics bins and storage areas;

- using standard and consistent signage and colour coding that provides instruction on how to use each bin correctly; and

- having enough space to allow flexibility in services including space for additional recycling options – for example an organics bin or e-waste collection.

Table 2.15.4 - Commonly used bin types and sizes in the Campbelltown Local Government Area

Stream	Common single dwelling bin sizes	Common residential flatbuilding sizes	Common bin lid colour coding
Household Garbage	140L	240L, 660L, 1100L	Red
Co-mingled recyclables	240L	240L	Yellow
Garden organics	240L	240L	Green/Lime Green

2.15

2.15.9 Bin Storage Areas

a) The design of the bin storage areas shall be considered early in the design process so that they can be successfully integrated into the overall design of the development and are convenient for all users.

b) Sufficient areas/space shall be made available within the property boundary to store the range of bins for the quantity of waste, recycling and organics (and other materials where appropriate) likely to be generated between collections.

c) Residents shall not be required to walk more than a maximum distance of 30m to access the bin storage area.

Refer to Part 2.7 'Better Practice Guide for Resource Recovery in Residential Developments, April 2019, for more information on bin storage area.

Note:

Refer to Appendix B (pp 75-79) of the EPA's "Better Practice Guide for Resource Recovery in Residential Developments", April 2019, for further details regarding collection service design issues that should be considered such as vehicle access, loading areas, bin carting route and road surfaces.

Refer to Appendix H (pp 110-111) of the EPA's "Better Practice Guide for Resource Recovery in Residential Developments", April 2019, for further details regarding access and turning circle requirements.

Table 2.15.6 - Bin-carting design standards

Bin capacity	Up to 360L	360L - 1100L	More than 1100L
Maximum distance	30m	5m	3m
Maximum surface grades	1:14	1:14	1:30
Steps or kerbs	None	None	None

Table 2.15.7 - Average dimension ranges for two-wheel mobile bins

Bin capacity	80L	120L	140L	240L	360L
Height(mm)	870mm	940mm	1,650mm	1,080mm	1,100mm
Depth (mm)	530mm	530mm	615mm	735mm	850mm
Width (mm)	450mm	485mm	535mm	585mm	680mm
Approx. footprint (sqm)	0.24sqm	0.26 - 0.33 sqm	0.27 - 0.33 sqm	0.41 - 0.43 sqm	0.49 sqm
Approx. Weight (kg)	8.5 kgs	9.5kgs	10.4kgs	15.5kgs	20kgs
Approx.(Max Load)	23kgs	48kgs	56kgs	96kgs	140kgs

Table 2.15.8 - Average dimension ranges for selected four-wheel bulk bins

Bin capacity	660L	1,100L
Height(mm)	1,250mm	1,245mm
Width (mm)	1,370mm	1,370mm
Approx. footprint (sqm)	0.86 - 1.16 sqm	1.33 - 1.74 sqm
Approx. Weight (kg)	45kgs	65gs
Approx.(Max Load)	310kgs	440kgs

2.16 Provision of Services

2.16 Provision of Services

Objectives:

- Ensure that development is provided with adequate water and power supply.
- Ensure that the operations, installation and maintenance of on-site sewage systems do not:
    - impose risks on public health;
    - result in any potential contamination to groundwater, and natural and artificial watercourses.
    - result in degradation of soil structure.

2.16.1 Water

Design Requirements

a) Where connection to the reticulated water supply system is not available, development shall be provided with:

   i) sufficient water storage to cater for all relevant activities of the proposed use of the development;

   ii) sufficient storage for fire fighting purposes in accordance with Planning for Bushfire Protection 2006, NSW Rural Fire Service.

Note: Water reserved for fire fighting may be stored in an above water tank, underground water tank, a dam or a swimming pool, no further than 30 metres from the proposed development and is within a 4 metre reach of a Category one tanker.

Note:

Refer to Parts 6 Urban Release Areas and Clause 7.1 Essential Services of the CLEP.

2.16.2 Electricity

a) Details of the proposed method of power supply shall be provided as part of the development application for any development involving the construction of a building within rural and environmental protection zones.

b) Any structure associated with the provision of electricity shall not result in any adverse impacts on the natural environment and/or adjoining properties.

2.16.3 On-Site Wastewater Sewage Management

a) On-site Wastewater Management Systems and Private Recycled Water Schemes shall comply with the following codes and standards:

i) Council's Wastewater Management and Water Recycling Strategy 2009;

ii) Environmental & Health Protection Guidelines: On-site Sewage Management for Single Households 1998;

iii) NSW Guidelines for the Management of Private Recycled Water Schemes 2008;

iv) NSW Guidelines for Greywater Reuse in Sewered, Single Household Residential Premises 2007;

v) the then Department of Environment & Conservation NSW, Environmental Guidelines Use of Effluent by Irrigation, 2004;

vi) AS/NZS 1547:On-site Domestic Wastewater Management (as amended);

vii) AS/NZS 3500 National Plumbing and Drainage Standards and NSW Code of Practice - Plumbing and Drainage (as amended);

viii) AS/NZS 1546.1 On-site domestic wastewater treatment units Part 1: Septic Tanks (as amended);

ix) AS/NZS 1546.2 On-site domestic wastewater treatment units Part 2: Waterless composting toilet (as amended);

x) AS/NZS 1546.3: On-site domestic wastewater treatment units Part 3:Aerated Wastewater treatment systems (as amended);

xi) AS/NZS 3500 National Plumbing and Drainage Standard (as amended);

xii) National Water Quality Management Strategy-Australian Guidelines for Water Recycling (Phase 1) 2006; and

xiii) National Water Quality Management Strategy-Australian Guidelines for Water Recycling Stormwater Harvesting and Reuse 2009.

b) All development applications for an on-site wastewater management system or private recycled water scheme shall be accompanied by a site specific wastewater report for all wastewater facilities located on the premises. The report shall be prepared by a suitably qualified person/company specialising in wastewater and water recycling systems in accordance with Council's Wastewater Management and Water Recycling Strategy 2009.

c) The type of wastewater management system and method of reclaimed effluent application shall be determined having regards to the following:

i) allotment size and slope;

ii) soil classification; and

iii) proximity to water courses.

d) The connection of an existing septic tank to a single tank Aerated Wastewater Treatment System will be assessed on its merits providing that the existing septic tank is structurally sound in accordance with Council's requirements and specifications.

e) On-site Wastewater Management Systems & Private Recycled Water Schemes shall be designed, installed, operated and maintained in accordance with the manufacturer's specifications.

Note: Council's Minimum Requirements for a site specific Wastewater Management On-Site System Report Guidelines and Council's Waste water Management and Water Recycling Strategy 2009 are available for download from Council's website at www.

campbelltown.nsw.gov.au.

f) All wastewater management systems and private recycled water schemes shall be provided with the following minimum buffer distance:

   i) 100 metres to permanent surface waters;

   ii) 250 metres to domestic groundwater well; and

   iii) 40 metres to other waters

2.17 Work On, Over or Near Public Land

Objectives:

- Protect public health and safety.
- Ensure that Council assets and infrastructure are protected.
- Ensure proper management of traffic during the construction phase of development.

2.17.1 Approval Required Prior to Working On or Over Public Land

Design Requirements

a) Written approval shall be obtained from Council, prior to the commencement of any works, activities or occupancy upon public land, including roads, road related areas, stormwater connections, Council car parks, footpaths or nature strips.

Note: Written approval under Clause 2.17.1a) may be in the form of a road occupancy approval, standing plant approval or work zone approval depending upon the intended activities. Further information about the type of approval required can be obtained by contacting Council's Customer Service Centre on (02) 4645 4000.

Note: Failure to obtain written approval prior to the carrying out of works, activities or occupancy upon public land may result in

2.17 Work On, Over or Near Public Land

Council taking enforcement action.

2.17.2 Working Near Public Land

Design Requirements

a) Not withstanding clause 2.17.1 a) a hoarding or fence shall be erected between the work site and a public place where:

   i) the work involved in the development is likely to cause pedestrian or vehicle traffic in a public place to be obstructed or altered; and/or

   ii) the building involves the enclosure of a public place in accordance with Work Cover requirements

b) Where a hoarding fence is required to be erected upon public land, including any road, road related area, footpath or nature strip, prior written approval shall be obtained from Council.

c) Where the site work is likely to be hazardous to persons on a public place, the work site shall be kept lit between the sunset and sunrise.

2.17.3 Excavation Work Near State Roads

a) Any proposal that includes excavation works adjacent to a State Road shall be accompanied by detailed geotechnical report relating to the proposed excavation of the site and support structures to RMS's satisfaction.

2.18 Work on Land Adjacent to the Upper Canal Corridor

Objectives:

- Ensure that the Upper Canal is taken into account in siting, designing and constructing any proposed development adjoining or in the vicinity of the Canal
- Ensure that development adjacent to the Upper Canal corridor does not impact on the continued operation of the Canal infrastructure.
- Provide for the safety and amenity of the public living or visiting areas adjacent to the upper Canal.
- Protect water quality by preventing stormwater or other pollutants entering the Upper Canal system.
- Ensure that development adjacent to the Upper Canal corridor considers and responds to its heritage value.

Design Requirements

a) Where subdivision or major development (other than individual residential dwellings and ancillary structures) is proposed adjacent to the Upper Canal corridor, applicants shall consult with Water NSW as part of the process of preparing the development application.

b) Any written requirements of Water NSW shall be submitted with the development application and the development application documentation shall show how the requirements have been addressed.

c) Prior written approval shall be obtained from Water NSW for any access that may be required to the Upper Canal corridor during the construction phase.

d) Access points to the Upper Canal for Water NSW staff and contractors to carry out inspections and maintenance shall be retained or provided in accordance with Water NSW requirements.

e) Site preparation and construction works carried out adjacent to or crossing the Upper Canal shall avoid impacting on water quality and damaging the Canal

Note:

Applicants are advised to refer to Water NSW publication "Guidelines for development adjacent to the Upper Canal and Warragamba Pipelines" when preparing development applications for land adjacent to the Upper Canal.

Note:

The Upper Canal is owned and managed by Water NSW and is located on land classified as a controlled area under Water NSW Act 2014. The Canal begins at Pheasants Nest Weir on the Nepean River and transfers water from the Upper Nepean dams to the Prospect Water Filtration Plant to supply a significant part of Sydney's drinking water. The upper Canal is historically significant having functioned as part of Sydney's main water supply system for more than 120 years and is listed on the State Heritage Register.

2.18

Work on land adjacent to the Upper Canal Corridor

infrastructure, in accordance with Water NSW requirements.

f) Stormwater systems serving development adjacent to the Upper Canal shall be designed to ensure that stormwater does not enter the Canal. Stormwater management measures shall accommodate and not impede upstream flows from any systems that convey stormwater across, along or under the Upper Canal.

g) Appropriate security fencing shall be provided, or existing security fencing retained along the length of development boundaries that directly adjoin the Upper Canal corridor boundary, in accordance with Water NSW requirements.

h) Road, pedestrian and cycleway crossings of the Upper Canal shall be minimised and located and designed in accordance with Water NSW requirements.

i) A local road shall be provided, or existing roads retained, between development and the Upper Canal corridor. The road shall contain a landscaped verge or footpath/bicycle path between the road carriageway and Canal corridor.

j) The State Heritage status of the Upper Canal shall be taken into account when designing development adjacent to the Canal corridor.

2.19 Development Near or on Electricity Easements

Objectives:

- Ensure that development on or near electricity easements considers potential impacts on the integrity and safety of electricity infrastructure.
- Ensure reasonable standards of public amenity and a high quality public domain in the vicinity of electricity easements.
- Ensure reasonable standards of residential amenity and a high quality residential environment in the vicinity of electricity easements.

Design Requirements

a) Wherever possible electrical easements are to be located within open space corridors.

b) Council may consider accepting dedication of land within the electrical easement where the subdivision is in accordance with an approved subdivision or layout/plan for the site.

c) Restrictions apply to planting and erection of raised public domain elements (such as light poles) and are identified in the Mains Maintenance Instruction MMI 0015 - Management of Endeavour Energy's electrical easements (Endeavour Energy, 2011) or as revised for design requirements.

d) All proposed activities within electricity easements require approval from the relevant utility providers. Applicants shall consult with these agencies and obtain the relevant approvals prior to submitting a DA to Council.

e) Evidence of approval from the relevant utility provider shall be submitted with the DA.

f) Subdivision of residential land containing easements shall be minimised.

2.20

Development on land adjacent to, or affected by gas easement

2.20 Development on Land Adjacent to, or Affected by a Gas Easement

Objectives:

- Ensure reasonable standards of residential amenity and safety and a high quality residential environment in the vicinity of high pressure gas easements.
- To ensure adverse noise and vibration impacts are appropriately mitigated.

Design Requirements

a) Development and use of land within the easement is restricted by the conditions of the easement and applicants shall demonstrate compliance with any restrictions imposed by the easement when submitting applications for development. In order to demonstrate compliance with the above requirement, the applicant shall supply documentation that details discussions undertaken with the utility providers/ easement beneficiaries during the design phase of the development.

b) The following development within the easement shall be referred to the relevant utility provider for approval prior to any works being commenced, and evidence of the utility provider's agreement must be submitted with the DA:

   i) Excavation, blasting or other earthworks;

   ii) Any improvements or installations (e.g. buildings, roads, footpaths fencing or other structures)

   iii) Transport or parking of heavy vehicles.

   iv) Planting or cultivating trees within five metres of the pipeline.

c) Dwellings and other buildings are to be located outside the easement.

d) The easement may be located in backyards or at the side of dwellings

providing that access to the easement for inspections and maintenance is not unduly restricted and with the approval of the relevant utility provider, where necessary.

e) Subdivision of land containing easements shall be minimised, however battle-axe lots may be appropriate in some locations to maximise the development potential of land while avoiding impacts on the easement.

f) Reference shall be made to AS2885 in relation to sensitive land uses that may be restricted within a certain distance (referred to as the Zone of Influence) of the gas pipeline. Sensitive land uses include (but are not limited to) schools, hospitals, aged care facilities and community facilities. Applicants should consult with the organisation responsible for the gas pipeline to determine specific requirements.

g) Development shall be to the satisfaction of the relevant utility provider.

2.20

Accoustic Privacy

2.21 Accoustic Privacy

Objectives:

- To ensure the provision of a reasonable level of acoustic amenity.
- To ensure adverse noise and vibration impacts are appropriately mitigated.

Design Requirements

a) Development shall comply with any relevant provisions in the following documents. The event of an inconsistency between the noise related controls in this plan and the documents below, the documents below prevail to the extent of the inconsistency.

   i) The NSW Noise Policy for Industry (NPfI)

   ii) The NSW Road Noise Policy

   iii) The NSW Development Near Rail Corridors and Busy Roads - Interim Guideline

   iv) Association of Australasian Acoustical Consultants Guideline for Child Care Centre Acoustic Assessment

b) A Noise Impact Assessment prepared by a suitably qualified acoustic consultant will be required in cases where the consent authority is not satisfied that a development will:

   i) Achieve a satisfactory level of acoustic amenity for occupants within the existing noise environment; and

   ii) Produce noise only at levels that will not exceed the relevant noise criteria.

c) Subdivisions shall be designed to avoid physical noise barriers except along arterial roads.

d) For development noise not regulated by the documents listed at point (a) above,

the following criteria apply (after applying any corrections for annoying characteristics in accordance with the NPfI):

Intrusion Criteria (L_{Aeq})

Character of the Locality	Character of the Noise			
	Industrial, Plant & Mechanical	Hotels, Pubs, Clubs	Recreation, Schools, Childcare, Places of Worship	Animals
Urban Residential	L_{A90} + 5dB	L_{A90} + 5dB	L_{A90} + 10dB	L_{A90} + 5dB
Rural	L_{A90} + 5dB	L_{A90} + 5dB	L_{A90} + 10dB	L_{A90} + 10dB
Commercial	L_{A90} + 5dB	L_{A90} + 10dB	SafeWork NSW Limits	L_{A90} + 10dB
Industrial	L_{A90} + 5dB	SafeWork NSW Limits	SafeWork NSW Limits	SafeWork NSW Limits

Amenity Criteria (L_{Aeq})

Character of the Locality	Character of the Noise			
	Industrial, Plant & Mechanical	Hotels, Pubs, Clubs	Recreation, Schools, Childcare, Places of Worship	Rural, Agricultural, Animals
Urban Residential	NPfI Table 2.2	NPfI Table 2.2	NPfI Table 2.2 + 5dB	NPfI Table 2.2
Rural	NPfI Table 2.2	NPfI Table 2.2	NPfI Table 2.2 + 5dB	NPfI Table 2.2 + 5dB
Commercial	NPfI Table 2.2	NPfI Table 2.2 + 5dB	NA	NPfI Table 2.2 + 5dB
Industrial	NPfI Table 2.2	NA	NA	NA

Sleep Disturbance Criteria (L_{Aeq}/L_{Amax})

All cases, between 10pm and 7am (Mondays to Saturdays) and 10pm and 8am (Sundays and Public Holidays):

L_{Aeq} the greater of L_{A90} + 5dB and 40dB

L_{Amax} the greater of L_{A90} + 15dB and 52dB

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Part 3

Low and Medium Density Residential Development and Ancillary Residential Structures

3.1
Application

3.1 Application

Part 3 sets out the following:

- Desired future character of low and medium density residential neighbourhoods;
- General Requirements for all Types of Residential Development in areas zoned R2, R3, R4 and R5;
- Development controls for the following ancillary residential structures in areas zoned R2, R3, R4 and R5 where they are associated with low and medium density residential development:
  - fencing;
  - outbuildings; and
  - swimming pools/spas;
- Development controls for the following low density residential development in areas zoned R2, R3, R4 and R5 :
  - dwelling houses in areas zoned R2 and R3;
  - secondary dwellings in areas zoned R2, R3, R4 and R5;
  - dual occupancies (attached and detached) in areas zoned R2 and R3 and dual occupancies (attached) in areas zoned R5;
  - semi-detached dwellings in areas zoned R2 and R3; and
  - attached dwellings in areas zoned R2.
- Development controls for the following medium density residential development in areas zoned R3 :
  - attached dwellings in areas zoned R3; and
  - multi dwelling housing in areas zoned R3; and
- Development controls for residential subdivision

The design requirements contained within this part are to be read in conjunction with the provisions contained in Part 2 of Volume 1.

Zone Acronyms

R2 Low Density Residential: R2

R3 Medium Density Residential: R3

R4 High Density Residential: R4

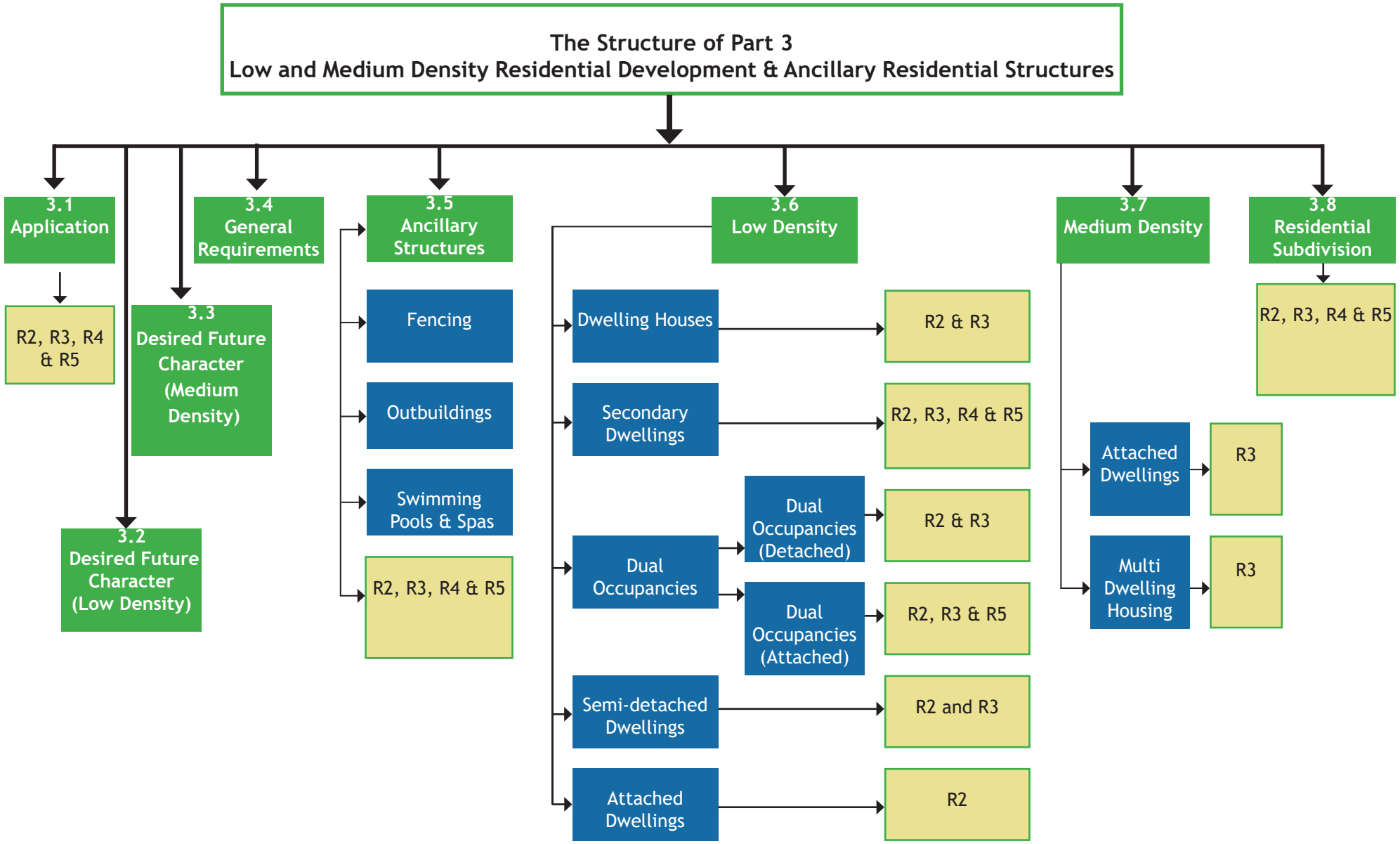
R5 Large Lot Residential: R5

Note:

Numerical Development Standards for floor space ratios, building heights, qualifying site areas and minimum subdivision are provided under the CLEP.

Note:

Figures included under this Plan are for illustration purposes only and are not to be interpreted or taken in any way or form as a development control.


The Structure of Part 3
Low and Medium Density Residential Development & Ancillary Residential Structures
3.1 Application
R2, R3, R4 & R5
3.2 Desired Future Character (Low Density)
3.3 Desired Future Character (Medium Density)
3.4 General Requirements
3.5 Ancillary Structures
Fencing
Outbuildings
Swimming Pools & Spas
R2, R3, R4 & R5
3.6 Low Density
Dwelling Houses
R2 & R3
Secondary Dwellings
R2, R3, R4 & R5
Dual Occupancies
Dual Occupancies (Detached)
R2 & R3
Dual Occupancies (Attached)
R2, R3 & R5
Semi-detached Dwellings
R2 and R3
Attached Dwellings
R2
3.7 Medium Density
Attached Dwellings
R3
Multi Dwelling Housing
R3
3.8 Residential Subdivision
R2, R3, R4 & R5

3.2

Desired Future Character for Low Density Residential Neighbourhoods

3.2 Desired Future Character for Low Density Residential Neighbourhoods

The low density residential neighbourhoods shall continue to be characterised by:

- one and two storey dwelling houses that are designed to provide a high level of residential amenity for their occupants and the occupants of adjoining properties;
- streetscapes where buildings are setback from the primary street frontage to provide opportunities for deep soil planting and landscaping; and
- articulated front facades where garages are setback and do not dominate the streetscapes; and
- limited stock of multi dwelling housing and attached dwellings that:
  - respect the existing character of the low density neighbourhoods; and
  - are of low scale and density.

Note:

For the purpose of this part, low density residential development means any of the following:

- a dwelling house;
- a secondary dwelling;
- a dual occupancy (attached or detached);
- a semi-detached dwelling; or
- attached dwellings in areas zoned R2.

Figure 3.2.1 - Examples of streetscapes within existing low density residential neighbourhoods of Glen Alpine and Raby.

3.3 Desired Future Character for Medium Density Residential Neighbourhoods

The medium density residential neighbourhoods shall be characterised by:

- medium density housing comprising two storey attached dwellings and multi dwelling housing in a landscaped setting with additional habitable areas provided within the roof space;
- development footprints that are sited to achieve setbacks to boundaries and provide for landscaping and private open space;
- articulated front facades where garages and car parking spaces are setback and do not dominate the streetscapes;
- active residential facades with balconies;
- soft landscaping along communal driveways and the front boundary;
- a high standard of architectural merit and urban design quality buildings; and
- development that incorporates a mix of dwelling sizes to provide housing choice.

Note:

For the purpose of this part, medium density residential development means any of the following:

- attached dwellings in areas zoned R3; or
- multi dwelling housing in areas zoned R3.

Note:

Clause 7.13 Design Excellence of the CLEP applies to zones R3, R4, B2, B3 and B4 and aims to deliver the highest standard of architectural and urban design, as part of the built environment.

Figure 3.3.1 - Examples of a medium density development.

3.4

General Requirements for all Types of Residential Development

3.4.1 Building Form & Character

3.4 General Requirements for Low and Medium Density Residential Development - Zones R2, R3, R4 and R5

This Section provides general development controls for low and medium density residential developments within areas zoned R2, R3, R4 and R5.

3.4.1 Building Form and Character

Objectives:

- Ensure that the massing and scale of new development are complementary to the desired future character of residential neighbourhoods.
- Ensure that buildings are designed to enhance the existing and future desired built form and character of the neighbourhood by encouraging innovative and quality designs that fit harmoniously with their surroundings.
- Ensure that parking areas, garages and driveways are appropriately sited, designed and constructed so that they do not detract from the appearance of the development or the streetscape.
- Ensure the provision of equitable access to natural light and ventilation for the occupants of all residential dwellings.

3.4.1.1 Streetscape

Design Requirements

a) Building design (including facade treatment, massing, roof design and entrance features), setbacks and landscaping shall complement the scale of development, and the desired future character of the residential neighbourhoods.

b) Development on corner sites shall incorporate facade treatments that address both street frontages and achieve positive articulation in building design. Landscaping shall be used to reduce the impact of any privacy fencing.

c) The built form shall relate to the natural landform and setting.

d) On-site parking areas shall be designed and sited to reduce the visual prominence of garage doors and external parking spaces as viewed from the street or other public place.

e) Garage doors facing a public street

Note:

Numerical Development Standards for floor space ratios, building heights, qualifying site areas and subdivision for residential development are provided under the CLEP.

shall not be wider than 50% of the width of the building's facade fronting the street (refer to Figures 3.4.1.1).

f) No carports or garages (or like structures) shall be located within 6 metres of the primary street boundary, for additional requirements of setbacks for the various types of residential development refer to section 3.5,3.6 and 3.7 of this part of the plan.

g) No bathroom, ensuite, toilet or laundry windows shall face the primary street of an allotment.

h) Multi dwellings and dual occupancies shall satisfy the following architectural requirements:

i) incorporation of variations in roof heights and wall planes to avoid long unbroken ridge lines

ii) incorporation of façade shifts and articulation, varied materials and colours in order to avoid duplication of the same building elements

iii) provision of windows and active space in the building ends, to provide additional security and visual interest

i) All windows facing the street (primary and secondary) must have a balanced architectural design.

3.4.1.2 Building Height

a) The height of development shall not result in any significant loss of amenity (including loss of solar access and visual and acoustic privacy) to adjacent properties and public places.

3.4.1.3 Advertising Material

a) As part of the letter box design for multi dwelling housing a special container shall be provided for the placement of advertising and newspaper materials. Such container shall be located behind the building line and designed to be part of the letter box arrangement for

Note:

Additional controls for landscaping, weed management, erosion and sediment controls, cut and fill, water cycle management and retaining walls are included under Part 2 of Volume 1 of the Plan.

Figure 3.4.1.1 - Example of a streetscape with various architectural features.

Note:

For additional requirements on setbacks for the various types of residential development, refer to sections 3.5,3.6 and 3.7 of the Plan.

the development.

b) The newspaper/advertisement container shall be regularly emptied by the manager/ caretaker of the building.

3.4.2 Car Parking and Access

Objectives:

- Provide adequate on-site car parking for residents and visitors that is convenient, secure and safe having regard to the traffic generated by the proposed development.
- Ensure efficient and safe vehicle and pedestrian movement within, into and out of the development.
- Ensure that the location and design of driveways, parking, service areas and access areas are practical, easily maintained, convenient, safe and suitably landscaped.
- Provide safe convenient access for vehicles, pedestrians and cyclists whilst minimising conflict between them.
- Promote the use of electric vehicles across the Local Government Area.
- Encourage the installation of electric vehicle charging infrastructure.

Design Requirements

a) The minimum dimensions of any required parking space shall be 2.5 metres x 5.5 metres. If the car parking space adjoins a vertical edge which is 100mm or higher, the minimum width of the car parking space shall be 2.7 metres.

b) The minimum internal dimension of an enclosed garage shall be 3 metres x 6 metres.

c) Transitional grades shall comply with AS2890.1 (as amended) Parking Facilities - Off-Street Car Parking.

d) The maximum garage floor levels (above or below) for a garage setback 6 metres from the front property boundary shall be in accordance with the requirements contained under *Council's Engineering Guide for Development*, (Appendix K -

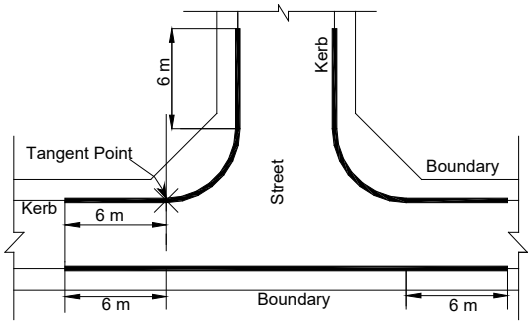


Figure 3.4.2.1 - Restricted locations of driveways entry as shown heavy edged lines.

Standard Drawings No. SD-R08 and SD-R09), which is *available at Council's website at www.campbelltown.nsw.gov.au*.

e) Driveways greater than 30 metres in length as viewed from the street shall be avoided.

f) Driveways shall be located a minimum distance of 6 metres from the tangent point of any unsignalled intersection (refer to Figure 3.4.2.1).

Note: In circumstances where an intersection is controlled by lights, a roundabout or the like, applicants are requested to contact Council for specific requirements.

g) The minimum width of the driveway at the street kerb shall be:

   i) 2.5 metres where the driveway provides access for one (1) dwelling; and

   ii) 5 metres where a single driveway provides access for two (2) or more dwellings (excluding secondary dwellings).

Note: For additional technical specifications relating to the location, gradient and driveway widths refer to Council's Engineering Guide for Development available at Council's website at www.campbelltown.nsw.gov.au

h) For residential developments incorporating more than 20 dwellings, a Traffic Impact Assessment Report shall be prepared by a suitably qualified person and submitted with the development application.

Note: For requirements relating to the preparation of a Traffic Impact Assessment Report refer to Appendix 12.

i) Driveways shall be designed and located perpendicular to the road (Figure 3.4.2. 2).

j) Plain concrete driveways including

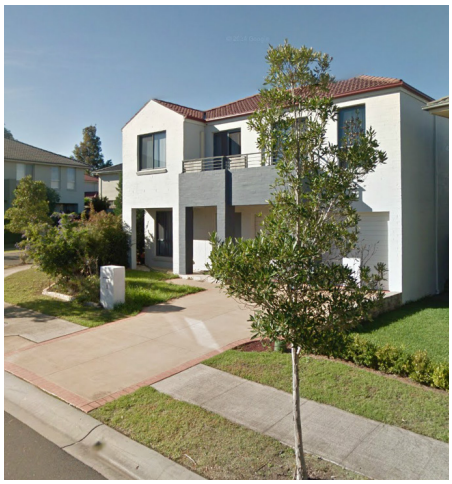


Figure 3.4.2.2 – Example of a driveway that is of appropriate width and located perpendicular to the road.

Note:

Council will not be liable to replace any driveway colour or pattern within public land in cases where damage to private driveways as a result of maintenance work undertaken by Council has occurred.

crossover and layback shall not be permitted. Details of driveway colours and patterns shall be submitted with the development application.

k) Garages and driveways shall be located and designed to minimise the loss of any on street parking and ensure that sufficient area is maintained along the site frontage for the provision of on street parking spaces, where possible.

l) Internal driveways and vehicle access shall be provided with sufficient widths to ensure easy access to and from designated car parking areas/garages.

m) Internal driveways for multi dwellings shall be designed to provide two-way vehicle access

n) Electric vehicle charging stations must be located behind the building line.

3.4.3 Acoustic and Visual Privacy

Objective:

- Provide adequate visual and acoustic privacy for residents of new and existing development.

3.4.3.1 Acoustic Privacy

Design Requirements

a) Development that adjoins significant noise sources, (such as main roads, commercial/industrial development, public transport interchanges and railways) shall be designed to achieve acceptable internal noise levels, based on recognised Australian Standards and any criteria and standards regulated by a relevant State Government Authority.

b) Development shall incorporate noise attenuation measures that are compatible with the scale, form and character of the street.

c) On-site noise generating sources including, but not limited to, plant rooms

Note:

Development Near Rail Corridors and Busy Roads - Interim Guideline provides a useful guide for all development that may be impacted by rail corridors or busy roads .

Note:

The installation of air-conditioning units may be undertaken as exempt development under the E&CDC SEPP, providing that certain criteria are met.

and equipment, air conditioning units, pool pumps, and recreation areas shall be designed and located to ensure that the noise levels generated by such facilities do not exceed 5 dBA above background levels at the property boundary.

d) Multi dwelling housing and attached dwellings near railway corridors and major roads shall demonstrate to Council's satisfaction compliance with the requirements under the Guidelines entitled *Development Near Rail Corridors and Busy Roads* – Interim Guideline, 2008)

Note: This Guide is available for view/download from the NSW Department of Planning & Environment website at: www.planning.nsw.gov.au.

Note: Applicants are encouraged to refer to the Office of Environment and Heritage Environmental Criteria for Road Traffic Noise.

3.4.3.2 Visual Privacy

Design Requirements

a) No window of a habitable room or balcony shall directly face a window of another habitable room, balcony or private open space of another dwelling located within 6 metres of the proposed window or balcony unless appropriately screened (refer to Figure 3.4.3.1).

b) Notwithstanding Clause 3.4.3.2a) any window of a living room located on an upper level shall:

   i) be offset by 2 metres to limit views between windows and balconies; or

   ii) have a sill height 1.7 metres above the floor level; or

   iii) be splayed to avoid direct views between windows; or

   iv) have fixed translucent glazing in any part of the window within 1.7 metres of the floor level.

c) Notwithstanding 3.4.3.2a), a balcony will be considered where the private open space area of any adjacent dwelling is

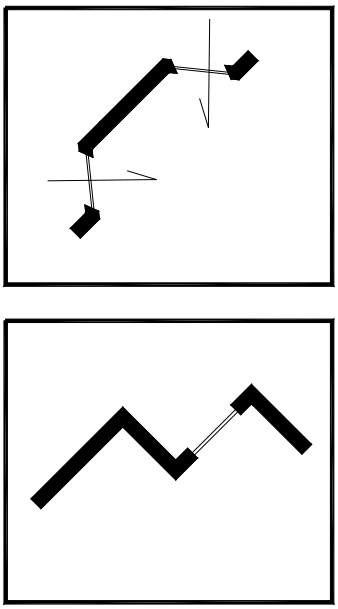


Figure 3.4.3.1 – Illustrations of a method to offset windows to avoid potential privacy conflict.

screened from view.

d) No wall of a proposed building shall be permitted to be constructed on the boundary for that portion of the boundary that is directly adjacent to an existing required private open space area on the adjoining allotment.

3.4.4 Solar Access

Objectives:

- Encourage building design and siting to take advantage of climatic factors and reduce household energy consumption.
- Encourage features to be incorporated into site and building design to optimise passive solar access to internal and external spaces.

Design Requirements

a) Living areas shall generally have a northerly orientation.

b) A minimum 20sqm fixed area of the required private open space shall receive three (3) hours of continuous direct solar access on 21 June, between 9.00am and 3.00pm, when measured at ground level.

c) Development shall have appropriate regard to the impact on solar access to useable private open space and living areas, solar collectors and clothes drying areas of adjoining residential development.

d) Building siting shall take into consideration the range of factors that impact on solar access including slope of land, vegetation and existing building and other structures.

Note: Council may consider the use of deciduous trees at the north and west elevations to protect against hot summer temperature and to allow for solar penetration in winter, where it may otherwise be inappropriate to plant native trees.

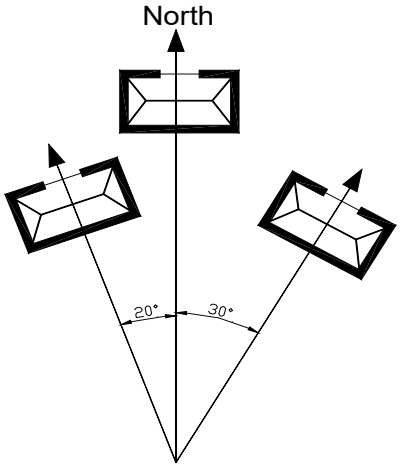


Figure 3.4.4.1 – Desirable range of window orientation for north facing windows.

3.4.5 Waste Requirements

Objectives:

- Ensure that residential developments meet requirements for long term sustainability and best practice.
- Ensure that residential developments achieve effective waste and resource recovery management.
- Ensure that residential developments protect and enhance the quality of life for the community.

Design Requirements

a) Each dwelling shall be provided with adequate space behind the primary and secondary building lines and out of public view to store the following bins:

   i) one (1) x 140 litre bin; and

   i) two (2) x 240 litre bins

b) The bin storage area shall not be located in such a place that requires any bins to be transported through any habitable part of the dwelling to reach the collection point.

c) The path for wheeling bins between the waste storage area(s) and the kerbside shall be free of steps and kerbs and have a maximum gradient of 1V:8H.

d) The maximum travel distance between any waste storage area and the collection point should not exceed 30 metres.

e) If bin storage is proposed to be contained within any garage, that garage must be widened by a minimum of 600mm to allow for egress of a 240L mobile garbage bin while a vehicle is parked within the garage.

f) Each dwelling must be provided with at least 1.5m clear and unobstructed kerbside for the presentation of bins and kerbside clean up material within the confines of the site's frontage (not impeding driveways or neighbouring lots).

3.5 Ancillary Residential Structures - Zones R2, R3, R4 and R5

This section applies to ancillary residential structures including outbuildings, swimming pools/spas and fencing in areas zoned R2, R3, R4 and R5, where these type of developments are associated with low and medium density residential development.

3.5.1 Fencing

Objectives:

- To ensure that front fencing design complements the character and streetscape of residential neighbourhoods.

Design Requirements

a) Bonded sheet metal fencing shall not be constructed at any location other than along side and rear boundaries shared with other private property, where such fencing is not highly visible from the street, public reserve or other public place, unless the site is within a bushfire prone area.

b) Residential fencing along the rear and side boundaries shall be:

   i) located behind the primary street building line;

   ii) a maximum 2.1 metres in height (excluding retaining walls); and

   iii) a maximum 1.8 metres in height, if adjoining a secondary street.

c) Front residential fencing shall be a maximum of 1.2 metres in height and complement the design of the development.

d) Fencing on corner allotments shall not obstruct the sight distance of traffic entering or within an intersection or roundabout.

e) Fencing shall not obstruct power, water, sewer, gas or telephone services, drainage systems, (including overland flow paths) or any easements or rights

Note:

Refer to Section 1.4 Definitions Part 1 Volume 1 for a definition of a building line under the plan.

Figure 3.5.1.1 - Example of a part masonry/part timber fence that helps to define private space and adds interest to the character of the streetscape.

f) Details for fencing shall be submitted with the development application.

3.5

3.5 Ancillary Residential Structures

3.5.2 Outbuildings

3.5.2 Outbuildings

Objectives:

- To ensure that the siting and size of outbuildings do not adversely impact on the residential amenity of adjoining residential property.
- Ensure location and design of ancillary residential structures minimises the impact upon the environment and preserve existing trees.

3.5.2.1 General Requirements

a) Outbuildings shall:

i) incorporate similar or complementary design features, finishes, materials and colours to those of the principal dwelling house;

ii) not contain any other sanitary fixtures other than a toilet and a hand basin; and

iii) not be used for any habitable, commercial or industrial purpose.

3.5.2.2 Maximum Floor Area for Outbuildings

a) The combined areas of all 'detached' outbuildings (including carports and garages) shall be a maximum of 55sqm.

3.5.2.3 Setbacks for Outbuildings

a) Outbuildings shall be setback by a minimum of:

i) 6 metres from the primary street boundary;

ii) 3 metres from the secondary street boundary for all domestic outbuildings other than any garage that is accessed directly from the secondary street;

iii) 5.5 metres from the secondary street boundary for the garage, where the garage is accessed directly from the secondary street;

iv) 0.45 metres from the side boundaries;

v) despite 3.5.2.3 a) iv), zero metres from the side and rear boundaries for

open structures such as pergolas, carports and awnings, subject to compliance with the BCA; and

vi) 0.90 metres from rear boundary.

3.5.3 Swimming Pools/Spas

Objectives:

- Ensure that the location and design of swimming pools/spas minimises adverse impacts on the amenity of adjoining properties, particularly in relation to noise, privacy, drainage, visibility of pools and lighting.

3.5.3.1 General Requirements

a) Safety fencing for Swimming pools/spas shall comply with the *Swimming Pools Act 1992, Swimming Pools Regulation 2018 and the Australian Standard 1926.1 - 2012 - Swimming Pool Safety (As amended)*.

3.5.3.2 Setbacks

a) Swimming pools/spas shall be located behind the front primary street building setback.

b) Swimming pools/spas that do not incorporate decking/coping greater than 600 mm above natural ground level at any point shall be setback a minimum of:

i) 1 metre from the rear and side boundaries; and

ii) 1 metre from the secondary boundary(corner allotments).

c) The setback requirements under Clause 3.5.3.2 b) shall be inclusive of any decking/coping associated with the pool (i.e. the minimum 1 metre setback shall be calculated from the edge of the decking/coping to the side boundary, rear or secondary boundary).

d) Swimming pools/spas that incorporate decking/coping greater than 600mm above natural ground level at any point shall be setback a minimum of:

Figure 3.5.3.1 – Illustration of a fenced pool.

i) 5.5 metres from the primary street boundary;

ii) 3 metres from the secondary street boundary;

iii) 1.5 metres from the side and rear boundaries.

e) Adequate measures shall be implemented to ensure the amenity (noise/privacy) of adjoining neighbours is maintained.

f) The pool pump/filter shall be located as far away as practicable from neighbouring dwellings and shall be enclosed in an acoustic enclosure to minimise noise impacts on adjoining properties.

3.5.3 Swimming Pools/Spas

3.6 Low Density Residential Development - Zones R2, R3, R4 & R5

This section applies to:

- dwelling houses in areas zoned R2 and R3;
- secondary dwellings in areas zoned R2, R3, R4 and R5;
- dual occupancies (attached and/or detached) in areas zoned R2, R3 and R5
- semi-detached dwellings in areas zoned R2 and R3;and
- attached dwellings in areas zoned R2.

Important Note:

Numerical Development Standards for floor space ratios , building heights, qualifying site areas and subdivision for residential development are provided under the CLEP.

Figure 3.6.1 - Examples of low density residential development.

3.6 Low Density Residential Development

3.6.1 Dwelling Houses

3.6.1 Dwelling Houses - Zones R2 & R3

Objectives:

- Encourage quality-designed dwelling houses that make a positive contribution to the streetscape and amenity of the neighbourhood.

3.6.1.1 Site Requirement

a) A dwelling house shall not be erected on land with an average width less than 15 metres (measured at the primary street building setback), unless the allotment was in existence at the date upon which the Plan came into effect.

3.6.1.2 Deep Soil Planting

a) A dwelling house shall satisfy the following provisions relating to deep soil planting:

i) no more than 30% of the area forward of any building line shall be surfaced with impervious materials; and

ii) a minimum of 20% of the total site area shall be available for deep soil planting.

3.6.1.3 Setbacks

a) A dwelling house shall be setback a minimum of:

i) 5.5 metres from the primary street boundary for the dwelling;

ii) 6.0 metres from the primary street boundary for the garage;

iii) 2 metres from the secondary street boundary;

iv) 5.5 metres from the secondary street boundary for the garage, where the garage is accessed directly from the secondary street;

v) 0.9 metres from any side boundary; and

vi) 3 metres from the rear boundary for any part of the building that is up to 4.5 metres in height from ground level (existing); and

vii) 8 metres from the rear boundary for any part of the building that is higher than 4.5 metres from ground level (existing).

Note:

A dwelling house (as defined under the CLEP) means a building containing only one dwelling.

Note:

Refer to Section 4.1C of the CLEP for the minimum qualifying site area and lot sizes for dwelling houses.

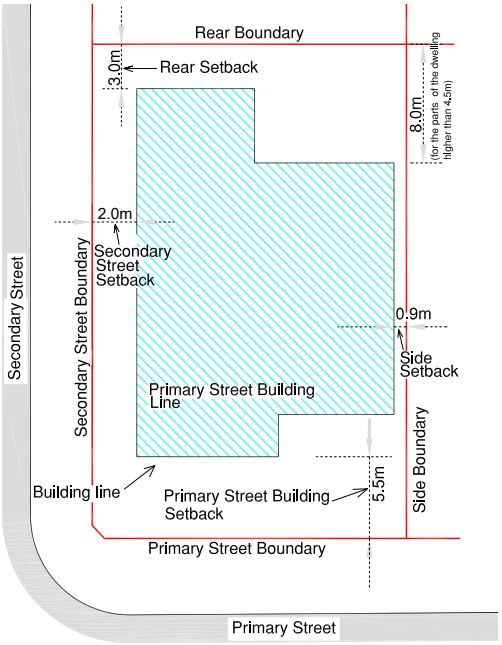


Figure 3.6.1.1 - Illustration of the required setbacks for dwelling houses under the Plan

b) Each dwelling shall have a minimum of 0.9m unobstructed side access that is free from air conditioning units, rainwater tanks hot water systems, or any other structure that may block access to the rear of the dwelling.

3.6.1.4 Car Parking Rates

a) A dwelling house shall be provided with an undercover car parking area which is restricted to a maximum of: -

i) 18 m^2 for 1 – 2 bedroom dwellings; and

ii) 36 m^2 for dwellings proposing 3 or more bedrooms.

Note: Any additional undercover car parking areas proposed on site which exceed these rates must be included in the 'Gross Floor Area' (GFA) calculation when determining the maximum 'Floor Space Area' (FSR) permitted on site, in accordance with Section 4.4 (Floor space ratio) of the Campbelltown Local Environmental Plan 2015.

3.6.1.5 Private Open Space

a) A dwelling house shall be provided with an area of private open space that:

i) is located behind the primary street building setback;

ii) has a minimum area of 75sqm;

iii) has a minimum width of 3 metres;

iv) includes a minimum levelled area of (5x5)sqm;

v) has a minimum unfragmented area of 60sqm;

vi) has an internal living room directly accessible to the outdoor private open space areas; and

vii) satisfies solar access requirements contained in section 3.4.4.

Note: For sloping sites, Council may consider the provision of a minimum 2 metre x 8 metre balcony as part of the required private open space for satisfying the requirements of Clause 3.6.1.5 a) v).

Note:
Private open space (as defined under the CLEP) means an area external to a building (including an area of land, terrace, balcony or deck) that is used for private outdoor purposes ancillary to the use of the building.

Note:
Clause 7.13 Design Excellence of the CLEP applies to zones R3, R4, B2, B3 and B4 and aims to deliver the highest standard of architectural and urban design, as part of the built environment.

3.6.1.6 Site Services

a) The location, design and construction of utility services shall satisfy requirements of the relevant servicing authority and Council.

b) Adequate provision shall be made available for all essential services (i.e water, sewerage, electricity, gas, telephone, internet and stormwater drainage).

c) All site services shall be placed underground.

d) All communication dishes, antennae and the like shall be located to minimise visual prominence.

3.6.2 Secondary Dwellings - Zones R2, R3, R4 and R5

Objectives:

- Ensure that secondary dwelling development is of a small scale.
- Ensure that secondary dwellings do not adversely impact on the amenity of adjoining properties.

3.6.2.1 General Requirements

a) A secondary dwelling shall incorporate similar or complementary design and construction features, finishes, materials and colours to those of the principal dwelling house.

b) Any new primary or secondary dwelling shall be designed to ensure that a front door and window are visible from the public domain by installing these elements into the front building wall of any habitable room which faces the primary street.

c) A secondary dwelling shall be provided with at a least 12sqm area of private open space for the exclusive use of the occupants of the secondary dwelling. The area shall be accessible from the living area, have a minimum width of 3sqm and not be steeper than 1:50.

Note: This area is to be included in the calculation for the requirement of open space for the principle dwelling, i.e. the

Note:
Secondary dwelling (as defined under the CLEP) means a self-contained dwelling that:

a) is established in conjunction with another dwelling (the principal dwelling), and

b) is on the same lot of land as the principal dwelling, and

c) is located within, or is attached to, or is separate from, the principal dwelling.

combined area of private open space for the secondary dwelling and the principle dwelling shall be a minimum of 75sqm.

d) A BASIX certificate shall accompany a development application for a secondary dwelling.

e) An attached secondary dwelling shall be located under the same roof as the main part of the principal dwelling house.

f) The principle dwelling shall continue to meet all the relevant requirements and development controls under Part 3 of Volume 1 of the Plan.

3.6.2.2 Setbacks

a) A secondary dwelling land shall be setback a minimum of:

i) 5.5 metres from the primary street boundary of the dwelling and shall align with the existing front building line, alternatively it shall align with the predominant front building line of the street;

ii) 3 metres from the secondary street boundary;

iii) 0.9 metres from any side boundary; and

iv) 3 metres from the rear boundary for any part of the building that is up to 3.8 metres in height from ground level (existing); and

v) 8 metres from the rear boundary for any part of the building that is higher than 3.8 metres from ground level (existing)

vi) Where a secondary dwelling is located forward of the front building line consideration shall only be given to such a proposal where the development is integrated with the existing dwelling and employs the same building materials and features as the existing dwelling including roof form and features such as Gables and the like.

Note:
Nothing in the Plan shall be taken to mean that a secondary dwelling can be subdivided from the principal dwelling on the allotment unless such a subdivision is consistent with relevant development standards under the CLEP.

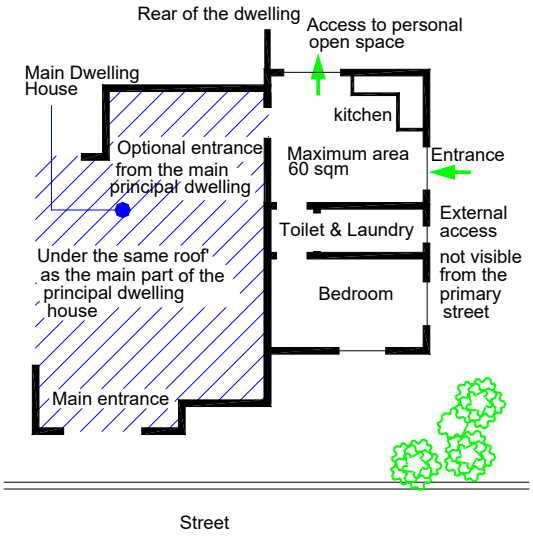


Figure 3.6.2.1 – Illustration of an attached secondary dwelling

3.6 Low Density Residential Development

3.6.3 Dual Occupancies (Attached or Detached)

3.6.3 Dual Occupancies (Attached or Detached)- Zones R2, R3 & R5

Objectives:

- Encourage quality-designed dual occupancies that make a positive contribution to the streetscape and amenity of the neighbourhood.
- Ensure that dual occupancies offer a high standard of amenity for its occupants and maintains the amenity of adjoining residents.

3.6.3.1 General Requirements

a) Dual occupancies shall only be permitted on an allotment having:

i) a minimum width of 15 metres measured along the side boundaries at a distance of 5.5 metres from the primary street boundary; and

ii) a minimum width of 7 metres measured between the extended property side boundaries, or in the case of a corner allotment, the secondary street boundaries where they intersect with the kerb line (refer to Figure 3.6.3.1).

3.6.3.2 Setbacks

a) A dual occupancy shall be setback a minimum of:

i) 5.5 metres from the primary street boundary for the dual occupancy;

ii) 6.0 metres from the primary street boundary for the garage;

iii) 3 metres from the secondary street boundary;

iv) 5.5 metres from the secondary street boundary for the garage or the undercover parking space, where the garage is accessed directly from the secondary street;

v) 0.9 metres from any side boundary; and

vi) 3 metres from the rear boundary for any part of the building that is up to 4.5 metres in height from ground

Note:

Dual occupancy (as defined under the CLEP) means a dual occupancy (attached) or a dual occupancy (detached).

Dual occupancy (attached) (as defined under the CLEP) means 2 dwellings on one lot of land that are attached to each other, but does not include a secondary dwelling.

Dual occupancy (detached) (as defined under the CLEP) means 2 detached dwellings on one lot of land, but does not include a secondary dwelling.

Note:

Refer to Section 4.1C of the CLEP for the minimum qualifying site area for dual occupancies.

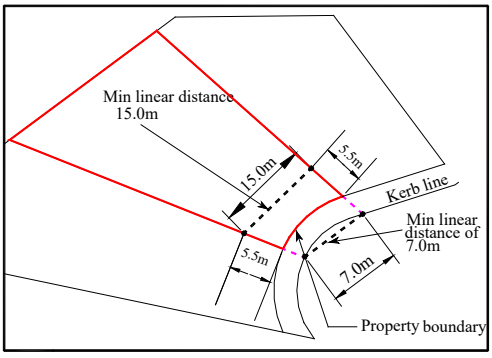


Figure 3.6.3.1 - Illustration of the requirements for the minimum allotment frontage incorporating a dual occupancy.

level (existing); and

vii) 8 metres from the rear boundary for any part of the building that is higher than 4.5 metres from ground level (existing).

b) Each Dwelling shall have a minimum of 0.9m unobstructed side access that is free from air conditioning units, rainwater tanks hot water systems, or any other structure that may block access to the rear of the dwelling.

3.6.3.3 Car Parking Rates

a) Each dwelling that is part of a dual occupancy development shall be provided with a minimum of one (1) single garage.

3.6.3.4 Private Open Space

a) Each dwelling that is part of a dual occupancy shall be provided with an area of private open space that:

i) is located behind the primary building setback;

ii) has a minimum area of 60 sqm;

iii) has a minimum width of 3 metres;

iv) includes a minimum levelled area of (5x5) sqm;

v) has a minimum unfragmented area of 40 sqm;

vi) has an internal living room directly accessible to the outdoor private open space areas; and

vii) satisfies solar access requirements contained in Section 3.4.4. of the the Plan.

3.6.3.5 Presentation to Public Streets

a) Where a dual occupancy development involves the retention of an existing dwelling , the existing dwelling shall be renovated to match the colour, material, texture and architectural style of the proposed building so as to create a harmonious development.

Figure 3.6.3.1 - An example of a contemporary design of an attached dual occupancy

Note:

Private open space (as defined under the CLEP) means an area external to a building (including an area of land, terrace, balcony or deck) that is used for private outdoor purposes ancillary to the use of the building.

Note:

Clause 7.13 Design Excellence of the CLEP applies to zones R3, R4, B2, B3 and B4 and aims to deliver the highest standard of architectural and urban design, as part of the built environment.

3.6.3 Dual Occupancies (Attached or Detached)

3.6.3.6 Landscaping and Deep Soil Planting

a) A development application for a dual occupancy shall include a detailed landscape plan prepared by a suitably qualified person.

b) A dual occupancy shall satisfy the following provisions relating to deep soil planting:

   i) no more than 30% of the area forward of any building line shall be surfaced with impervious materials; and

   ii) a minimum of 20% of the total site area shall be available for deep soil planting.

3.6.3.7 Site Services

a) The location, design and construction of utility services shall satisfy requirements of the relevant servicing authority and Council.

b) Adequate provision shall be made available for all essential services (i.e water, sewerage, electricity, gas, telephone, internet and stormwater drainage).

c) All site services shall be placed underground.

d) All communication dishes, antennae and the like shall be located to minimise visual prominence.

3.6.4 Semi-detached Dwellings - Zones R2 & R3

Objectives:

- Encourage quality-designed semi-detached dwellings that make a positive contribution to the streetscape and amenity of the neighbourhood.
- Ensure that semi-detached dwellings offer a high standard of amenity for its occupants and maintains the amenity of adjoining residents.

3.6.4.1 General Requirements

a) Semi-Detached Dwelling shall only be permitted on an allotment having;

i) a minimum width of 7.5 metres measured between the extended property side boundaries, or in the case of a corner allotment, the secondary street boundaries where they intersect with the kerb line.

b) Despite Clause 3.6.4.1 a) above, semi-detached dwellings shall be permitted on an allotment having a minimum width less than 7.5 metres where each individual lot existed prior to the commencement of the CLEP.

3.6.4.2 Setbacks

a) Semi-detached dwellings shall be setback a minimum of:

i) 5.5 metres from the primary street boundary for the semi-detached dwellings;

ii) 6.0 metres from the primary street boundary for the garage or the under cover parking space;

iii) 3 metres from the secondary street boundary;

iv) 5.5 metres from the secondary street boundary for the garage or the undercover parking space, where the garage is accessed directly from the secondary street;

v) 0.9 metres from any side boundary, for the part of the building that is not attached to the other dwelling; and

vi) 3 metres from the rear boundary for any part of the building that is up to 4.5 metres in height from ground level (existing); and

vii) 8 metres from the rear boundary for any part of the building that is higher than 4.5 metres from ground level (existing) (refer to Figure 3.6.4.1).

b) Each dwelling shall have a minimum of 0.9m unobstructed side access that is free from air conditioning units,

Note:
Semi-detached dwellings (as defined under the CLEP) means a dwelling that is on its own lot of land and is attached to only one other dwelling.

Note:
Refer to Section 4.1C of the CLEP for the minimum qualifying site area and lot sizes for semi-detached dwellings

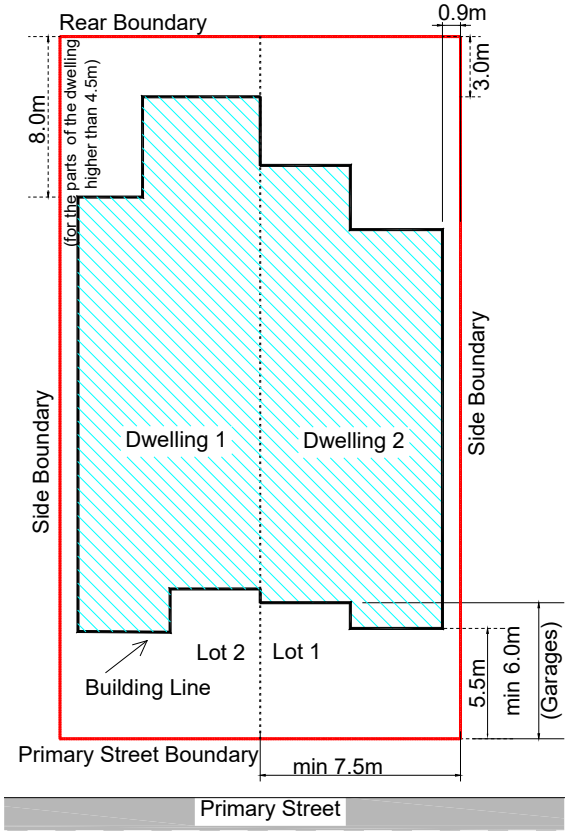


Figure 3.6.4.1 - Illustration of the setbacks requirements for semi-detached dwellings.

rainwater tanks hot water systems, or any other structure that may block access to the rear of the dwelling.

c) For the purpose of 3.7.2.4 a) above, the direct access from the rear to the front of the dwelling shall have a minimum width of 0.9 metres and shall not be obstructed by hot water systems, air conditioning units, gardens or anything that results in the obstruction of the access way.

Note:

Private open space (as defined under the CLEP) means an area external to a building (including an area of land, terrace, balcony or deck) that is used for private outdoor purposes ancillary to the use of the building.

3.6.4.3 Car Parking Rates

a) Each dwelling that is part of a semi-detached dwelling development shall be provided with of minimum of one (1) single garage.

b) Despite Clause 3.6.4.3 a) above and Clause 3.6.4.2.a)ii) , where an individual allotment is in existence before the gazettal date of the CLEP and has a width less than 7.5 metres, standard garages shall not be permitted on the primary street frontage unless the garage component is recessed by at least 2 meters from the main building line.

Note:

Clause 7.13 Design Excellence of the CLEP applies to zones R3, R4, B2, B3 and B4 and aims to deliver the highest standard of architectural and urban design, as part of the built environment.

c) For the purpose of Clause 3.6.4.3 b) above, covered car parking spaces fronting the primary street shall only be provided in a non-obtrusive open type design so as not to detract from the street facade of the development.

3.6.4.4 Private Open Space

a) Each dwelling that is part of a semi detached dwelling shall be provided with an area of private open space that:

i) is located behind the primary building setback;

ii) has a minimum area of 60 sqm;

iii) has a minimum width of 3 metres;

iv) includes a minimum levelled area of (5x5)sqm;

v) has a minimum unfragmented area of 40sqm;

vi) has an internal living room directly

accessible to the outdoor private open space areas; and

vii) satisfies solar access requirements contained in section 3.4.4.

3.6.4.5 Presentation to Public Streets

a) Where a development involves the construction of an additional dwelling to create a semi detached dwelling, the existing dwelling (where it is proposed to be retained) shall be renovated to match the colour, material, texture and architectural style of the proposed building so as to create a harmonious development.

3.6.4.6 Landscaping and Deep Soil Planting

a) A development application for a semi-detached dwellings shall include a detailed landscape plan prepared by a suitably qualified person.

b) A semi detached dwelling shall satisfy the following provisions relating to deep soil planting:

i) no more than 30% of the area forward of any building line shall be surfaced with impervious materials; and

ii) a minimum of 20% of the total site area shall be available for deep soil planting.

3.6.4.7 Site Services

a) The location, design and construction of utility services shall satisfy requirements of the relevant servicing authority and Council.

b) Adequate provision shall be made available for all essential services (i.e water, sewerage, electricity, gas, telephone, internet and stormwater drainage).

c) All site services shall be placed underground.

d) All communication dishes, antennae and the like shall be located to minimise visual prominence.

3.6.5 Attached Dwellings - Zones R2 Low Density Residential Zone

Objectives:

- Encourage quality-designed attached dwellings that make a positive contribution to the streetscape and amenity of the neighbourhood.
- Ensure that attached dwelling housing within R2 zone are of small scale and bulk.
- Ensure that attached dwellings offer a high standard of internal and external amenity for its occupants and maintains the amenity of adjoining residents.

3.6.5.1 Site Requirements for Attached Dwellings - Zone R2

Design Requirements

a) Each lot of land for each attached dwelling shall have a minimum width of 7.5 metres measured along the side boundaries at a distance of 5.5 metres from the primary street boundary unless each individual allotment is in existence prior to the commencement date of the CLEP.

b) Attached dwellings shall not be erected on an existing battle-axe allotment.

c) With any development application involving the construction of a building wall on a boundary, the creation of an easement for access and maintenance on the adjoining land may be required.

d) Subject to the satisfaction of other requirements within the Plan, the number of dwellings permitted within attached dwelling development shall not exceed three (3) dwellings within the R2 zone.

e) For the purpose of calculating the developable area of an allotment:

   i) any land that is part of an environmental corridor as specified by the Office of Environment and Heritage or any other government agency; or

Note:

Attached dwellings (as defined under the CLEP) means a building containing 3 or more dwellings, where:

a) each dwelling is attached to another dwelling by a common wall, and

b) each of the dwellings is on its own lot of land, and

c) none of the dwellings is located above any part of another dwelling.

Note:

Refer to Section 4.1C of the CLEP for the minimum qualifying site area and lot sizes for attached dwellings.

ii) any land that is subject to bushfire, flooding or other risk (excluding mine subsidence); or

iii) a right of carriage way;

shall not be included within the developable area of the allotment, unless the relevant public agency is satisfied that these areas are capable of being developed for the purpose of attached dwellings.

3.6.5.2 Setbacks for Attached Dwellings - Zone R2

a) Attached dwellings shall be setback a minimum of:

i) 5.5 metres from the primary street boundary;

ii) 6.0 metres from the primary street boundary for the garage or the under cover parking space;

iii) 3 metres from the secondary street boundary;

iv) 5.5 metres from the secondary street boundary for the garage or the undercover parking space, where the garage is accessed directly from the secondary street;

v) 0.9 metres from any side boundary for the ground level;

vi) 1.5 metres from any side boundary for all levels above the ground level; and

vii) 5 metres from the rear boundary for any part of the building that is up to 4.5 metres in height from ground level (existing); and

viii) 10 metres from the rear boundary for any part of the building that is higher than 4.5 metres from ground level (existing) (refer to Figure 3.6.5.1).

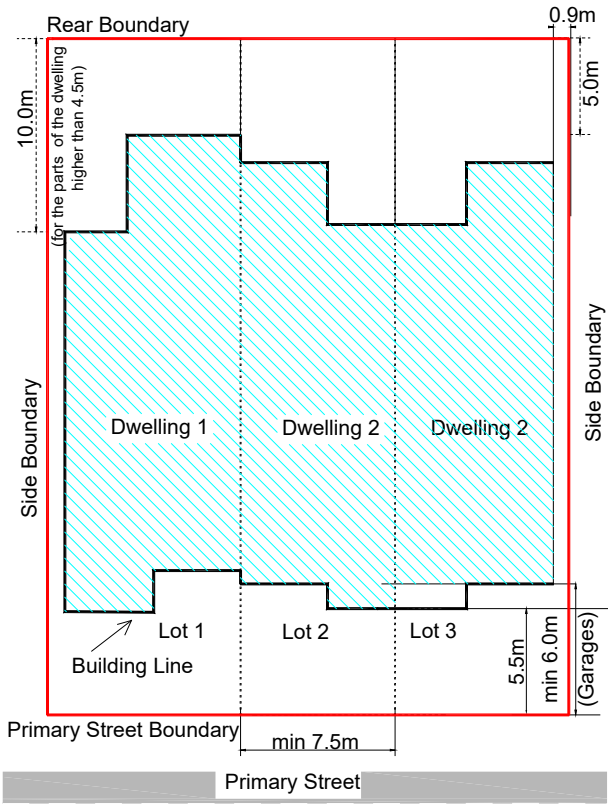


Figure 3.6.5.1 - Illustration of the setbacks requirements for attached dwellings - R2 Zone.

3.6.5.3 The Size of Indoor Living Areas for Attached Dwellings - Zone R2

a) The indoor living areas (i.e family

room and lounges) within each dwelling contained within attached dwellings shall have a minimum of one unfragmented area that is not less than:

i) (3x3)sqm in the case of a one bedroom dwelling;

ii) (3.5x4)sqm square meters in the case of two or three bedroom dwelling;

iii) (4x5)sqm in case of four or more bedroom dwelling.

b) For the purpose of this clause, the total number of bedrooms within each dwelling shall include any room that is capable of being used as a bedroom (i.e study room).

c) Master bedrooms shall have a minimum internal area of 12 square metres (excluding wardrobe space);

d) All other bedrooms proposed shall have a minimum internal area of 9 square metres (excluding wardrobe space);

e) All dining and living areas shall be well designed and of sufficient size for both furniture and movement/circulation through the dwelling. Submitted plans shall include examples of furnished floor plans that demonstrate that the design enables the use of each room for its intended purpose in a manner that does not restrict the movement of people within and through the room.

3.6.5.4 Rear Access for Attached Dwellings - Zone R2

a) Where there is no access to a rear lane or rear street directly available from the back of attached dwellings, each dwelling shall be provided with a separate and direct access from the backyard to the front yard that does not pass through any habitable area of the dwelling (Refer to Figure 3.6.5.2 for a suggested design solution).

b) For the purpose of 3.6.5.4 a) above, the

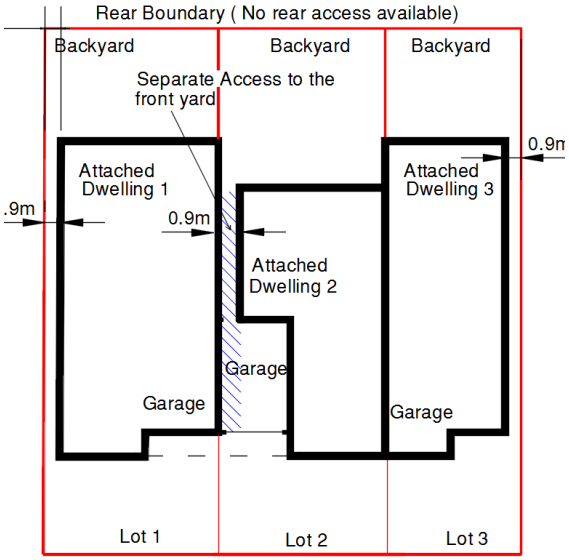


Figure 3.6.5.2 - Illustration of an example of a design solution for 'rear to front' access requirement for attached dwellings at ground level.

Note:

The requirement for the rear-to front access is to enable occupants of an attached dwelling to move organic waste bins, lawnmowers and the like from the backyard to the front of the building without the need to pass through the main living areas.

direct access from the rear to the front of the dwelling shall have a minimum width of 0.9 metres and shall not be obstructed by hot water systems, air conditioning units, gardens or anything that may result in the obstruction of the access way.

3.6.5.5 Car Parking Rates for Attached Dwellings - Zone R2

a) Each dwelling that is part of attached dwellings shall be provided with a minimum of one (1) single garage.

b) Despite Clause 3.6.5.5 a) above and Clause 3.6.5.2 a) ii), where an individual allotment is in existence before the date of gazettal of the CLEP and has a width less than 7.5 metres, standard garages shall not be permitted on the primary street frontage unless the garage component is recessed by at least 2 meters from the main building line.

c) For the purpose of Clause 3.6.5.5 b) above, covered car parking spaces fronting the primary street shall only be provided in a non-obtrusive open type design so as not to detract from the street facade of the development.

3.6.5.6 Private Open Space for Attached Dwellings - Zone R2

a) Each dwelling that is part of attached dwelling development shall be provided with an area of private open space that:

i) is located behind the primary building setback;

ii) has a minimum area of 60 sqm;

iii) has a minimum width of 3 metres;

iv) includes a minimum levelled area of (5x5)sqm;

v) has a minimum unfragmented area of 40sqm;

vi) has an internal living room directly

accessible to the outdoor private open space areas; and

vii) satisfies solar access requirements contained in section 3.4.4.

3.6.5.7 Presentation to Public Streets for Attached Dwellings - Zone R2

a) Attached dwelling housing shall satisfy the following architectural requirements:

i) a distinctive architectural outcome that unifies the range of building elements and diversity within the development and which also harmonises with surrounding development;

ii) incorporation of variations in roof heights and wall planes to avoid long unbroken ridge lines;

iii) incorporation of facade shifts and articulation, varied materials and colours in order to avoid duplication of the same building elements; and

iv) provision of windows and active spaces in the building ends, to provide additional security and visual interest.

v) architectural features (such as balconies, openings, columns, porches, colours, materials etc) and articulation in walls are to be incorporated into the front facade of each dwelling.

b) Where a development involves the construction of additional dwellings to create attached dwellings, the existing dwelling on the site (where it is proposed to be retained) shall be renovated to match the colour, material, texture and architectural style of the proposed building so as to create a harmonious building.

3.6.5.8 Landscaping and Deep Soil

Planting for Attached Dwellings - Zone R2

a) A development application for an attached dwelling shall include a detailed landscape plan prepared by a suitably qualified person.

b) Attached dwellings shall satisfy the following provisions relating to deep soil planting:

   i) no more than 30% of the area forward of any building line shall be surfaced with impervious materials, where garages/carparking spaces are proposed to be accessed from the rear of the property; and

   ii) a minimum of 20% of the total site area shall be available for deep soil planting.

3.6.5.9 Site Services for Attached Dwellings - Zone R2

a) The location, design and construction of utility services shall satisfy requirements of the relevant servicing authority and Council.

b) Adequate provision shall be made available for all essential services (i.e water, sewerage, electricity, gas, telephone, internet and stormwater drainage).

c) All site services shall be placed underground.

d) All communication dishes, antennae and the like shall be located to minimise visual prominence.

3.7

Medium Density Residential Development

3.7 Medium Density Residential Development - Zone R3

This section applies to:

- attached dwellings on areas zoned R3;and
- multi dwelling housing on areas zoned R3.

Note:

Clause 7.13 Design Excellence of the CLEP applies to zones R3, R4, B2, B3 and B4 and aims to deliver the highest standard of architectural and urban design, as part of the built environment.

Note:

Numerical Development Standards for floor space ratios, building heights and subdivision for residential development are provided under the CLEP.

Figure 3.7.1 - Examples of medium density residential development.

3.7.1 Attached Dwellings - Zone R3

Objectives:

- Ensure that attached dwellings are designed to enhance the streetscape character of established residential neighbourhoods.
- Ensure that attached dwellings offer a high standard of amenity for occupants and maintains the amenity of adjoining residents and acknowledges the dimensional constraints of the existing under sized allotments.
- Encourage the use of roof space to provide habitable areas.
- Encourage innovative designs and layout to produce a medium density style development with contemporary buildings that utilise facade modulation and incorporate shade elements, such as pergolas, verandahs and the like.

3.7.1.1 Site Requirements for Attached Dwellings - Zone R3

Design Requirements

a) Each lot of land for each dwelling that forms part of an attached dwelling development shall have a minimum width of 7.5 metres measured along the side boundaries at a distance of 5.5 metres from the primary street boundary, unless the individual lots existed prior to the commencement of the CLEP.

b) Attached dwellings shall not be erected

Note:

Attached dwelling (as defined under the CLEP) means a building containing 3 or more dwellings, where:

a) each dwelling is attached to another dwelling by a common wall, and

b) each of the dwellings is on its own lot of land, and

c) none of the dwellings is located above any part of another dwelling.

Figure 3.7.1.1 - An example of attached dwellings.

3.7 Medium Density Residential Development

3.7.1 Attached Dwellings

on an existing battle-axe allotment.

c) With any development application involving the construction of a building wall on a boundary, the creation of an easement for access and maintenance on the adjoining land may be required.

d) Subject to the satisfaction of other requirements within the Plan, the number of dwellings permitted within attached dwellings development shall not exceed 6 dwellings within the R3 zone.

3.7.1.2 Setbacks for Attached Dwellings - Zone R3

a) Attached dwellings shall be setback a minimum of:

i) 4.0 metres from the primary street boundary;

ii) 2 metres from the secondary street boundary;

iii) 0.9 metres from any side boundary;

iv) 3 metres from the rear boundary for the ground level; and

v) 6 metres from the rear boundary for all levels above ground level.

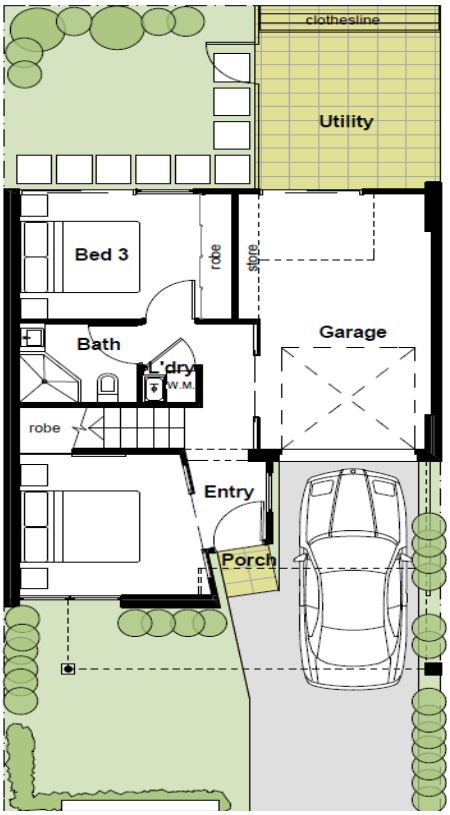
b) Notwithstanding Section 3.7.1.2a), car parking spaces/garages shall be setback a minimum of 6 metres from the primary street setback.

c) Despite Clause 3.7.1.2a) above, where car parking spaces/garages are located and accessed from the back of the site (i.e via a rear lane) an attached dwelling development shall be permitted to be setback by:

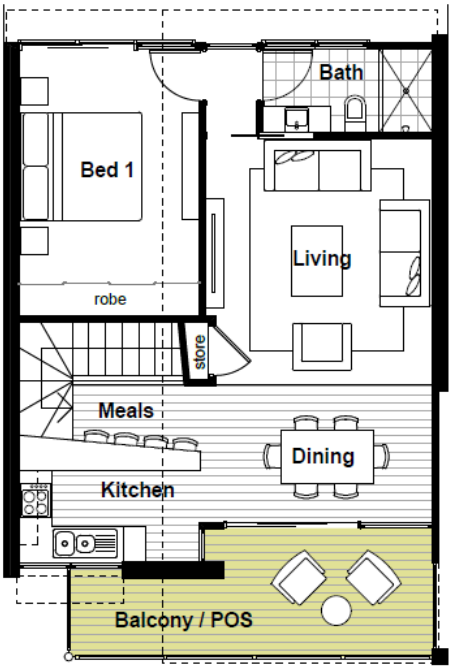
i) 3 metres from the primary street boundary;

ii) 2 metres from the secondary street boundary;

iii) 0.9 metres from any side boundary;



Ground Floor



First Floor

Figure 3.7.1.2 - An example of attached dwellings floor plans (Source Dwelling Density Guide, NSW Planning & Environment, 2014)

iv) 3 metres from the rear boundary for the ground level;

v) 6 metres from the rear boundary for all levels above ground level;

vi) 1 metre from the rear boundary for the garage component of the building.

d) Where garages are located and accessed from the back of the site (i.e via a rear lane) they shall not exceed 50% of the width of the rear elevation.

3.7.1.3 The Size of Indoor Living Areas - Zone R3

a) The indoor living areas (i.e family room and lounges) within a dwelling (that forms part of attached dwellings shall have a minimum of one unfragmented area that is not less than:

i) (3x3)sqm in case of a dwelling with 1 bedroom;

ii) (3.5x4)sqm in case of a dwelling with 2 or 3 bedrooms;

iii) (4x5)sqm in case of a dwelling with 4 or more bedrooms.

b) For the purpose of clause 3.7.1.3a) above, the total number of bedrooms within a dwelling shall include any room that is capable of being used as a bedroom (i.e study room).

c) Master bedrooms shall have a minimum internal area of 12 square metres (excluding wardrobe space);

d) All other bedrooms proposed shall have a minimum internal area of 9 square metres (excluding wardrobe space);

e) All dining and living areas shall be well designed and of sufficient size for both furniture and movement/circulation through the dwelling. Submitted plans shall include examples of furnished floor plans that demonstrate that the design enables the use of each room

Figure 3.7.1.3 - Examples of medium density type residential development with articulated facade treatment.

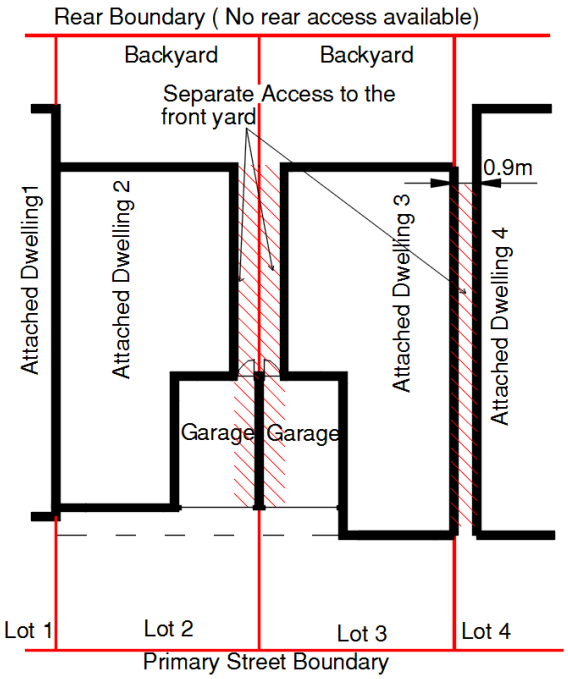


Figure 3.7.1.4 - Illustration of an example of a design solution for rear to front access requirement for attached dwellings.

Note:

The requirement for the rear-to front access is to enable occupants of an attached dwelling to move organic waste bins, lawnmowers and the like from the backyard to the front of the building without the need to pass through the main living areas.

for its intended purpose in a manner that does not restrict the movement of people within and through the room.

3.7.1.4 Rear Access for Attached Dwellings - Zone R3

a) Where there is no access to a rear lane or rear street directly available from the back of attached dwellings, each dwelling shall be provided with a separate and direct access from the backyard to the front yard that does not pass through any habitable area of the dwelling (Refer to Figure 3.7.1.4 for a suggested design solution).

b) For the purpose of 3.7.1.4 a) above, the direct access from the rear to the front of the dwelling shall have a minimum width of 0.9 metres and shall not be obstructed by hot water systems, air conditioning units, gardens or anything that may result in the obstruction of the access way.

3.7.1.5 Private Car Parking Requirement for Attached Dwellings - Zone R3

a) Each dwelling that is part of attached dwellings shall be provided with a minimum of one (1) single garage.

b) Despite Clause 3.7.1.5 a) above and Clause 3.7.1.2 b) , where an individual allotment is in existence before the gazettal date of the CLEP and has a width less than 7.5 metres, standard garages shall not be permitted on the primary street frontage unless the garage component is recessed by at least 2 meters from the main building line.

c) For the purpose of Clause 3.7.1.5 b) above, covered car parking spaces fronting the primary street shall only be provided in a non-obtrusive open type design so as not to detract from the street facade of the development.

d) Electric vehicle charging stations must be located behind the building line.

3.7.1.6 Requirements for the Use of Roof Space for Habitable Areas for Attached Dwellings - Zone R3

a) Council may consider the use of the roof space for a habitable room, but only if:

i) it is appropriately designed;

ii) it is part of the overall design of the building;

iii) appropriate light and ventilation is supplied to rooms; and

iv) it does not negatively impact on the design quality of the streetscape.

3.7.1.7 Presentation to Public Streets for Attached Dwellings - Zone R3

a) Attached dwelling housing shall satisfy the following architectural requirements:

i) a distinctive architectural outcome that unifies the range of building elements and diversity within the development and which also harmonises with surrounding development;

ii) incorporation of variations in roof heights and wall planes to avoid long unbroken ridge lines;

iii) incorporation of facade shifts and articulation, varied materials and colours in order to avoid duplication of the same building elements; and

iv) provision of windows and active spaces in the building ends, to provide additional security and visual interest;

Note:

Clause 7.13 Design Excellence of the CLEP applies to zones R3, R4, B2, B3 and B4 and aims to deliver the highest standard of architectural and urban design, as part of the built environment.

3.7 Medium Density Residential Development

3.7.1 Attached Dwellings

v) architectural features (such as balconies, openings, columns, porches, colours, materials etc) and articulation in walls are to be incorporated into the front facade of each dwelling.

b) All existing dwellings on site shall be demolished, unless the existing dwelling is fully renovated to match the colour, material, texture and architectural style of the proposed buildings so as to create a harmonious development.

3.7.1.8 Private Open Space for Attached Dwellings - Zone R3

a) Each dwelling within an attached dwelling development shall be provided with a combined area of private open space that:

i) is located behind the primary building line;

ii) has a combined minimum area of 40 sqm;

iii) has a minimum level area of (3x3) sqm;

iv) satisfies solar access requirements contained in section 4.4.3;and

v) has an internal living room directly accessible to the outdoor private open space areas.

3.7.1.9 Landscaping Requirement for and deep soil planting for Attached Dwellings - Zone R3

a) A detailed landscape design plan incorporating vegetation compatible with the character of the development shall be submitted with a development application.

b) Attached dwellings shall satisfy the following provisions relating to deep soil planting:

i) the area forward of the front building line shall remain permeable other

Note:
Refer to Section 2.5 Landscaping of Part 2 of Volume 1 of the Plan for additional requirements on Landscaping.

than the area occupied by the driveway and the pedestrian access to the main door of the dwelling;and

ii) a minimum of 20% of the total site area shall be available for deep soil planting.

iii) no more than 30% of the area forward of any building line shall be surfaced with impervious materials, where garages/ carparking spaces are proposed to be accessed from the rear of the property.

3.7.1.10 Site Services for Attached Dwellings - Zone R3

a) The location, design and construction of utility services shall satisfy requirements of the relevant servicing authority and Council.

b) Adequate provision shall be made available for all essential services (i.e water, sewerage, electricity, gas, telephone, internet and stormwater drainage).

c) All site services shall be placed underground.

d) All communication dishes, antennae and the like shall be located to minimise visual prominence.

3.7 Medium Density Residential Development

3.7.2 Multi Dwelling Housing

3.7.2 Multi Dwelling Housing - Zone R3

Objectives:

- Ensure that multi dwelling housing is designed to enhance the streetscape character of established residential neighbourhoods.
- Ensure that multi dwelling housing offers a high standard of internal and external amenity for its occupants and maintains the amenity of other residents in the locality.
- Encourage innovative designs and layout to produce a medium density style development with contemporary buildings that utilise facade modulation and incorporate shade elements, such as pergolas, verandahs and the like.
- Promote electric vehicle usage across the Local Government Area.
- Provide and encourage the installation of electric vehicle charging infrastructure.

3.7.2.1 Site Requirements for Multi Dwelling Housing - Zone R3

a) Multi dwelling housing shall only be permitted on an allotment having a minimum width of 25 metres measured between the extended property side boundaries, or in the case of a corner allotment, the secondary street boundaries where they intersect with the kerb line.

b) Multi dwelling housing shall not be erected on an existing battle-axe allotment.

c) For the purpose of calculating the developable area of an allotment a right of carriage way shall not be included within the developable area of the allotment, unless the relevant public agency is satisfied that, that part of the allotment is capable of being developed for the purpose of multi dwelling housing.

d) Multi dwelling housing shall only be permitted on a site where no part of the allotment is within 50 metres of

Note:

Multi dwelling housing (as defined under the CLEP) means 3 or more dwellings (whether attached or detached) on one lot of land, each with access at ground level, but does not include a residential flat building.

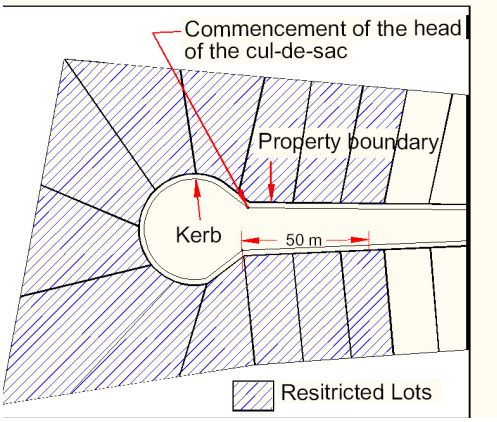


Figure 3.7.2.1 - Illustration of the 50 metre distance from the commencement of the head of a cul-de-sac where multi dwelling housing development are restricted.

the commencement of the head of a cul-de-sac to which vehicular access to the site is obtained (refer to Figure 3.7.2.2).

e) A minimum of 10% of the total number of dwellings within a multi dwelling housing development containing 10 or more dwellings shall be adaptable dwelling(s).

f) Multi dwelling housing shall not incorporate vehicular access that utilises any gate structure /mechanism other than access to basement car parking.

3.7.2.2 Setbacks for Muti Dwelling Housing - Zone R3

a) A multi dwelling housing development shall be set back a minimum of:

i) 4.0 metres from the primary street boundary;

ii) 2 metres from the secondary street boundary;

iii) 0.9 metres from any side boundary;

iv) 3 metres from the rear boundary for the ground level; and

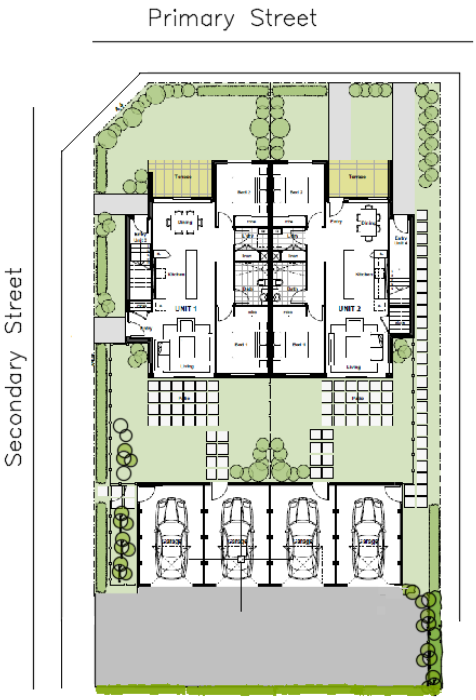
v) 6 metres from the rear boundary for all levels above ground level.

b) Notwithstanding Section 3.7.2.2a), the car parking space shall be setback a minimum of 6 metres from the primary street setback.

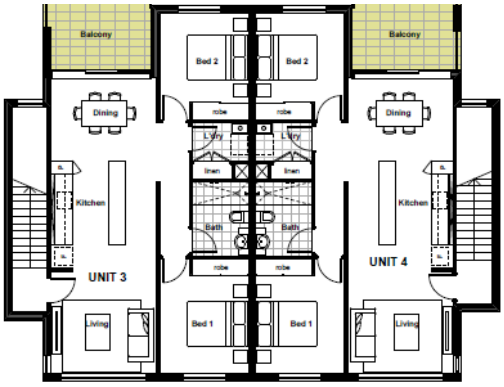
c) Despite Clause 3.7.1.2a) above, where car parking spaces/garages are located and accessed from the back of the site (i.e via a rear lane) a multi dwelling housing development shall be permitted to be setback by:

i) 3 metres from the primary street boundary;

ii) 2 metres from the secondary street boundary;



Ground Floor



First Floor

Figure 3.7.2.2 - An example of Multi dwelling housing floor plans located on a corner site where dwellings are located on top of each other with separate access for each dwelling from the ground floor. (Source Dwelling Density Guide, NSW Planning & Environment, 2014 (Slightly modified))

iii) 0.9 metres from any side boundary;

iv) 3 metres from the rear boundary for the ground level;

v) 6 metres from the rear boundary for all levels above ground level; and

vi) 1 metre from the rear boundary for the garage component of the building.

d) Where garages are located and accessed from the back of the site (i.e via a rear lane) they shall not exceed 50% of the width of the rear elevation.

e) Multi dwelling housing on corner allotments shall be permitted to have dwellings located on the ground floor and the first floor above , providing compliance with the BCA requirements and separate access to each dwelling from the ground floor is provided. Refer to the example of floor plans illustrated in Figure 3.7.2.2.

f) Stairs providing access to upper level dwellings shall be enclosed.

g) Each dwelling within a multi dwelling housing development shall be provided with an 'incidentals' storage facility within the dwelling, which shall be available for personal use of the occupants of each dwelling, and designed and constructed of materials to Council's satisfaction. Such storage facility shall have a storage capacity of not less than the following:

i) 4 cubic metres in the case of a studio flat;

ii) 6 cubic metres in case of a 1 bedroom flat;

iii) 8 cubic metres in case of a 2 bedroom flat;and

iv) 10 cubic metres in case of a 3 bedroom flat or more.

h) The incidentals storage facility shall

Note:

The requirement for the rear-to front access is to enable occupants of an attached dwelling to move organic waste bins, lawnmowers and the like from the backyard to the front of the building without the need to pass through the main living areas.

not be created as a separate (strata) allotment to the unit it services.

3.7.2.3 The Size of Indoor Living Areas - Zone R3

a) The indoor living areas (i.e family room and lounges) within a dwelling (that forms part of a multi dwelling housing development) shall have a minimum of one unfragmented area that is not less than:

   i) (3x3)sqm in case of a dwelling with 1 bedroom;

   ii) (3.5x4)sqm in case of a dwelling with 2 or 3 bedrooms;

   iii) (4x5)sqm in case of a dwelling with 4 or more bedrooms.

b) For the purpose of clause 3.7.2.3a) above, the total number of bedrooms within a dwelling shall include any room that is capable of being used as a bedroom (i.e study room).

c) Master bedrooms shall have a minimum internal area of 12 square metres (excluding wardrobe space);

d) All other bedrooms proposed shall have a minimum internal area of 9 square metres (excluding wardrobe space);

e) All dining and living areas shall be well designed and of sufficient size for both furniture and movement/circulation through the dwelling. Submitted plans shall include examples of furnished floor plans that demonstrate that the design enables the use of each room for its intended purpose in a manner that does not restrict the movement of people within and through the room.

Figure 3.7.2.3 - Examples of residential medium density development.

3.7.2.4 Rear Access - Zone R3

a) Where there is no access to a rear lane or rear street directly available from the back of attached dwellings, each dwelling shall be provided with a separate and direct access from the

backyard to the front yard that does not pass through any habitable area of dwelling (Refer to Figure 3.6.5.1 for a suggested design solution).

b) For the purpose of 3.7.2.4 a) above, the direct access from the rear to the front of the dwelling shall have a minimum width of 0.9 metres and shall not be obstructed by hot water systems, air conditioning units, gardens or anything that results in the obstruction of the access way.

3.7.2.5 Private Car Parking Requirement for Multi Dwelling Housing - Zone R3

a) Each multi dwelling housing unit shall be provided with a minimum of one single garage or car parking space.

b) One (1) external additional visitor car parking space shall be provided for every three (3) units (or part thereof), unless all dwellings within the development have direct frontage to a public street.

c) No visitor car parking space shall be located forward of the primary or secondary street boundary.

d) No visitor car parking space shall be in a 'stacked' configuration.

e) Electric vehicle charging stations must be located behind the building line.

Figure 3.7.2.4 - An example of multi dwelling housing, with separate dwellings on each floor. (Source Dwelling Density Guide, NSW Planning & Environment, 2014)

3.7.2.6 Requirements for the Use of Roof Space for Habitable Areas for Multi Dwelling Housing - Zone R3

a) Council may consider the use of the roof space for a habitable room, but only if:

i) it is appropriately designed;

ii) it is part of the overall design of the building;

iii) appropriate light and ventilation is supplied to rooms; and

iv) it does not negatively impact on the design quality of the streetscape.

3.7.2.7 Private and Communal Open Space Requirement for Multi Dwelling Housing - Zone R3

a) Each multi dwelling housing unit shall be provided with an area or areas of private open space that:

   i) are not located within the primary street setback;

   ii) have a minimum area of 40 sqm,

   iii) have a minimum width of 3 metres;

   iv) include a minimum levelled area of (3x3) sqm;

   v) have an internal living room directly accessible to the outdoor private open space areas; and

   vi) satisfy solar access requirements contained in section 3.4.4.

b) No part of an outdoor living area is permitted to be located within the primary or secondary street setback area.

c) Any communal open space or recreation facility provided as a part of a development shall be designed and constructed to:

   i) ensure safe access by the occupants of the development;

   ii) prevent access by members of the public; and

   iii) provide for the safety and well being of children in accordance with any applicable Australian Standard.

3.7.2.8 Presentation to Public Streets for Multi Dwelling Housing - Zone R3

a) Multi dwelling housing shall satisfy the following architectural requirements:

   i) a distinctive and innovative architectural design that presents visually interesting facades to the streets;

Figure 3.7.2.5 - Examples of residential medium density development.

ii) incorporation of variations in roof heights and wall planes to avoid long unbroken ridge lines;

iii) incorporation of facade shifts and articulation, varied materials and colours in order to avoid duplication of the same building elements; and

iv) provision of windows and active spaces in the building ends, to provide additional security and visual interest.

b) Multi dwelling housing shall satisfy the following additional provisions relating to streetscape:

i) architectural features (such as balconies, openings, columns, porches, colours, materials etc) and articulation in walls are to be incorporated into the front facade of each dwelling.

c) Unless Council can be satisfied that an existing dwelling located on the site makes a positive contribution to the character of the streetscape, that dwelling shall be demolished.

d) Where a development involves the construction of additional dwellings to create multi dwelling housing, the existing dwelling (where it is proposed to be retained) shall be renovated to match the colour, material, texture and architectural style of the proposed buildings so as to create a harmonious development.

3.7.2.9 Landscaping and deep soil planting Requirements for Multi Dwelling Housing - Zone R3

a) Multi dwelling housing shall satisfy the following requirements relating to landscape:

i) a detailed landscape design plan shall be submitted by a

suitably qualified person with the development application; and

ii) a minimum of 20% of the total site area shall be available for deep soil planting; and

iii) no more than 30% of the area forward of any building line shall be surfaced with impervious materials.

3.7.2.10 Multi Dwelling Housing and Waste Management - Zone R3

Individual Bin Storage

a) Individual bin storage arrangements are preferred by Council and will be supported over communal bin storage arrangements. However, in circumstances where individual bin storage is not feasible, communal bin storage may be considered.

b) Individual bin storage shall be provided in accordance with clause 3.4.5.

Communal Bin Storage

c) Where individual bin storage cannot be facilitated, an appropriately sized communal bin storage facility that is centrally located and provides convenient access for occupants, maintenance and collection staff shall be provided. Such storage facility shall:

i) be located behind the primary and secondary building line;

ii) be no more than 30 metres from the point of collection street;

iii) be covered;

iv) contain a hose connection;

v) be adequately ventilated;

vi) have an impervious floor that is connected to the sewer;

vii) be located no closer than 3 metres (in a horizontal direction) from an opening within a dwelling on the site or from the property boundary;

viii) be located no further than 30 metres away from any dwelling;

ix) incorporate design and construction (including colours, materials and finishes) that complement the development;

x) be appropriately screened from public view by a visual barrier of at least 1.5m high;

xi) provide an opening sufficient to allow egress of the maximum sized bin to be used at the development;

xii) Ensure that the path for wheeling bins between the waste storage area(s) and the kerbside is free of steps and kerbs and has a maximum gradient of 1V:8H.

d) All communal bin storage area/s shall be of a sufficient size to accommodate the bin configuration proposed for the development, and have sufficient capacity to allow for:

i) Access, manoeuvring, cleaning and maintaining all bins by providing an extra 30% of the footprint of each waste container to the overall size of the storage area;

ii) Spacing of at least 50cm between all bins allocated for the development;

iii) All bins to be arranged side by side within the bin storage room (no stacking);

iv) A minimum 1.5m aisle between rows of bins to minimise potential obstructions; and

v) Future modifications of services, bin sizes and/or configurations by minimising the installation of fixed structures within bin storage areas.

e) The communal waste/recycling bin storage facility shall not be located in

such a place that requires any bins to be transported through any habitable part of the dwelling to reach the collection point.

f) All bins located within the bin storage facility shall be presented to kerbside for collection by a site caretaker, no earlier than the evening prior to scheduled collection and returned directly to the communal bin storage area within four hours of collection.

On Site Collection

g) Any development

- containing 20 or more dwellings, and/or
- when the number of bins proposed cannot be accommodated within 50% of the development's net frontage width on collection day,

shall be designed to accommodate forward-in, forward-out, drive-on vehicular collection for on-site servicing.

h) For the purpose of calculating the minimum area behind the kerb and gutter required for bin placement, each bin shall be provided a clear width of 1.0 metre which allows for a 300mm separation distance either side of each bin.

i) Regardless of the storage and collection arrangements proposed, the distance between a dwelling and the bin storage area shall be a maximum of 40 metres.

j) Requirements for on-site collection are provided at clause 5.4.8.5.

3.7.2.11 Site Services for Multi Dwelling Housing - Zone R3

a) The location, design and construction of utility services shall satisfy requirements of the relevant servicing authority and Council.

Note:

Net frontage is calculated as the total lot frontage, minus the total of all distances occupied by trees (canopy width at maturity), driveways, street furniture, bus stops, street lights, power poles or any other fixed item that would obstruct access to the kerbside or servicing of bins.

3.7

b) Adequate provision shall be made available for all essential services (i.e water, sewerage, electricity, gas, telephone, internet and stormwater drainage).

c) All site services shall be placed underground.

d) All communication dishes, antennae and the like shall be located to minimise visual prominence.

3.7.3 Manor Houses - Zone R3

Objectives:

- Ensure that all Manor House developments are designed to enhance the streetscape character of established residential neighbourhoods.
- Ensure that all Manor House developments offer a high standard of internal and external amenity for its occupants in addition to maintaining the amenity of other residents in the locality.
- Encourage innovative designs and layout to produce a medium density style development with contemporary buildings that utilise facade modulation and incorporate shade elements, such as pergolas, verandahs and the like.

3.7.3.1 Site Requirements for Manor Houses - Zone R3

a) The minimum lot area for a manor house is 600 square metres with a minimum frontage width of 15m, which is required to adequately achieve setback requirements and sufficient space for landscaping and car parking.

b) This building type is best suited to corner lots or sites with rear lane access in order to adequately accommodate garages and car parking.

c) The proposal may include a strata title subdivision, with a common entry and internal hallway.

d) Like other medium density proposals within the Campbelltown LGA, manor houses shall only be permitted on a site where no part of that allotment is located within 50 metres of the commencement of a cul-de-sac head to which vehicular access has been retained.

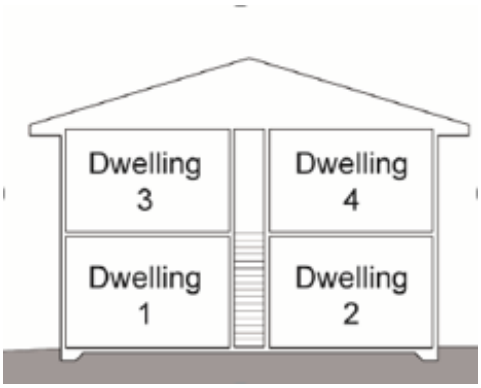


Figure 3.7.3.1 - An example of a cross section - Manor

3.7.3.2 - Strata title subdivision

a) A manor house containing three or four dwellings on one lot may be strata titled to allow for separate ownership of each dwelling.

b) Development that complies with this Section may receive concurrent

3.7 Medium Density Residential Development

3.7.3 Manor Houses

3.7.3.1 Site Requirements for Manor Houses - Zone R3

a) The minimum lot area for a manor house is 600 square metres with a minimum frontage width of 15m, which is required to adequately achieve setback requirements and sufficient space for landscaping and car parking.

b) This building type is best suited to corner lots or sites with rear lane access in order to adequately accommodate garages and car parking.

c) The proposal may include a strata title subdivision, with a common entry and internal hallway.

d) Like other medium density proposals within the Campbelltown LGA, manor houses shall only be permitted on a site where no part of that allotment is located within 50 metres of the commencement of a cul-de-sac head to which vehicular access has been retained.

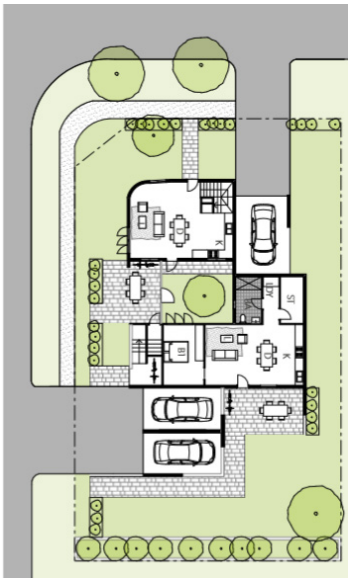


Figure 3.7.3.2 - An example of a ground floor Manor House

3.7.3.2 - Strata title subdivision

a) A manor house containing three or four dwellings on one lot may be strata titled to allow for separate ownership of each dwelling.

b) Development that complies with this Section may receive concurrent approval for both the development and strata title subdivision.

c) Development that complies with this Section may receive concurrent approval for both the development and strata title subdivision.

3.7.3.3 - Setbacks for Manor Houses – Zone R3

a) The development shall provide the following front and side boundary setback distances which reflect the existing and/or future intended character of the area in addition to an appropriate separation between buildings on adjoining sites.

b) A manor house must be setback from the front boundary, or public space, so that it:

(i) defines the street edge;

(ii) creates a clear threshold and transition between common private areas of the site;

(iii) assists in achieving visual privacy to ground floor dwellings from the street;

(iv) contributes to the streetscape character and landscape; and

(v) relates to the desired future streetscape pattern without any unreasonable, adverse impacts on the existing streetscape.

c) Any infill development must reflect the average setback distance of the two nearest residential accommodation buildings, located on either side of the proposed site.

d) A manor house development shall be set back a minimum of:

i) 5.5 metres from the primary street boundary;

ii) 2 metres from the secondary street boundary;

iii) 0.9 metres from any side boundary;

iv) 3 metres from the rear boundary for the ground level; and

v) 6 metres from the rear boundary for all levels above ground level.

e) Notwithstanding Section (d) above, all car parking spaces shall be setback a minimum of 6 metres from the primary street setback.

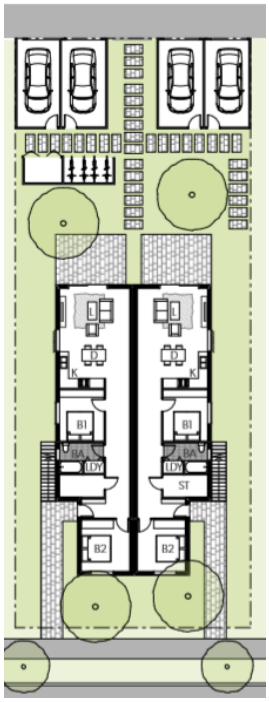
f) Despite above, where car parking spaces/ garages are located and accessed from the back of the site (i.e via a rear lane), all manor house development shall be permitted to be setback by:

i) 5.5 metres from the primary street boundary;

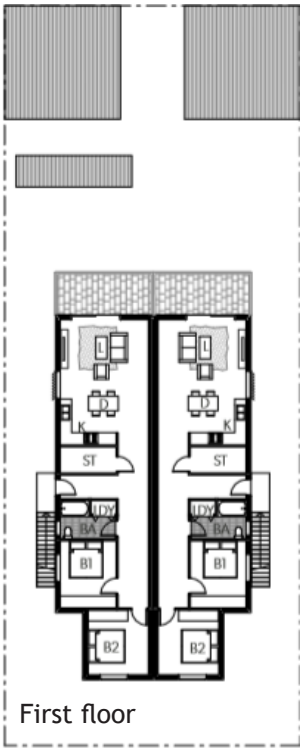
ii) 2 metres from the secondary street boundary;

iii) 0.9 metres from any side boundary;

iv) Where garages are located and accessed from the back of the site (i.e. via a rear



Ground floor



First floor

Figure 3.7.3.3 - An example of a ground floor and a first floor design of a Manor House

lane) they shall not exceed 50% of the width of the rear elevation.

3.7.3.4 - The Size of Indoor Living Areas for Manor Houses - Zone R3

a) Any dwellings that form part of a manor house development are required to have the following minimum internal floor areas:

   i) Studio = 35m^2

   ii) 1 bed = 50m^2

   iii) 2 bed = 70m^2

   iv) 3+ bed = 90m^2.

b) The minimum area of any bedroom is 12m^2 which comprises a minimum length of 4m and width of 3m, excluding space for a wardrobe.

c) The indoor living areas within a dwelling that forms part of a manor house development shall have combined, minimum living and dining room areas of:

   i) 1 and 2 bedrooms = 24m^2

   ii) 3+ bedrooms = 28m^2

d) All living / lounge rooms shall have a minimum length and width of 4m, which excludes any fixtures.

e) Kitchens are not to be part of a circulation space such as a hallway, except in studio apartments.

3.7.3.5 - Rear Access for Manor Houses - Zone R3

a) Where there is no access to a rear lane or rear street, directly available from the back of the proposed manor house, each ground floor dwelling shall be provided with a separate and direct access from the backyard to the front yard which does not pass through any habitable area of the dwelling.

b) For these purposes, direct access from the rear to the front of the dwelling shall have a minimum width of 0.9 metres and shall

Note:

For more examples of Manor Houses designs, please refer to the 'Low Rise Medium Density Design Guide, 2018', which is available from the Department of Planning and environment website at the following link:

https://www.planning.nsw.gov.au/Policy-and-Legislation/Housing/Medium-Density-Housing

Note:

All the figures used under Section 3.7.3 Manor Houses have been copied form the 'Low Rise Medium Density Design Guide, 2018', which is available from the Department of Planning and environment website at the following link:

https://www.planning.nsw.gov.au/Policy-and-Legislation/Housing/Medium-Density-Housing

not be obstructed by hot water systems, air conditioning units, gardens or anything that may result in the obstruction of the access way.

3.7.3.6 – Private Car Parking Requirements for Manor Houses – Zone R3

a) A minimum of one (1) car parking space shall be provided for each dwelling proposed as part of a manor house development.

b) All required car parking spaces must meet compliance with Australian Standard (AS) -AS2890.1 (2004) - "Parking facilities - Off -street car parking".

c) The visual and/or environmental impacts of car parking and garages shall not dominate the streetscape.

d) Basement car parking should not protrude more than 1m above finished ground level except at the entrance to the car park.

e) The maximum dimensions of any basement car park entry will be 2.7m high by 3.5m wide.

f) 'Studio' sized dwellings, located within 400 metres of a railway station, are exempt from having to provide any car parking spaces on-site.

g) Electric vehicle charging stations must be located behind the building line.

3.7.3.7 - Private Open Space for Manor Houses – Zone R3

a) All proposed manor houses shall provide appropriately sized private open space areas and balconies to enhance residential amenity.

b) All dwellings shall have access to individual private open space , with a minimum length and width of 3m, in addition to meeting compliance with the following areas square metres requirements:

i) 1 bedroom or a studio = 9 square metres

ii) 2+ bedrooms = 12 square metres

iii) Houses with ground level living areas = 16

square metres

c) The principal private open space shall be located adjacent to the living room, dining room or kitchen in order to extend these living areas.

d) A minimum 25% of all private open space areas shall be covered to provide shade and protection from rain.

3.7.3.8 - Presentation to Public Streets for Manor Houses - Zone R3

a) A Design Verification Statement shall be submitted with any manor house application which comprehensively describes how the proposed building aesthetics and articulation will contribute to the existing streetscape and character of the local area.

b) The development may have a primary road articulation zone that extends up to 1.5m forward of the minimum required setback from that primary road.

c) The following elements can be located within the above mentioned articulation zone:

i) An entry feature or portico;

ii) A balcony, deck, terrace or verandah;

iii) window box treatment;

iv) A bay window or similar feature;

v) An awning or other feature over a window;

vi) A sun shading feature;

vii) An eave;

viii) An access ramp.

d) Provide high level activation and passive surveillance to the public streets.

e) Pedestrian entries shall be directly visible from the public domain (street).

f) Windows from habitable rooms shall be positioned to overlook the public domain.

g) Direct visibility shall be provided along paths and driveways from the public domain to the

front door.

h) Front fences and walls shall not dominate the public domain but complement the context and character of the area.

i) Private courtyards within the front setback shall be located within the proposed building's articulation zone or behind the required front building line.

j) The roof design shall be integrated harmoniously with the overall building form.

k) Skylights and ventilation systems are integrated into the roof design.

3.7.3.9 - Landscaping and deep soil planting Requirements for Manor Houses - Zone R3

a) All manor house proposals shall satisfy the following requirements relating to landscape:

   i) a detailed landscape design plan shall be submitted by a suitably qualified person with the development application; and

   ii) a minimum of 20% of the total site area shall be available for deep soil planting; and

   iii) no more than 30% of the area forward of any building line, or between the building and a rear lane, shall be surfaced with impervious materials.

3.7.3.10 - Manor Houses and Waste Management - Zone R3

a) Manor house development shall make provision for individual waste storage, allocated behind the primary and secondary building lines and out of public view, as per the following providing the following bins for each dwelling:

   i) One (1) x 140 litre bin; and

   ii) two (2) x 240 litre bins

b) The bin storage area shall not be located in such a place that requires any bins to be transported through any habitable part of the

dwelling to reach the collection point.

c) The path for wheeling bins between the waste storage area(s) and the kerbside shall be free of steps and kerbs and have a maximum gradient of 1V:8H.

d) The maximum travel distance between any waste storage area and the collection point should not exceed 30 metres.

e) If bin storage is proposed to be contained within any garage, that garage must be widened by a minimum of 600mm to allow for egress of a 240L mobile garbage bin while a vehicle is parked within the garage.

f) Each dwelling must be provided with at least 1.5m clear and unobstructed kerbside for the presentation of bins and kerbside clean up material within the confines of the site's frontage (not impeding driveways or neighbouring lots).

g) Where individual waste storage is not feasible, an appropriately sized communal bin storage facility that is centrally located and provides convenient access for occupants, maintenance and collection staff shall be provided. Such storage facility shall:

i) be located behind the primary and secondary building line;

ii) be no more than 30 metres from the point of collection;

iii) be covered;

iv) contain a hose connection;

v) be adequately ventilated;

vi) have an impervious floor that is connected to the sewer;

vii) be located no closer than 3 metres (in a horizontal direction) from an opening within a dwelling on the site or from the property boundary;

viii) incorporate appropriate design and construction materials (including colours

and finishes) which complement the development;

ix) be appropriately screened from public view by a visual barrier of at least 1.5m high;

x) provide an opening sufficient to allow egress of the maximum sized bin to be used at the development;

xi) Ensure that the path for wheeling bins between the waste storage area(s) and the kerbside is free of steps and kerbs and has a maximum gradient of 1V:8H.

h) The bin storage room shall have sufficient capacity to allow for:

i) Access, manoeuvring, cleaning and maintaining all bins by providing an extra 30% of the footprint of each waste container to the overall size of the storage area;

ii) Spacing of at least 50cm between all bins allocated for the development;

iii) All bins to be arranged side by side within the bin storage room (no stacking);

iv) A minimum 1.5m aisle between rows of bins to minimise potential obstructions; and

v) Future modifications of services, bin sizes and/or configurations by minimising the installation of fixed structures within bin storage areas.

i) Where waste storage is provided in a basement car park a maximum ramp gradient of 1:8 is to be provided to the waste collection point.

j) Where waste collection is proposed to occur in a rear lane, the lane must be designed in accordance with clause 3.8.9 e).

3.7.3.11 - Site Services for Manor Houses - Zone R3

a) The location, design and construction of utility services shall satisfy requirements of the relevant servicing authority and Council.

b) Adequate provision shall be made available for

all essential services such as water, sewerage, electricity, gas, telephone, internet and stormwater drainage.

c) All site services shall be placed underground.

d) All communication dishes, antennae anthe like shall be located to in a manner which minimises any visual impact on neighbouring properties and/or the public domain. These types of ancillary structures shall be limited to one per building, if visible from a public place

3.8 Residential Subdivision

Objectives:

- Ensure that land once subdivided, contributes positively to the desired character of the locality and provides for the safe and attractive integration of existing and new development.
- Ensure that subdivision responds to the physical characteristics of the land, its landscape setting, orientation, landmarks and key vistas to and from that land.
- Ensure that subdivision provides safe connections with and extension of existing street patterns, as well as any pedestrian, cycleway and public open space networks.
- Promote walking and cycling as a mode of travel within a residential neighbourhood.
- Facilitate opportunities for public transport to service new subdivision estates.
- Ensure that the proposed development is compatible with the capacity of existing and proposed infrastructure.
- Encourage subdivision that will result in the creation of allotments that are orientated, and of such dimension and configuration to facilitate the siting, design and construction of development resulting in the conservation of non-renewable resources and the environmental attributes of the land.

3.8.1 General Requirements

Design Requirements

a) Subdivision shall have appropriate regard to orientation, slope, aspect and solar access.

b) Subdivision design shall comply with the requirements specified in Council's Engineering Design Guide for Development, available from Council's website at www.campbelltown.nsw.gov.au

c) Where relevant, roads shall be designed to provide satisfactory level of services for the evacuation of occupants in the event of emergency.

d) Subdivision shall promote through street access and minimise the number of cul-de-sacs.

e) Roads/access handles shall be provided

Note:

Development controls under the plan are in addition to the development standards requirements under the CLEP.

Zone Acronyms

R2 Low Density Residential: R2

R3 Medium Density Residential: R3

R4 High Density Residential: R4

R5 Large Lot Residential: R5

to separate allotments from any park, reserve, waterway and the like.

f) All allotments within a subdivision that are located adjacent to the intersection of local public roads (existing or proposed) shall provide a splay in accordance with *Council's Engineering Design Guide for Development (available from Council's website at (www.campbelltown.nsw.gov.au)* to ensure adequate sight distances and maintain footpath widths.

Note: All splays shall be dedicated to Council at no cost to Council.

Note: In the case of an RMS road the size of the splay shall be in accordance with the RMS's requirements.

g) Residential subdivision shall be designed to address the public domain.

h) Wherever possible, subdivision design shall avoid the creation of allotments that have rear boundaries (and fencing) that adjoin the public domain.

i) For the purpose of calculating the minimum allotment size and dimensions under the Plan, any land that is part of an environmental corridor as specified by the *Office of Environment and Heritage* or any other government agency shall not be included within the calculated area of land unless the relevant public agency is satisfied that that part of the allotment is capable of being developed.

j) For the purpose of calculating the minimum allotment size and dimensions under the Plan, any land that is subject to bushfire, flooding or other risk (excluding mine subsidence) shall not be included within the calculated area of land unless it is demonstrated to Council's satisfaction that the site can be appropriately managed in a manner that retains the

Figure 3.8.1 – Example of Greenfield residential subdivision

Note:

Refer to Part 4 Principal Development Standards of the CLEP for the minimum subdivision standards for Torrens Tile subdivision (Clause 4.1 of the CLEP).

Note:

Numerical development standards for the minimum subdivision for each type of residential development are provided under the CLEP.

ability to be developed for the purpose to which it is intended under the zone.

k) Access to residential subdivisions shall not be permitted to any classified road where alternative access can be made available via the non-classified road network.

l) Extensive use of battleaxe configuration in the subdivision of new areas shall be avoided, where possible.

3.8.2 Residential Torrens Title Subdivision for the purpose of dwelling houses - Zones R2 and R3

Design Requirements

a) Any residential allotment created by Torrens Title subdivision for the purpose of a dwelling house development in areas zoned R2 and R3 shall satisfy the following standards:

i) a minimum width of 15 metres measured along the side boundaries at a distance of 5.5 metres from the front property boundary;

ii) a minimum width of 7 metres measured between the extended property side boundaries where they intersect with the kerb line; and

iii) a minimum depth of 25 metres.

b) Any battle axe shaped allotment created by subdivision for the purpose of a dwelling house development in areas zoned R2 and R3 shall satisfy the following standards:

i) a minimum depth of 25 metres excluding the length of the access handle;

ii) no more than one allotment shall be accessed via a battle axe handle;

iii) a minimum access handle width of 3.5 metres;

iv) a maximum access handle length of 35 metres;

v) no encroachment/s or right of

Figure 3.8.2 – Example of residential subdivision under construction.

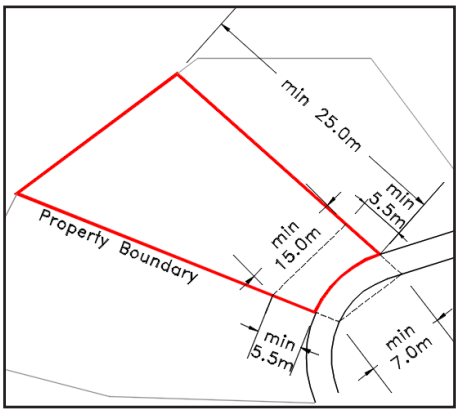


Figure 3.8.2 - Minimum allotment dimensions for Torrens Title Subdivision for the purpose of a dwelling house.

Note:

Refer to the CLEP for the minimum subdivision standards for Torrens Tile subdivision (Clause 4.1 of the CLEP).

Note:

Clause 4(A) of the CLEP States:

(4A) If a lot is a battle-axe lot or other lot with an access handle, the area of the access handle is not to be included in calculating the lot size.

carriage way shall impinge into land within the access handle;

vi) the provision of an adequately dimensioned vehicle manoeuvring area, located behind the access handle; and

vii) the provision of a minimum 0.5 metre wide landscape strip along the length of the access handle, where it adjoins the boundary/fence of the neighbouring property.

3.8.3 Residential Torrens Title Subdivision for the Purpose of Dwelling Houses Development - Zone R5

Design Requirements

a) Any residential allotment created by Torrens Title subdivision for the purpose of a dwelling house development in areas zoned R5 shall satisfy the following standards:

i) a minimum width of 20 metres measured along the side boundaries at a distance of 5.5 metres from the front property boundary;

ii) a minimum width of 10 metres measured between the extended property side boundaries where they intersect with the kerb line; and

iii) a minimum depth of 25 metres.

b) Any battle axe shaped allotment created by subdivision for the purpose of a dwelling house development in areas zoned R5 shall satisfy the following standards:

i) a minimum depth of 25 metres excluding the length of the access handle;

ii) no more than one allotment shall be accessed via a battle axe handle;

iii) a minimum access handle width of 3.5 metres;

iv) a maximum access handle length of

Note:

Clause 4(A) of the CLEP States:

(4A) If a lot is a battle-axe lot or other lot with an access handle, the area of the access handle is not to be included in calculating the lot size.

35 metres;

v) no encroachment/s or right of carriage way shall impinge into land within the access handle;

vi) the provision of an adequately dimensioned vehicle manoeuvring area, located behind the access handle; and

vii) the provision of a minimum 0.5 metre wide landscape strip along the length of the access handle, where it adjoins the boundary/fence of the neighbouring property.

3.8.4 Subdivision of Dual Occupancies - Zones R2 and R3

Design Requirements

a) For the purposes of the subdivision of dual occupancies, all allotments to be created shall be part of a Strata Title scheme.

b) Council will consider a development application for Torrens Title subdivision for the purpose of dual occupancies (being the only dwellings in the development) if the proposed subdivision satisfies the following standards:

i) each allotment has a width of 7.5 metres measured between the extended property side boundaries where they intersect with the kerb line;

ii) both allotments have access to a public street;

iii) at least 1 allotment has direct frontage to a public street;

iv) a minimum access handle width of 3.5 metres for the servicing of the rear allotment (if proposed); and

v) where a battleaxe allotment is created, no right of carriage way is proposed over the other allotments

Figure 3.8.3 – Residential subdivision allowing adequate accessibility for waste collection vehicles.

Note: For the purpose of clause 3.8.4 b) ii), an access handle does not constitute direct frontage to a public street.

Note: Council may release a subdivision certificate for dual occupancies prior to the issuing of the occupation certificate, where the construction of the building has passed the frame stage by the relevant PCA and Council is satisfied that the building will be constructed as per the approved plans.

3.8.5 Subdivision for the Purpose of Semi-detached Dwellings - Zones R2 and R3

Design Requirements

a) Council will consider a development application for Torrens Title subdivision of a site for the purpose of semi-detached dwellings (being the only dwellings in the development) if:

   i) each allotment has a direct frontage to a public street;

   ii) no common property is created;

   iii) each allotment has a width of 7.5 metres measured between the extended property side boundaries where they intersect with the kerb line; and

   iv) no battleaxe allotments are created

Note: For the purpose of clause 3.8.5 a) iii), an access handle does not constitute direct frontage to a public street.

Note: Council may release a subdivision certificate for semi-detached dwellings prior to the issuing of the occupation certificate, where the construction of the building has passed the frame stage by the relevant PCA and Council is satisfied that the building will be constructed as per the approved plans.

3.8.6 Subdivision for the purpose of Attached Dwellings - Zones R2 and R3

Design Requirements

a) Council will consider a development application for Torrens Title subdivision of a site for the purpose of attached dwellings (being the only dwellings in the development) if:

   i) each allotment has direct frontage to a public street;

   ii) no common property is created;

   iii) each allotment has a width of 7.5 metres measured between the extended property side boundaries where they intersect with the kerb line; and

   iv) no battleaxe allotments are created

Note: For the purpose of clause 3.8.6 a) iii), an access handle does not constitute direct frontage to a public street.

Note: Council may release a subdivision certificate for attached dwellings prior to the issuing of the occupation certificate, where the construction of the building has passed the frame stage by the relevant PCA and Council is satisfied that the building will be constructed as per the approved plans.

3.8.7 Subdivision of Multi Dwelling Housing - Zone R2 and R3

a) For the purposes of the subdivision of multi dwelling housing, all allotments to be created shall be part of a Strata Title Scheme.

b) Despite 3.8.7 a) Council will consider a development application for Torrens Title subdivision of multi dwelling housing, if each allotment satisfies the following standards:

   i) a minimum depth of 25 metres;

   ii) all allotments/dwellings within the development have direct frontage to a public street;

   iii) no common property is created;

   iv) a minimum width of 7.5 metres measured between the extended

Note:

On 22 November 2019, Campbelltown Local Environmental PLan, 2015, was amended to prohibit Multi Dwelling Housing in the R2 Low Density Residential Zone. Part 3.8.7 of this DCP continues to apply to subdivision of existing lawful mult dwelling housing developments in R2 zones.

property side boundaries where they intersect with the kerb line; and

v) no battle axe allotments are created.

Note: For the purpose of clause 3.8.7b) ii), an access handle does not constitute direct frontage to a public street.

c) All required visitors car parking spaces within a Strata Title subdivision shall be within common property.

Note: Council shall not release a subdivision certificate for multi dwelling housing until an occupation certificate (under the EP&A Act 1979) has been issued for all dwellings on the land.

3.8.8 Community Title Subdivision

Design Requirements

a) Council will consider the creation of community title allotments subject to the Council being satisfied that:

i) the development provides for significant communal open space and recreation facilities with convenient and safe access for all occupants;

ii) the communal open space and recreation facilities are made available for the sole benefit of the occupants of that subdivision;

iii) access to the development does not involve the erection of any gate structure/mechanism; and

iv) all other relevant requirements for each dwelling type are complied with.

Note: All roads within the community title scheme shall be designed and constructed to satisfy the requirements of Council's Engineering Design Guide for Development available from Council's website at www.campbelltown.nsw.gov.au.

3.8.9 Subdivision and Waste Management

Design Requirements

a) Where a staged development is proposed and the full length of road will not be completed as part of the initial stage, temporary turning areas are required to be installed to ensure that waste collection vehicles can service new dwellings without the need to reverse.

b) Temporary turning areas should be constructed to accommodate heavy rigid collection vehicles (see indicative dimensions at Table 2.15.2), and be removed when a through road is connected into the next stage of the development.

c) Subdivision shall be designed and constructed so that upon completion:

   i) kerbside waste and recycling collection vehicles are able to access bins from the kerbside at a minimum distance of 300mm, and a maximum distance of 1500mm from the left side of the vehicle to the bin (refer to indicative vehicle dimensions at Table 2.15.2);

   ii) at least 1.5 metres of clear and unobstructed footpath area is provided within the confines of each lot (not impeding driveways or neighbouring lots) to allow for the presentation of bins and kerbside clean up material

   iii) where it is not possible to provide bin collection points immediately in front of each allotment, a concrete pad shall be constructed at the closest practical location to the allotment for garbage collection;

   iv) any concrete pad constructed for the purpose of providing a bin collection point must be designed to provide

adequate space to accommodate the number of bins presented each week and the design and location approved by Council prior to construction.

v) the location for kerbside presentation provides a minimum 5.2 metres overhead clearance for the operation of the collection vehicle (eg. no trees or transmission lines overhanging the bins).

vi) collection vehicles are not required to make a reverse movement to service bins.

vii) a minimum carriageway width of 5.5m is provided, allowing for a total width of 8m (face of kerb to face of kerb) allowing access by heavy rigid class waste vehicles to pass between two cars parked on the street.

d) Where battle-axe lots are proposed, they shall be designed and constructed so that upon completion:

i) The width of the access handle must be sufficient to allow bins and kerbside clean up material to be presented for collection without restricting vehicle access and movements; or

ii) Where sufficient space cannot be provided at the access road, the neighbouring lot must be able to accommodate sufficient area for the presentation of bins and kerbside clean up material. The applicant shall demonstrate to Council that an appropriate mechanism (e.g. an easement) is in place to lawfully facilitate such an arrangement.

e) Where rear access laneways are provided and are the proposed location for waste collection, laneways must be designed so that:

i) Waste collection vehicles can access the designated collection point

safely and easily;

ii) Waste collection points are located away from ramps, street and service infrastructure (such as street lighting and poles), overhead wires, street tree canopies, building awnings and overhangs, or any other structures that can impede the operation of collection vehicles;

iii) Laneways are wide enough to accommodate heavy rigid collection vehicles and their required manoeuvring dimensions;

iv) The length of laneways is limited and curvature minimised to ensure that appropriate sight distances are maintained;

v) All residential lots are provided with adequate presentation areas in the laneway to allow for servicing of the required number of bins;

vi) Waste collection points are located between dwellings and do not obstruct garages or vehicle access;

vii) Bin presentation areas are a minimum of 2 metres wide and 0.75 metres deep; and

viii) Bin presentation and collections can be accommodated on one side of the laneway only, to allow for collection with a side loading vehicle. Where bins are proposed to be collected from both sides of the laneway, the property setback and carriageway must provide sufficient width to safely accommodate this arrangement.

3.8

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Part 4
Rural Residential Development and Ancillary Rural Residential Structures

4.1
Application

4.1 Application

Part 4 sets out the following:

- General Requirements for rural residential development;
- Development controls for the following rural residential structures:
  - fencing; and
  - outbuildings;
- Development controls for the following rural residential development:
  - dwelling houses;
  - rural workers' dwelling; and
  - dual occupancies (attached);and
- Development controls for rural residential subdivision on areas zoned RU2, RU5, E3 and E4.

The design requirements contained within Part 4 complement the provisions contained in Part 2, Volume 1.

Note:

For the purpose of this part, rural residential development means any of the following:

- dwelling houses in areas zoned RU2, RU5, E3 and E4;
- rural workers' dwelling in areas zoned RU2 and E3;
- dual occupancies attached in areas zoned E3 and E4;
- outbuildings on areas zoned RU2, RU5, E3 and E4; and
- fencing in areas zoned RU2, RU5, E3 and E4.

Note:

Qualifying lot sizes for rural residential development are included under the CLEP.

Zone Acronyms

RU2 Rural Landscape: RU2

RU5 Village: RU5

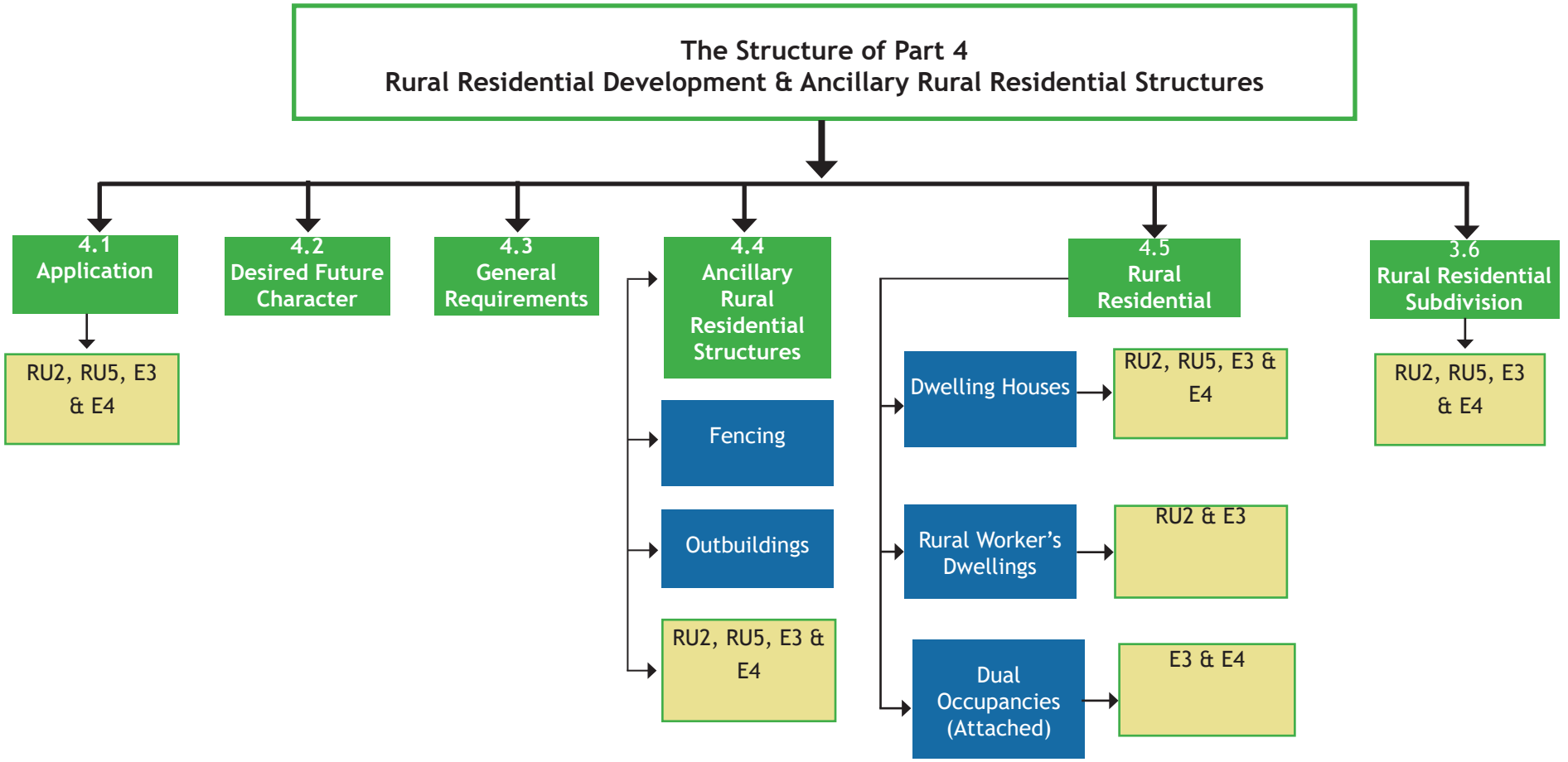
E3 Environmental Management: E3

E4 Environmental Living: E4

Note:

Proposed residential development within Bush Fire Prone Lands shall comply with the requirements of Planning for Bush Fire Protection 2006 (as amended), prepared by NSW Rural Fire Service.

Note: Planning for Bushfire Protection 2006 Document is available for view/download from the NSW Rural Fire Service website at www.rfs.nsw.gov.au


The Structure of Part 4
Rural Residential Development & Ancillary Rural Residential Structures
4.1 Application
RU2, RU5, E3 & E4
4.2 Desired Future Character
4.3 General Requirements
4.4 Ancillary Rural Residential Structures
Fencing
Outbuildings
RU2, RU5, E3 & E4
4.5 Rural Residential
Dwelling Houses
RU2, RU5, E3 & E4
Rural Worker's Dwellings
RU2 & E3
Dual Occupancies (Attached)
E3 & E4
3.6 Rural Residential Subdivision
RU2, RU5, E3 & E4

4.2

Desired Future Character Rural Residential

4.2 Desired Future Character for Rural Residential Areas Zoned RU2, RU5, E3 and E4

The areas zoned RU2, RU5, E3 and E4 shall continue to be characterised by:

- rural landscape where dwelling houses are designed to blend with the natural environment;
- dwelling houses with a scale and bulk that are not visually dominant;
- buildings that are setback a generous distance from the primary street frontage to maintain the rural character of existing streets/landscape;
- buildings that are strategically sited on the least environmental sensitive part of the site having regard to site constraints such as slope, bushfire, drainage, on site effluent disposal, vegetation, threatened species and flooding constraints; and
- rural open fencing that respects the environmental and scenic quality of the rural landscape.

Note:
Numerical Development Standards for building heights and minimum subdivision standards are provided under the CLEP.

Figure 4.2.1 - Examples of streetscapes/views within existing rural residential areas within the Campbelltown LGA.

4.3 General Requirements for Rural Residential Development - Zones RU2, RU5, E3 and E4

This Section provides general development controls for rural residential development in areas zoned RU2, RU5, E3 and E4.

4.3.1 Building Form and Character

Objectives:

- Ensure that the aesthetic and environmental values of rural lands are appropriately conserved.
- Ensure that the massing, scale, form, colour and appearance of new development are complementary to the existing and desired rural residential character of the neighbourhood.
- Ensure that buildings are designed to enhance the existing character of the rural areas by encouraging innovative and quality designs that fit harmoniously with their surroundings.
- Ensure that parking areas, garages and driveways are appropriately sited, designed and constructed so that they do not detract from the appearance of the development or character and landscape qualities of the area.

4.3.1.1 Siting & Streetscape

a) Developments shall be designed to fit the existing contours and landform of the site and to minimise the amount of cut and fill.

b) Materials, colours and finishes of roofing, walls, driveways and fencing shall:

   i) not be obtrusive;

   ii) not be highly reflective and/or include bright colours;

   iii) complement or be recessive to the landscape setting in which the building is to be situated;and

   iv) be submitted to Council as part of the development application.

c) Garages and outbuildings shall be designed and located so that they do not dominate the primary street frontage of the building as viewed from the street and prominent public places.

d) Garage doors facing public streets shall

Figure 4.3.1.1 - A rural residential dwelling.

4.3 General Requirements for Rural Residential Development

4.3.1 Building Form and Character

be no wider than 50% of the width of the main dwelling (at its street fronting facade).

e) Highly reflective materials and bright colours for roofing shall not be allowed.

f) Building shall not be sited downstream from existing dams in order to reduce the potential for inundation of the buildings if the dam fails or overtops.

4.3.1.2 Building Height

Design Requirements

a) The height of development shall not result in any significant loss of amenity (including loss of solar access and visual and acoustic privacy) to adjacent properties.

Note:
For development controls landscaping, weed management, erosion and sediment controls, cut and fill, water cycle management and retaining walls refer to Sections 2.5 to 2.13 of Part 2 of Volume 1 of the Plan.

4.3.2 Car Parking and Access

Objectives:

- Ensure efficient and safe vehicle and pedestrian movement within, into and out of development.
- Ensure that the location and design of driveways, parking, service areas and access areas are practical, easily maintained, convenient, safe, suitably landscaped and respect the broader landscape context.
- Promote the use of electric vehicles across the Local Government Area.
- Encourage the installation of electric vehicle charging infrastructure.

Design Requirements

a) The minimum dimensions of any required parking space shall be 2.5 x 5.5 metres.

b) The minimum internal dimensions of an enclosed garage shall be 3.0 x 6.0 metres.

c) Transitional grades shall comply with AS2890.1 (as amended) Parking Facilities - Off-Street Car Parking.

d) Driveways shall meet the following criteria:

i) constructed to a standard that allows for all weather access;

ii) designed and located to follow contours to avoid excessive site works, erosion and sedimentation run off;

iii) have a minimum width of 2.5 metres and a maximum width of 5.0 metres;

iv) allow for entry to and exit from the property in a forward direction;

v) located to minimise the impact on vegetation and the removal of mature trees; and

vi) one (1) driveway access is permitted per property, in addition to any access required by the NSW Rural Fire

Figure 4.3.2.1 - An example of a driveway that is constructed to a standard that allows for all weather access.

Service, where relevant.

e) Driveways shall be located a minimum distance of (six) 6 metres from the tangent point of any unsignalised intersection (refer to Figure 4.3.2.2).

f) Driveways shall be designed and constructed so that they do not divert stormwater from the adjoining road onto the property.

g) Electric vehicle charging stations must be located behind the building line.

Note: In circumstances where an intersection is controlled by traffic signals, a roundabout or the like, applicants are requested to contact Council for specific requirements.

Note: For additional technical specifications relating to gradient of driveway refer to Council's Engineering Design for Development available from Council's website at: www.campbelltown.nsw.gov.au

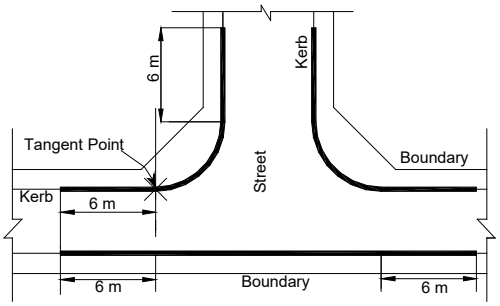


Figure 4.3.2.2 - Inappropriate locations of a driveway entry as shown by heavy edged lines.

4.4 Ancillary Rural Residential Structures - Zones RU2, RU5, E3 and E4

This section applies to ancillary rural residential structures including outbuildings, and fencing in areas zoned RU2, RU5, E3 and E4.

4.4.1 Fencing - Rural Residential

Objectives:

- To ensure that fencing fronting the primary and secondary streets are of a material, colour, design and height that do not adversely impact on the scenic and environmental quality of the rural areas.

a) Fencing shall:

i) be a maximum of 1.8 metres in height;

ii) be of an open style for any part of the fence that is higher than 0.6 metres, except for the parts of the fence that are pillars or columns (refer to Figure 4.4.1);

iii) not be constructed of solid metal sheeting unless required by a Bush fire Risk Management Plan prepared by a qualified person; and

iv) complement the design of the development.

b) Despite 4.4.1a) above, entry gates to rural properties and fence pillars/columns shall be permitted to be constructed of solid materials such as brick and the like.

c) Fencing shall not obstruct power, water, sewer, gas or telephone services, drainage systems, (including overland flow paths) or any easements or rights of way.

d) Fencing on corner allotments shall not obstruct the sight distance of traffic entering or within an intersection or roundabout.

e) Details of fencing shall be submitted with the development application for the Principal dwelling.

Note:
For the purpose of this part, ancillary rural residential structures means outbuildings, fencing, and the like.

Figure 4.4.1 - Examples of fencing - rural residential properties.

4.4 Ancillary Rural Residential Structures

4.4.1 Fencing Rural Residential

f) If the land on which a fence is to be erected is bush fire prone land, the fence or retaining wall shall be constructed from non-combustible materials.

g) A fence shall not be constructed so as to redirect the overflow of surface water onto adjoining properties.

4.4.2 Outbuildings - Rural Residential

Objectives:

- Encourage quality-designed outbuildings that make a positive contribution to the streetscape and scenic and rural character.

a) The combined areas of all 'detached' outbuildings (including carports and garages) shall be a maximum of:

   i) 150sqm on land having a site area less than 2 hectares; and

   ii) 250sqm on land having a site area of 2 hectares or more.

b) The minimum setbacks for a domestic outbuilding shall be in accordance with the setback requirements shown in Table 4.4.2

c) Outbuildings shall:

   i) incorporate similar or complementary design features, finishes, materials and colours to those of the principal dwelling;

   ii) not contain any other sanitary fixtures other than a toilet and a hand basin; and

   iii) not be used for any habitable, commercial, industrial or any other use that are not ancillary to the residential use of the principal dwelling.

   iv) be designed and located to minimise adverse visual impacts on the environmental and scenic values.

Table 4.4.2 Setbacks for Outbuildings - Rural Residential

Outbuildings Primary Street Setback in areas zoned RU2, RU5, E3 and E4	Secondary Street Setback in metres (m)	Side and Rear Setbacks in metres in metres (m)
50m or in line with the front elevation of an existing dwelling on the allotment, whichever is the lesser.	10m	5m for rural properties less than or equal to 0.4 hectares in site area and 10m for rural properties with site areas larger than 0.4 hectares.

4.5

Rural Residential Development

4.5 Rural Residential Development - Zones RU2, RU5, E3 and E4

This Section applies to the following rural residential development:

- dwelling houses in areas zoned RU2, RU5, E3 and E4;
- rural workers' dwelling in areas zoned RU2 and E3;and
- dual occupancies (attached) in areas zoned E3 and E4.

Note:

Numerical Development Standards for building heights, minimum lot sizes, ownership, and subdivision for rural residential development are provided under the CLEP.

Figure 4.5.1. Examples of existing rural residential development within the Campbelltown LGA.

4.5.1 Dwelling Houses - Rural Residential - Zones RU2, RU5, E3 and E4

Objectives:

- Encourage quality-designed dwelling houses that are generally recessive and make a positive contribution to the streetscape and the rural character of the locality.

a) The minimum setbacks for a dwelling house shall be in accordance with the setback requirements for dwelling houses shown in Table 4.5.1.

Note:
To find out whether your site has a sufficient area to qualify for a dwelling house type development, refer to the CLEP.

Note:
For development controls relating to landscaping, weed management, erosion and sediment controls, cut and fill, water cycle management and retaining walls refer to Sections 2.5 to 2.13 of Part 2 of Volume 1 of the Plan.

Note:
Dwelling house (as defined under the CLEP) means a building containing only one dwelling.

Note:
For Provision of Services (water, electricity and waste water treatment requirements), refer to Section 2.16 Provision of Services under Part 2 of the Plan.

Note:
The CLEP includes a number of requirements relation to rural areas and rural subdivision under Part 4 Principal development standards.

Table 4.5.1 Setbacks for Dwelling Houses - Rural Residential

Lot Size in hectares (ha)	Primary Street Setback in metres (m)		Side, Rear and Secondary Street Setbacks in metres (m)
	Single Storey	Double Storey	
Less than or equal to 1 ha	15 m	20 m	10 m
Greater than 1 ha	35 m	50 m	10 m

Figure 4.5.1.1 An example of a rural dwelling house in the Campbelltown LGA.

4.5.2 Rural Workers' Dwelling - Zones RU2 and E3

Objectives:

- Ensure that rural workers' dwellings are of small scale and remain subordinate development.
- Ensure that rural workers' dwellings do not adversely impact on the amenity of adjoining properties.
- To maintain the predominant rural character of the area.

a) A rural worker's dwelling shall have the same road access as the principal dwelling.

b) An application for a rural worker's dwelling shall demonstrate to Council that the rural worker's dwelling shall be occupied by an employee of the farm or a contractor.

c) The minimum setbacks for a rural worker's dwelling shall be in accordance with the setbacks requirements shown in Table 4.5.2.

Note:

Rural Workers Dwellings are only permissible within Zone RU2 and E3 under the CLEP.

Note:

Rural worker's dwelling means a building or place that is additional to a dwelling house on the same lot and that is used predominantly as a place of residence by persons employed, whether on a long-term or short-term basis, for the purpose of agriculture or a rural industry on that land.

Note:

Despite any other provision of this Plan, rural developments within Bush Fire Prone Lands must comply with the setbacks requirements under Planning for Bush Fire Protection 2006, NSW Rural Fire Services (as amended). Refer to Section 2.14.3 of Volume 1 of the Plan.

Table 4.5.2 Setbacks for Rural Workers' Dwelling - Rural Residential

Lot Size in Hectares (ha)	Primary Street Setback in metres (m)	Side, Rear and Secondary Street Setbacks in metres (m)
Less than or equal to 1ha	15m	10m
Greater than 1ha	35m	10m

4.5.3 Dual Occupancies (Attached) - Rural Residential (Zones RU2, E3 and E4)

Objectives:

- Encourage quality-designed dual occupancies that make a positive contribution to the streetscape and the rural character and maintain the existing character of the area.

a) The minimum setbacks for a dual occupancy (attached) shall be in accordance with the setback requirements shown in Table 4.5.3.

b) A rural residential dual occupancy (attached) development shall:

   i) be constructed under the same roof line; and

   ii) shall have the appearance of one dwelling.

c) Where a development involves the construction of an additional dwelling to create an attached dual occupancy, the existing dwelling shall be renovated to match the colour, material, texture and architectural style of the proposed building so as to create a harmonious development.

Note: Attaching two dwellings via a breeze way or a carport shall not be considered to meet the requirements of Clause 4.5.3 c) above.

Note:
Dual occupancy (attached) (as defined under the CLEP) means 2 dwellings on one lot of land that are attached to each other, but does not include a secondary dwelling.

Note:
Dual occupancy (detached) are not permissible within Zones RU2, RU5, E3 and E4 under the CLEP.
Dual occupancy (attached) are permissible within Zones RU2, E3 and E4 under the CLEP.

Note:
Refer to the CLEP to find out whether your site qualifies for dual occupancies type development.

Table 4.5.3 Setbacks for Dual Occupancies (Attached) - Rural Residential

Lot Size in Hectares (ha)	Primary Street Setback in metres (m)		Side, Rear and Secondary Street Setbacks in metres (m)
	Single Storey	Double Storey	
less than or equal to 1ha	15m	20m	10m
Greater than 1ha	35m	50m	10m

4.6

Rural Residential Subdivision

4.6.1 Subdivision of Allotments

4.6 Rural Residential Subdivision

This Section applies to the rural residential subdivision of areas zoned RU2, RU5, E3 and E4.

Objective:

- Ensure that land once subdivided, contributes positively to the desired character of the locality and provides for the safe and attractive integration of existing and new development.
- Ensure that subdivision responds to the physical characteristics of the land, its landscape setting, orientation, landmarks and key vistas to and from that land.
- Ensure that subdivision provides safe connections with and extension of existing street patterns, as well as any pedestrian, cycleway and public open space networks.
- Encourage subdivision that will result in the creation of allotments that are orientated, and of such dimension and configuration to facilitate the siting, design and construction of development resulting in the conservation of non-renewable resources and the environmental attributes of the land.

4.6.1 Subdivision of Allotments

4.6.1.1 Subdivision of Allotments - 0.2ha minimum *(letter V on the Lot Size Map Sheet of the CLEP)*

a) Allotments that are subject to the 0.2ha minimum lot size subdivision standard shall:

   i) have a minimum street frontage of 30 metres;

   ii) have a minimum frontage to depth ratio of 1:2.

b) Battle-axe allotments that are subject to the 0.2ha minimum lot size subdivision standard shall:

   i) have a minimum width of 30 metres;

   ii) have a minimum frontage to depth ratio of 1:2;

   iii) have a minimum area of 0.2ha excluding access handle; and

   iv) have a minimum width of access

Note:

Where the subdivision results in a battle-axe allotments configuration or the like, the access handle shall not be included in the minimum area calculations (Refer to Clause 4.1 of the CLEP).

Note:
Refer to the CLEP for further requirements on Rural Subdivision.

handle of (six) 6 metres.

c) Where two access handles to battle-axe allotments are located adjacent to each other, reciprocal rights of carriageway shall be created so that only one drive way needs to be constructed.

4.6.1.2 Subdivision of Allotments - 0.4ha minimum *(letter W on the Lot Size Map Sheet of the CLEP)*

a) Allotments that are subject to the 0.4ha minimum lot size subdivision standard shall:

i) have a minimum street frontage of 45 metres;

ii) have a minimum frontage to depth ratio of 1:2.

b) Battle-axe allotments that are subject to 0.4ha minimum lot size subdivision standard shall:

i) have a minimum width of 45 metres;

ii) have a minimum frontage to depth ratio of 1:2;

iii) have a minimum area of 0.4ha excluding access handle; and

iv) have a minimum width of access handle of 6 metres.

c) Where two access handles to battle-axe allotments are located adjacent to each other, reciprocal rights of carriageway shall be created so that only one drive way needs to be constructed.

4.6.1.3 Subdivision of Allotments - 1ha, 2ha, 3ha and 4ha minimum)*(letter Y, Z, Z1 and Z2 on the Lot Size Map Sheet of the CLEP)*

a) Allotments that are subject to the 1ha 2ha, 3ha and 4ha minimum lot size subdivision standard shall have a minimum street frontage of 60 metres.

b) Battle axe allotments that are subject to the 1ha, 2ha, 3ha and 4ha minimum lot size subdivision standard shall:

i) have a minimum width of 60 metres; and

ii) have a minimum width of access handle of 6 metres.

c) Where two access handles to battle-axe allotments are located adjacent to each other, reciprocal rights of carriageway shall be created so that only one drive way needs to be constructed.

4.6.1.4 Subdivision of Allotments - 10ha, 40ha and 100ha *(letters AB, AB1 and AD on the Lot Size Map Sheet of the CLEP)*

a) Allotments that are subject to the 10ha, 40ha and 100ha minimum lot size subdivision standard shall have a minimum street frontage of 120 metres.

4.6.2 Construction of Roads

Design Requirements

a) Proposed roads and any proposed changes to existing roads shall be constructed in accordance with Council's Engineering Design for Development available from Council's website at www.campbelltown.nsw.gov.au.

b) Where relevant, roads shall be designed to provide satisfactory level of services for the evacuation of occupants in the event of emergency.

c) Roads shall be designed given regard to terrain sensitivity and maximising ecological conservation.

4.6.3 Construction of Farm Dams

Design Requirements

a) A development application shall be lodged with Council for any proposal that involves the construction of a new farm dam or modification to an existing dam.

b) Dam construction shall comply with the requirements of NSW Office of Water Guidelines.

c) All development applications for any proposal that involves the construction of a new dam or modification to an existing dam shall be accompanied by:

   i) all licences required by the NSW Office of Water or NSW Department of Investment and Industries where relevant;

   ii) a geotechnical report prepared by a suitably qualified person; and

   iii) as assessment by a suitably qualified person of the changes to local hydrology that the dam may create.

d) Any farm dam that is proposed to be located upstream of an existing or proposed dwelling shall be referred by Council to the NSW Dams Safety Committee for concurrence.

Note:

When building a farm dam, it is important to make sure that the appropriate consent or licence from the relevant government authority has been obtained.
For Information on farm dams licences contact the NSW Office of Water. Website www.water.nsw.gov.au
Under the Fisheries Management Act 1994, any new dam or modification to an existing dam may require the owner to provide for fish passage. NSW Fisheries Office website:
http://www.dpi.nsw.gov.au/fisheries

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Part 5
Residential Flat Buildings and Mixed-Use Development

5.1 Application

5.1 Application

Part 5 sets out the following:

- Desired future character for high density residential neighbourhoods in areas zoned R4.
- Desired future character for mixed use precincts in areas zoned B3 and B4.
- General Requirements for residential flat buildings and mixed use development in areas zoned R4, B3 and B4 zones.
- Development controls for:
  - residential flat buildings in areas zoned R4;
  - mixed use development in areas zoned B3 and B4; and
  - mixed use development in areas zoned RU5, B1 and B2.

The design requirements contained within this part complement the provisions contained in Part 2 of Volume 1.

Note:
For the purposes of this part, mixed use development is development which includes residential uses (such as shop top housing where relevant) in conjunction with one or more uses such as, business premises, commercial offices, retail shops, community facilities and medical centres.

Zone Acronyms

RU5 Village: RU5

R4 High Density Residential: R4

B1 Neighbourhood Centre: B1

B2 Local Centre: B2

B3 Commercial Core: B3

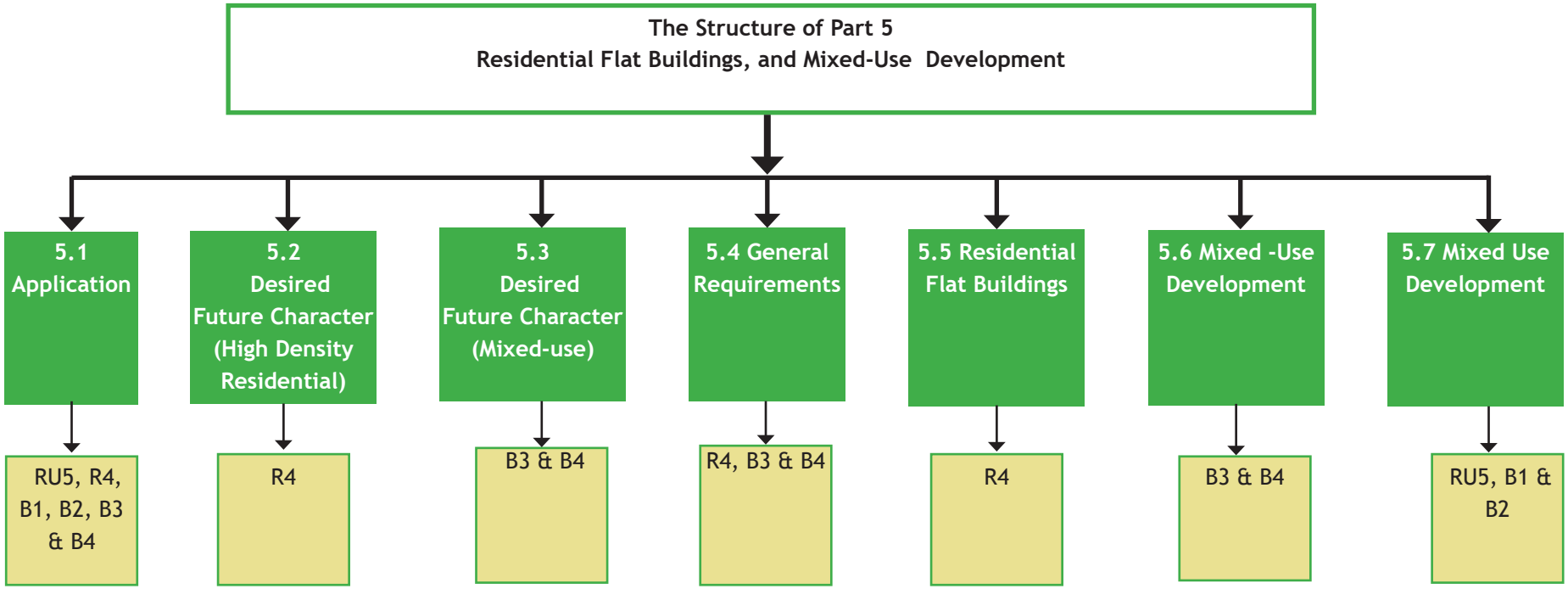
B4 Mixed Use: B4

Note:
Numerical Development Standards for building heights, qualifying site areas and minimum subdivision are provided under the CLEP.

Note:
Clause 7.13 Design Excellence of the CLEP applies to areas zoned R3, R4, B2, B3 and B4 and aims to deliver the highest standard of architectural and urban design, as part of the built environment.

Note:
Under the CLEP, shop top housing is a permissible use under the following zones:

- RU5 Village ;
- R3 Medium Density Residential;
- R4 High Density Residential;
- B1 Neighbourhood Centre
- B2 Local Centre
- B3 Commercial Core; and
- B4 Mixed Use.


The Structure of Part 5
Residential Flat Buildings, and Mixed-Use Development
5.1 Application
5.2 Desired Future Character (High Density Residential)
5.3 Desired Future Character (Mixed-use)
5.4 General Requirements
5.5 Residential Flat Buildings
5.6 Mixed -Use Development
5.7 Mixed Use Development
RU5, R4, B1, B2, B3 & B4
R4
B3 & B4
R4, B3 & B4
R4
B3 & B4
RU5, B1 & B2

5.2

Desired Future Character for High Density Residential Neighbourhoods

(Zone R4)

5.2 Desired Future Character for High Density Residential Neighbourhoods (R4)

High density residential neighbourhoods shall be characterised by:

- building forms that have a high level of architectural merit and make a positive contribution to the local area;
- a diversity if high density residential forms;
- residential forms that provide high quality residential living environments;
- integration with high intensity public transport forms and fine grained pedestrian/ cycleway networks;
- access to a sage and high quality public domain;
- articulated front facades with balconies and deep soil planting and landscaping of street frontages.

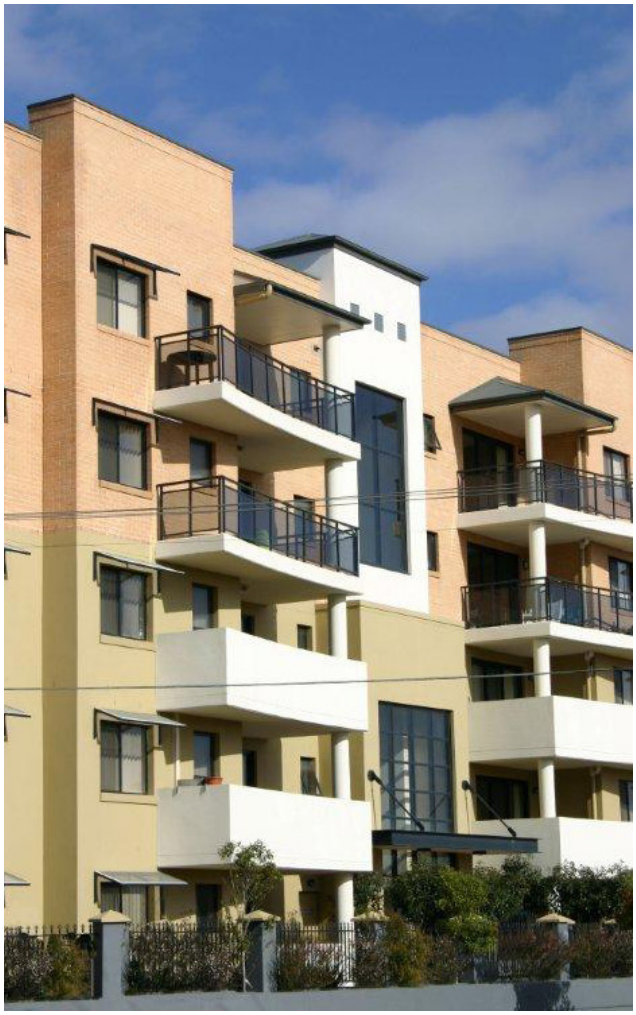


Figure 5.2.1 - An example of high density residential development.

5.3 Desired Future Character for Mixed Use Precinct (B3 and B4)

5.3

Desired Future Character for Mixed Use Precincts

(Zones B3 & B4)

The areas shall be characterised by:

- buildings with a high level of architectural merit in which residential dwellings are located on higher levels;
- articulated front facades with balconies and podiums fronting the streets;
- active street frontages in which buildings at street level are used primarily for the purpose of retail and commercial uses;
- an accessible, attractive, vibrant and safe public domain;
- built forms that provide high quality residential living environments and considered integration of commercial/retail activities with the residential elements;
- mixed use development supported by a significant local and visitor population;
- integration with high intensity public transport forms and fine grained pedestrian/ cycleway networks.

Figure 5.3.1 - An example of a mixed use development.

5.4

General Requirements for Residential Flat Buildings & Mixed Use Development

(Zones R4,B3 & B4)

5.4 General Requirements for Residential Flat Buildings and Mixed Use Development

This section sets out general development controls relating to residential flat buildings and mixed use development within areas zoned R4, B3 and B4.

Objective:

- Ensure that residential flat buildings and mixed use development, offer a high level of residential amenity and make a positive contribution to the creation of new, high quality and contemporary urban streetscapes by:
  - achieving well articulated building forms that avoid a plain bulky and monolithic appearance;
  - adopting appropriate building scale, massing and proportions that best reflect the desired future character of the area; and
  - demonstrating high architectural value.
- Ensure that residential dwellings within mixed use development include design measures that minimise the impact of the normal operation of non-residential activities on the amenity of the occupants of the residential dwellings.
- Ensure that non-residential components of the building (i.e lower level retail and commercial) include design measures and are to minimise noise, odour, light spill, and air pollution impacts upon residential properties.

5.4.1 Relationship of the Plan to SEPP 65 Design Quality of Residential Flat Development

a) In addition to satisfying the requirements of the Plan, all residential flat buildings, and mixed use development having a height greater than 12 metres or 4 or more self-contained dwellings (whether or not the building includes uses for other purposes, such as shops) shall satisfy all the standards within *State Environmental Planning Policy No. 65 - Design Quality of Residential Flat Development (SEPP 65)* and *Apartment Design Guide (Published by the NSW Department of Planning and Environment, July 2015).*

Figure 5.4.1 Example of contemporary residential flat building.

5.4.2 Building Form and Character

Design Requirements:

a) Building design shall consider foremost the qualities (both natural and built) and the desired future character of the areas including the significance of any heritage item on the land.

b) Building design shall incorporate the following features to assist in the achievement of high quality architectural outcomes:

i) incorporation of appropriate facade treatments that help the development properly address the respective street frontages, key vistas and to add visual interest to the skyline;

ii) incorporation of articulation in walls, roof lines, variety of roof pitch, individualised architectural features (balconies, columns, porches, colours, materials etc) into the facade of the building;

iii) variation in the vertical planes of exterior walls in depth and/or direction;

iv) variation in the ~~v~~ertical and horizontal planes of the building so that the building appears to be divided into distinct base, middle and top massing elements;

v) articulation of building facade (including rear and side elevations visible from a public place) by appropriate use of colour, arrangement of facade elements, and variation in the types of materials used;

vi) utilisation of landscaping and interesting architectural detailing at the ground level; and

vii) avoidance of blank walls at ground and lower levels.

Note:
Clause 7.18 Design Excellence of the CLEP applies to zones R4, B2, B3 and B4 and aims to deliver the highest standard of architectural and urban design, as part of the built environment.

Figure 5.4.2 Example of external facade treatment that provide variety and articulation through use of varying material types and variation of building vertical height elements.

c) Building design shall demonstrate to Council's satisfaction that the development will:

i) facilitate casual surveillance and active interaction with the street;

ii) be sufficiently setback from the property boundary to enable the planting of vegetation to soften the visual impact of the building at street level; and

iii) maximise cross flow ventilation, therefore minimising the need for air conditioning.

d) Building colours, materials and finishes shall generally achieve subtle contrast. The use of highly reflective or gloss materials or colours shall be minimised to feature and highlight element only.

e) Building materials shall be high quality, durable and low maintenance.

5.4.3 Site Services

Design Requirements:

a) The location, design and construction of utility services shall satisfy requirements of the relevant servicing authority and Council.

b) Development shall ensure that adequate provision has been made for all essential services (i.e water, sewerage, electricity, gas, telephone, internet and stormwater drainage).

c) All roof-mounted air conditioning or heating equipment, vents or ducts, lift wells and the like shall not be visible from any public place and shall be integrated into the design of the development.

d) All communication dishes, antennae and the like shall be located or integrated into the built form so as to minimise visual prominence.

e) An external lighting plan shall be prepared by a suitably qualified person and submitted with the development

application.

f) All site services areas including any associated equipment and storage structures shall be incorporated into the design of the building and screened from public view.

g) An on-going waste management plan shall be prepared by a suitably qualified person and submitted with the development application.

h) Any development applications involving new construction work with a value of $30 million or greater shall undertake the following at the developer's expense:

   i) Any existing above ground power lines which traverse the property's frontage, must be relocated underground; and

   ii) Installation of any required electrical substation within the development basement level.

Note: To facilitate this requirement, the applicant must liaise with the relevant power authority requesting to install a conduit within the adjacent footpath (road reserve) area for the provision of an underground power supply and extension of the conduit up to the wall of any proposed building. It must also be demonstrated that ready connection to the building(s) can be made when the overhead connection is replaced with a new underground line during the construction phase of the development.

Where possible, above ground electricity utilities shall be located in a way to minimise impacts on landscaping and be placed/ oriented to minimise the percentage they occupy within the front portion of the site.

i) The developer must allocate/set aside adequate space within the development to install a grease trap and mechanical ventilation, for any proposed food premises, in accordance with the Local Water Authorities recommendations

Figure 5.4.3 - Location of site services for a residential flat building.

and the following Australian Standards:

Mechanical ventilation (for any proposed food premises) must comply with:

i) Australian Standard (AS) 1668.2-2012: The use of ventilation and air conditioning in buildings:

ii) Part 2: Mechanical ventilation in buildings; and (where applicable); and

iii) Australian Standard 1668.1-1998: The use of ventilation and air conditioning in buildings - Fire and smoke control in multi-compartment buildings.

All mechanical ventilation must be installed within the building during construction and is not permitted on any external building surfaces.

All required grease traps must be located and serviced on private land as no permission will be granted to install such a facility on public or Council land.

Figure 5.4.4 - Example of a garbage and recycling collection room (Internal view).

5.4.4 Acoustic Privacy

a) Residential flat buildings, and the residential component of a mixed-use development shall provide noise mitigation measures to ensure that the following LAeq levels are not exceeded:

   i) in any bedroom in the building—35 dBA ,

   ii) anywhere else in the building (other than a garage, kitchen, bathroom or hallway)—40 dBA.

b) Residential flat buildings, and the residential component of a mixed-use development near railway corridors and major roads shall demonstrate to Council's satisfaction compliance with the requirements under the Guidelines entitled *Development Near Rail Corridors and Busy Roads* – Interim

Guideline, 2008)

Note: This Guide is available for view/ download from the NSW Department of Planning & Environment website at: www.planning.nsw.gov.au.

Note: Noise mitigation measures for residential flat buildings and the residential component of a mixed use development may include insulating building elements such as doors, walls, windows, floors, roof and ceilings. Options for window design include sealing air gaps around windows and doors, laminated or thick glass, and double-glazing.

5.4.5 Vehicular Access

a) Residential flat buildings and mixed-use developments shall only be permitted where Council is satisfied that existing road networks are capable of providing safe and efficient vehicle access to and from the proposed development.

5.4.6 Stormwater Drainage

a) Residential flat buildings and mixed-use developments shall only be permitted where Council is satisfied that sufficient provisions made for the management of stormwater. All necessary upgrades to existing public and private stormwater infrastructure shall be addressed as part of the proposed development and shall be in accordance with *Council's Engineering Design Guide for Development (available from Council's website at www.campbelltown.nsw.gov.au)*

5.4.7 Thermal Comfort

a) Residential flat buildings and mixed-use developments shall be designed to maximise natural thermal comfort for occupants through the use of appropriate building materials. Examples include the use of energy

efficient glazing and/or shading devices for windows and the like.

5.4.8 Waste Management

5.4.8.1 Number of Bins

a) All buildings shall be provided with household garbage bins at the following rates:

   i) one (1) x 240 litre bin per 2.5 dwellings/ week for household garbage; or

   ii) one (1) x 1100 litre bulk bin per 10 dwellings or part thereof, but only if the bulk bin is stored and located within the property where the waste collection truck is able to enter and exit the property in a forward-in forward-out arrangement with a maximum three point turning path.

b) All buildings shall be designed with provision for recyclable bins at a ratio of one (1) x 240 litre bin per 2.5 dwellings per fortnight.

c) A caretaker shall be available for all sites where bins are shared between occupants, to ensure bins are correctly presented for collection and returned to the designated bin storage area when emptied.

5.4.8.2 Waste Service Rooms, Garbage Chutes and Provision for Recyclables Bins

a) All buildings with a rise of four (4) storeys or more (including the ground floor) shall make provision for a Waste Service Room on each section of each residential floor which is accessible for all residents.

b) All Waste Service Rooms shall have chutes to enable residents to dispose of garbage. Waste chutes must:

   i) not be located adjacent to bedrooms

or living rooms unless they are outside the sound transmission barrier surrounding each unit.

ii) Not open into any habitable or public space and doors must have an effective self-sealing system;

iii) Feed into appropriately sized bins located in the bin storage room. During collection periods, empty bins must be placed under the chute outlet to maintain continuity of access to the chute system for residents;

iv) Be completely enclosed in a fire-rated shaft construction of an approved material and be fitted with sprinklers;

v) Comply with the BCA;

vi) Be accessible to anyone with a disability and comply with AS1428 Design for access and mobility; and

vii) Include signage that explains the correct use of the system and which materials are able to be placed in the chute, and which must go in the recycling bin.

c) The outlet area, in which the chute outlets and mechanical collection devices are located, shall be secured to prevent access by unauthorised persons.

d) Mechanical devices are permitted in order to assist with waste collection (eg. carousel).

e) Compaction is NOT permitted for either garbage or recyclables.

f) Each Waste Service Room shall make provision for a sufficient number of 240-litre mobile recycling bins for residents on each floor to dispose of recyclables. Chute systems for recyclables are not permitted.

5.4.8.3 Bin Storage Room

Design Requirements

a) The development shall make provision for an appropriately sized bin storage room(s) that provides convenient access for all residents, maintenance and waste collection staff . The bin storage room shall:

i) be located behind the primary and secondary building alignment;

ii) be located to restrict or deter access by non-residents;

iii) have a non-slip floor constructed of concrete or other approved impervious material at least 75mm thick and be provided with a ramp to the doorway (where necessary);

iv) be graded and drained to a Sydney Water approved drainage fitting;

v) have coving at all wall and floor intersections;

vi) be finished with a smooth faced, non-absorbent material(s) in a light colour and capable of being easily cleaned;

vii) be provided with an adequate supply of hot and cold water mixed through a centralised mixing valve with hose cock; and

viii) have a self-closing door openable from within the room with a door width of at least 1.5m (or 2.5m if bulk bins are proposed); and

ix) allow access and manoeuvrability of the largest bin and any required waste handling equipment.

b) Bin storage rooms shall have sufficient capacity to allow for:

i) Access, manoeuvring, cleaning and maintaining all bins by providing an

extra 30% of the footprint of each waste container to the overall size of the storage area;

ii) Spacing of at least 50cm between all bins allocated for the development;

iii) All bins to be arranged side by side within the bin storage room (no stacking);

iv) A minimum 1.5m aisle between rows of bins to minimise potential obstructions; and

v) Future modifications of services, bin sizes and/or configurations by minimising the installation of fixed structures within bin storage areas.

c) Bin storage rooms shall be ventilated by:

i) a mechanical exhaust ventilation system; or

ii) permanent, unobstructed natural ventilation openings having direct access to external air, and a total area of not less than one-twentieth (1/20th) of the floor area of the room.

d) Exterior doors of bin storage rooms shall be:

i) consistent with the overall design of the building;

ii) at least 1.5m wide (or 2.5m where bulk bins are proposed);

iii) located away from the frontage of the building; and

iv) fitted with a Council compatible keyed locking system that provides access to the room or activates the electronic opening and closing of the door (if collection service is to be carried out by Council).

e) All bin storage rooms and Waste Service

Rooms shall be constructed in such a manner to prevent the entry of vermin.

f) All bin storage rooms must be located in an area where bins can be easily moved to the waste collection point.

g) Any bin travel path must be free of steps or kerbs and have a maximum gradient of 1V:8H.

h) Where waste collection personnel are required to enter the premises to service bins, the collection point shall be no further than five (5) metres from the collection vehicle.

i) Where residents have access to bin storage rooms, signage on the correct use of the waste management system shall be displayed in all bin storage rooms.

5.4.8.4 Bulky Waste Storage

a) Developments must make provision for the storage of bulky waste (kerbside clean-up) materials, ensuring that:

i) a minimum area of ten (10) square metres per building is provided;

ii) the area is secure and caged for visibility into the enclosure;

iii) the area is accessible to all residents and has a minimum doorway width of 1.5m; and

iv) the area is not more than ten (10) metres from the waste collection point.

5.4.8.5 On-site Waste Collection

a) Any development:

- containing 20 or more dwellings, and/ or
- when the number of bins proposed cannot be accommodated within 50% of the development's net frontage width on collection day,

shall be designed to accommodate forward-

Note:

Net frontage is calculated as the total lot frontage, minus the total of all distances occupied by trees (canopy width at maturity), driveways, street furniture, bus stops, street lights, power poles or any other fixed item that would obstruct access to the kerbside or servicing of bins.

in, forward-out, drive-on vehicular collection for on-site servicing.

b) Where on-site waste and recycling collection is proposed, the site plan and layout shall consider how waste and recycling vehicles can access and move around the development.

c) The area designated for on-site servicing must meet the following requirements:

   i) there shall be a minimum unobstructed height clearance of 5.2 metres;

   ii) there shall be provision for a waste collection vehicle to empty bins on the vehicle's left side, allowing for a width of 3.8 metres from the right hand side of the vehicle to the collection point;

   iii) where the waste collection vehicle is required to turn around on site, there must be provision for a heavy rigid vehicle of 10.4 metres length (refer to indicative vehicle dimensions at Table 2.15.2) to negotiate a maximum three-point turn allowing the waste collection truck to enter and leave the property in a forward direction;

   iv) the maximum grade of any path of travel for collection vehicle shall be 1V:20H for the first 6 metres from the street, and 1V:12H thereafter;

   v) the minimum driveway width for a collection vehicle shall be 3.6 metres wide, with sufficient area provided for another vehicle to pass; and

   vi) access driveway and servicing area to be constructed to withstand the loaded mass of the waste collection vehicle of 24 tonnes.

   vii) buildings and other structures must not extend over roads or corners where they may be struck by waste collection vehicles.

d) The distance between any dwelling and the waste disposal point shall be a maximum of 40 metres (excluding distance travelled in a lift).

e) Where on-site waste collection is required, the development must be designed and constructed to accommodate the above requirements, regardless of whether Council will be engaged to provide waste services or not.

f) Where on-site collection is required, Council and its collection contractor must be indemnified against any loss or damages that may arise during the course of waste collection services.

5.4.8.6 Mixed Use Developments

a) In addition to the above requirements, mixed use developments must ensure that:

i) separate and lockable bin storage rooms are provided to service residential and commercial sections of the development.

ii) the commercial bin room is identified with its own signage clearly indicating its use ('For Commercial Tenancies Only') and likewise, the residential bin room is identified with its own signage clearly indicating its use ('For Residential Tenancies Only').

5.4.9 Strata Subdivision

a) No more than 50% of the required car parking within a strata title subdivision shall be allocated to individual commercial units within the mixed-use development.

b) All car parking spaces that are allocated to individual units shall be proportioned in number to the size of the units.

c) No car parking spaces shall be created as a separate allotment.

d) No internal or outdoor storage space

shall be created as a separate allotment.

5.4.10 Car Parking

a) Car parking provided for the residential dwellings shall be secured, separated from commercial car parking (where relevant) and have a separate access.

b) The design of car parking spaces shall take into consideration the principles of Crime Prevention Through Environmental Design (CPTED) to minimise opportunities for crime and enhance security.

5.4.11 Access for People with Disabilities

Design Requirements

a) **Residential flat buildings and mixed use development** shall comply with the minimum access requirements contained within the BCA , the Disability (Access to Premises — Buildings) Standards 2010 and *Australian Standard 1428 - Design for Access and Mobility* (as amended).

5.4.12 Advertising Material

a) As part of the letter box design for residential flat buildings and mixed use development a special container shall be provided for the placement of advertising and newspaper materials. Such container shall be located behind the building line and designed to be part of the letter box arrangement for the development.

b) The newspaper / advertisement container shall be regularly emptied by the manager/caretaker of the building.

5.5 Residential Flat Buildings (Zone R4)

5.5 Residential Flat Buildings (Zone R4)

This section sets out controls relating to residential flat buildings in areas zoned R4.

Objectives:

- Encourage high quality, high-density residential flat development which is innovative and responsive to the site's environmental characteristics and setting.
- Ensure a high level of amenity for the occupants of residential flat buildings and adjoining occupants of residential flat buildings.

5.5.1 Site Requirements for Residential Flat Buildings

Design Requirements

a) Residential flat buildings shall only be permitted on an allotment having a minimum width of 30 metres measured at the front property boundary.

b) Sites shall be amalgamated where required, to achieve the minimum site area and width requirement applicable to the proposed development.

c) Development shall not result in an "isolated allotment" adjoining the development site.

d) For the purpose of Clause 5.5.1c) above, an "isolated allotment" is an allotment that has a site area of less than 1200 square metres and/or a width at the front property boundary of less than 30 metres that has no immediate potential for amalgamation with any other adjoining allotments to achieve a minimum site area of 1200 square metres and a width at the front property boundary of 30 metres.

Note:

Under the CLEP (Clause 7.9) Residential flat buildings within zones B3 and B4 are only permissible as part of a mixed use development and are not to be located on ground floor.

Figure 5.5.1 – Entry to residential flat building.

5.5.2 Building Setbacks for Residential Flat Buildings

Design Requirements

a) Residential flat buildings shall be setback a minimum of:

i) 5.5 metres from any street boundary; and

ii) 6 metres from any other boundary.

Note:

Refer to Section 4.1C of the CLEP for the minimum qualifying site area for residential flat buildings.

5.5.3 General Requirements for Residential Flat Buildings

Design Requirements

a) A minimum of 5% of the total number of dwellings within a residential flat building shall be one (1) bedroom flat(s) or a studio(s).

b) A minimum of 10% of the total number of dwellings within a residential flat building shall be adaptable dwelling(s).

c) The floor space occupied by each dwelling within a residential flat building shall not be less than:

   i) 35sqm in the case of a studio flat;

   ii) 50sqm in case of a 1 bedroom flat;

   iii) 70sqm in case of a 2 bedroom flat;

   iv) 90sqm in case of a 3 bedroom flat or more.

d) For the purpose of clause 5.5.3 c), the floor space includes only one bathroom. Additional bathrooms shall increase the minimum floor space of each dwelling by 5sqm for each additional bathroom.

e) A fourth bedroom and further additional bedrooms shall increase the minimum internal area by 12sqm for each additional bedroom.

f) Each apartment building shall include a study/nook area that is capable of accommodating a desk for working/ studying from home purposes. Such area shall be shown furnished on the proposed plans and shall have a minimum width 1.6 m.

g) The main entry to each apartment building shall be designed to include an entrance nook for privacy purposes.

h) A maximum of 8 dwellings shall be accessible from a common lobby area or corridor on each level of a residential flat building.

i) All residential flat buildings shall

Note:
Clause 7.13 Design Excellence of the CLEP applies to areas zoned R3, R4, B2, B3 and B4 and aims to deliver the highest standard of architectural and urban design, as part of the built environment.

contain at least one (1) lift for access from the basement to the upper most storey that provide access to a dwelling space. Further, the lift(s) shall extend to provide access to the roof space if the roof is intended for use by occupants of the building as a roof terrace.

j) A maximum of fifty (50) dwellings shall be accessible from a single common lift.

k) Access to lifts shall be direct and well illuminated.

l) A minimum of 25% of the required open space area, or 15% of the total site area, whichever is the greater, shall be available for deep soil planting.

m) Each flat shall be provided with an 'incidentals' storage facility within the unit and/or the basement, which shall be available for personal use of the occupants of each dwelling, and designed and constructed of materials to Council's satisfaction. Such storage facility shall have a storage capacity of not less than the following:

i) 4 cubic metres in the case of a studio flat;

ii) 6 cubic metres in case of a 1 bedroom

l) flat;

iii) 8 cubic metres in case of a 2 bedroom flat;and

iv) 10 cubic metres in case of a 3 bedroom flat or more.

Note: A suspended storage facility within the basement may be included as part of, or the whole of, the required incidentals storage facility.

j) The incidentals storage facility shall not be created as a separate (strata) allotment to the unit it services.

5.5.4 Car Parking and Access

Design Requirements

a) All car parking and access for vehicles,

Figure 5.5.2 The provision of 20% of the site for deep soil planting can aid the aesthetics of the development.

Figure 5.5.3 - Example of an unobtrusive basement parking access point.

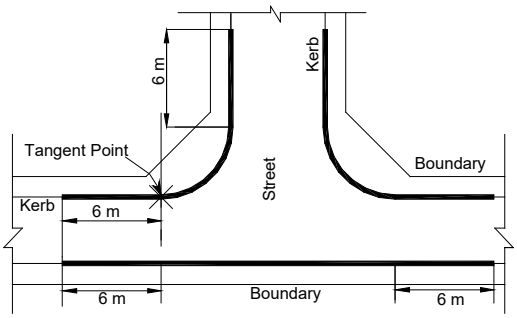


Figure 5.5.4 - Restricted locations of driveways entry as shown heavy edged lines.

including disabled access spaces, shall be in accordance with *AS2890 parts 1 and 2 (as amended)*, except as otherwise specified in the Plan.

b) The minimum dimensions of any parking space shall be 2.5 x 5.5 metres. The minimum width of any car parking space shall be increased by 300mm for each side that adjoins a vertical edge.

c) Driveways shall be located a minimum distance of 6 metres from the splay of any unsignalled intersection (refer to Figure 5.5.4).

Note: In circumstances where an intersection is controlled by lights, a roundabout or the like, applicants are requested to contact Council for specific requirements.

d) For development incorporating 20 or more dwellings, the DA shall be accompanied by a '*Traffic Impact Assessment Report*'.

Note: For requirements relating to the preparation of a 'Traffic Impact Assessment Report' refer to Appendix 12.

e) Where existing, vehicular entry points shall be located at the rear or side streets.

f) Development containing 3 or more storeys shall provide all required car parking at basement level.

g) Parking provided at ground level shall be appropriately screened from public view.

Note: For additional technical specifications relating to the location gradient, driveway widths and basement car park refer to Council's Engineering Design Guidelines for Development available from Council's website at www.campbelltown.nsw.gov.au.

h) Each dwelling shall be provided with a minimum of one car parking space, and:

i) an additional car parking space for every 4 dwellings (or part thereof);

Figure 5.5.5 Example of balconies in a residential flat building.

and

ii) an additional visitor car parking space for every 10 dwellings (or part thereof).

i) No required car parking space shall be in a stacked configuration.

j) Each development shall make provision for bicycle storage at a rate of 1 space per 5 dwellings within common property.

k) Electric vehicle charging stations must be located behind the building line.

5.5.5 Solar Access

a) Buildings shall be orientated and sited to maximise northern sunlight to internal living and open spaces.

b) A minimum 20sqm area of the required private open space on adjoining land, (having a minimum width of 3 metres), shall receive three (3) hours of continuous direct solar access on 21 June, between 9.00am and 3.00pm, measured at ground level.

c) Living rooms and private open spaces of at least 70% of dwellings within a residential flat building shall receive a minimum of 2 hours direct sunlight between 9:00am and 3:00pm at mid winter.

d) Council expects that with innovative and thoughtful design, all dwellings should receive some direct sunlight, however, when it can be shown that providing sunlight to every dwelling is unachievable, Council may allow a design solution that result in up to 15% of the dwelling receiving no direct sunlight between 9:00am and 3:00pm at mid winter.

5.5.6 Balconies and Ground Level Courtyards

Design Requirements

a) Dwellings shall be provided with a private courtyard and/or balcony.

Figure 5.5.6 - Example of a residential flat building provided with communal recreation facilities (in the form of a lap pool).

b) Courtyards/balconies shall be:

i) not less than 8sqm in area and have a minimum depth of 2 metres;

ii) clearly defined and screened for private use;

iii) oriented to achieve comfortable year round use; and

iv) accessible from a main living area of the flat.

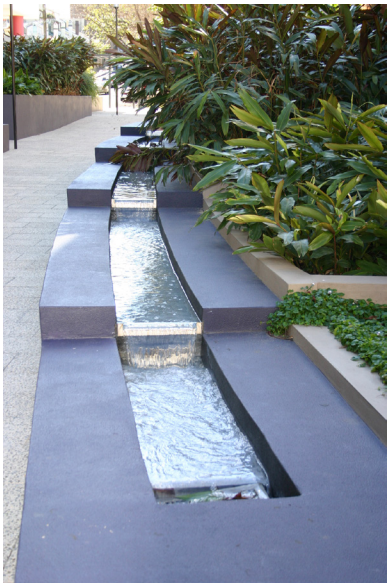


Figure 5.5.7 - Example of landcaping treatment in a residential flat building.

5.5.7 Privacy

Design Requirements

a) Ground level dwellings incorporating a courtyard shall be provided with a privacy screen.

b) No window of a habitable room or balcony shall be directly face a window of another habitable room, balcony or private courtyard of another dwelling located within 9 metres of the proposed window or balcony.

c) Notwithstanding 5.5.7(b) a window of a habitable room may be permitted only where it:

i) is offset by 2 metres to limit views between windows, or

ii) has a sill height 1.7 metres above the floor level; or

iii) is splayed to avoid direct views between windows; or

iv) has a fixed translucent glazing in any part of the window within 1.7 metres of the floor level; or

v) is otherwise appropriately screened.

d) Notwithstanding 5.5.7(b), a balcony will be considered where the private open space area of any adjacent dwelling is

screened from view.

5.5.8 Communal Recreation Facilities

Design Requirements

a) Each residential flat building shall be provided with communal recreation facilities for the use of all the occupants of the building comprising:

   i) a recreation room with a minimum area of a 50sqm per 50 dwellings (or part thereof); and

   ii) a bbq/outdoor dining area with a minimum area of 50sqm per 50 dwellings (or part thereof).

b) Communal recreation facilities shall not be located within the primary or secondary street boundary setback.

c) All communal recreational facilities shall be provided on the same land as the residential flat building.

d) Communal open space provided on the roof of a building shall not be included as part of the required communal open space.

e) All required communal and recreational facilities are required to be constructed prior to the issue of an interim occupation certificate for any residential units within a staged development.

5.6 Mixed Use Development (Zones B3 & B4)

This section sets out controls relating to mixed use development in areas zoned B3 & B4.

Objectives:

- To encourage high quality, mixed-use development, which is innovative and responsive to the site's environmental characteristics and setting.
- To ensure a high level of amenity for the occupants of mixed-use development, and adjoining occupants of residential buildings.

5.6.1 General Requirements for Mixed-use Development in areas zoned B3 & B4

Design Requirements

a) The requirements for mixed-use development shall be consistent with the requirements for residential flat buildings (Section 5.5 except as specified in this section).

b) Mixed-use developments on areas zoned B3 and B4 shall only be occupied at ground level by retail and/or commercial office or like uses, subject to land use permissibility under the CLEP;

c) No ground floor level on areas zoned B3 & B4 shall be occupied by a residential use.

d) Any mixed-use buildings that are designed to accommodate the preparation of food from a commercial tenancy, shall provide ventilation facilities to ensure that no odour is emitted in a manner that adversely impacts upon any residents or other occupants using the building.

Note:
For the purposes of this part, mixed use development is development which includes residential uses (including shop top housing where relevant) in conjunction with one or more uses such as, business premises, commercial offices, retail shops, community facilities and medical centres.

Note:

Refer to Clause 7.9 Mixed Use Development in Zone B3 and Zone B4 under the CLEP for additional development standards for mixed use development.

Note:
Clause 7.13 Design Excellence of the CLEP applies to areas zoned R3, R4, B2, B3 and B4 and aims to deliver the highest standard of architectural and urban design, as part of the built environment.

5.6.2 Site requirements and Building Envelope for Mixed-use Development in areas zoned B3 & B4

Design Requirements

a) Council may consider a mixed-use development on land with an area less than 1,200 square metres and a width

5.6 Mixed Use Development (Zones B3 & B4)

less than 30 metres.

b) Mixed use buildings shall be setback a minimum of:

   i) zero metres from any street boundary; and

   ii) 6 metres from any other boundary for any residential component of the building.

5.6.3 Car Parking and Access in areas zoned B3 & B4

Design Requirements

a) In addition to residential car parking rates (section 5.5.4), the development shall provide one (1) car parking space per 25sqm of leasable floor space at ground level and one (1) car parking space per 35sqm of floor space at upper levels for all commercial/retail parts of the building.

b) Pedestrian access to residential flats shall be separated from the commercial/retail uses.

c) The development shall provide adequate space for the on-site parking, loading and unloading of all delivery/ service vehicles as detailed in Part 6.4.2 of this Plan.

5.6.4 Roof Terraces

Design Requirements

a) Consideration will only be given to the provision of a roof top terrace as part of communal open space, subject to appropriate landscaping treatment and recreation facilities provided; and satisfying the respective provisions of the RFDC.

5.6.5 Mixed-use Development and Waste Management

Design Requirements

a) Self contained and lockable areas shall be provided for commercial and

Figure 5.6.1 – Example of mixed-use development.

Figure 5.6.2 – Example of vehicle access point for a mixed-use development.

residential waste.

b) Areas for commercial and residential waste shall be kept separate.

5.7

Mixed Use Development

(Zones RU5, B1& B2)

5.7 Mixed Use Development (Zones RU5, B1 & B2)

This section applies to mixed use development in areas zoned RU5, B1 and B2.

Objective:

- Encourage high quality, mixed-use development within the local and neighbourhood centres, which is innovative and responsive to the site's environmental characteristics and setting.
- Encourage quality designed mixed use development that makes a positive contribution to the streetscape and the locality.
- To ensure a high level of amenity for the occupants of mixed-use development, and adjoining occupants of dwellings.

5.7.1 General Requirements (areas zoned RU5, B1 and B2

Design Requirements

a) Mixed-use developments shall only be occupied at ground level by retail and/or commercial office or like uses, subject to land use permissibility under the CLEP;

b) Any mixed-use development that are designed to accommodate the preparation of food from a commercial tenancy, shall provide ventilation facilities to ensure that no odour is emitted in a manner that adversely impacts upon any residents or other occupants using the building.

c) Entries to the residential dwellings shall be separate to commercial entries.

d) Each residential dwelling within a mixed use development shall have an identifiable address.

e) Advertising shall not be permitted on any part of the residential dwellings.

f) Balconies for residential dwellings shall address the street and any adjacent open space.

g) Exterior lighting should be of low intensity and shielded so that light does not spill out onto the residential

Note:
For the purposes of this part, mixed use development is development which includes residential uses (including shop top housing where relevant) in conjunction with one or more uses such as, business premises, commercial offices, retail shops, community facilities and medical centres; subject to land use permissibility under the CLEP.

Note:
Shop top housing means one or more dwellings located above ground floor retail premises or business premises.

Note:
Clause 7.13 Design Excellence of the CLEP applies to areas zoned R3, R4, B2, B3 and B4 and aims to deliver the highest standard of architectural and urban design, as part of the built environment.

dwellings or project above the horizontal plane.

h) Lighting shall be static and shall not strobe, flash, oscillate, be of unusually high intensity of brightness, or uncovered.

i) Stairs providing access to residential dwellings shall be enclosed.

j) Building facades shall be articulated and blank walls shall be avoided.

k) Building design shall consider foremost the qualities (both natural and built) and the desired future character of the areas including the significance of any heritage item on the land.

l) Building design shall incorporate the following features to assist in the achievement of high quality architectural outcomes:

   i) incorporation of appropriate facade treatments that help the development properly address the respective street frontages, key vistas and to add visual interest to the skyline;

   ii) incorporation of articulation in walls, roof lines, variety of roof pitch, individualised architectural features (balconies, columns, porches, colours, materials etc) into the facade of the building;

   iii) variation in the vertical planes of exterior walls in depth and/or direction;

   iv) variation in the ~~v~~ertical and horizontal planes of the building so that the building appears to be divided into distinct base, middle and top massing elements;

   v) utilisation of landscaping and interesting architectural detailing at the ground level; and

m) Building design shall demonstrate to Council's satisfaction that the

Figure 5.7.1 – Example of mixed-use development.

development will:

i) facilitate casual surveillance and active interaction with the street;

ii) be sufficiently setback from the property boundary to enable the planting of vegetation to soften the visual impact of the building at street level; and

iii) maximise cross flow ventilation, therefore minimising the need for air conditioning.

n) Building colours, materials and finishes shall generally achieve subtle contrast. The use of highly reflective or gloss materials or colours shall be minimised to feature and highlight element only.

o) Building materials shall be high quality, durable and low maintenance.

5.7.2 Solar Access (areas zoned RU5, B1 and B2)

Design Requirements

a) Buildings shall be orientated and sited to maximise northern sunlight to internal living and open spaces.

b) A minimum 20sqm area of the required private open space on adjoining land, (having a minimum width of 3 metres), shall receive three (3) hours of continuous direct solar access on 21 June, between 9.00am and 3.00pm, measured at ground level.

5.7.3 Setbacks (areas zoned RU5, B1 and B2)

Design Requirements

a) Mixed use development shall be setback a minimum of:

i) zero metres from the primary street boundary;

ii) 3 metres from the secondary street boundary;

iii) 3 metres from any side boundary where it adjoins residential

properties or public open space;

iv) 0.9 metres from the side boundary in any other case;

v) 6 metres from the rear boundary where it adjoins residential properties or public open space;

vi) 3 metres from the rear boundary in any other case.

b) Despite clause 5.7.3 a) iv) above, mixed use development shall be permitted to be built on the side boundary where in Council's opinion the proposed development is considered a continuation of an adjacent development within the same section of the streetscape.

c) Despite clause 5.7.3 a) vi), reduced rear setbacks shall be considered on merits.

5.7.4 Car Parking and Access (areas zoned RU5, B1 and B2)

Design Requirements

a) Each residential dwelling shall be provided with a minimum of one car parking space.

b) Private car parking for the residential component of a mixed use development/ shop top housing shall be clearly identified and separated from regular business/retail car parking.

c) In addition to the required residential car parking rates (section 5.7.4 a) above, the development shall provide one (1) car parking space per 25sqm of leasable floor space at ground level and one (1) car parking space per 35sqm of floor space at upper levels for all commercial/retail parts of the building.

d) Pedestrian access to residential dwellings shall be separated from the commercial/retail uses.

e) The development shall provide adequate space for the on-site parking, loading and unloading of all delivery/

service vehicles as detailed in Part 6.5.2 of this Plan.

f) Electric vehicle charging stations must be located behind the building line.

5.7.5 Balconies and Ground Level Courtyards

Design Requirements

a) Dwellings shall be provided with a private courtyard and/or balcony.

b) Courtyards/balconies shall be:

i) not less than 8sqm in area and have a minimum depth of 2 metres;

ii) clearly defined and screened for private use and secured so as not to impact on privacy of adjoining residential properties or properties that can be directly viewed from the balcony.

iii) accessible from a main living area of the dwelling.

5.7.6 Mixed-use Development and Waste Management (areas zoned RU5, B1 and B2)

Design Requirements

a) In addition to the above requirements, mixed use developments must ensure that:

i) separate and lockable bin storage rooms are provided to service residential and commercial sections of the development.

ii) the commercial bin room is identified with its own signage clearly indicating its use ('For Commercial Tenancies Only') and likewise, the residential bin room is identified with its own signage clearly indicating its use ('For Residential Tenancies Only').

5.7.7 Access for People with Disabilities

Design Requirements

a) Mixed use development shall comply with the minimum access requirements contained within the BCA , the Disability (Access to Premises — Buildings) Standards 2010 and *Australian Standard 1428 - Design for Access and Mobility* (as amended).

Part 6
Commercial Development

6.1

Application

6.1 Application

Parts 6 sets out the following:

- Desired future character for neighbourhood and local centres;
- Desired Future Character for areas zoned B5;
- General requirements for commercial development;
- Development controls for commercial subdivision;
- Development controls for neighbourhood shops in areas zoned R3 and R4;
- Development control for outdoor dining; and
- Development control for parenting facilities.

Zone Acronyms

RU5 Village: RU5

R3 Medium Density Residential: R3

R4 High Density Residential: R4

B5 Business Development: B5

B1 Neighbourhood Centre: B1

B2 Local Centre: B2

B3 Commercial Core: B3

B4 Mixed Use: B4

B5 Business Development: B5

Note:

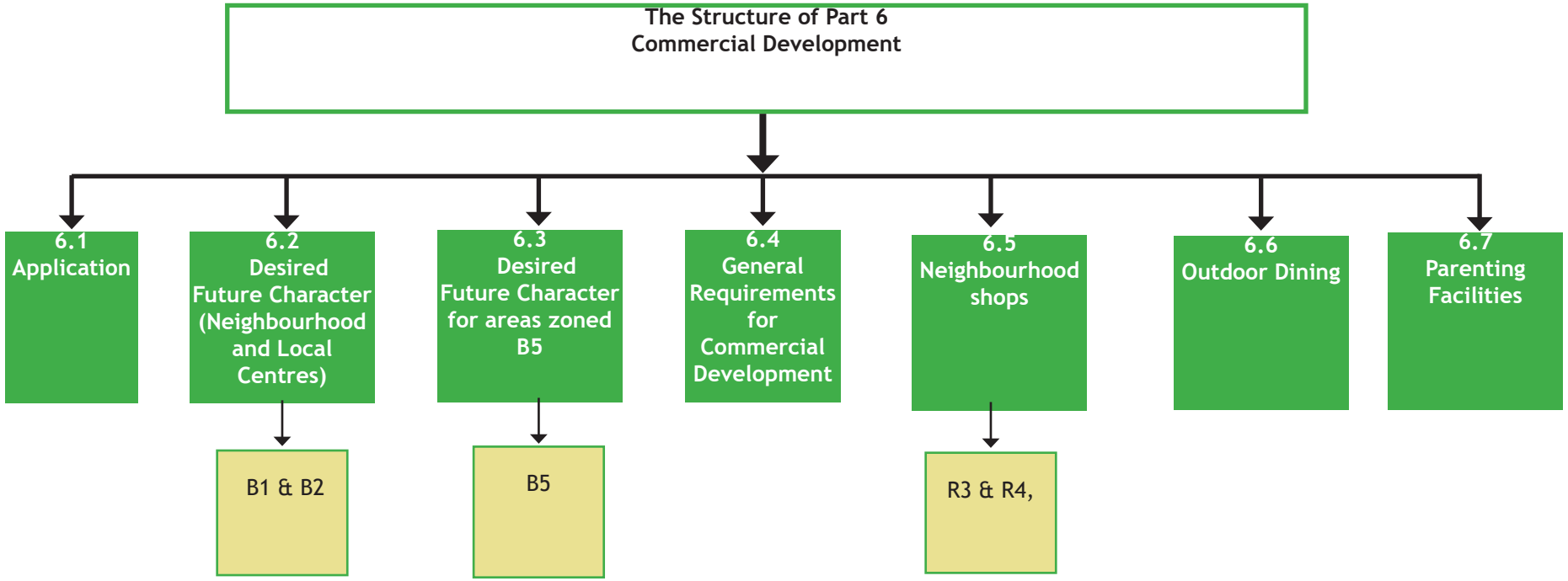
For desired Future Character for areas zoned B3 and B4 Refer to Part 5 Mixed Use Development.

Note: Outdoor Dining Permits

A current outdoor dining permit issued by the Council under its Street Trading Policy (adopted by Council on 9 December 2014) is required for any outdoor dining activities. An outdoor dining permit can only be issued where an existing and active development consent is in place for the lawful use of the principal tenancy.

Note: For the purpose of this part, commercial development means any of the following:

- commercial premises;
- wholesale suppliers;
- registered clubs;
- function centres;
- service station;
- amusement centre;
- entertainment facility;
- veterinary hospital;
- health services facility;
- tourists and visitors accommodation;
- amusement centre;
- community facilities
- entertainment facilities;
- storage premises
- recreations facilities (indoor); and
- any other commercial type development that in the opinion of Council Part 6 applies.


The Structure of Part 6
Commercial Development
6.1
Application
6.2
Desired
Future Character
(Neighbourhood
and Local
Centres)
6.3
Desired
Future Character
for areas zoned
B5
6.4
General
Requirements
for
Commercial
Development
6.5
Neighbourhood
shops
6.6
Outdoor Dining
6.7
Parenting
Facilities
B1 & B2
B5
R3 & R4,

6.2 Desired Future Character for neighbourhood and local centres (Areas Zoned B1 & B2)

Neighbourhood and local centres within the Campbelltown LGA shall be characterised by:

- Buildings that are well designed with articulated facade treatments;
- Shops, restaurants, cafés and businesses with active street frontages and land uses that service the day to day needs of nearby residents;
- Landscaping that soften the car parking areas and enhance the streetscape;
- Uniform awnings that enhance the visual appearance of the buildings and provide weather protection for the users;
- Attractive buildings that have been harmoniously designed to complement each other and contribute to the overall architectural design quality of the neighbourhood and local centres.

Note: Table 6.2.1 provides a list of the local and neighbourhoods centres within the Campbelltown LGA.

Figure 6.2.1 - A photo of Eagle Vale Local Centre

Figure 6.2.2 - An example of a mixed use development within a neighbourhood centre with an active street frontage.

6.2

Desired Future Character

Areas Zoned B1&B2

Table 6.2.1 Lists of Neighbourhood Centres within Campbelltown LGA

Glen Alpine Shopping Centre	Heritage Way, Glen Alpine
Kearns	Kearns Avenue, Kearns
Raby	Thunderbolt Drive, Raby
Raby Shopping Centre	Raby Shopping Centre, 2 Hurricane Drive, Raby
St Andrews Shopping Centre	Ballantrae Drive, St Andrews
Minto	Minto Road, Minto
Minto	Benham Road, Minto
Ingleburn	Lagonda Drive, Ingleburn
Ruse Village Shopping Centre,	Junction Road, Ruse
Blairmount	Clydesdale Drive, Blairmount
Blair Athol	The Kraal Drive, Blair Athol
Campbelltown	Cnr Chamberlain Street & Lindesay Street Campbelltown
Campbelltown (1)	Waminda Avenue, Campbelltown
Campbelltown (2)	Waminda Avenue, Campbelltown
Bradbury	Hoddle Avenue Shopping Centre 3 Hoddle Avenue, Bradbury
Ambarvale Shopping Centre	45 Woodhouse Drive, Ambarvale
Airds Shopping Centre	Riverside Drive, Airds
Bradbury Shopping Centre	The Parkway, Bradbury
St Helens Park	Kellerman Drive, St Helens Park
St Helens Park	Woodland Road, St Helens Park
Rosemeadow Shopping Centre	Thomas Rose Drive, Rosemeadow
Macquarie Fields	Saywell Road, Macquarie Fields
Macquarie Fields Neighbourhood	Evelyn Street, Macquarie Fields
Woodbine Neighbourhood Centre	North Steyne Road, Woodbine
Leumeah	Bradfield Street, Leumeah
Leumeah	54 Parkhill Avenue, Leumeah

Table 6.2.2 Lists of Local Centres within Campbelltown LGA

Eagle Vale	Eagle Vale Centre, Emerald Drive,
Minto	Minto Marketplace, Brookfield Road, Minto
Leumeah	O'Sullivan Road, Leumeah
Macquarie Fields	Glenquarie Shopping Centre, 60 Harold Street, Macquarie Fields

6.3

6.3 Desired Future Character for (Areas Zoned B5)

Desired Future Character

Areas Zoned B5

The areas zoned B5 shall be characterised by:

- well designed and articulated facade treatments addressing the primary streets.
- buildings with active street level frontages.
- well designed signage that does not distract from the character of the locality.
- easily accessible loading dock facilities that are designed to operate separately to any public/retail function.
- landscaping that softens car parking areas and enhances the streetscape.
- street trees.

Figure 6.3.1 - Examples of streetscapes within existing areas zoned B5 within Campbelltown.

6.4 General Requirements for Commercial Development

This Section provides general development controls for commercial development within Campbelltown LGA.

6.4.1 Building Form and Character

Objectives:

- Ensure that the massing and scale of new development are complementary to the desired future character of business centres.
- Ensure that buildings are designed to enhance the existing and future desired built form by encouraging innovative and quality designs that fit harmoniously with their surroundings, and the public domain.
- Ensure that car parking areas and entries to commercial development are appropriately sited, designed and constructed so that they do not detract from the appearance of the development or the streetscape.
- Ensure that advertising is undertaken in a manner that reduces clutter and does not impact on the overall visual quality of the buildings.

Design Requirements

a) All building facades, including rear and side elevations visible from a public place or adjacent to residential areas, shall be architecturally treated to enhance the quality of the streetscape.

b) Large buildings shall incorporate the following elements to assist in achieving a high quality architectural outcome:

i) the provision of vertical and/or horizontal offsets in the wall surfaces at regular intervals, including columns, projections, and recesses; variation to the height of the building so that the building appears to be divided into distinct massing elements;

ii) articulation of the different parts of a building's facade by use of colour, arrangement of facade elements, or by varying the types of materials used; and

iii) maximising the interior and exterior

Note:

Numerical Development Standards for building heights and minimum subdivision are provided under the CLEP.

6.4

General Requirements for Commercial Development

6.4.1 Building Form and Character

interactions at the ground level.

c) The main entry to the building shall be easily identifiable from the street and directly accessible through the front of the building.

d) Large expansive blank walls on ground floor levels or side and rear boundaries shall not be permitted unless abutting a building on an adjoining allotment.

e) Roof mounted plant rooms, air conditioning units and other services and equipment shall be effectively screened from view using integrated roof structures and architectural elements.

f) Solid opaque roller doors/shutters over windows and entry doors shall not be permitted on any building that has frontages to a street or a public place.

g) Buildings shall not incorporate highly reflective glass.

h) A schedule of proposed colours, materials and finishes shall accompany all development applications for new buildings.

i) Development on corner sites shall incorporate splays, curves, building entries and other architectural elements to reinforce the corner as a land mark feature of the street.

j) Except in the case of an outdoor cafe, the design of the development shall not provide for outdoor display and/or storage.

k) Commercial development shall be designed to address both primary and secondary street setbacks.

l) Infill development shall respect and maintain consistency with the established setbacks of existing shopfronts.

m) For applications involving new construction work with a value of $30 million or greater, any existing above

Figure 6.4.1.1 An example of a well articulated commercial building.

ground power lines, traversing the property's frontage, shall be relocated underground at the developers expense.

Note: To facilitate this requirement, the applicant must liaise with the relevant power authority requesting to install a conduit within the adjacent footpath (road reserve) area for the provision of an underground power supply and extension of the conduit up to the wall of any proposed building. It must also be demonstrated that ready connection to the building(s) can be made when the overhead connection is replaced with a new underground line during the construction phase of the development.

Where possible, above ground electricity utilities shall be located in a way to minimise impacts on landscaping and be placed/ oriented to minimise the percentage they occupy within the front portion of the site.

n) The developer must allocate/set aside adequate space within the development to install a grease trap and mechanical ventilation, for any proposed food premises, in accordance with the Local Water Authorities recommendations and the following Australian Standards:

   Mechanical ventilation (for any proposed food premises) must comply with:

   i) Australian Standard (AS) 1668.2-2012: The use of ventilation and air conditioning in buildings:

   ii) Part 2: Mechanical ventilation in buildings; and (where applicable); and

   iii) Australian Standard 1668.1-1998: The use of ventilation and air conditioning in buildings - Fire and smoke control in multi-compartment buildings.

   All mechanical ventilation must be installed within the building during construction and is not permitted on any external building surfaces.

   All required grease traps must be located

Figure 6.4.1.2 An example of a well articulated commercial building.

6.4

General Requirements for Commercial Development

6.4.1 Building Form and Character

and serviced on private land as no permission will be granted to install such a facility on public or Council land.

6.4.1.1 Commercial Development Floor Area

Design Requirements:

a) The maximum gross floor area of any single retail premises within any business in areas zoned B1 ,B2 and B5 shall not exceed 500 square metres unless the proposal has been supported by an economic impact assessment, prepared by a suitably qualified person. In this regard, the economic impact assessment shall demonstrate that the economic impacts of the proposed development on the retail hierarchy of affected business areas in the Campbelltown Local Government Area are acceptable, and shall include an assessment of:

   i) the trade area of the proposed development;

   ii) market demand within the trade area to justify the proposal; and

   iii) economic impacts on comparative retail outlets in the trade area.

b) Despite Clause 6.4.1.1 a) bulky goods premises shall:

   i) have a minimum gross floor area of 200 square metres; and

   ii) be permitted to have a gross floor area greater than 500 square metres.

6.4.1.2 Building Setbacks

Design Requirements:

a) All commercial development outside areas zoned B3 and B4 shall be setback from property boundaries in accordance with this section.

b) Development shall be setback a minimum of :

   i) 30 metres to:

   – the main southern railway corridor,

   ii) 30 metres to:

- the South Western Freeway corridor,
- Ben Lomond Road between Pembroke Road and the Main Southern Railway Corridor,
- Campbelltown Road,
- Henderson Road,
- Pembroke Road,
- Rose Payten Drive; and
- Williamson Road.

iii) 15 metres to:

- Airds Road,
- Badgally Road,
- Ben Lomond Road between Campbelltown Road and the Main Southern Railway Corridor,
- Blaxland Road between Campbelltown Road and Rose Street,
- the south eastern side of Blaxland Road between Rose Street and Lot 5 DP 538258,
- Blaxland Road between Lot 5 DP 538258 and Narellan Road,
- Devon Road,
- Grange Road,
- Plough Inn Road between Campbelltown Road, and Hollylea Road,
- Sussex Street and
- Swaffham Road.

iv) 10 metres from any other primary street frontage.

exclusive of any required road widening.

c) Despite Clause 6.4.2.1. b) i) Council may consider a reduction of the rear setback from the southern railway corridor from 30 metres to 5 metres providing that:

i) a vegetated screen/landscape area of a minimum width of 5 metres is constructed along the full width of the property between the railway corridor and the buildings;

ii) the vegetated area is free of any easements

or site constraints (refer to Figure 6.4.1.3);

iii) the vegetated area is densely landscaped with trees and plants selected from the Campbelltown Native Gardening Guide, available from Council's website at www.campbelltown.nsw.gov.au;

iv) Council is satisfied that the proposed vegetation is sufficient to screen the buildings from the southern railway corridor.

Note: All reduced setback proposals from the railway corridor shall be subject to the approval of the relevant public authorities.

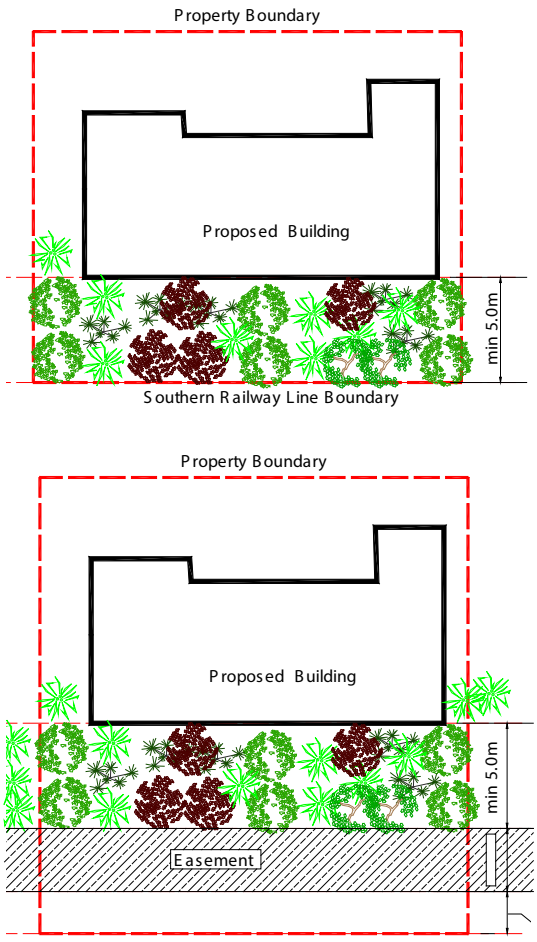


Figure 6.4.1.3 Illustration of the reduced set backs requirements from the southern railway corridor

6.4.1.3 Fencing

a) Commercial fencing shall be a maximum 2.4 metres in height.

b) The use of sheet metal fencing is not permitted.

c) Fencing on corner allotments shall not obstruct the sight distance of traffic entering or within an intersection or roundabout.

d) Fencing shall not obstruct power, water, sewer, gas or telephone services, drainage systems, (including overland flow paths) or any easements or rights of way.

e) Details for fencing shall be submitted with the development application.

6.4.2 Car Parking and Access

Objectives:

- Ensure that sufficient car parking is accommodated on site to meet the traffic demand generated by the development.
- Ensure that the layout of car parking spaces is safe, functional and maintains the free flow of traffic into and out of the site.
- Minimise parking demand through integration of land use and transport.
- Ensure consistency with desired future character of the area.
- To ensure that new development does not compromise the effective and ongoing operation of the Queen Street commercial core; and
- To prevent or reduce the potential impact of traffic on any commercial development adjacent to Queen Street.
- Promote the use of electric vehicles across the Local Government Area.
- Encourage the installation of electric vehicle charging infrastructure.

6.4.2.1 General Requirements

Design Requirements

a) Off street parking and loading shall be designed in accordance with *Australian Standards 2890.1 and 2* (*as amended*), except as otherwise provided by this Plan.

b) The minimum car parking rates shall be provided in accordance with Table 6.4.2.1. If in the opinion of Council, additional car parking spaces are required due to the constraints of the site and or the nature of the use, additional car parking spaces shall be provided as part of the development.

c) All car parking spaces that are required under clause 6.4.2.1 b) shall not be locked off, obstructed, reserved or separately allocated to any individual use at any time.

d) Commercial development shall be designed to accommodate all related vehicle movements on site such that:

   i) all vehicles shall enter and exit the

site in a forward direction;

ii) the area for manoeuvring of delivery and service vehicles is separate from vehicle parking areas, and preferably accessed via a rear service lane;

iii) cause minimal interference to the flow of traffic within the surrounding road network; and

iv) safe and convenient access is provided for pedestrians.

e) A *Traffic Impact Assessment Report* shall be prepared by a suitably qualified person and submitted as part of a development application addressing the following criteria if the development exceeds the relevant thresholds within *SEPP (Infrastructure) 2007*:

i) the existing traffic environment;

ii) anticipated traffic generation from the proposed development;

iii) the potential cumulative impact in the locality;

iv) the need for traffic improvements in the locality;

v) traffic egress/ingress to arterial/sub arterial roads; and

vi) sight distance and other safety issues.

f) Each site shall have a:

i) maximum of one ingress and one egress for heavy vehicles (combined or separated); and

ii) each site may have an additional ingress/egress for cars (and other light vehicles).

g) No car parking spaces shall be designed in a stacked configuration.

h) No required car parking spaces shall be created as a separate Strata or Torrens Title allotment.

Figure 6.4.2.1 Examples of a well landscaped car park

i) Above ground multi- level car parking structures shall be designed so as to integrate with the surrounding built form , incorporate design methods and architectural form that compliments and adds value to the character of the local area.

j) Carparks must be developed with the infrastructure required for electric vehicle charging.

k) On-site car parking is to be provided to support a range of vehicles, including small cars, hybrid cars and fully electric cars in multi space car parks.

l) Spaces allocated to environmental vehicles should be marked and managed according to the specific vehicle type targeted.

Note: Council may consider the use of mechanical turntables and/or vertical stacking devices as part of the car parking arrangements.

6.4.2.2 Loading and Unloading

Design Requirements

a) Where practicable, loading bays shall be separated from parking and pedestrian access.

b) All loading and unloading shall take place wholly within the site.

c) No loading or unloading shall be carried out across parking spaces, landscaped areas pedestrian aisles or on roadways.

d) Parking and loading bays shall be provided and clearly identified on site.

e) Required manoeuvring areas for heavy vehicles shall not conflict with car parking.

f) Each new commercial building/unit having a gross floor area:

   i) up to 200 square metres shall provide a loading area to allow for a small rigid vehicle to manoeuvre

on site;

ii) more than 200 square metres, but up to 1500 square metres shall provide an area to allow for a medium rigid vehicle to manoeuvre on site; and

iii) more than 1500 square metres shall provide a loading area to allow for a heavy rigid vehicle to manoeuvre on site.

g) Loading docks and service areas shall not be visible from any public place and shall be suitably screened from adjacent properties. Screening may be achieved by locating such areas behind the buildings, by fencing, landscaping, mounding or a combination of these, or by other means to Council's satisfaction.

6.4.2.3 Access for People with Disabilities

Design Requirements

a) Commercial development shall comply with the minimum access requirements contained within the BCA , the Disability (Access to Premises — Buildings) Standards 2010 and *Australian Standard 1428 - Design for Access and Mobility* (as amended).

b) Notwithstanding Clause 6.4.2.2 a) the required percentage of car parking spaces for people with disabilities within retail/commercial development shall be:

i) one car space per development; plus

ii) one for every 20 car parking spaces;

iii) and shall be designed in accordance with AS No 2890.6 (as amended).

6.4.2.4 Vehicular Access along the Queen Street, Campbelltown Commercial Core

Design Requirements

a) Consent must not be granted to the development of land that has a frontage to Queen Street unless Council is satisfied that:

i) where practicable, vehicular access to the land is provided by a road other than Queen Street; and

Table 6.4.2.1 Car Parking Rates

Commercial Premises

• Office Premises	Ground floor - 1 space for every 25m² of the GFA Upper levels-1 space per 35 m2 of GFA
• Business Premises	

Health Services Facility

• Health Consulting Room	1 space for every 35m² of the GFA
• Hospital	Transport Assessment Study required
• Medical Centre	1 space for every 35m² of the GFA
• Other health services e.g community health services facilities	On merits, consideration will be given to scale and location of the proposed facility

Recreation Facilities

• Recreation facility Indoor – (A squash court, indoor swimming pool, gymnasium, table tennis centre, health studio, bowling alley, ice rink or any other building or place of a like character used for indoor recreation.	3 spaces per court/alley (where relevant); or 1 space per 25m² GFA
• Recreation Facility Outdoor – A golf course, golf driving range, mini-golf centre, tennis court, paint-ball centre, lawn bowling green, outdoor swimming pool, equestrian centre, skate board ramp, go-kart track, rifle range, water-ski centre or any other building or place of a like character used for outdoor recreation.	3 spaces per court/alley (where relevant); or 1 space per 50m² of site area
• Recreation Facility (major)	Transport Assessment Study required

Tourist and Visitor Accommodation

• Backpackers' accommodation	1 space per 10 beds or 1 space per 5 bedrooms (which ever is the greater) plus 1 space per 2 staff
• Bed and breakfast accommodation	1 space for guest use (plus the required parking for the dwelling)
• Hotel or motel accommodation	1.5 space per 10sqm, plus 1 space per 2 employee
• Farm stay accommodation	1 space for guest use (plus the required parking for the dwelling)
• Serviced apartments	I space per 4 apartments; and 1 space per manager/caretaker

Other Commercial Uses

• Vehicle body repair workshop or vehicle repair station	1 space per 25m² GFA, plus 3 spaces per work bay (for vehicle servicing facilities
• Highway service centre	Transport Assessment Study required
• Service station	1 space per 25m² GFA plus 5 spaces per work bay(for vehicle servicing facilities)
• Truck depot	Transport Assessment Study required
• Transport depot	Transport Assessment Study required
• Entertainment facility; – theatre, cinema, music hall, concert hall, dance hall and the like	for indoor facilities: — 1 space per 25m² GFA for outdoor facilities: — 1 space per 50m² of site area
• Registered club	1.5 spaces per 10m² GFA
• Eco-tourist facility	1 space per 25m² GFA
• Environmental facility	1 space per 25m² GFA

Retail Premises

– Bulky goods premises	1 space per 60m² GFA	
– Cellar door premise	10 spaces	
– Food and drink premises		
• a restaurant or cafe	1.5 spaces per 10m² GFA	
• take away food and drink premises	1.5 spaces per 20m² GFA	
• a small bar	1 spaces per 10m² GFA	
– Garden centres	15 spaces; Plus 0.5 spaces per 100 m² of site area	
– Hardware and building supplies	15 spaces; Plus 0.5 spaces per 100 m² of site area	
– Kiosks	Nil	
– Landscaping material supplies	15 spaces; plus 0.5 spaces per 100 m² of site area	
– Markets	1 space for every 15m²of GFA occupied by the market or 3.5 places for every stall provided whichever is greater	
– Plant nurseries	15 spaces; plus 0.5 spaces per 100 m² of site area	
– Rural supplies	15 spaces; plus 0.5 spaces per 100 m² of site area	
– Shops – (Neighbourhood shops)	Ground level	1 space per 25m² GFA
	Upper level(s)	1 space per 35m² GFA
– Timber yards	10 spaces	
– Vehicle sales or hire premises	1 space per 100m² site area, plus 5 spaces per work bay (for vehicle servicing facilities)	

ii) The safety, efficiency and ongoing operation of Queen Street must not be adversely affected by the proposed development as a result of:

– The design of the vehicular access to the land, or

– The nature, volume or frequency of vehicles using Queen Street to gain access to the land.

b) Any vehicular access must take into account the existing services within the Queen Street road reserve, such as power poles, drainage pits and existing street trees.

c) If adjacent to an existing residential development, a minimum 1.5m setback must be provided from the relevant side property boundary.

d) Vehicular access shall be designed to:

   i) minimise any potential impact on Queen Street, the site layout and building façade design; and

   ii) if located off the Queen Street frontage, be integrated into the building design; and

   iii) enable all vehicle to enter the site and leave in a forward direction without the need to make more than a three point turn.

e) Access ways to underground parking should not be located adjacent to doors or windows of any habitable rooms which form part of a residential development.

6.4.2.5 Shopping Trolleys

a) All newly proposed supermarkets that operate 10 or more shopping trolleys to include a smart technology or 'a coin mechanism' to ensure that shoppers will not be able to leave the site with the shopping trollies.

6.4.2.6 Public Carparks

a) A minimum 10 per cent of parking spaces are to be designed and labelled for small & environmental vehicles in commercial, office or shopping centre developments wherever 10 or more spaces are required.

b) The design of car parking spaces shall take into consideration the principles of Crime Prevention Through Environmental Design (CPTED) to minimise opportunities for crime and enhance security.

6.4

General Requirements

6.4.3 Public Domain

6.4.3 Public Domain

Objectives:

- Ensure that commercial development enhances and integrates with the existing public domain.
- Ensure that public art is provided in accordance with Council's Public Art Master Plan.

Design Requirements

a) A public domain plan incorporating street furniture, paving, landscaping and public art shall be submitted as part of any development application for a new development having a gross floor area greater than 5,000sqm.

b) Any development application for a new development having a gross floor area greater than 5000sqm shall provide public art of a type and location that is acceptable to Council.

c) Any commercial outdoor areas fronting the street and used by the general public shall be designed to compliment the surrounding public domain and spaces.

d) Awnings shall be provided on all newly constructed buildings that have road frontages, be it primary or secondary frontages located within the Campbelltown, Macarthur, and Ingleburn Business Centres.

e) Awnings shall:

i) be 2.5 metres wide;

ii) be setback from the kerb by a minimum of 1 metre; and

iii) provide a minimum of 3 metres clearance to the underside of the fascia.

Figure 6.4.3.1 - An example of public art within commercial centres.

6.4.4 Landscaping

Objectives:

- Enhance the existing streetscape and promote a scale and density of planting that softens the visual impact of buildings.
- Encourage the planting of native and low water consumption plants and trees.
- Ensure that landscaping is in scale with the development.
- Encourage appropriate placement of vegetation that provides both shade and solar access opportunities at various times of the year.

Design Requirements

a) A detailed landscape plan and report shall be prepared by a suitably qualified person and submitted with all development applications for commercial development involving the construction of a new development.

b) Landscaping shall be provided between the primary street boundary and the building in accordance with Section 2.5 Landscaping of this Plan.

c) All landscaped bays shall be a minimum 2 metres wide and allow for deep soil planting.

d) Landscaped areas shall be separated from driveways and car parking areas by a suitable device such as bollards or concrete wheelstops to ensure that the landscaping is not damaged as a result of vehicular movement.

e) Landscaped area at ground floor level shall be incorporated within the car park at all the outer edges of car parking bays as illustrated in Figure 6.4.4.1

f) High canopy trees shall be used to allow for clear lines of sight within car parking areas and to internal site access pathways.

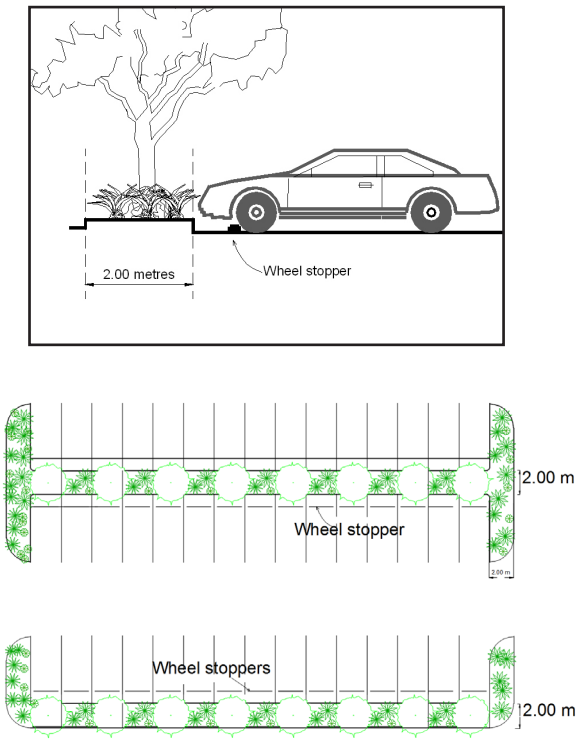


Figure 6.4.4.1 - An illustration of the need to use wheel stoppers to protect landscaping and the need to landscape all parking edges and between parking bays.

Note:

Refer to Section 2.5 Landscaping of Part 2 of Volume 1 of the Plan for additional requirements on Landscaping.

6.4

General Requirements

6.4.5 Residential Interface

6.4.5 Residential Interface

Objectives:

- To ensure that commercial development does not have adverse impacts on the amenity of adjoining and nearby residential development.
- To ensure that commercial buildings are appropriately setback from nearby residential development.
- To ensure that heavy vehicles associated with commercial development do not adversely impact upon residential amenity.
- To provide a visually attractive relationship with residential development.

Design Requirements

a) Buildings adjoining residential zones and/or open space shall be setback a minimum of 3 metres from that property boundary.

b) Loading areas, driveways, waste storage areas and roof top equipment shall not be located adjacent to residential development.

c) Any commercial buildings that are designed to accommodate the preparation of food from a commercial tenancy, shall provide ventilation facilities to ensure that no odour is emitted in a manner that adversely impacts upon any residential premises.

d) External lighting shall be positioned to avoid light spillage to adjoining residential development.

e) An acoustic report may be required to be prepared as part of a development application where the proposed development is adjacent to residential or other sensitive uses, such as places of worship and child care centres.

Note: Enquiries should be made with Council's Development Services Section as to whether an acoustic report is required in respect to a particular development application.

Figure 6.4.5.1 - An example of a commercial building, where upper storeys are stepped back to minimise bulk of the building.

6.5 Neighbourhood Shops (R3 and R4)

This Section provides development controls for neighbourhood shops development within areas zoned R3 and R4.

Objective:

- Ensure new development is well articulated, makes a positive contribution to the streetscape and respects the desired future character of neighbourhood centres.
- Ensure that neighbourhood shops are of small scale and located to service residential areas that are not within close proximity to existing centres.

Design Requirements

a) Neighbourhood shops within areas zoned R3 and R4 shall not be permitted within one (1) kilometre radius of areas zoned B1,B2,B3,B4,and B5 and existing neighbourhood shops.

b) Neighbourhood shops shall only be located at ground floor and shall be designed for access for people with

c) Where neighbourhood shops are proposed as part of a residential development within areas zoned R3, the development controls under Part 3 Volume 1 shall apply to the residential component of the development.

d) Where neighbourhood shops are proposed as part of a residential development within areas zoned R4, the development controls under Part 5, Volume 1 shall apply to the residential component of the development.

e) Neighbourhood shops within areas zoned R3 shall be setback a minimum of:

   i) 5.5 metres from any street or adjoining open space;

   ii) 6 metres from the rear boundary where it adjoins residential properties or public open space; and

   iii) 3 metres from any other property boundary.

f) Neighbourhood shops within areas zoned R4 shall be setback a minimum of:

Note:

Under the CLEP (Section 5.4 (7)) the retail floor of a neighbourhood shop is not permitted to exceed 100sqm.

i) 5.5 metres from any street; and

ii) 6 metres from any other property boundary.

g) Neighbourhood shops proposed immediately adjacent to existing residential dwellings within areas zoned R3 and R4 shall not have an adverse impact on the existing amenity of the occupants of adjacent residential dwellings including impacts on solar access, noise, odour, visual and acoustic privacy.

h) Neighbourhood shops shall provide adequate space for the on-site parking, loading and unloading of all delivery/service vehicles as detailed in under Part 6.4.2 of this part of the Plan.

i) Exterior lighting shall be of low intensity and shielded so that light does not spill out onto the residential dwellings or project above the horizontal plane.

j) Lighting shall not strobe, flash, oscillate, be of unusually high intensity of brightness, or be uncovered.

k) Stairs providing access to residential dwellings shall be enclosed.

l) No advertisement shall be permitted on any part of the residential dwellings.

m) Private car parking for the residential component of the development shall be clearly identified and separated from neighbourhood shops car parking.

n) Areas for commercial and residential waste shall be kept separate.

o) No blank walls shall be permitted on any elevation facing a primary or a secondary street.

6.5.1 Access for People with Disabilities

a) Mixed use development shall comply with the minimum access requirements contained within the BCA , the Disability (Access to Premises — Buildings) Standards 2010 and *Australian Standard 1428 - Design for Access and Mobility* (as amended).

6.6 Subdivision

Objective:

- Encourage the equitable distribution of car parking within strata titled commercial development.

6.6.1 Strata Subdivision

Design Requirements

a) No more than 50% of the required car parking within a strata title subdivision shall be allocated to individual commercial units within a multi-unit complex.

b) All car parking spaces that are allocated to individual units shall be proportioned in number to the size of the units.

c) No car parking spaces shall be created as a separate allotment.

d) No internal or outdoor storage space shall be created as a separate allotment.

e) No common property car parking spaces shall be fenced off from other parts of the development.

6.7

Commercial Waste Management

6.7 Commercial Waste Management

Objective:

- Ensure that appropriate facilities are provided for the storage and collection of commercial waste.
- Minimise adverse impacts on the amenity of all users of the site.

Design Requirements - Commercial Development

a) Commercial development shall make provision for an enclosed onsite waste and recycling area that has adequate storage to accommodate the volume of waste and recycling generated at the development. Minimum commercial waste generation rates are contained in Table 6.7.1.

b) The waste storage area shall:

i) be no more than 30 metres from the point of collection;

ii) contain a hose connection;

iii) have an impervious floor that is connected to the sewer;

iv) be adequately ventilated;

v) incorporate appropriate design and construction materials (including colours and finishes) which complement the development;

vi) be appropriately screened from public view by a visual barrier of at least 1.5m high;

vii) provide an opening sufficient to allow egress of the maximum sized bin to be used at the development; and

viii) Ensure that the path for wheeling bins between the waste storage area(s) and the collection point is free of steps and kerbs and has a maximum gradient of 1V:8H.

c) Any commercial premises that

Table 6.7.1 Commercial Waste Generation Rates.

Type of Premises	Waste Generation	Recycling Generation
Food Premises		
Butcher, Delicatessen, Seafood Shop, Takeaway	250L/80 m^2 floor area/ day	50L/80 m^2 floor area/ day
Restaurants	400L/100 m^2 floor area/ day	280L/100 m^2 floor area/ day
Retail (other than food premises)	50L/80 m^2 floor area/ day	100L/80 m^2 floor area/ day
Offices	10L/100 m^2/ day	15L/100 m^2/ day
Hairdresser/ Beauty Salon	50L/80 m^2 floor area/ day	40L/80 m^2 floor area/ day
Licensed Premises	50L/100 m^2 floor area/ day	50L/100 m^2 floor area/ day
Motel and other temporary accommodation premises	10L/bed/day	5L/bed/day

Figures extracted from EPA document "Better practice guide for resource recovery in residential developments" - Appendix F - Table F3 - Calculating commercial and industrial waste and recycling generation rates.

generates more than 20% of total weekly waste generated or 50 litres by weight or volume (whichever is the lesser) of meat/seafood product shall be collected daily or refrigerated awaiting collection.

d) All commercial premises shall –produce evidence of a collection contract with a licensed waste and recycling collection contractor, if requested by Council.

e) The development must be designed in such a way that an Australian Standard heavy rigid vehicle can provide waste collection services to the development. If on-site servicing is required, the site plan and layout shall consider how heavy rigid vehicles can access and move around the development, and make appropriate provisions for this to occur safely. All waste and recycling generated from the business is to be kept within an appropriate storage receptacle on the premises. Waste is not to be stored or placed outside of a waste storage receptacle or in such a manner that it will become a litter, odour or health nuisance.

6.8

6.8 Parenting Facilities

Parenting Facilities

Objective:

- Ensure that adequate parenting facilities are provided within large scale commercial and retail developments.
- Provide easily accessible, safe and adequately equipped parenting facilities suitable for feeding and other purposes related to the care of babies/infants by both female and male carers.

6.8.1 Development Applications to which this Section Applies

Design Requirements

a) Parenting facilities shall be incorporated in all new buildings and alterations/ refurbishment of existing buildings for regional and district shopping centres, major sporting facilities, swimming centres, community facilities, libraries, hospitals, theatres, cinemas, department stores, and any other building where in Council's opinion such facilities should be provided.

A parenting facility is a room which is equipped with facilities for feeding (including breast feeding) and caring of babies/infants.

Figure 6.8.1 - An example of a parenting facility.

6.8.2 General Requirements

Design Requirements

a) Each parenting facility shall be designed to:

i) provide a quiet place for parents to feed children in privacy;

ii) be a unisex use facility;

iii) provide an allocated area to change nappies;

iv) provide hand washing (warm and cold) and drying facilities;

v) provide a toddler toilet;

vi) be separated from male, female and disabled toilets; and

vii) be well ventilated in accordance with *Australian Standard 1668 Part 2- Acceptable Indoor Air Qualities* (as amended).

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Part 7
Industrial Development

7.1 Application

Parts 7 sets out development controls for industrial development within areas zoned IN1 and IN2.

Note:

For the purposes of this part, industrial development includes, but is not limited to any general industries, light industries, warehouse and distribution centres, storage premises, vehicle body repair workshops,vehicle repair stations, self-storage units, storage premises, and any other development that in the opinion of Council this section shall apply.

Zone Acronyms

IN1 General Industrial: IN1

IN2 Light Industrial: IN2

Note: Numerical Development Standards for building heights and minimum subdivision are provided under the CLEP.

7.2 Building Form and Character

Objectives:

- Ensure that industrial development is both functional and attractive in the context of its local environment through appropriate design.
- Reduce the visual impact of industrial development on the streetscape and surrounding areas.
- Ensure that sufficient areas are available for landscaping, access, and car parking and manoeuvring of heavy vehicles on site.
- Ensure that building materials are high quality and durable.
- Ensure that fencing and walls for security purposes have positive impacts on the streetscape and other public domain areas.
- Ensure that industrial development does not significantly impact on adjoining residential zones.
- Ensure that industrial units are designed to be able to accommodate a wide variety of businesses.
- Ensure that industrial units are able to facilitate the safe and efficient transportation of goods between floors/levels in a building.

7.2.1 Building Design

Design Requirements

a) Building design shall incorporate the following features to assist in the reduction of the perceived bulk and mass of development:

   i) provision of vertical and/or horizontal offsets in the wall surfaces at regular intervals, including columns, projections, and recesses;

Figure 7.2.1 An examples of well articulated industrial buildings.

ii) articulate architectural details around doors, windows front facades, roofs and entrances;

iii) articulate walls through the use of texture, colour, material changes, shadow lines and other facade treatments, at least every 15 metres; and

iv) at least 50% of the total surface area of the front elevation to be constructed of masonry material.

b) Buildings located on corner allotments shall be designed to address both street frontages.

c) Buildings shall be predominantly single storey (excluding basements, mezzanines and offices).

d) Mezzanines shall not comprise an area of more than 50% of the gross floor area of the ground floor of the respective unit.

e) Despite subclause (d), a mezzanine level may comprise up to 75 % of the gross floor area of the ground floor of the respective unit, providing that it can be demonstrated to Council's satisfaction that:

i) The unit shall be able to facilitate the safe and efficient transportation of goods between the ground floor and mezzanine level

ii) Regardless of the proposed land use, a forklift shall be able to manoeuvre internally within the unit to facilitate vertical transportation of goods without leaving the unit

iii) Any part of the mezzanine level over 50 % of the gross floor area of the ground floor of the respective unit is of lightweight construction and can be easily removed without impacting on the structural integrity of the building.

f) Offices shall not comprise more than 30% of the gross floor area of the respective

Worked example:

For a proposed development that comprises a gross floor area of 100sqm, the office area shall be a maximum of 30 sqm. As such the development would be comprised of:

a) 30sqm of office area; and

b) 70sqm of the primary use.

Figure 7.2.2 Examples of easily identifiable entry.

unit.

Note: For the purpose of Clause 7.2.1 e) above, 'office space' means the part of the gross floor area that is dedicated to office use.

g) No building shall rely upon a required path of egress (as defined within the BCA) over adjoining private land.

h) No building or structure shall be erected within a right of carriage way or easement.

i) A schedule of proposed colours, materials and finishes shall accompany all development applications for new industrial buildings.

j) The main entry to the building shall be easily identifiable from the street and directly accessible from the front of the building or driveway in the case of a multi unit complex.

7.2.2 Building Setbacks

Design Requirements

a) Industrial development shall be setback by:

i) 30 metres to:

- the main southern railway corridor,
- the South Western Freeway corridor,
- Ben Lomond Road between Pembroke Road and the Main Southern Railway Corridor,
- Campbelltown Road,
- Henderson Road,
- Pembroke Road,
- Rose Payten Drive, and
- Williamson Road.

ii) 15 metres to:

- Airds Road,
- Badgally Road,

- Ben Lomond Road between Campbelltown Road and the Main Southern Railway Corridor,
- Blaxland Road between Campbelltown Road and Rose Street,
- the south eastern side of Blaxland Road between Rose Street and Lot 5 DP 538258,
- Blaxland Road between Lot 5 DP 538258 and Narellan Road,
- Devon Road,
- Grange Road,
- Plough Inn Road between Campbelltown Road, and Hollylea Road,
- Sussex Street, and
- Swaffham Road.

iii) 10 metres from any other public road.

excluding any required road widening.

b) Despite Clause 7.2.2.a) i) Council may consider a reduction of the rear setback from the southern railway corridor from 30 metres to 5 metres providing that:

i) a vegetated screen/landscape area of a minimum width of 5 metres is constructed along the full width of the property between the railway corridor and the buildings;

ii) the vegetated area is free of any easements or site constraints (refer to Figure 7.2.3;

iii) the vegetated area is densely landscaped with trees and plants selected from the Campbelltown Native Gardening Guide , available from Council's website at www. campbelltown.nsw.gov.au;

iv) Council is satisfied that the proposed vegetation is sufficient to screen the buildings from the southern railway

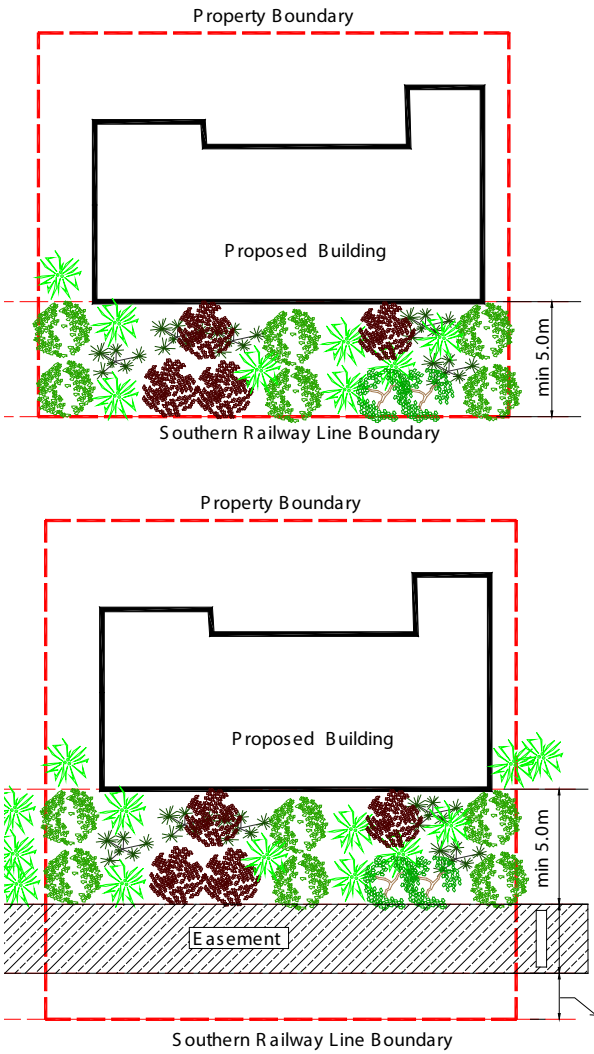

Figure 7.2.3 Illustration of the reduced set backs requirements from the southern railway corridor.

corridor.

Note: All reduced setback proposals from the railway corridor shall be subject to the approval of the relevant public authorities.

c) Except as nominated above, buildings adjoining residential, commercial and/or open space zones shall be setback a minimum of 10 metres, the interface of which shall be complimentary to and not pose unreasonable impacts on the non-industrial development in terms of its built form and proposed used.

7.2.3 Fences

Design Requirements

a) Industrial fencing shall be a maximum 2.4 metres in height.

b) All fencing in industrial developments shall be of recessive colours, palisade design, or plastic coated and framed chain wire with a maximum height of 2.4 metres, unless required as part of an acoustic solution.

c) The use of sheet metal fencing is not permitted unless required as part of acoustic solution and is appropriately screened with landscaping.

d) All fencing in industrial developments shall be setback a minimum of 3.0 metres from property boundaries addressing a primary and/or secondary street.

e) Fencing on corner allotments shall not obstruct the sight distance of traffic entering or within an intersection or roundabout.

f) Fencing shall not obstruct power, water, sewer, gas or telephone services, drainage systems, (including overland flow paths) or any easements or rights of way.

g) Details for fencing shall be submitted with the development application.

Figure 7.3.4 An example of the use of a palisade fence in an industrial development.

less than 5.0m

7.3 Car Parking and Access

Objectives:

- To ensure that all required car parking and related vehicle manoeuvring is accommodated on site.
- To maintain the free flow and safe movement of traffic into and out of the site.
- To ensure that on site car parking does not detract from the visual character of the streetscape.

7.3.1 General Requirements

Design Requirements

a) Off street parking and loading shall be designed in accordance with A*ustralian Standard AS 2890.1 and 2 (as amended)*, except as otherwise provided by this Plan.

b) For that part of the gross floor area occupied by office areas, lunch rooms and any associated office storage areas, car parking shall be provided at a rate of one space per 35sqm.

c) For that part of the gross floor area occupied by uses other than office areas, lunch rooms and any associated office storage areas, car parking rates shall be provided in accordance with the following:

   i) a minimum of two (2) spaces (per unit), plus

   ii) one space for every 100sqm of gross floor area for buildings up to 2000 square metres; plus

   iii) one space per 250sqm for that part of the building exceeding 2000 square metres in gross floor area.

d) Despite clause 7.3.1 c) ii), any proposed factory unit development (regardless of the overall combined floor area), shall provide parking at a rate of one space per 100 sqm.

e) In addition to clauses 7.3.1 (b) & (c), one car parking space shall be provided

Figure 7.3.1 Examples of landscaping incorporated into car parking within industrial areas.

Note:

Apart from offices, car parking rates for all proposed commercial uses within industrial zones shall comply with the requirements under **Table 6.4.2.1**.

for every 300sqm of outdoor storage space.

f) Mezzanine areas that are exclusively used for storage purposes shall be excluded from the calculation of total gross floor area for the purpose of calculating the required number of car parking spaces, providing that the mezzanine areas:

   i) are not divided into smaller spaces by internal walls; and

   ii) have no external windows.

g) In addition to clause 7.3.1 (c), motor vehicle industries shall provide a minimum of three (3) car parking spaces per work bay/hoist.

h) Sufficient space shall be provided on site so that no vehicle shall be required to make more than a three-point movement to exit the site in a forward direction.

i) No car parking spaces shall be designed in a stacked configuration.

j) No required car parking spaces shall be created as a separate strata or Torrens title allotment.

k) Each site shall have a:

   i) maximum of one ingress and one egress for heavy vehicles (combined or separated).

   ii) each site may have an additional ingress/egress for cars (and other light vehicles).

l) A minimum of 10% of the required car parking spaces, including disabled spaces, shall be located within close proximity to the main pedestrian entry to the building.

m) Electric vehicle charging stations must be located behind the building line.

Note: Council may consider the use of mechanical turntables as part of the car parking arrangements.

Figure 7.3.2 Examples of loading bays provided for individual units and separate from car parking and landscaped areas.

7.3.2 Loading and Unloading

Design Requirements

a) Each industrial factory/unit shall be provided with a loading bay.

b) Provision shall be made for all loading and unloading to take place wholly within the designated loading area.

c) No loading or unloading shall be carried out across parking spaces, landscaped areas, pedestrian aisles or on roadways.

d) Each industrial building/unit having a gross floor area :

   i) up to 400 square metres shall provide a loading area to allow for a small rigid vehicle to manoeuvre on site.

   ii) more than 400 square metres, but up to 1500 square metres shall provide a loading area to allow for a medium rigid vehicle to manoeuvre on site; and

   iii) more than 1500 square metres shall provide a loading area to allow for a heavy rigid vehicle to manoeuvre on site.

e) Heavy rigid vehicle swept turning paths shall be provided demonstrating that a heavy rigid vehicle can enter and exit the site in a forward direction for all industrial sites.

f) Where it is proposed to service the site with articulated vehicles exceeding 12.5m in length, swept turning paths are to be provided for that vehicle type.

Note 1:

For the purpose of this section (Section 7.3.2):

- a small rigid vehicle shall be taken to mean a rigid vehicle that has a minimum length of 6.4 metres;
- a medium rigid vehicle shall be taken to mean a rigid vehicle that has length greater than 6.4 metres but not exceeding a length of 8.8 metres; and
- a heavy rigid vehicle shall be taken to mean a rigid vehicle that has a length greater than 8.8 metres but not exceeding a length of 12.5 metres.

Refer to AS 2890.2 (as amended) for more information on heavy rigid vehicle measurements and classifications.

Note 2:

For the purpose of this section (Section 7.3.2):

- clause 7.3.2 d) refers to individual units / buildings.
- clause 7.3.2 e) refers to the overall site

7.3.3 Access for People with Disabilities

Design Requirements

a) Industrial development shall comply with the minimum access requirements contained within the BCA, the Disability (Access to Premises — Buildings) Standards 2010 and *Australian Standard 1428 - Design for Access and Mobility* (as amended).

7.4 Landscaping

Objectives:

- To encourage the planting of native and low water consumption plants and trees.
- To enhance the existing streetscape and promote a scale and density of planting that softens the visual impact of buildings from public places and adjoining non-industrial lands.

Design Requirements

a) A detailed landscape plan and report shall be prepared by a suitably qualified person and submitted with all development applications for the industrial development.

b) Landscaping shall be provided to a minimum depth of 50% of the following required setback area located:

   i) along the full width of each street frontage (other than vehicle driveways); and

   ii) along the full width of setbacks from adjoining open space, residential and/or commercial areas.

c) The first three (3) metres of all required street front landscaped area (as measured from the street boundary) shall be planted of advanced canopy trees that are:

   i) a minimum of two (2) metres in height with a minimum 400 litre pot size at the time of planting;

   ii) of native species; and

   iii) planted /placed every 10 metres.

d) Side boundary landscaping of a minimum of one (1) metre width shall be provided between the street boundary and the building line.

Figure 7.4.1 - An Example of well landscaped industrial development.

Note:

Refer to Section 2.5 Landscaping of Part 2 of Volume 1 of the Plan for additional requirements on Landscaping.

7.5 Outdoor Storage Areas

Objectives:

- To ensure that outdoor storage areas are appropriately accommodated on site.
- To reduce the visual impact of outdoor storage areas on the streetscape and surrounding areas.

Design Requirements

a) No outdoor storage shall occur without development consent.

b) Outdoor storage areas shall not be located between the primary or secondary street boundary and any building on the allotment.

c) Outdoor storage areas shall be adequately screened from public view.

d) Goods and materials stored shall not be stacked higher than an approved screening structure.

e) Screen fencing and structures shall be constructed of high quality materials that complement the buildings located on site.

f) All outdoor storage areas shall be sealed and drained to the storm water system in accordance with any environmental management requirements.

g) Notwithstanding any other provision of this Plan, no external storage of used unregistered motor vehicles, vehicle parts, used building materials, scrap products or other industrial waste shall be permitted.

h) No above ground tanks or other storage facilities shall be erected within a required setback.

i) Goods shall be stored above the flood planning level.

Figure 7.5.1 - An example of unacceptable solution for outdoor liquid storage area

7.6 Industrial Waste Management

Objective:

- To ensure that appropriate facilities are provided for the storage and collection of industrial waste and recycled materials.

Design Requirements

a) Industrial development shall make provision for an enclosed on site waste and recycling facility that has adequate storage area to accommodate the waste generated from the development.

b) Any industrial premises that generates more than 20% of total waste generated by the development or 50 litres or 50 kg (whichever is the lesser) of meat/ seafood product shall be collected daily or refrigerated awaiting collection.

c) Adequate provision shall be made for the screening and storage of all industrial waste behind the front building setback.

d) All commercial premises shall produce evidence of a collection contract with a licensed garbage and recycling collection contractor.

e) Despite Clause 7.6. d) above, the design of the building shall provide for the collection system to be undertaken by Council at the time the development application is submitted to Council.

7.7 Environmental Management

Objective:

- To ensure that appropriate environmental management measures are implemented to prevent air, stormwater and noise pollution.

7.7.1 Liquid Storage

Design Requirements

a) The storage and handling of flammable and combustible liquids shall be in accordance with *Australian Standard 1940 - The Storage and Handling of Flammable and Combustible Liquids* and the *Environment Protection Authority* publication, *"Bunding and Spill Management" (as amended)*.

b) All above ground liquid storage facilities, including waste shall be in a covered bunded area that is constructed of impervious materials.

c) Above ground tanks shall be contained in a bunded area that:

   i) is at least 110% of the volume of the tank or the largest tank, where a group of tanks are enclosed; and

   ii) walls shall be at least 250mm in height.

d) The bunded area of drum storage facilities shall be able to contain 25% of the total volume of all drums and shall have a minimum capacity of at least 400L. Walls shall be at least 250mm in height.

Note: Some liquid storage requires a licence from WorkCover. Further enquiries, refer to www.workcover.nsw.gov.au.

Figure 7.7.1 - An example of liquid storage tank.

7.7.2 Air Quality

Design Requirements

a) Any development that is likely to or capable of generating levels of air emissions exceeding the requirements

of the *Protection of the Environment Operations Act 1997* shall demonstrate appropriate measures to mitigate against air pollution.

7.7.3 Noise

Design Requirements:

a) Any development that is likely to or capable of generating levels of noise exceeding the requirements of the *Industrial Noise Policy* (published by the *Office of Environment and Heritage*) shall demonstrate appropriate measures to mitigate against noise pollution.

Note: In addition to the requirements of this Plan, SEPP 33 Hazardous and Offensive Development specifies standards for environmental management of certain industrial development.

7.7.4 Stormwater and Drainage

Design Requirements

a) All activities with the potential to pollute the stormwater system from a system failure shall be carried out within a covered and bunded area sited, designed and constructed to Council's satisfaction.

b) Liquid waste and waste water shall either be:

   i) recycled on site;

   ii) treated and discharged to the sewer in accordance with a trade waste licence issued by Sydney Water; or

   iii) collected, stored in a covered, bunded area and collected by the Office of Environment and Heritage; and

   iv) discharged to a licensed waste management facility.

c) Development shall not result in water run-off causing flooding or erosion on adjacent properties.

d) Stormwater run-off shall be appropriately channelled into a stormwater drain in accordance with *Council's Engineering Design Guide for Development available at Council's website at www.campbeltown.nsw.gov.au*

e) Where applicable, the development shall incorporate the creation of an appropriate easement to manage stormwater in accordance with *Council's Engineering Design Guide for Development available at Council's website at www.campbeltown.nsw.gov.au*.

7.8 Residential Interface

Objectives:

- To ensure that industrial development does not have adverse impacts on the amenity of adjoining residential neighbourhoods.
- To ensure that industries which emit significant noise pollution, odour and the like are appropriately separated from residential neighbourhoods.
- To ensure that vehicle traffic associated with industrial development does not adversely impact upon the amenity of residential neighbourhoods.

Design Requirements

a) Loading areas, driveways, waste storage areas and roof top equipment shall not be located adjacent to residential areas.

b) External and security lighting shall be positioned to avoid light spillage to adjacent residential development.

c) An acoustic and/or a vibration report shall be prepared as part of a development application where the proposed development is adjacent to residential or other sensitive uses, such as religious establishments, educational establishments and child care centres.

d) The interface shall be appropriately screened/vegetated so as to reduce the visual impact of the industrial development.

7.9 Industrial Unit/s

Objectives:

- Ensure that the design of industrial units provide sufficient facilities to ensure the orderly development and relationship of a number of industrial activities on the site.

Design Requirements

a) Each industrial unit proposed on land zoned IN1 General Industrial under the CLEP shall have a minimum LFA of 400 square metres.

b) Each industrial units proposed on land zoned IN2 Light Industrial under the CLEP shall have a minimum LFA of 100 square metres.

Figure 7.9.1 - An example of a multi-unit complex with individual loading/ parking for each unit.

7.10
Subdivision

7.10 Subdivision

Objectives:

- Ensure that industrial allotments are of an appropriate size to provide sufficient space to accommodate future industrial operations and buildings and allow the site to function in a safe and efficient manner.
- Ensure that all allotments created have proper and sufficient access.
- Encourage the consolidation of allotments that are below the minimum allotment size under the CLEP.
- Encourage the equitable distribution of car parking within strata titled industrial development.

7.10.1 Torrens Title

Design Requirements

a) Any allotment created by Torrens title subdivision within areas zoned IN1 General Industrial or IN2 Light Industrial under the CLEP shall:

   i) have a minimum street frontage width of at least 30 metres to the primary street.

c) No industrial subdivision shall create allotments with battle-axe handles.

d) Where a single development is proposed on more than one allotment, all allotments the subject of the development shall be consolidated into a single allotment.

Note: Numerical Development Standards for building heights and minimum subdivision standards are provided under the CLEP.

7.10.2 Strata Subdivision

Design Requirements

a) No more than 50% of the required car parking within a strata title subdivision shall be allocated to individual industrial units within a multi-unit complex.

b) All car parking spaces that are allocated to individual units shall be proportioned in number to the size of the units.

c) No car parking spaces shall be created as a separate allotment.

d) No internal or outdoor storage space shall be created as a separate allotment.

e) No common property car parking spaces shall be fenced off from other parts of the development.

Part 8
Centre-based Child Care Facilities

8.1 Application

This Part sets out controls relating to Centre-based Child Care Facilities in the City of Campbelltown.

8.2 Licence Requirement

In order to operate a Centre-based Child Care Facility in Campbelltown, the applicant needs to obtain:

i) a development consent from Council under the EP&A Act; and

ii) a licence to operate from the NSW Department of Family and Community Services.

Note:

Under the CLEP, Centre-based Child Care Facilities are permissible within the following zones:

- RU2 Rural Landscape
- RU5 Village;
- R2 Low Density Residential;
- R3 Medium Density Residential;
- R4 High Density Residential;
- R5 Large Lot Residential;
- B1 Neighbourhood Centre
- B2 Local Centre;
- B3 Commercial Core;
- B4 Mixed Use;
- B5 Business Development;and
- E4 Environmental Living.

Note:
Applicants are advised to consult with the NSW Department of Family and Community Services prior to lodging a development application with Council.

Important Note:
All Centre-based Child Care Facilities shall comply with the relevant requirements under the State Environmental Planning Policy (Educational Establishments and Child Care Facilities) 2017 (ED SEPP) and any applicable provisions of the Child Care Planning Guideline.

The ED SEPP is available from the NSW legislation website at:
www.legislation.nsw.gov.au

The Child Care Planning Guideline is available from the NDW Planning and Environment website at:
www.planning.nsw.gov.au

8.3 Building Form and Character

Objectives:

- Ensure that Centre-based Child Care Facilities are:
  - appropriately located and designed to ensure high levels of safety, security, health and amenity for children and staff; and
  - functional through appropriate building design.
- Ensure that Centre-based Child Care Facilities within residential areas are designed to:
  - minimise the impact of Centre-based Child Care Facilities on the amenity of the existing neighbourhood by way of noise, traffic and loss of privacy; and
  - maintain the characteristics of residential neighbourhoods.

8.3.1 Locality Requirements

Design Requirements

a) Centre-based Child Care Facilities shall not be located on an allotment that:

i) is accessed from a State road (refer to Table 8.3.1 for a list of State roads in Campbelltown LGA);

ii) is within 100 metres of the intersection of a State road;

iii) is within a no through road;

iv) has vehicular access to a road where the carriageway is less than 6.5 metres in width;

v) has a building erected upon it that is constructed of materials that contain asbestos or lead paint;

vi) is adjacent to a:

- potentially hazardous industry;
- hazardous industry;
- potentially offensive industry;
- offensive industry;
- agricultural produce industries;
- livestock processing industries;
- heavy industrial storage establishments; or

Note:

Numerical Development Standards for floor space ratios, building heights and minimum subdivision are provided under the CLEP.

- waste or resource management facility.

vii) is within a 150 metre radius of a sex restricted premises; sex services premises or home occupation (sex services);

viii) presents a potential safety hazard for vehicle and pedestrian traffic, unless it can be demonstrated to Council's satisfaction that there would be no vehicular/ pedestrian conflict (refer to Figure 8.3.1);

b) Centre-based Child Care Facilities shall not be located within a basement of a building (excluding storage rooms and offices ancillary to the Centre-based Child Care Facility).

c) Centre-based Child Care Facilities shall not be permitted on a local street, unless it can be demonstrated to Council's satisfaction that:

i) the proposed Centre-based Child Care Facility will not impact negatively on the local traffic network;

ii) the proposed Centre-based Child Care Facility has adequate on site parking and manoeuvring/turning spaces; and

iii) the amenity of the surrounding properties is maintained.

d) Where a Centre-based Child Care Facility is proposed to be located in a building on land within Business zones, the Centre-based Child Care Facility (excluding storage rooms and offices) shall:

i) be directly accessible by car;

ii) not occupy more than one (1) storey; and

iii) be located no higher than the first floor to ensure the easy evacuation of children in case of emergency.

e) In accordance with Section D1.18 (Egress from early childhood centres) of the Building Code of Australia (BCA), any Centre-based Child Care Facility must be wholly contained within a building storey which provides direct egress to a road or open space area.

Note: This requirement does not apply to child care facilities where the building does notexceed more than two storeys in height and is being solely utilised as a defined (Class 9b) "early childhood

State Roads in Campbelltown LGA
1. Appin Road
2. Moore-Oxley By Pass
3. Narellan Road
4. Pembroke Road
5. Glenfield Road
6. Campbelltown Road
7. Rudd Road (Queen St to O'Sullivan Rd)
8. Minto Road (Pembroke Rd to Collins Promenade)
9. Collins Promenade (Minto Road to Harold St)
10. Harold Street (Collins Promenade to Canterbury Rd)
11. Canterbury Road (Harold St to Glenfield Rd)
12. Hume Highway 13. Menangle Road

Table 8.3.1 – A list of State roads within Campbelltown LGA.

Figure 8.3.1 – An illustration of lots that may present potential vehicular/pedestrian safety hazard.

Note:

Refer to Clause 4.1C of the CLEP to find out whether your site meets the minimum area requirements for a Centre-based Child Care Facility.

centre", in accordance with the Building Code of Australia (BCA).

8.3.2 Site Requirements

Design Requirements

a) Council may consider a proposal for a Centre-based Child Care Facility within an existing building on sites within areas zoned B3, B4 or B5 that do not necessarily meet the site width requirement.

8.3.3 Streetscape

Design Requirements

a) The design of new purpose built buildings (including facade treatments, building massing, roof design and entrance features, setbacks and landscaping) shall complement the scale of surrounding development, character and qualities of the desired streetscape.

b) Notwithstanding Clause 8.3.1 a) viii) new buildings on corner sites shall incorporate facade treatments that address both street frontages and achieve positive articulation in building design.

c) Clothes lines and air conditioning units shall be screened and not visible by the public when viewed from a public area.

d) The built form, design and layout of all outdoor play areas shall relate to the natural land form and setting to ensure that the amenity (visual and acoustic privacy) of adjoining properties is protected.

8.3.4 Fencing

Design Requirements

a) Fencing along the primary and secondary street boundaries shall:

   i) not be constructed of bonded sheet metal;

   ii) not be higher than 1.2 metres;

   iii) be articulated, incorporate landscape treatments and complement the design and finish of the development.

b) Fencing to the rear and side boundaries shall be:

   i) located behind the primary and secondary street setbacks; and

   ii) a maximum of 2.1 metres in height (excluding retaining walls).

c) Bonded sheet metal fencing shall only be permitted

where all of the following criteria have been met:

i) the fence is located behind a 1.5 metre wide landscaped buffer; and

ii) the fence is located behind the building line of all street frontages.

8.3.5 Visual and Acoustic Privacy

Design Requirements

a) An acoustic report prepared by a suitably qualified person shall be submitted with all Centre-based Child Care Facility development applications demonstrating :

i) that the noise levels generated from the Centre-based Child Care Facility, when measured over a 15 minute period, does not exceed the background noise by more than 5 dBA;

ii) that the noise levels comply with the requirement of the Protection of The Environment Operations Act 1997; and

iii) illustrating ways to minimise the impacts of noise on adjoining properties.

b) Direct views to and from neighbouring and surrounding properties shall be minimised through:

i) appropriate building design and location of outdoor play areas; and

ii) the use of fencing and landscaping buffers.

Figure 8.3.2 – An example of a Centre-based Child Care Facility located within a residential area that is of appropriate scale and character.

8.3.6 Waste Management

Design Requirements

a) A waste management plan shall be submitted for all Centre-based Child Care Facility developments including information w9ith regard to the storage and disposal of used nappies, general waste and recycling.

b) The development shall make provision for an enclosed onsite waste and recycling storage area that provides adequate space to accommodate the size and number of bins proposed, and volume of waste and recycling generated at the centre.

c) Waste storage, collection areas and service/

delivery areas shall be screened from public view and located to minimise adverse impacts on adjoining properties.

d) The waste collection area shall be located and designed to minimise safety hazards for any person within the site or within the adjacent private/public areas.

e) The waste storage area shall:

i) be no more than 30 metres from the point of collection;

ii) contain a hose connection;

iii) have an impervious floor that is connected to the sewer;

iv) be adequately ventilated;

v) incorporate appropriate design and construction materials (including colours and finishes) which complement the development;

vi) be appropriately screened from public view by a visual barrier of at least 1.5m high;

vii) provide an opening sufficient to allow egress of the maximum sized bin to be used at the development; and

viii) Be positioned to ensure that the path for wheeling bins between the waste storage area(s) and the collection point is free of steps and kerbs and has a maximum gradient of 1V:8H.

f) All premises shall produce evidence of a collection contract with a licensed waste and recycling collection contractor, if requested by Council.

g) The development must be designed in such a way that an Australian Standard heavy rigid vehicle can provide waste collection services to the development. If on-site servicing is required, the site plan and layout shall consider how heavy rigid vehicles can access and move around the development, and make appropriate provisions for this to occur safely.

h) All waste and recycling generated from the business is to be kept within an appropriate storage receptacle on the premises. Waste is not to be stored or placed outside of a waste storage receptacle or in such a manner that it will become a litter, odour or health nuisance.

8.3.7 Additional Requirements - Residential Zones

Design Requirements

a) A maximum of 50 children shall occupy a Centre-based Child Care Facility on any single allotment.

b) The Centre-based Child Care Facility shall be wholly located on the ground floor of the building (excluding offices and storage rooms).

c) Centre-based Child Care Facilities shall be setback a minimum of:

   i) 5.5 metres from the primary street boundary;

   ii) 5 metres from the rear boundary;

   iii) 3.0 metres from the side boundary; and

   iv) 3 metres from any secondary street boundary.

d) Where a proposal comprises a Centre-based Child Care Facility and a residential dwelling, the proposal shall meet the following:

   – an open space area shall be provided for the exclusive use of the residential dwelling, and shall comply with the section 3.6.1.5 of Part 3, Volume 1 of the Plan;

   – the dwelling shall be separated from the Centre-based Child Care Facility;

   – separate kitchen, toilet and laundry facilities shall be provided for the exclusive use of the Centre-based Child Care Facility.

8.3.8 Additional Requirements - Rural and Environmental Protection Zones

Design Requirements

a) A maximum of 50 children shall occupy a Centre-based Child Care Facility on any single allotment.

b) The Centre-based Child Care Facility shall be wholly located on the ground floor of the building.

c) Centre-based Child Care Facilities shall be setback a minimum of:

   i) 20 metres from the primary street boundary;

   ii) 10 metres from the rear boundary;

   iii) 10 metres from the side boundary; and

   iv) 20 metres from any secondary street boundary.

8.4
Car Parking and Access

8.4 Car Parking and Access

Objectives:

- Provide adequate on-site car parking for staff and visitors that is convenient, secure and safe having regard to the traffic generated by the development.
- Ensure efficient and safe vehicular and pedestrian movements to all areas and aspects of a child care development.
- Ensure that the location and design of driveways and parking areas, waste access and collection areas are practical, easily maintained, convenient, safe and suitably landscaped.
- Provide safe convenient access for vehicles and pedestrians whilst minimising conflict between them.

8.4.1 Car Parking and Access

Design Requirements

a) Car parking areas shall be setback a minimum of 3 metres from the front boundary and any secondary boundary.

b) A minimum of one (1) on site car parking space shall be provided for every four (4) children approved to attend the Centre-based Child Care Facility.

c) Off street parking and loading shall be designed in accordance with *Australian Standards 2890.1 and 2* (*as amended*), except as otherwise provided by this Plan.

d) No required car parking space shall be designed in a stacked configuration.

e) Parking spaces that are stacked will not be considered for the purpose of parking calculations.

f) Pedestrian access shall be separated from vehicular access with clearly defined paths to and from the building.

g) Where a child care centre site is proposed to be situated on a main collector road, pedestrian safety measures on adjoining roads (e.g. pedestrian crossings and refuges etc.) may be required to be installed at no cost to Council.

h) The vehicular and pedestrian access points to/from the centre must be adequately lit

Figure 8.4.1 – Stacked configuration of car parking spaces as shown in this photos will not be included in the parking calculations.

(during operating hours) and appropriately signposted.

i) Each site shall have a maximum of one ingress and one egress driveway.

j) The minimum width of a driveway shall be:

   i) three (3) metres for one way traffic movement; and

   ii) six (6) metres for two way traffic movement.

   iii) Driveways shall be located a minimum distance of six (6) metres from the tangent point of any unsignalled intersection.

Note: In circumstances where an intersection is controlled by lights, a roundabout or the like, applicants are requested to contact Council for specific requirements, as the location of the driveway may vary.

k) Sufficient space shall be provided on site so that no vehicle shall be required to make more than a three-point turn to exit the site in a forward direction. Significant reverse movements for vehicles within child care centres shall not be permitted.

l) The car parking area shall be suitably line marked and delineated by appropriate signage and pavement line marking. This shall include the line-marking and signposting of disabled car parking spaces, staff parking arrangements, emergency and service vehicle parking bays.

m) Development applications Centre-based Child Care Facilities catering for 20 or more children shall include a Traffic Impact Statement, prepared by a suitably qualified person addressing the following criteria:

   i) the existing traffic environment;

   ii) anticipated traffic generation from the proposed development;

   iii) the potential cumulative impact on the locality;

   iv) the need for local traffic improvements in the locality;

   v) traffic egress/ingress; and

vi) sight distance and other relevant safety issues including vehicular/pedestrian movements.

n) Any fencing on site shall be designed to be of appropriate height and shall not obstruct sight distances between pedestrians and vehicles.

8.4.2 Access for People with Disabilities

Design Requirements

a) Centre-based Child Care Facilities shall comply with the minimum access requirements contained within the BCA, the Disability (Access to Premises — Buildings) Standards 2010 and *Australian Standard 1428 - Design for Access and Mobility* (as amended).

8.4.3 Emergency Evacuation

Design Requirements

a) Development applications for Centre-based Child Care Facilities catering for 20 or more children shall include an Emergency Evacuation Plan prepared by a suitably qualified person in accordance with *Australian Standard 3745 Emergency Control Organization and Procedures for Buildings, Structures and Workplaces* (as amended), addressing:

i) the mobility of children and how this is to be accommodated during an evacuation;

ii) the location of a safe congregation area, away from the evacuated building, busy roads, other hazards and the evacuation points of other residents or tenants within the building or surrounding buildings;

iii) where the Centre-based Child Care Facility is part of a larger building or complex, that the emergency evacuation plan for the Centre-based Child Care Facility is complementary and consistent with other emergency evacuation plans for the complex; and

iv) the supervision of children during an evacuation and at the safe congregation area, giving regard to the capacity of the Centre-based Child Care Facility and its approved child:staff ratios.

8.5 Landscaping

Objectives:

- To encourage the planting of native and low water consumption plants and trees.
- To enhance the existing streetscape and promote a scale and density of planting that softens the visual impact of buildings, while maintaining opportunities for passive surveillance.
- Ensure that to minimise the risk of personal injuries the appropriate species of plants are selected for the landscaping of Centre-based Child Care Facilities.

Design Requirements

a) Landscaping shall be provided to a minimum of a:

   i) 3 metre wide strip along the primary and secondary street frontage (other than vehicle driveways); and

   ii) 1.5 metre wide strip along the full length of side and rear setbacks.

b) Native mature trees on site shall be retained.

c) Development applications for Centre-based Child Care Facilities shall include a Landscape Plan and report, prepared by a suitably qualified person addressing the following:

   i) species, location and mature height of proposed planting;

   ii) location of play equipment;

   iii) separation from car parking spaces and driveway areas;

   iv) fencing height and materials; and

   v) surfaces (sand, grass or the like).

d) All existing vegetation on the site and on adjoining sites shall be assessed to ensure that the plants:

   i) are not toxic or dangerous (refer to Appendix 7 for a list of Unsuitable Plant Species); and

   ii) do not impose a safety hazard such

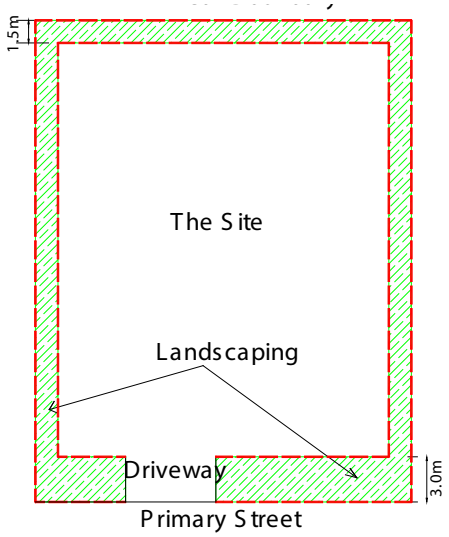

Figure 8.5.1 - Illustration of the minimum required area to be landscaped.

Figure 8.5.2 - Landscaping used for shading and screening.

Note:

Refer to Section 2.5 Landscaping of Part 2 of Volume 1 of the Plan for additional requirements on Landscaping.

as personal injury from falling branches and seeds, poisoning and/ or choking.

8.6 Play Areas

Objectives:

- Ensure the provision of sufficient play areas for the use of children.
- Ensure that play areas are safe, secure, functional and of high amenity.

Design Requirements

a) Centre-based Child Care Facility play areas shall:

   i) comply with the *Children (Education and Care Services) Supplementary Provisions Regulation 2004 (as amended)*;

   ii) be appropriately designed and located to minimise noise impacts to adjoining properties; and

   iii) be naturally lit and ventilated.

b) The siting of outdoor play areas shall:

   i) be located on a predominantly flat gradient;

   ii) allow direct supervision from within the centre; and

   iii) provide adequate fencing.

c) Where a Centre-based Child Care Facility is proposed to be located on the first floor of a building (in the case of a Centre-based Child Care Facility proposed within a comprehensive centre zone), the designated play areas shall:

   i) be provided on the same level and directly accessible from the Centre-based Child Care Facility;

   ii) have a minimum ceiling height of 2.7 metres; and

   iii) be physically separated from the indoor space area.

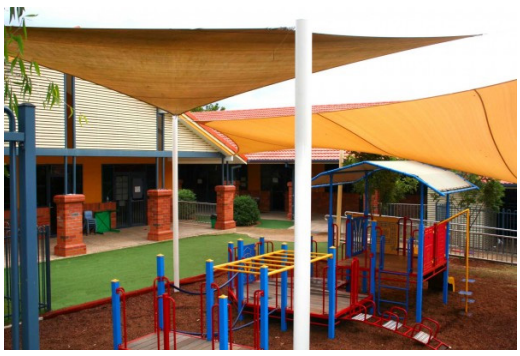

Figure 8.6.1- Example of a well designed, shaded outdoor play area.

8.7 Advertising Signs

Objective:

- Ensure that Centre-based Child Care Facilities use appropriate advertising signs.

Design Requirements

a) Despite any other provision of this Plan, a Centre-based Child Care Facility shall have a limit of one (1) business identification sign in accordance with the following:

   i) not an illuminated sign;

   ii) the sign shall be located at the building or mounted within the front landscaped area no higher than 1 metre from the natural ground level of the landscaped area;

   iii) the sign shall only include the name of the centre and business related information such as opening hours, type of Centre-based Child Care Facility and the owners of the centre and any other accreditation relevant to the Centre-based Child Care Facility.

   iv) the sign shall not exceed 1.0 square metres in area.

b) An advanced warning sign that is approved by Council shall be provided on each road approach, warning motorists that they are approaching a child care facility. The sign shall be provided and erected by Council at the applicant's expense.

Note: Plans for proposed advanced warning signs will be submitted to Council's Traffic Committee.

Figure 8.7.1 - Examples of acceptable signs for Centre-based Child Care Facilities.

Part 10 Places of Public Worship

10.1 Application

This part of the Plan sets out controls relating to the development of places of public worship (including extensions to existing development) in the City of Campbelltown.

10.2 General Design Requirements

Objectives:

- Ensure that places of public worship are appropriately located and designed to minimise any adverse effects (high noise levels, traffic impacts, overshadowing, privacy and access) on the amenity of surrounding land uses.
- Ensure that the scale, bulk and height of places of public worship are compatible with the predominant character of surrounding developments.

10.2.1 Locality Requirements

a) Development applications for a newly proposed place of public worship or additions and alterations to an existing place of public worship shall be accompanied by a report addressing the suitability of the site, street, neighbourhood and locality for the scale and intensity of the proposed development.

b) Places of public worship shall not be located within a 150 metre radius (as measured from the point of the main entry of the proposed place of public worship) of a brothel, or any sex-services premises or restricted premises.

c) Places of public worship on urban land shall be located a minimum of 250 metres (as measured from the point of the main entry of the proposed place of public worship) of any other approved place of public worship development, in order to minimise potential traffic generation, noise or amenity impacts upon the surrounding locality.

d) Newly proposed places of public worship located on land within a residential

Note:

Under the CLEP, places of public worships are permissible within the following zones:

- RU5 Village;
- R2 Low Density Residential;
- R3 Medium Density Residential;
- R4 High Density Residential;
- B2 Local Centre;
- B3 Commercial Core;
- B4 Mixed Use;
- B5 Business Development;
- IN1General Industrial;
- IN2 Light Industrial;and
- E3 Environmental Management.

Note:
Contact Council's Customer Service Centre (02 4645 4000) to find out if the proposed public worship place is within close proximity to a sex service premise.

zone shall have a maximum capacity of 100 people at any one time.

10.2.2 Height

a) Spires and similar structures shall only be permitted if in Council's opinion the proposed structure:

   i) is of appropriate height, bulk and scale; and

   ii) does not result in overshadowing of private open space and living rooms of adjacent residential development or the residential component of a mixed use development.

10.2.3 Acoustic and Privacy Amenity

a) An acoustic report prepared by a suitably qualified person shall be submitted with all place of public worship development applications demonstrating :

   i) that the noise levels generated from the place of public worship, when measured over a 15 minute period, does not exceed the background noise by more than 5 dBA at the property boundary;

   ii) that the noise levels comply with the requirement of the Protection of The Environment Operations Act 1997; and

   iii) ways to minimise the impacts of noise on adjoining properties.

b) Despite Clause 10.3.3.a) above, an acoustic report for proposed places of public worship within industrial zones shall only be required where the proposal is located within 150 metres from land where residential development is a permissible land use.

Note: Choice of fencing material should be considered and addressed as part of the acoustic report.

c) On-site noise generating sources including, but not limited to:

i) plant rooms and equipment;

ii) power supply generators;

iii) air conditioning units;

iv) pool pumps; and

v) recreation areas;

shall be designed and located to ensure that the noise levels generated by such facilities do not exceed 5dBa above background levels at the property boundary.

d) The use of external amplified sound including public address systems, amplified bells and amplified calls for prayers by places of public worship is prohibited.

e) Direct views to and from neighbouring and surrounding properties shall be minimised by means including:

i) appropriate building design and location of gathering areas; and

ii) the use of appropriate screening, fencing and landscaping.

10.2.4 Streetscape

Design Requirements

a) The design of new purpose built buildings (including facade treatments, building massing, roof design and entrance features, setbacks and landscaping) shall complement the scale of surrounding development, character and qualities of the desired streetscape.

b) New buildings on corner sites shall incorporate facade treatments that address both street frontages and achieve positive articulation in building design.

c) Air conditioning units and water tanks shall be screened and not visible when viewed from a public area.

d) Off street car parking areas shall be screened by means of landscaping.

10.2.5 Fencing

Design Requirements

a) Fencing along the primary and secondary street boundaries shall:

   i) not be constructed of bonded sheet metal;

   ii) not be higher than 1.2 metres;

   iii) be articulated, incorporate landscape treatments and complement the design and finish of the development.

b) Fencing to the rear and side boundaries shall:

   i) be located behind the primary and secondary street setbacks; and

   ii) be a maximum of 2.1 metres in height (excluding retaining walls).

c) Despite Clause 10.2.5 b) above, fencing, where applicable, shall be designed to ensure that the privacy of adjacent residential developments is maintained.

d) Bonded sheet metal fencing shall only be permitted where all of the following criteria have been met:

   i) the fence is located behind a 1.5 metre deep landscaped buffer; and

   ii) the fence is located behind the building line of all street frontages.

10.2.6 Places of public worship on land located within residential zones

a) Newly proposed places of public worship (whether a newly proposed building is proposed to be built or a change of use of an existing building) located on land within residential zones shall not be located on a site that:

   i) has an area less than 1,500 sqm;

   ii) is within a no through road;

iii) has principal vehicular access to a road where the carriageway is less than 6.5 metres; and

iv) has a width less than 20 metres (measured at the front building line).

b) For newly proposed places of public worship within residential zones, the Indoor assembly area shall have a maximum total floor area of 160sqm. For the purpose of this clause, assembly area means the total floor space area of all buildings on the site excluding the areas of offices, library, kitchens, toilets, changing rooms and residential accommodation.

c) Any area that is immediately adjacent to the assembly area and not fully separated from the assembly area by walls, shall be included in the calculations of the assembly area including open access corridors and areas between aisles.

d) Buildings and structures comprising places of public worship shall be setback a minimum of:

i) 3 metres from any side boundary;

ii) 5.5 metres from the primary street boundary; and

iii) 10 metres from the rear boundary; and

iv) 5 metres from the secondary street boundary.

e) Places of public worship shall not result in loss of solar access that would exceed the minimum requirements specified in clause 3.6 Solar Access.

f) Places of public worship shall have appropriate regard to the impact on solar access to useable private open space, windows of living areas, solar collectors and clothes drying areas of adjoining and nearby residential development.

g) The operation hours of newly proposed places of public worship within

residential zones shall be determined on individual merit.

10.2.7 Places of public worship located on land within business zones

a) Places of public worship located on land within business zones shall comply with the setbacks and building envelope requirements specified in Part 6 Commercial Development of this Plan.

b) Places of public worship shall not result in loss of solar access that exceeds the minimum requirements specified in *Part 5 Residential Apartment Buildings and Mixed-Use Development* under *Clause 5.4.5 Solar Access* of the Plan.

Note:
Refer to Clause 4.1D *Minimum lot sizes for certain land uses in certain environment protection zones* of the CLEP.

10.2.8 Places of public worship located on land within Industrial zones

a) Places of public worship located on land within industrial zones shall comply with the setbacks and building envelope requirements specified in Part 7 Industrial Development of this Plan.

10.2.9 Places of public worship on land zoned for rural or environmental protection purposes.

a) Despite any other provisions of this Part, building and structures comprising places of public worship located on land zoned for rural or environmental protection purposes shall be set back a minimum of:

   i) 20 metres from the primary street boundary;

   ii) 10 metres from the rear boundary;

   iii) 10 metres from a side boundary; and

   iv) 20 metres from any secondary street boundary.

b) Places of public worship shall only be permitted where it is serviced by a sealed road.

10.3 Car Parking and Access

Objectives:

- Ensure efficient and safe vehicular and pedestrian movements to and from the place of public worship.
- Ensure that the location and design of driveways and parking areas, waste access and collection areas are practical, easily maintained, convenient, safe and suitably landscaped.
- Ensure that the surrounding street network and intersections continue to operate safely and effectively.
- Ensure that sufficient car parking spaces are provided on site.
- Minimise parking arising from places of public worship on local streets.

10.3.1 Car Parking

Design Requirements

a) Car parking areas shall be setback a minimum of 3 metres from the front boundary and any secondary boundary.

b) A minimum of one (1) car parking space shall be provided for every 3.5 site users.

c) Off street parking and loading shall be designed in accordance with *Australian Standards 2890* (*as amended*), except as otherwise provided by this Plan.

d) No required car parking space shall be designed in a stacked configuration.

e) No required car parking space or emergency/overflow space shall be located within Effluent Disposal Area.

f) Pedestrian access shall be separated from vehicular access and car parking areas with clearly defined paths to and from the building.

g) Each place of public worship shall have a maximum of one ingress and one egress driveway.

h) The minimum width of a driveway serving a place of public worship shall be:

   i) 3 metres for one way traffic

movement; and

ii) 6 metres for two way traffic movement.

i) Driveways shall :

i) be located a minimum distance of 6 metres from the tangent point of any unsignalled intersection; and

ii) be sealed.

Note: In circumstances where an intersection is controlled by lights, a roundabout or the like, applicants are requested to contact Council for specific requirements, as the location of the driveway may vary.

j) Sufficient space shall be provided on site so that no vehicle shall be required to make more than a three-point turn to exit the site in a forward direction.

k) All car parking spaces shall be line marked and delineated with appropriate signage and pavement marking.

l) Development applications for places of public worship shall include a Traffic Impact Statement, prepared by a suitably qualified person addressing the following criteria:

i) the existing traffic environment;

ii) anticipated traffic generation from the proposed development;

iii) identification of the celebrations, festivals, and the main day of the week for gathering/praying which are likely to attract larger than normal attendance at the premises, the attendance numbers associated with such events and measures to mitigate and manage their impacts upon the traffic movements within the locality;

iv) the potential cumulative impact on the locality;

v) the need for local traffic improvements in the locality;

vi) traffic egress/ingress; and

vii) sight distance and other relevant safety issues including vehicular/ pedestrian movements.

10.3.2 Access for People with Disabilities

Design Requirements

a) Places of public worship shall comply with the minimum access requirements contained within the BCA and *Australian Standard 1428 - Design for Access and Mobility* (as amended).

10.4 Landscaping

10.4 Landscaping

Objectives:

- To encourage the planting of native and low water consumption plants and trees.
- To enhance the existing streetscape and promote a scale and density of planting that softens the visual impact of buildings, while maintaining opportunities for passive surveillance.
- To increase the amenity of car parking areas.

Design Requirements

a) Landscaping shall be provided to a minimum of a:

   i) 3 metre deep strip along the primary and secondary street frontage (other than vehicle driveways); and

   ii) 1.5 metre deep strip along the full width of side and rear setbacks.

b) Where possible, existing on-site mature vegetation shall be retained and incorporated into the development.

c) Development applications for places of public worship shall include a Landscape Plan and report, prepared by a suitably qualified person addressing the following:

   i) species, location, pot size and mature height of proposed planting;

   ii) separation from car parking spaces and driveway areas;

   iii) fencing height and material; and

   iv) enhance the visual amenity of car parking areas.

d) All new landscaping associated with development for places of public worship shall maximise the incorporation of endemic species.

Note: Refer to Section 2.5 Landscaping of Part 2 of Volume 1 of the Plan for additional requirements on Landscaping.

10.5 Waste Management

Objectives:

- Ensure that appropriate facilities are provided for the storage and collection of waste generated by places of public worship.

Design Requirements

a) A waste minimisation management plan shall be submitted with all development applications for places of public worship.

b) The waste minimisation management plan shall include proposals for waste management on special events dates.

c) Waste storage, collection areas and service/delivery areas shall be screened from public view and located to minimise adverse impacts on adjoining properties.

d) The waste collection area shall be located and designed to minimise amenity impacts and safety hazards for any person within the site or within adjacent private/public areas.

Part 11
Vegetation and Wildlife Management

11.1 Application

This Part of the Plan sets out controls relating to:

1. The management of native vegetation and wildlife habitat (native flora and native fauna);
2. The protection/preservation of hollow-bearing trees; and
3. Permits and development applications for vegetation management.

This part shall be read in conjunction with (but not limited to) Clause 5.9 Preservation of trees and vegetation (Clause 5.9) of the CLEP. Trees and other vegetation are defined under Section 1.4 Dictionary of Volume 1 of the Plan and included in the notes below.

Note:

Other Vegetation means any plant life not defined by this Part as a tree and includes any sapling, shrub, scrub, understorey plants, ground cover (being any type of herbaceous vegetation) and plants occurring in a wetland that:

- Provides habitat or likely habitat for threatened species, populations and endangered ecological communities as defined within the Threatened Species Conservation Act; or
- Is located within a riparian zone or within 40 metres of the top bank of a creek, river, watercourse, wetland, stream or other aquatic habitat; and
- Is located on land owned by Council or under its care, control and management; and
- Forms part of native vegetation.

Note:

Tree means a perennial plant with at least one self supporting stem which,

i) has a height of more than three (3) metres, or

ii) has an outside circumference of at least 500mm at ground level; or

iii) has a branch and foliage crown spread of at least 4 metres.

Note:

For definitions of terms used in this part, refer to Section 1.4 Dictionary of Part 1, Volume 1 of the Plan and the Dictionary under the CLEP.

11.1 Management of Native Vegetation & Wildlife Habitat

Note:

Native vegetation (as defined under the CLEP) has the same meaning as in the Native Vegetation Act 2003.

Note. The term is defined as follows:

Meaning of "native vegetation"

(1) Native vegetation means any of the following types of indigenous vegetation:

(a) trees (including any sapling or shrub, or any scrub);

(b) understorey plants,

(c) groundcover (being any type of herbaceous vegetation),

(d) plants occurring in a wetland.

(2) Vegetation is indigenous if it is of a species of vegetation, or if it comprises species of vegetation, that existed in the State before European settlement.

(3) Native vegetation does not include any mangroves, seagrasses or any other type of marine vegetation to which section 205 of the Fisheries Management Act 1994 applies.

Figure 11.1.1 - Native fauna and native flora- Campbelltown LGA.

11.2 Management of Native Vegetation and Wildlife Habitat

Objectives:

- Protect and conserve the City's biodiversity through the retention of native vegetation.
- Maintain, enhance and/or establish corridors, which enable existing plant and animal communities to survive and range in their natural habitat.
- Protect habitat resources including hollow-bearing trees and hollow logs within Campbelltown LGA.
- Provide appropriate measures to compensate for the loss of hollow-bearing trees within the LGA.

11.2.1 Management of Native Vegetation and Wildlife Habitat

a) For sites containing native vegetation and/or fauna habitat:

i) the development shall be sited, designed and managed to avoid any negative impact on biodiversity where possible;

ii) where an impact on biodiversity cannot be avoided and no reasonable alternative is available the proposed development shall be sited, designed, constructed and managed in a manner that minimises the impact on native biodiversity and maintains habitat connectivity as much as practicable;

iii) any impact on biodiversity shall be essential for the development and limited to the extent necessary to facilitate the safe and orderly use of the land for the purpose of the development;

iv) arrangements must be put into place to ensure that the biodiversity values on site will be proactively managed to mitigate the impacts.

v) in circumstances where impacts on biodiversity cannot be avoided,

Figure 11.2.1 - The protection of native animals is essential for maintaining natural ecosystems within Campbelltown LGA.

Note:

Habitat resources means specific ecosystem elements that provide valuable foraging substrates and shelter sites that are important to the survival of a range of species. Habitat resources are considered to be a limiting factor as they are in short supply across the landscape. Examples include hollow-bearing trees, hollow logs and bush rock.

11.2 Management of Native Vegetation & Wildlife Habitat

a Biodiversity Statement shall be prepared and submitted with the DA to demonstrate how Clause 11.2.1 a) ii) and iv) above have been addressed.

Note: For requirements relating to a Biodiversity Statement Refer to Appendix 1. (Note: This statement can be incorporated into a Native Flora and Native Fauna Assessment Report).

b) A Native Flora and Native Fauna Assessment Report prepared in accordance with the Office of Environment and Heritage's Threatened Species Survey and Assessment Guidelines and Field Survey Methods is required to be lodged with the development application where one or more of the following criteria is met:

i) the site contains:

– native vegetation; and

– sensitive environmental areas likely to contain important habitat resources for native fauna (although these may not be vegetated) such as riparian areas, rivers, creeks, wetlands or swamps, rocky outcrops, caves and cliffs;

ii) there are proposed direct or indirect impacts on native vegetation or other native fauna habitats;

iii) there is a potential impact on threatened species, populations ecological communities or their habitats either directly or indirectly.

Note: Office of Environment and Heritage's *Threatened Species Survey and Assessment Guidelines and Field Survey Methods are available on the Office of Environment and Heritage's website.*

Note: Council may vary the survey and

Figure 11.2.2 - The conservation of native vegetation is a key to ensuring the protection of biodiversity.

Note:

Refer to Clause 7.5 of the CLEP for requirements relating to bush rock.

reporting requirements outlined under Clause 11.2.1 b) in circumstances where sufficient information and justification are provided.

c) As part of the Native Flora and Native Fauna Assessment, an Assessment of Significance shall be undertaken for each threatened species, population and ecological community which is likely to be directly or indirectly impacted, by the proposal. All Assessments of Significance must be undertaken in accordance with the *Threatened Species Guidelines – The Assessment of Significance* (DECC 2007). These guidelines are available on the Office of Environment and Heritage's website.

d) Koala Habitat assessments undertaken as part of 11.2.1 b) above shall meet the requirements of SEPP 44 and Council's Guidelines for Koala Habitat Assessments (Refer to Appendix 4 of Volume 1 of the Plan).

11.2.2 Protection of Hollow-bearing Trees and Hollow Logs

a) All hollow-bearing trees shall be retained, where practical.

b) Notwithstanding Section 11.3.1 Exemptions of this Part, in certain circumstances, Council may consent to the removal of a hollow- bearing tree providing that:

i) The applicant can demonstrate to the satisfaction of Council that the development cannot be sited in a manner that would enable the hollow bearing tree to be retained. (Note: reduced development yields will not be considered as satisfactory reason for the removal of hollow bearing trees).

ii) Prior to granting consent for the removal of a hollow bearing tree the tree should be surveyed and a strategy for removal (timing

Note:

A Native Flora and Native Fauna Assessment Report may be required for the removal of 5 trees or more whether the proposal is lodged to Council under Part 11 Vegetation and Wildlife Management or as part of a DA involving construction works.

Note:

Hollow-bearing trees means trees where cavities have formed in the trunk or branches of a live or dead tree. Such hollows are usually more characteristic of older, mature to over-mature trees but may form in earlier growth stages depending on tree species. Hollow-bearing trees provide wildlife with foraging, shelter, roosting and nesting habitat and some species are considered to be hollow-dependent in that they require hollows as a key component of their habitat either on a daily or seasonal basis. The loss of hollow-bearing trees is listed as a key threatening process under state and commonwealth threatened species legislation.

Hollow logs means terrestrial woody habitat that includes the accumulation of senescent trees, hollow-forming tree limbs and branches on the ground. Hollow logs provide wildlife with foraging, shelter, roosting and nesting habitat, and some species require the presence of woody habitat as a key limiting resource to their survival in an area.

and methodology) that minimises impacts on native wildlife must be prepared and submitted to Council for approval.

c) Where Council approves the removal of a hollow-bearing tree:

i) the removal of the hollow bearing trees shall be offset by the installation of nesting boxes. The size of the nest box is to reflect the size and dimensions of the hollow removed. Alternatively, the tree hollow could be appropriately mounted on one of the retained trees in a manner where it will not pose a risk to life or property;

ii) replacement ratios of nest boxes shall be at a minimum of 2:1 (nest boxes: hollows lost);and

iii) all nesting boxes and hollows shall be mounted at least 5 metres above the ground.

Note:

Hollow bearing trees are elements of forest structure that are essential for the conservation of hollow dependent fauna.

Figure 11.2.3 - Examples of hollow-bearing trees.

Note:

Many species require abundant logs and fallen timber as important components of their foraging and breeding habitat. Examples of these include threatened species such as the Scarlet Robin, and more common small mammal species such as the Antechinus.

Figure 11.2.4 - Examples of an Antechinus and a Scarlet Robin.

11.3 Permits and Development Applications for Vegetation Management

Objectives:

- Preserve the biodiversity, ecology, microclimate and landscape amenity of the City of Campbelltown through the conservation of trees and other vegetation.
- Minimise the risk of injury to people and damage to property from trees through a formal assessment process.
- Provide a consistent framework to assess applications for the removal or pruning of trees and other vegetation and make clear the assessment criteria which Council will consider in determining applications for vegetation management works.
- Ensure that trees and other vegetation of high ecological significance and habitat value are preserved across the LGA.
- To ensure sufficient compensatory replanting or offsets are specified and undertaken as a component of the approval process for tree and vegetation removal permits.

This section declares vegetation to be protected under Part 3 of State Environmental Planning Policy (Vegetation in Non-Rural Areas) 2017 (the Vegetation SEPP).

This section should be read in conjunction with Council's Guide to Tree

Clearing on Private Land and Guide to Tree Clearing on Public Land.

11.3.1 Introduction

a) **The provisions within this Section of the DCP apply to clearing works within the Campbelltown LGA unless the works:**

i) Are permitted under another part of the EP&A Act or an Environmental Planning Instrument or Act, or

ii) Require development consent because a permit cannot be issued under the Vegetation.

This section should be read in conjunction with Council's Guide to Tree Clearing on Private Land and Guide to Tree Clearing on Public Land.

11.3 Permits for Vegetation Management

11.3.2 Interpretation

a) **In this section words have the following meanings:**

Clear (This term is defined in the Vegetation SEPP.)	Means to: a) cut down, fell, uproot, kill, poison, ringbark, burn or otherwis destroy the vegetation, or b) lop or otherwise remove a substantial part of the vegetation
Community Land	Has the same meaning as in the Local Government Act, 1993.
Declared Tree	Means a tree that has been declared under section 11.3.4 of this plan.
Declared Vegetation	Means vegetation that has been declared under section 11.3.3 of this plan.
Native Vegetation	Means any vegetation that is native to New South Wales.
Tree	Means a plant that meets one or more of the following criteria: a) Has a height greater than 3m, b) Has a circumference greater than 0.5m when c) measured 1m from ground level, or d) Has a branch spread greater than 4m.
Vegetation	Means any plant and includes a tree and includes plants that are dead but does not include marine plants.
Vegetation SEPP	Means State Environmental Planning Policy (Vegetation in Non-Rural Areas) 2017.

11.3.3 Declared Vegetation

The following vegetation is declared vegetation under this DCP section:

a) Vegetation that is wholly or partially located within the mapped extent of a heritage item or heritage conservation area in any environmental planning instrument;

b) Vegetation that form part of an Aboriginal object or is within an Aboriginal place of heritage significance;

c) Trees that are listed in any Significant Tree Register of Council;

d) Trees that are required to be retained or planted as a condition of a development consent issued on or after 1 January 2010;

e) Vegetation that is core or potential koala habitat identified under Council's Koala Plan of Management;

f) Vegetation that is or contains threatened flora species;

g) Vegetation that is part of an endangered ecological community;

h) Vegetation that is occupied by native fauna;

i) Hollow bearing trees;and

j) Vegetation on land with a slope greater than 20%.

Note:

Under State Environmental Planning Policy (Exempt and Complying Development Codes), a protected tree means a tree that requires a separate permit or development consent for pruning or removal, but does not include a tree that may be removed without development consent under (that SEPP).

Accordingly, declared vegetation and declared trees under this DCP are protected trees under that SEPP.

Note:

Clause 7 of the Vegetation SEPP provides that "a person must not clear vegetaion in any nonrural area of the State (including Campbelltown) to which Part 3 applies without the authority conferred by a permit granted by the Council under that Part."

11.3 Permits Vegetation Management

11.3.4 Declared Trees

All trees that are not declared vegetation are declared trees under this DCP section in accordance with Part 3 of the Vegetation SEPP. However, a tree is not a declared tree if it is wholly or partially within the minimum trimming clearances of any overhead power line as identified by the applicable network operator(s) under the Electricity Supply Act, 1995.

11.3.5 Declared Vegetation Exemptions

A vegetation permit is not required for clearing that is:

a) in accordance with a development consent;

b) for the reasonable maintenance of existing landscaped areas (eg hedge trimming) excluding the removal of trees,or

c) undertaken by, or at the direction of,an emergency services agency as part of their functions under the State Emergency and Rescue Management Act 1989 or any regulation or plan made under that Act.

d) undertaken by or on behalf of Council in realtion to vegetation that is wholly or partially on community land.

11.3.6 Declared Tree Exemptions

A tree permit is not required for clearing that is:

a) in accordance with a development consent;

b) for the reasonable maintenance of existing landscaped areas (eg hedge trimming) excluding the removal of trees,or

c) undertaken by, or at the direction of,an emergency services agency as part of their functions under the State Emergency and Rescue Management Act

Note:

Under the Vegetation SEPP a permit is not required in the following circumstances:

1) An authority to clear vegetation is not required under this Policy if it is clearing of a kind that is authorised under section 600 of the Local Land Services Act 2013 (Clearing authorised under other legislation) or under Part 5B (Private native forestry) of that Act. This subclause does not apply to clearing merely because it is a part of or ancillary to the carrying out of exempt development.

2) An authority is not require under this Policy for the removal of vegetation that the council or Native Vegetation Panel is satisfied is dying or dead and is not required as the habitat of native animals.

3) An authority is not required under this Policy for the removal of vegetation that the council is satisfied is a risk to human life or property.

Note:

The Vegetation SEPP requires that a permit be obtained from the Native Vegetation Panel for certain ecologically signifificant vegetation. The exemptions in this DCP do not apply in these cases.

Note:

Council has internal procedures to ensure that the objectives of this DCP section are acheived on community land.

1989 or any regulation or plan made under that Act.

d) undertaken by or on behalf of Council in realtion to trees that is wholly or partially on community land;

e) Clearing of any of the species listed on Council's Exempt Species List subject to the following conditions:

   i) Council being provided with a report from a suitably qualifiified arborist identifying the species of the tree(s) at least fifive business days prior to its removal, and

   ii) The clearing does not disturb the soil profifile and leaves roots intact in the ground.

f) Pruning a tree if:

   i) For trees and shrubs greater than 5m in height:

   – Pruning is undertaken by a suitably qualifiified arborist in accordance with Australian Standard AS4373-2007 Pruning of amenity trees and no more than 10 percent of the canopy cover is pruned annually, and

   – The pruning specifification prepared under Australian Standard AS4373-2007 is held by the landholder for a period of two years, or

   ii) For pruning of individual branches from any other tree less than 5m in height that overhangs a dwelling, formal driveway or path, where:

   – The pruning is to remove the overhanging branches,

   – The branches removed are less than 100mm in diameter at the fifinal cut, and

   – The fifinal cut is at branch collar or appropriate growth point.

f) Clearing a tree that is within three (3) metres of a

   i) building that is Class 1 to 9 under the Building Code of Australia. The distance

is measured from the foundation wall of the building to the centre of thetrunk of the tree.

11.3.7 Tree Permits

a) Council may issue a tree permit under this clause. A tree permit may authorise the clearing of up to 4 declared trees. A tree permit may not be considered or issued if another tree permit has approved the removal of one or more trees on the subject lot in the preceding 2 years. For the avoidance of doubt, this provision prevents the approval of more than one tree permit concurrently.

Note: This provision is intended to limit the total number of trees that can be removed under the tree permit assessment process in any 2 year period.

11.3.8 Vegetation Permits

a) Council may issue a vegetation permit under this clause. A vegetation permit may authorise the clearing of declared trees and/or declared vegetation but not if the works could be considered under a tree permit.

11.3.9 Applying for a Tree Permit or Vegetation Permit

a) An application for a Tree Permit or Vegetation Permit must be made using Council's form and must be accompanied by the relevant fee and supporting information identifiedon that form.

11.3.10 Assessment of Permits

11.3.10.1 Matters that must be considered as part of the assessment of a Tree Permit or Vegetation Permit

Planning

a) Whether the proposed works are consistent with the objectives of the zone in which the works are being proposed;

b) In the case of trees in Council's Significant Tree Register, why the tree was included on

Note:

Under the Vegetation SEPP a Vegetation Permit cannot be issued in relation to land that is or forms part of a heritage item or that is within a heritage conservation area, or that is or forms part of an Aboriginal object or that is within an Aboriginal place of heritage signifiificance, unless the council is satisfiied that the proposed activity: is of a minor nature or is for the maintenance of the heritage item, Aboriginal object, Aboriginal place of heritage signifiificance or heritage conservation area, and would not adversely affffect the heritage signifiificance of the heritage item, Aboriginal object, Aboriginal place of heritage signifiificance or heritage conservation area. If the vegetation works do not meet these requirements a development application will be required.

Note:

Certain clearing is permitted under the Rural Fires Act, 1997, with or without approval under that Act. Clearing undertaken under that Act does not require a permit under this DCP section. Council will not issue tree permits for clearing for bushfiifire hazard reduction. Council will not declare a tree to be a risk to human life or property under the Vegetation SEPP if the only danger posed by the tree is one of bushfiifire hazard.

that register;

c) In the case of trees required by a development consent to be planted or retained, the planning intent of the consent and its conditions.

d) For a heritage listed tree or vegetation located on the grounds of a heritage listed property or in a heritage conservation area:

   i) The impact that the proposed works will have on the heritage significance of the item and its curtilage and amenity and the landscape setting of the surrounding area; and

   ii) The risk the tree poses to any heritage structure.

Environmental Impact

e) Biodiversity matters including impacts on:

   i) Endangered ecological communities,

   ii) Threatened plant species,

   iii) Habitat and food supply for threatened fauna, and

   iv) Preferred koala food trees and whether the permit relates to an area of koala habitat.

   v) The management or removal of weed species.

   vi) The visual prominence and landscape significance of the vegetation.

   vii) The contribution the vegetation provides to the canopy cover, amenity, environment and

   viii) landscape of the immediate surrounding area.

   ix) The health, structural condition, growing environment of the vegetation.

   x) The cumulative impacts of vegetation clearing applications.

Risk

f) In the case of trees, the species, age and lifespan of the tree.

g) Potential risks to the surrounding built

environment by considering whether the vegetation is:

i) Causing significant damage to any structure or infrastructure, or

ii) Reducing solar access by excessive shadowing of living areas.

h) The risks of retaining the vegetation in relation to limb drop and trunk failure having regard to:

i) The proximity of any building,

ii) The likelihood that pedestrians or vehicles will use the land surrounding the tree,

iii) The likelihood of limb drop or trunk failure, and

iv) The size of the vegetation.

i) The risks of retaining the vegetation in relation to:

i) Public health matters,

ii) Blocking or choking a floodway,

iii) The health of any vulnerable person, where specific evidence is provided by an expert in the relevant medical field and a direct link between the ailment and the species is reasonably established, and

iv) raffic safety.

j) The slope of the land and whether tree removal will result in slope instability, sediment and erosion issues.

Alternatives and Mitigation

k) The opportunities to retain vegetation through the installation of a root barricade or other infrastructure solutions.

l) Whether the works proposed are the best way to achieve the stated objective of the application.

m) The opportunity for replacement planting and improved landscaping and environmental outcomes.

11.3.10.1 Matters that shall not be considered to justify a tree or vegetation permit

a) Removal or pruning of vegetation due to leaf, stick, fruit or bark drop;

b) Removal of a tree for minor shading;

c) A perception of risk of vegetation failing that is not substantiated by expert evidence;

d) Improvement to views;

e) Wildlife droppings on cars, buildings or infrastructure;

f) Impacts on property values;

g) Improvement to street lighting on private property;

h) Removal to improve solar access to solar panels. While Campbelltown City Council promotes the use of solar energy, Council does not support the removal of sound healthy trees solely to improve access to solar energy collectors;

i) To enable other development to proceed as complying development.

11.3.11 Permit Conditions

a) Without limiting Council's powers, conditions will generally be imposed on tree and vegetation permits to require:

   ii) The works to be undertaken within a specifiied time frame;

   iii) Compensatory planting to replace removed vegetation or payment of a fee in lieu of planting (refer to Council's Tree Offset Policy);

   iv) Pruning to be undertaken by a suitably qualified and experienced arborist to an approved standard;

   v) Management of waste;

   vi) Hours of works;

   vii) Securing the site;

   viii) Management of impacted fauna;

   ix) Replacement of nesting opportunities.

11.4 Design requirements for developments in koala habitat

11.4 Design requirements for developments in koala habitat on lots less than 1 hectare

Objectives:

- To assist in the effective implementation of the Campbelltown Comprehensive Koala Plan of Management (CKPoM) for development within koala habitat
- To facilitate development sympathetic to the local koala population, in order to minimize the impacts of development on koalas and their habitat.

11.4.1 Management of koala habitat

a) **Development applications for properties less than one hectare that contain koala habitat, are required to address key risks and indirect impacts to koalas and their habitat, and demonstrate consistency with the following management measures:**

i) be designed and located in such a way as to avoid any adverse impacts to Preferred Koala Food Trees ((P)KFTs) and/ or shelter trees

ii) ensure fencing of residential lots:

- supports the free movement of koalas in E2 zones, and doesn't create an impediment and/or risk to koala movement
- effectively excludes koalas in R2 zones, except for where these properties are located adjacent to a Council Reserve

iii) confine domestic dogs (greater than 10kg) to a dog-proof yard, or verandah, during peak koala activity levels, between 6pm and 6am; to reduce incidents of dog attacks on koalas

iv) design swimming pools with a graduated shallow edge, or fitted with a permanent flotation device; to prevent koalas from drowning

v) implement site-specific koala protection measures on the development site; to mitigate construction impacts on koalas

vi) vi) establish Tree Protection Zones

Figure 11.4.1 - The protection of koala habitat is essential to provide for the long-term maintenance of a viable, free-ranging koala population in the Campbelltown LGA (Koala "Mr Nymboida" in Ruse. Photo courtesy of Carla-Maree Simmons).

(TPZ) around any koala trees within the site area and preclusion of any development activities within the TPZ to protect koalas from disturbance

vii) require replacement tree plantings and maintenance there of, in accordance with the applicable Diameter at Breast Height (DBH) ratio (or monetary equivalent) for every individual (P)KFT or shelter tree that is removed; to compensate for any loss of habitat:

- Small (DBH<100mm) 1:10
- Medium (DBH>100<300mm) 1:15
- Large (DBH>300mm) 1:20

Note:

Development controls for lots greater than or equal to 1 hectare are contained in the Campbelltown Comprehensive Plan of Management 2018. Many koala populations in NSW now survive in fragmented and isolated habitat, while some areas in which koalas remain more common are increasingly subject to ongoing pressures, in particular clearing for agriculture, logging and urban expansion.

Campbelltown has one of the last, disease-free koala populations in the Sydney region. Therefore it is important to put in place design measures that support the harmonious co-existence of the community with koalas.

Part 12 Telecommunication Facilities

12.1 Application

This Part sets out controls relating to telecommunication facilities in the Campbelltown Local Government Area.

12.2 Background

New telecommunication facilities require development consent from Council unless they are exempted by Commonwealth or State legislation. These exemptions include certain 'low impact' and general infrastructure type facilities, as provided by the Commonwealth Telecommunications (Low Impact Facilities) Determination 1997 and State Environmental Planning Policy (Infrastructure) 2007.

All development applications lodged with Council for telecommunication facilities will be assessed in accordance with the provisions of this Part.

Objectives:

- To minimise the number of telecommunication towers that need to be erected within the Campbelltown Local Government Area.
- To ensure telecommunication facilities are designed to minimise the public's exposure to electromagnetic radiation (EMR) and are restricted to locations where EMR levels are consistent with or below the nationally adopted exposure threshold criteria.
- To minimise the visual impact of telecommunication facilities by encouraging innovative design outcomes.
- To ensure telecommunications and radio-communications infrastructure are appropriately sited having regard to any heritage buildings or Heritage Conservation Areas.
- To minimise any potential significant adverse amenity impacts upon the locality.
- To facilitate the provision of efficient and reliable telecommunication services in the Campbelltown Local Government Area.

12.3 General Requirements

a) A network masterplan shall be provided by the applicant showing the proposal in the context of all other similar infrastructure types in order to identify opportunities for co-location or sharing of facilities.

b) The applicant shall demonstrate that co-location opportunities have been adequately pursued where new stand

alone telecommunication facilities are proposed. This shall include information to demonstrate:

i) The possibility of sharing equipment, via the use of combiners or similar technology;

ii) Existing towers and poles or other appropriate structures should be investigated for appropriateness for the sharing of antennas.

c) Transmitting roof top antennas and towers should preferably be located in industrial or business zones, rather than residential zones or areas that include dwellings.

d) Telecommunication facilities are to be sited to avoid locations which are visually prominent in the landscape, particularly when viewed from the public domain.

e) For new towers a photomontage of the proposal must be submitted to assist with the assessment of visual impact.

f) The applicant must demonstrate that all reasonable measures to reduce the visual impact of the proposal have been examined, including:

i) Co-location and use of existing structures;

ii) Innovative design to harmonise with the existing setting;

iii) Use of vegetation for screening;

iv) Use of materials and finishes consistent with surroundings; and

v) Compact and slim line construction techniques.

g) No advertising signs shall be permitted on any telecommunication facilities in:

i) Industrial areas;

ii) Rural areas; and

iii) Low-use open space.

Note:

Under the CLEP, telecommunications facility means:

(a) any part of the infrastructure of a telecommunications network, or

(b) any line, cable, optical fibre, fibre access node, interconnect point equipment, apparatus, tower, mast, antenna, dish, tunnel, duct, hole, pit, pole or other structure in connection with a telecommunications network, or

(c) any other thing used in or in connection with a telecommunications network.

Figure 12.3.1 - An example of the negative visual impact of a tower on neighbouring houses.

12.4 Electromagnetic Radiation

a) The applicant in selecting a site for telecommunication facilities, shall demonstrate to Council that a precautionary approach has been adopted with respect to minimising electromagnetic radiation (EMR) exposures to sensitive land uses such as residential areas, schools, child care centres, hospitals, aged care accommodation or areas regularly frequented by groups of children.

b) Where possible, EMR emitting telecommunication facilities, including mobile base stations, shall be located in the following land use areas:

   i) Industrial areas;

   ii) Rural areas; and

   iii) Low-use open space.

c) Where telecommunication facilities are proposed within 300 metres of a sensitive land use, the applicant shall demonstrate that no viable alternative sites are available.

d) For all EMR emitting telecommunication facilities, documentary evidence is required from a suitably qualified person which analyses the cumulative effect of the proposal and demonstrates compliance with the relevant Australian exposure standard.

e) Development applications for telecommunication facilities shall include measures to restrict public access. Approaches to the facility must contain appropriate signs warning of EMR and provide contact details for the site owner and / or site manager.

Figure 12.4.1 - An example of a telecommunication facility tower.

12.5

Landscaping

12.5 Landscaping

a) For stand alone telecommunication facilities, a landscape plan must be submitted to Council that provides plantings of a suitable scale to reduce the visual impact of the proposal, and where possible screen the facility from public view.

12.6 Heritage

a) No telecommunication facilities shall be permitted where the heritage significance of a heritage item may be adversely impacted.

b) Where a telecommunication facility is proposed on a site occupied by or in the vicinity of a listed heritage item, a Heritage Impact Statement shall be prepared and submitted to Council.

Note: A Heritage Impact Statement must be prepared by a suitably qualified person in accordance with the document "Statements of Heritage Impact" published by the NSW Heritage Branch and available for view at:www.environment.nsw.gov.au

Figure 12.6.1 - An example of a heritage listed building.

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Part 13 Sex Industry Premises

13.1 Application

This part sets out controls relating to sex services premises within the City of Campbelltown. This part should be read in conjunction with the relevant LEP / IDO applying to the site to determine the zoning of the land and the permissibility of any proposed sex industry premises.

This plan applies to all sex industry premises.

Note:

For the purpose of this part, sex industry premises means sex restricted premises or sex services premises as defined under the CLEP.

Objectives:

- To ensure sex industry premises are appropriately located so as to minimise any potential adverse social or economic impacts upon the surrounding locality;
- To control the location of sex industry premises to avoid a concentration of these facilities in a particular location and to minimise any cumulative impacts;
- To identify relevant public health and safety standards for sex industry workers and their clients; and
- To provide appropriate locational restrictions for any sex industry premises to ensure such premises are located at a reasonable distance away from residential areas and other sensitive land uses.

Note:

Restricted premises (as defined under the CLEP) means premises that, due to their nature, restrict access to patrons or customers over 18 years of age, and includes sex shops and similar premises, but does not include a pub, hotel or motel accommodation, home occupation (sex services) or sex services premises.

Note:

Sex services (as defined under the CLEP) means sexual acts or sexual services in exchange for payment.

sex services premises means a brothel, but does not include home occupation (sex services).

13.2

Background

13.2 Background

All sex industry premises within the Campbelltown Local Government Area require development consent issued under the Environmental Planning and Assessment Act 1979 (the Act) to legally operate. Campbelltown City Council is the consent authority for the assessment and determination of development applications for sex industry premises in accordance with the provisions of the Act.

Council's role in applying the planning controls for sex industry premises is in addition to the regulatory functions of other Government agencies that contribute to the safe and legal operations of such premises. This includes:

- NSW Department of Health who are responsible for safe health practices in any workplace;
- NSW WorkCover Authority regarding occupational health and safety issues in the workplace.
- Australian Federal Police and Commonwealth Department of Immigration who are responsible for issues of illegal immigrant sex workers; and
- NSW Police Service with respect to complaints and issues relating to criminal behaviour.

13.3.1 General Location Requirements

a) Sex industry premises shall be strategically located to avoid unreasonable exposure to sensitive land uses, and to places where young people (less than 18 years old) regularly gather. Sex industry premises shall not adjoin areas that are zoned residential, or be clearly visible from them.

b) Sex industry premises shall not adjoin, or be clearly visible from schools, educational institutions for young people (less than 18 years old) or places where children and adolescents regularly gather. This would include places such as bus stops routinely used by school buses.

c) Sex industry premises shall not be located where they are clearly visible to sensitive community groups, such as places where worshippers regularly gather.

d) Sex industry premises shall be located so as to minimise adverse impacts on the amenity of the area, such as noise disturbance and overlooking to surrounding properties.

e) Sex industry premises shall be adequately separated to avoid the cumulative impacts of clustering which may adversely impact upon the character of a locality.

f) Development applications for sex industry premises must consider the location requirements (as outlined above), both within and outside the local government area, including sites with a current approval to operate as a sex industry premises.

g) In order to adequately satisfy the objectives and performance

requirements of this Part, applications shall provide a locality plan (drawn to scale) to demonstrate compliance with the prescribed separation distances as outlined below.

13.3.2 Separation Distance to Sensitive land uses

a) A minimum separation distance of 150 metres (as measured from any point(s) of client access and egress at the building proposed to be so used) to sensitive land uses and places where children and adolescents regularly gather. This includes child care centres, places of worship, community facilities, residential areas, hospitals, medical centres, schools, and places regularly frequented by children.

13.3.3 Separation Distances to Other Sex Industry Premises

a) Sex industry premises must not be located within a 150 metre radius (as measured from any point(s) of client access and egress at the building proposed to be so used) of another sex industry premises.

13.4 External Design Requirements for Sex industry Premises

Design Requirements

a) The building design for sex industry premises shall be compatible with the surrounding built form.

b) The access to sex industry premises shall be discreet and discourage clients gathering or waiting on the street.

c) The entrances, exits and external appearance of sex industry premises shall be well lit but not to the extent where it becomes a prominent feature in the streetscape. Flashing lights shall not be permitted.

d) Sex industry premises shall not display

sex workers, or sex related products from the windows, doors or outside of the premises.

e) Signage is limited to identification of the street address, which must be clearly legible visible from the street to minimise nuisance to neighbours.

f) The paint finishes on external walls of brothels should not be such that they become a prominent feature in the streetscape (e.g. fluorescent or excessively bright colours).

Note: The premises must also comply with the requirements of the Building Code of Australia and disabled access requirements.

13.5 Car Parking

Design Requirements

a) Sex services premises shall provide on-site car parking at a minimum rate of two (2) car parking spaces per working room.

b) Restricted premises shall provide on-site car parking at a minimum rate of one (1) car parking space per 40 square metres of gross floor area.

c) Off street parking and loading shall be designed in accordance with *Australian Standards 2890.1* and *2 (as amended*).

d) Car parks should be well lit and clearly legible for staff and customers to easily access.

Note: Council may consider a variation to this requirement where the applicant can demonstrate that there is adequate available on-street car parking or public transport services close to the premises.

13.6

Waste Disposal and Collection

13.6 Waste Disposal and Collection

a) Operators are to make their own arrangements for trade waste collection, and ensure that any potentially hazardous waste is collected by a clinical waste contractor.

b) Sex services premises shall make provision for the safe and convenient disposal of used condoms, soiled tissues, gloves and the like. All waste containers shall be kept in a clean condition and be stored and collected from within the site.

c) Waste disposal operations must comply with the NSW Department of Health and WorkCover NSW guidelines.

13.7 Sanitary Facilities

a) The following provisions apply to brothels and sex-on-premises establishments:

   i) Premises must be regularly cleaned and kept in a good state of repair at all times. Care should be taken to regularly clean and disinfect toilets, baths, spas, showers and similar fixtures. These are subject to mould growth and have the potential to accumulate and spread fungi, such as tinea;

   ii) Soap and single-use towels shall be provided to all washbasins required in the premises. Soap dispensers and air hand dryers should be used where difficulty in maintaining supplies of soap and towels is experienced;

   iii) Brothels and Sex on premises establishments must provide adequate laundry facilities and appropriately sized hot water systems (minimum 70°C) to deal with the on site demands of linen

washing;

iv) Ensuites must be provided in each working room, including a shower, toilet and hand basin;

v) Separate toilet, shower, change room, and rest facilities must be provided for staff in accordance with the Building Code of Australia. To ensure the privacy of the clients and workers, development applications must demonstrate that the internal layout of the premises is designed so that these facilities are in close proximity to client rooms;

vi) A minimum of one client room with sanitary facilities located and designed in accordance with the Building Code of Australia to be suitable for use by people with disabilities; and

vii) All required wash hand basins and showers must be provided with an adequate supply of hot and cold water.

13.8 Health and Safety

a) Details are required to demonstrate compliance with the provisions of the "*Health and Safety Guidelines for Brothels in NSW*", published by NSW Health and WorkCover NSW. This requires the provision of proposed management practices to address relevant public health and workplace health and safety issues for the proposed development, and includes the following items:

   i) Risk assessment management of workplace hazards;

   ii) Provision of information, instruction, training and supervision needed to ensure the health and safety of all employees;

   iii) Provision and use of personal protective equipment;

   iv) Monitoring of workers health to prevent sexually transmissible infections;

   v) Workplace drug and alcohol policy;

   vi) Accident reporting;

   vii) First aid procedures; and

   viii) Management of Public Health complaints.

13.9 Council Registration

a) The following provisions apply to brothels and sex-on-premises establishments:

   i) All operating premises must be registered with Council under the provisions of the Local Government Act 1993 for ongoing health surveillance services;

   ii) A condition of any development consent issued will require written notification to Council of the person responsible for operating the premises (proprietor / licensee); and

   iii) A condition of any development consent issued will require an environmental health inspection by Council prior to commencement of use.

Part 14 Parking of Heavy Vehicles on Residential, Rural and Environmental Protection Land

14.1 Application

This Part regulates the parking of heavy vehicles on areas zoned: R2,R3,R4,R5,RU2,E2,E3 and E4 excluding:

i) vehicles that can be operated under a NSW C- Car class licence or equivalent; and

ii) a caravan/mobile home capable of being registered under the Road Transport Act 2013 and Road Transport (Vehicle Registration) 2007 legislation, providing the vehicle is for personal use (i.e not for commercial purposes or monetary gain).

Zone Acronyms used under this Part

Residential Zones:

R2 Low Density Residential: R2

R3 Medium Density Residential: R3

R4 High Density Residential: R4

R5 Large Lot Residential: R5

Rural Zones:

RU2 Rural Landscape: RU2

Environmental Protection Zones:

E3 Environmental Management: E3

E4 Environmental Living: E4

14.2 Background - Classification of Heavy Vehicles

For the purpose of this Part, heavy vehicles comprise Heavy Vehicles Type 1, and Heavy Vehicles Type 2, as defined in Table 14.2.1 below.

Table 14.2.1 Heavy Vehicle Types.

Heavy Vehicle Type	Description of Class
Heavy Vehicle Type 1	Means any vehicle that has a gross vehicle mass (GVM) not greater than 10.5 tonnes or a length not exceeding 9.0 metres. *Note: Length and weight limits are inclusive of any associated trailers.*
Heavy Vehicle Type 2	Means any vehicle that: i) has a gross vehicle mass (GVM) greater than 10.5 tonnes; or ii) has a length greater than 9.0 metres; or iii) is a prime mover.

14.3

Number of Heavy Vehicles - Permissibility by Zone

14.3 Number of Heavy Vehicles - Permissibility by Zoning and Site Area

Objectives:

- To regulate the number of heavy vehicles parked within areas zoned for residential, environmental protection and rural purposes within Campbelltown Local Government Area.
- To maintain the amenity and scenic quality of residential, environmentaly sensitive and rural areas within Campbelltown Local Government Area.

Design Requirements

a) The maximum number of heavy vehicles able to be parked on an allotment shall be in accordance with Table 14.3.1.

b) Council may consider development applications to park heavy vehicles on private land that does not comply with the requirements of this Plan on their individual merits.

c) Notwithstanding any other provision of this Plan, heavy vehicles shall not be permitted to be parked on allotments that consists of strata titled development, attached dwellings, semi detached dwellings, dual occupancies (attached and detached), multi dwellings and residential flat buildings developments within areas zoned R2, R3 and R4.

Figure 14.3.1 An example of a Heavy Vehicle Type 1

Figure 14.3.2 An example of a Heavy Vehicle Type 2

14.3 Number of Heavy Vehicles - Permissibility by Zone

Table 14.3.1 Maximum number of heavy vehicles and their combinations that are permissible on an allotment per site area and zoning.

Zoning and site area Site Area	Maximum Number of heavy vehicles per allotment	Options	Heavy Vehicle Type 1	Heavy Vehicle Type 2
R2,R3,R4, R5	1		1	0
E3 E4, RU2 for a site with an area of 1 hectare or less	1	Option 1 or	1	0
		Option 2	0	1
E3, E4, RU2 for a site with an area greater than 1 hectare and less than 5 hectares	2	Option 1 or	2	0
		Option 2	1	1
RU2 and E3 For a site with an area greater than 5 hectares	3	Option 1 or	0	2
		Option 2 or	2	1
		Option 3	3	0

Notes:

a) Despite the note in Table 14.2.1, Each Type 1 heavy vehicle on land zoned rural or an environmental zone may have a maximum of one associated trailer of which the total vehicle combination shall not exceed 19.0 metres in length.

b) Each prime mover of a Type 2 vehicle shall have a maximum of two associated trailers providing the total length in combination does not exceed 26.0 metres.

c) For the purpose of point b) above, a B-Double constitutes two trailers.

d) Despite the above points, a), b) & c) trailers shall not be permitted on residential zones.

14.4 General Requirements

14.4 General Requirements

Design Requirements

a) The operator of the heavy vehicle(s) parked on the allotment shall reside on the allotment.

b) The vehicle(s) shall be parked wholly on the property and behind the property boundary.

c) In the case of an E3, E4 or RU2 Zone heavy vehicles shall be parked behind the building alignment and no closer than 5 metres from any side or rear property boundary

d) The heavy vehicle(s) shall be able to enter into the property in a single movement.

e) Refrigeration or any other auxiliary motors attached to the vehicle(s) or trailer(s) shall not be operated on the property.

f) No food shall be permitted to be stored within the heavy vehicle(s) whilst parked within the private property.

g) Heavy vehicle(s) shall not be parked or stored on a lawn or any landscaped area.

h) Heavy vehicles on land zoned R2,R3,R4 or R5 shall be parked on a hard surface driveway.

i) Heavy vehicles on land zoned E3, E4 or RU2 shall be parked and manoeuvred on an all weather surface driveway/hardstand area with suitable treatment to prevent material entering stormwater systems,water courses or roadways.

j) No storage of any waste, noxious, dangerous and/or hazardous materials shall be permitted to be stored within the heavy vehicle(s) while parking within the property.

k) Prior to the parking of any heavy

vehicle on land, where kerb and gutter are in existence, a heavy vehicle access crossing is required to be approved by Council and constructed by the owner/ operator of the heavy vehicle.

l) Maintenance of heavy vehicle(s) within property boundaries on R2,R3 and R4 zones shall be limited to minor servicing only which includes:

   i) Greasing;

   ii) Changing tyres; and

   iii) Washing the exterior cabin (not degreasing).

m) For the purpose of clause 14.4 l) Minor servicing does not include:

   i) Tune-ups;

   ii) Degreasing;

   iii) Oil changing;

   iv) Mechanical repairs;

   v) Panel beating;

   vi) Spray painting; or

   vii) Any works requiring the use of a grinder or any other power tool that may cause adverse impacts on the amenity of the neighbourhood.

n) In addition to section 14.4 l), minor servicing on land zoned E3, E4 or RU2 shall also include oil changing and minor mechanical repairs.

o) Property owners shall provide appropriate landscaping to visually screen the heavy vehicle(s) to maintain a high quality streetscape, wherever possible.

Part 15
Animal Boarding or Training Establishments

15.1 Application

This Part applies to animal boarding or training establishment in areas zoned IN1, E3 and RU2

Animal boarding or training establishment (as defined under the CLEP) means a building or place used for the breeding, boarding, training, keeping or caring of animals for commercial purposes (other than for the agistment of horses), and includes any associated riding school or ancillary veterinary hospital.

Zone Acronyms

INI General Industrial : IN1

E3 Environmental Management: E3

RU2 Rural Landscape: RU2

Note:

Under the CLEP, the minimum qualifying site area for animal boarding or training establishments in E3 and RU2 Zones is 5 hectares.

Note:

All development applications for animal boarding or training establishments that involves companion animal breeding shall be assessed giving due consideration to the Animal Welfare Code of Practice – Breeding Dogs and Cats available from NSW Industry and Investment website at: http://www.dpi.nsw.gov.au

Objectives:

- Ensure that animal boarding or training establishments do not significantly impact on the amenity of adjoining residents.
- Ensure that land selected for an animal boarding or training establishment is capable of supporting that use.
- Ensure that the location, size and internal layout of animal boarding or training establishments takes into account the surrounding land uses and potential land uses.
- Ensure that animal boarding or training establishments incorporate best practice design and management practices, in order to minimise any potential adverse impacts upon adjoining landholdings and to provide for the satisfactory welfare of animals kept within the establishment.
- Ensure that animal boarding or training establishments are designed to incorporate humane and industry best practice animal accommodation.
- To minimise the potential for land use conflict between animal breeding, boarding and training establishments and other uses in the vicinity.
- To minimise the impact of wastes from the animal boarding or training establishment on water and air quality.
- To prevent contamination of surface and ground waters.

15.2

General Requirements for Animal Boarding or Training Establishments

15.2 General Requirements for Animal Boarding or Training Establishments

15.2.1 Site Requirements

a) Animal boarding or training establishments shall not be located on land that is a bush fire prone land unless appropriate measures to the satisfaction of Council and Rural Fire services are implemented.

15.2.2 Setbacks

a) Animal boarding or training establishments on land zoned E3 and RU2 shall be set back a minimum of 250 meters for any dwelling not associated with the facility.

b) Not withstanding the requirement under Clause 15.2.2 a) above, animal boarding or training establishments on land zoned E3 and RU2 shall comply with the setback requirements under Part 4 Rural Residential Development and Ancillary Rural Development Structures.

c) Animal boarding or training establishments on land zoned IN1 shall comply with the setback requirements under Part 7 Industrial development.

15.2.3 Isolation facility

a) An isolation facility shall be provided on site in order to segregate animals which have an infectious disease.

15.2.4 Noise impacts

a) An acoustic impact assessment report shall be required to be submitted with a development application for any animal boarding or training establishment.

b) Buildings shall be designed and constructed to minimise noise transfer to neighbouring properties.

15.2.5 Environmental impacts

a) A waste water treatment plan shall be included with the development

application to ensure that the land is capable of supporting the proposed use.

b) Stormwater runoff shall be controlled so that it does not pose a risk to any natural water course.

c) A waste water management plan shall be submitted with the development application.

d) All animal boarding establishments are to contain all waste water as far as practicable.

e) Runoff from shed roofs, access tracks and hard stand is to be effectively collected and stored on-site.

f) Details of any proposed sediment basins or dams are to be submitted to Council with the development application.

15.2.6 landscaping

a) Appropriate landscaping and vegetative screening shall be employed to minimise visual impact and contribute to the elimination of air and noise pollution

15.2.7 Waste Management

a) A waste management plan shall be prepared and submitted to Council as part of any development application for an animal boarding or training establishment.

b) A vermin control plan shall be prepared and submitted to Council as part of any development application for an animal boarding or training establishment.

c) All solid wastes shall to be disposed of appropriately.

d) Any deceased animals shall to be removed from the premises and disposed of at a Council approved garbage depot.

e) No dead animal disposal shall occur on-site, whether it be by burning or burial.

Part 16
Advertising and Signage

16.1 Application

This Part sets out controls for all signage proposals within Campbelltown LGA ,except signage that is classified as exempt or complying development under *State Environmental Planning Policy (Exempt and Complying Development Codes) 2008; and any signage undertaken by Campbelltown City Council*.

Note: CLEP stands for Campbelltown Local Environmental Plan 2015

Note:

The following signs are types of business identification signs that are exempt development if designed and constructed in accordance with the State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 and:

- Wall sign;
- Fascia sign;
- Under awning sign;
- Top hamper sign;
- Window sign;

The following signs are types of business identification signs and are complying development if designed and constructed in accordance with the State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 and:

- projecting wall sign;
- freestanding pylon and directory board signs

State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 is available for view at www.legislation.nsw.gov.au.

Objectives:

- Encourage signage that provides identification and information about land uses of premises in a manner that complements the design of the building on which it is displayed on and the streetscape.
- Ensure signage that contributes positively to the appearance of the building, structure or place by encouraging coordinated signage of high-quality design and materials.
- Discourage the proliferation of signs and advertising structures that collectively becomes meaningless and cluttered.
- Ensure signs and advertising structures that do not detract from the level of safety for drivers, cyclists and pedestrians by obstructing sight lines and distracting road users.
- Ensure that the scale of the sign and advertising structures are appropriate to the size of the building and its surroundings.
- Ensure that signs and advertisements contribute to a high quality public domain.

16.2

Types of Signs & Definitions

16.2 Types of Signs and Definitions

Some of the signage types referred to in this section are shown in Figure 16.3.1 below.

Note:

Advertisement has the same meaning as in the Environmental Protection & Assessment Act 1979: a sign, notice, device or representation in the nature of an advertisement visible from any public place or public reserve or from any navigable water.

Advertising structure has the same meaning as in the Environmental Protection & Assessment Act 1979: a structure used or to be used principally for the display of an advertisement.

1. Bill board Sign
2. Roof or Sky sign
3. Flush mounted wall sign
4. Vertical projecting wall sign
5. Horizontal projecting wall sign
6. Above awning sign
7. Fascia sign
8. Under awning sign
9. Top hamper sign
10. Window sign
11. Freestanding pylon and Directory Board sign

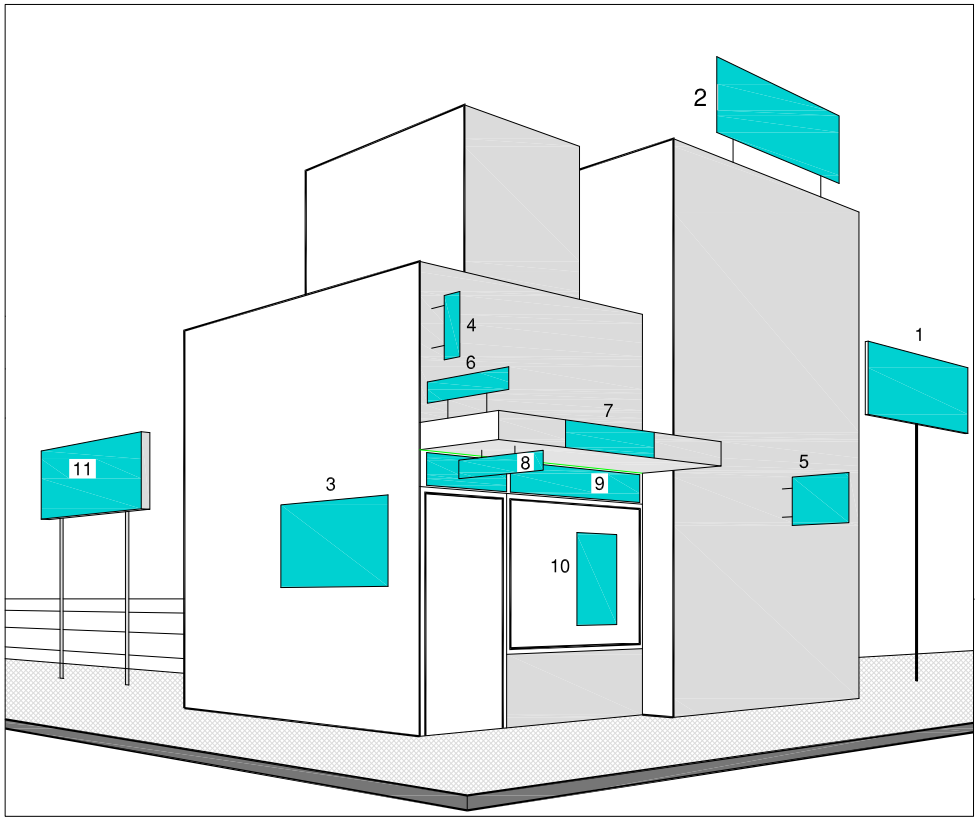

Figure 16.3.1 - Types of signs

16.2

Types of Signs & Definitions

The following definitions shall apply for the purpose of this Part:

'A' Frame Sign (also known as a sandwich board) means a portable, freestanding sign consisting of either two advertising boards supporting each other in an 'A' configuration, or one advertising board supported by one or more posts in an 'A' configuration.

Above awning sign means a sign that is located above an awning or veranda, attached to the awning and/or wall, but is contained entirely below the roofline and not protruding beyond the extent of the awning or veranda (but does not include a projecting wall sign).

Banner or flag sign means a piece of fabric supported on one or two sides by poles or ties and allowed to move freely, but not including national, state, regional or aboriginal flags.

Billboard sign means an advertisement supported by one or more columns or post which stands independent of any building and/or structure and which does not relate to the use of the site to which it is attached.

Bunting means a string of lightweight coloured material or plastic secured at both ends but allowed to move freely.

Building identification sign has the same meaning as in the CLEP (see note).

Business identification sign as the same meaning as in the CLEP (see note).

Canopy fascia sign means a sign that is located on the fascia of the structure erected over the pumps at a petrol station.

Corporate identification means building colour, decoration, symbols, logos and the like that attach a building use with a readily identifiable corporate brand

Day time means the time between sunrise and sun set, excluding twilight periods.

Digital Signs - Any sign that uses digital technology to display bright, high quality

Note:

Building identification sign (as defined under the CLEP) means a sign that identifies or names a building and that may include the name of a building, the street name and number of a building, and a logo or other symbol but does not include general advertising of products, goods or services.

Note:

Business identification sign (as defined under the CLEP) means a sign:

(a) that indicates:

i) the name of the person or business, and

ii) the nature of the business carried on by the person at the premises or place at which the sign is displayed, and

(b) that may include the address of the premises or place and a logo or other symbol that identifies the business,

but that does not contain any advertising relating to a person who does not carry on business at the premises or place.

electronic images which are uploaded and changed using a computer and modem via a secure network. A central feature of these devices is the use of Light Emitting Diode (LED) technology allowing luminance to be controlled and adjusted automatically and includes Electronic Static Displays (ESDs), Variable Message Signs (VMS) and Dynamic Electronic Displays (DEDs)

Dwell duration means the period of time that content on a sign remains static without any movement.

Dynamic Electronic Displays (DEDs) means any sign that displays animations, videos, flashing images, and have active display changes. DEDs signs, either permanent or portable, including any signs which contain any portion of video and/or animated content, that face a road reserve and are visible to road users are prohibited. DEDs are a type of digital signs.

Electronic Static Displays (ESDs) means signs that display static images only, which are presented successively at set intervals. They do not contain or imply motion such as vertical or horizontal scrolling, fade, dissolve or animation within the message itself and do not have any movement of any part of the advertising structure or surrounds. ESDs are a type of digital signs.

Fascia sign means a sign that is attached flush to the existing fascia of the awning of a building, which does not project above, below or beyond the awning of a building over a footpath.

Flashing sign means a sign that is illuminated at frequent intervals of 3 seconds or less by either an internal or external light, and whether or not included in any other type of sign.

Flush mounted wall sign means a flat mounted or painted sign attached to the exterior front or side wall of a building and does not project more than 100mm from the wall surface.

Note:

Illuminance has the same meaning as contained in AS/NZS 1158-2005: the physical measure of illumination. It is the luminous flux arriving at a surface divided by the area of the illuminated surface. Unit: lux (lx). The term includes 'Horizontal illuminance' (the value of illuminance on a designated horizontal plane at ground level) and 'Vertical illuminance' (the value of illuminance on a designated vertical plane at a height of 1.5m above ground level. Where the vertical illuminance is considered in the situation of potentially obtrusive light at a property boundary it is referred to as environmental vertical illuminance).

Luminance has the same meaning as contained in AS/NZS 1158-2005: the physical quantity corresponding to the brightness of a surface (e.g. a lamp, luminaire or reflecting material such as the road surface) when viewed from a specified direction. Unit: candela per square metre (cd/ sqm).

Note:

A digital sign and/or an illuminated sign may take the form of any permissible sign under this plan (i.e fascia sign or a wall sign) and shall comply with all the relevant development controls under this part of the Plan.

Freestanding pylon and Directory Board sign means a sign which is supported by one or more columns, uprights or braces fixed to the ground and which is not directly attached to any building or other structure.

General advertising means signage that does not relate to the use of the land/building to which it is attached.

Illuminated sign means any sign illuminated by an artificial sources such as fluorescent and/or incandescent bulbs.

Inflatable sign means a sign that is located on an inflatable structure such as a balloon or blimp being of a temporary nature and used for the purpose of displaying information about a business, product, local event and/or attraction.

Moving sign means a sign that is capable of moving by any source of power, whether or not included in any other class of sign.

Portable or movable signs means an advertisement attached to the body of a vehicle or trailer which is principally designed for placement in a publicly viewable location.

Poster sign means a temporary sign that is usually in the form of a paper or lightweight cardboard or foam core board 'poster' used for the purposes of displaying information about a local event or attraction.

Projecting wall sign is a sign that projects from the exterior wall of an existing building but not protruding beyond the roadside edge of the awning or above the roofline of a building.

Roof or sky sign means a sign that is erected on or above the parapet of a building that is wholly or partly supported by the building.

Signage means any sign, notice, device, representation or advertisement that advertises or promotes any goods, services or events and any structure or vessel that is principally designed for, or that is used for, the display of signage, and includes any of the following:

i) an advertising structure,

ii) a building identification sign,

iii) a business identification sign,

but does not include a traffic sign or traffic control facilities.

Temporary sign means a sign which is used to promote an event, celebration etc organised by a community group, not for profit organisation or government body (including Council) that has a limited time of display.

Top hamper sign means a sign that is attached to the transom of a doorway or display window of a building.

Twilight means the time between sunrise and dawn in the morning and sunset and dusk in the evening.

Under awning sign means a sign that is suspended below the existing awning of a building

Variable Message Sign (VMS) means a sign that display electronic text messages and have the capacity for graphical displays. VMS are a type of digital signs.

Wall sign means a flat mounted or painted sign attached to the exterior front or side wall of a building and does not project more than 100mm from the wall surface.

Window sign means a sign that is painted or displayed inside a window of a building.

16.3 Relationship to other Environmental Planning Instruments, Australian Standards, State Polices and Guidelines.

16.3.1 State Environmental planning Policy No 64 - Advertising and Signage (SEPP 64)

a) Development applications for all forms of signage shall comply with SEPP 64.

16.3.2 State Environmental Planning Policy (Exempt and Complying Development Codes) 2008

a) Development controls under this part shall apply to signs and advertisement that are not considered exempt or complying development under State Environmental Planning Policy (Exempt and Complying Development Codes) 2008.

16.3.3 Transport Corridor Outdoor Advertising and Signage Guidelines

a) This Guideline is required to be considered where signage is proposed to be located on Transport Corridor land as identified under SEPP 64.

16.3.4 Australian Standards (AS)

a) Some AS contain provisions relating to the construction and external illumination devices for signage that need to be complied with. The relevant AS include:

   i) AS 4282 - Control of the Obtrusive Effects of Outdoor Lighting;

   ii) AS/NZS 1170.0:2002, Structural Design Actions, Part 0:General Principles;

   iii) AS/NZS 1170.2:2011,Structural Design Actions, Part 2: Wind Actions; and

   iv) AS 4852.1-2009 Variable Message Signs

Note:

Where signs are erected without prior development consent (where consent is required), Council may commence action under the provisions of the Environmental Planning and Assessment Act 1979, requiring removal of the signs, issuing fines or commencing court action.

Note:

State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 specifies certain types of signs as exempt or complying development. Exempt development does not require development consent from Council. Complying development requires a complying development certificate (CDC) to be issued by an accredited certifier or council, prior to work undertaken by the applicant.

Note:

Signs that may fall outside the type of signs defined under Section 16.2 Types of Signs and Definitions will be assessed on their merits.

16.4 General Requirements - Advertising and Signage

16.4.1 Restrictions

a) The following types of advertising and signage shall not be permissible within the Campbelltown LGA:

   i) Above awning signs;

   ii) Banner or flag signs in zones other than business and industrial zones including bunting;

   iii) Inflatable signs;

   iv) Portable or movable signs;

   v) Moving signs;

   vi) 'A frame' signs on public land;

   vii) Roof or sky signs;

   viii) Posters on poles or other structures in public places;

   ix) Flashing signs;

   x) Dynamic Electronic Displays that are visible to drivers; and

   xi) Billboard Sign.

Note:

All development applications for sings needs to comply with Schedule 1 of SEPP 64, available form NSW legislation website at: www.legislation.nsw.gov.au

16.4.2 Design and location

a) Signage attached to buildings shall be designed, located, scaled and sized having regard to the architectural style,features scale and design of the facades of the building.

b) Signage shall not dominate landscaped and public domain areas.

c) Free standing signage shall be designed to have regard to the size, height and scale of nearby buildings and their architectural elements.

d) Signage shall not protrude above any parapet or eaves.

e) All signage shall be designed to minimise opportunities for graffiti artists.

f) Signs shall be constructed of a material

that is of high quality and durable.

g) Signage shall not contain reflective materials, colours and finishes.

h) Signage shall not cause any nuisance to nearby occupants as a result of glare or light spillage.

16.4.3 Public Safety

a) Signs and their supporting structures shall be structurally sound and constructed in manner to maintain pedestrian and traffic safety.

b) Signs shall be designed and erected so to:

i) not to compromise driver and pedestrian safety;

ii) avoid confusion with road traffic signs and signals;

iii) not obscure a road hazard, oncoming vehicles, pedestrians; and

iv) avoid advertising messages, designs or bright lighting that may distract motorists.

16.4.4 Contents

a) Signs that contain wording in a language other than English shall have an English translation of that wording to a minimum font size of 50% of the non-English word/s.

16.4.5. Maintenance of signs

a) All signs shall be maintained to a high standard, including any advertising surface, structure and finish.

Note: Council may direct the owner of an advertising sign that is unsightly, unsafe or likely to threaten public safety, to take any necessary action to remove or repair the sign/structure.

16.4.6. Illumination

a) Illuminated signs shall:

i) have its means of illumination,

including any associated cables, concealed or integrated within the frame of the sign;and

ii) not be animated, flashing or moving.

16.4.7 Development Application for Signs

a) All development applications for a signage shall include photomontages of the sign and its relationship to the adjacent road environment, particularly traffic control devices or areas such as junctions/intersections and curves or crests.

16.4.8 Digital Signs

a) Digital Signs shall meet the following criteria:

i) Advertisements shall not include videos or animations or animated effects such as 'fade', 'zoom' or 'fly-in'.

ii) The display screen shall not be split to display multiple advertisements on the one electronic display.

iii) Each change of content shall be completed instantaneously (i.e. within 0.1 of a second).

iv) Each content shall have a self contained message that is simple, effective and easily understood at a glance.

v) Sequential messages shall be avoided.

vi) Where changing content is proposed Dwell times for image display are:

- 10 seconds for areas where the speed limit is below 80km/h; and
- 25 seconds for areas where the speed limit is 80km/h and over. Longer dwell times may be required by Council depending on the surrounding environment.

vii) In the event of a malfunction or

Note:

There has been a recent increase in the use of digital signs. This has necessitated a need to provide additional controls for these types of signs within the Plan. Council may consider the provision of digital signs at any location where a standard static sign is considered appropriate, providing the digital sign is managed in such a way that it does not create any additional road safety concerns or negatively impact on adjoining residents.

failure of either the advertising copy display, or hardware/system/ software the device must display (default to) a blank black screen.

viii) All digital signs must be equipped with a sensor to measure the ambient light level of the surrounding environment and adjust the sign luminance levels accordingly. Such control systems shall be programmed to adopt a set of minimum levels of stepped dimming to suit a range of ambient light levels.

ix) Luminance levels of digital signs shall comply with the requirements in Table 16.1.

x) Luminance levels of illuminated signs shall comply with the requirements in Table 16.2.

xi) Renewable energy sources should be considered to power digital signs.

xii) A digital sign shall not be located higher than 3 metres from ground floor level (existing).

xiii) In addition to the requirement under Section 16.4.7 of this part, the development application for a digital sign shall include:

- details of the location of any other, electronic signs within 200 metres of the site;
- details of the electronic system to be used including intensity control limits and methods (including light sensor) and error detection;
- details of the proposed dwell time for any non-static images;
- details of the power supply and cables.

Note:

A digital sign shall generally exhibit the same level of brightness in all lighting conditions, by maintaining a consistent ratio between the ambient light (illuminance) and light emitted by the sign (luminance).

This allows the sign to be easily read and reduces the time taken for drivers to view its content.

Due to the fast rate of change in ambient light during dusk and dawn periods, particular attention needs to be given to the luminance levels that are output during these periods to ensure that a consistent apparent brightness is maintained. This removes the risk that a driver will be distracted by changing sign brightness.

16.4

General Requirements

Advertising and Signage

Table 16.1 Maximum Luminance levels for Digital Signs

Lighting conditions	Areas 1 and 2	Area 3
Day Time Luminance	6000 cd/sqm	6000 cd/sqm
Morning and Evening Twilight and Inclement Weather	700 cd/sqm	500 cd/sqm
Night	350 cd/sqm	zero to 150*

* Zero to 150, luminance level within Area 3, at Council's discretion and subject to the location of the sign in relation to the residential properties and surrounding environments.

Source: Based on the information provided under the Draft Transport Corridor Outdoor Advertising and Signage Guidelines – November 2015

Table 16.2 Maximum Allowable Daytime Luminance of Illuminated Signs (Not Digital Signs)

Illuminated Area (sqm)	Areas 1	Area 2	Area 3
less or equal to 0.5	2900 cd/sqm	2000	1000 cd/sqm
Greater than 0.5 and less than or equal 2.0	2300cd/sqm	1600	800 cd/sqm
Greater than 2.0 and less than or equal 5.0	2000cd/sqm	1200	600
Greater than 5.0 and less than or equal 10	1500	1000	600
Greater than 10.0	1200	800	400

Source: Based on the information provided under the Draft Transport Corridor Outdoor Advertising and Signage Guidelines – November 2015

Areas 1, 2 and 3 under Tables 16.1 and 16.2 above

Area 1 covers areas with generally high off-street ambient lighting e.g. some major shopping/commercial centres with a significant number of off-street illuminated advertising devices and lights.(eg Blaxland Road)

Area 2 covers areas with generally medium off-street ambient lighting e.g. small to medium shopping/ commercial centres (eg Queen Street) .

Area 3 covers areas with generally low levels of off- street ambient lighting e.g. rural and residential areas.

16.5 Signs within Residential, Rural and Environmental Protection Zones

Objectives:

- Ensure that the amenity of residential, environmental protection and rural areas is not adversely affected by the provision of outdoor signage for non-residential uses.

Design Requirements

a) Only the following types of business identification signs shall be permissible on land zoned for residential, rural and environmental protection zones (subject to Council's consent):

   i) wall signs;

   ii) window signs;and

   iii) freestanding pylon and directory board signs;

16.5.1 Wall Signs

a) A wall sign shall:

   i) not result in more than 4 business identification signs of this type for the building (which may refer to more than 1 business within the building);

   ii) be attached to the building in which the business identified in the sign is located; and

   iii) not cover any window, door or architectural feature

b) Wall signs within residential, rural and environmental protection zones associated with a home business, home industry or home occupation shall be:

   i) illuminated only during approved hours of operation;

   ii) not reflective;

   iii) not to exceed a height greater than 2.0 metres above natural ground level;and

   iv) not larger than 1.5sqm in area.

c) Wall signs within residential, rural or

environmental protection zones for uses other than a home business, home industry or home occupation shall be:

i) illuminated only during approved hours of operation;

ii) not reflective;

iii) not exceeding a height greater than 2.5 metres above natural ground level and not be larger than 3.0sqm in area;

16.5.2 Window Signs

a) Windows sign shall not be illuminated

b) Window signs within residential, rural and environmental protection zones associated with a home business, home industry or home occupation shall be:

i) restricted to one sign per property;

ii) not cover more than 25% of the surface of the window in which it is displayed on or 6sqm, whichever is the lesser.

16.5.3 Freestanding pylon and directory board signs

a) Freestanding pylon and directory board signs within residential, rural and environmental protection zones associated with a home business, home industry or home occupation shall be:

i) restricted to one sign per property;

ii) not exceed 1sqm in area;

iii) not exceed 2 metres in height; and

iv) not be illuminated

b) Freestanding pylon and directory board signs within residential, rural and environmental protection zones associated with a use other than a home business, home industry or home occupation shall:

i) not exceed 1.5sqm in area;

ii) not exceed 3 metres in height; and

iii) not result in more than one such freestanding sign for each street frontage of the lot on which the development is located.

16.6 Signs within Business, Industrial and Special Purpose Zones

Objectives:

- Reduce signage clutter throughout Business centres.
- Provide for the orderly display of signs.
- Encourage the use of sign themes in commercial areas.
- Ensure that advertising signs complement the existing streetscape; and
- Ensure that signs are designed to minimise impacts on residential areas.

16.6.1 Number of signs per premises

a) Not withstanding any other requirement of this part, the total number of signs installed on any building elevation facing a public space shall not exceed 6.

16.6.2 Building Identification Signs

a) Building identification signs shall:

i) be limited to one sign per street frontage.

ii) incorporate a maximum area of 3sqm.

iii) contain only the name of buildings; and

iv) not be located higher than the parapet or eaves of the building, or 15 metres above ground level (existing) whichever is lower.

16.6.3 Business identification signs

a) Corporate colour schemes associated with business identification shall only be permitted where the consent authority is satisfied that the colour scheme is compatible with the desired future character of the area and will not detract from the appearance of the building and its surroundings.

16.6.3.1 Wall Signs

a) Only one wall sign per building elevation shall be permitted.

b) A wall sign shall:

i) not result in more than 4 business identification signs of this type for the building (which may refer to more than 1 business within the building);

ii) be attached to the building in which the business identified in the sign is located;

iii) where located on land zoned for commercial purposes, excluding areas zoned B5 under the CLEP, not be more than 6sqm in area or 20% of the building elevation, whichever is the lesser;

iv) where located on land zoned for industrial zone or zone B5 under the CELP, not be more than 18sqm in area or 20% of the building elevation, whichever is the lesser;

v) not project beyond the parapet or eaves of the building to which it is attached; and

vi) not cover any window, door or architectural feature

vii) Council may consider varying the size of a wall sign within commercial and industrial areas, where a wall sign area has been incorporated as part of the architectural design of the building and where Council is of the opinion that the proposed wall sign is of appropriate scale in relation to the building, streetscape and the surrounding environment.

16.6.3.2 Fascia signs

a) Fascia signs shall:

i) be securely fixed to the fascia;

ii) not be more than 2sqm in area;

iii) not project below, above or beyond the sides of the fascia;

iv) be at least 600mm behind the alignment of any kerb within the adjacent road; and

v) not be illuminated.

16.6.3.3 Under awning signs

a) Under awning signs shall:

i) not result in more than one sign of this type for each ground floor tenancy;

ii) not be more than 2 sqm in area;

iii) be erected with the lower edge at least 2.6 metres above ground level (existing);

iv) be suspended at right angles to the building;

v) not project beyond the awning fascia;

vi) be at least 600mm behind the edge of the kerb;

vii) include a separation distance of 3 metres from other under awning signs

16.6.3.4 Top hamper signs

a) Top hamper signs shall:

i) not result in more than one sign of this type for each ground floor tenancy;

ii) not be more than 3sqm in area;

iii) not be more than 600mm in height,

iv) not be more than 100mm in depth;

v) be erected with the lower edge at least 2.1 metres above ground level (existing), and

vi) not project below the transom of any doorway or display window.

16.6.3.5 Window Signs

a) Window signs shall not cover more than 30% of the surface of the window in which it is displayed or 8sqm, whichever is the lesser.

16.6.3.6 Projecting wall signs

a) Projecting wall sings shall:

i) not result in more than 4 business identification signs of this type for the building (which may refer to more than 1 business within the building) so long as only one sign is visible on each elevation of the building;

ii) not project beyond the parapet or eaves of the building to which it is attached;

iii) where located in a business zone:

– not project more than 0.9 metres horizontally from the facade of the building;and

– be no more than 1.8sqm in area;

iv) where located in an industrial or special purpose zone:

– not project more than 1.5 metres horizontally from the facade of the

building;;

- be no more than 3sqm in area.

16.6.3.7 Freestanding pylon and directory board signs

a) Freestanding pylon and directory board signs shall:

i) not result in more than one such freestanding sign for each street frontage of the lot on which the development is located;

ii) not exceed a height of 8 metres, above natural ground level to the highest point of the sign/ structure;

iii) not have an area for the sign of more than 8sqm where the lot is occupied by one commercial tenant;

iv) where the building is occupied by more than one tenant, the minimum area of 8sqm shall be increased by 1 additional square meter per additional occupancy to a maximum of 18sqm;

v) be only permitted where the building has a minimum 10 metre building setback from the primary road frontage.

16.6.3.8 Banner or flag sign

a) Banner or flags signs shall:

i) not result in more than one sign of this type per site;

ii) not exceed a height of 8 metres above natural ground level to the highest point of the sign/ structure;

iii) not be more than 3sqm in area;

iv) be erected with the lower edge at least 2.6 metres above footpath pavement level and 5 metres above vehicle pavement level.

16.6.3.9 'A' Frame Sign

a) 'A' Frame Sign signs shall:

i) not result in more than one sign of this type per occupancy;

ii) not located on footpath or public land;and

iii) not be more than 0.8sqm in area.

16.7 Signs on mixed use residential development

This section applies to signs on mixed use development, where the upper levels consist of residential dwellings (shop top housing or residential apartment buildings) regardless of the zoning of the land.

Objectives:

- Ensure that advertising signs complement the existing streetscape; and
- Ensure that signs are designed to minimise impacts on the occupants of residential dwellings located at higher levels.

a) Signs on the commercial component of the building shall comply with section 16.6 of this part as it applies to business zones.

b) No advertisement shall be permitted on any part of the residential component of the building.

c) Signs shall not impact negatively on the residential amenity of the occupants of the residential component of the building.

d) Illuminated signs shall only be permitted where they do not impact on the residential amenity of the occupants of the residential dwellings .

16.8

Signs on Heritage Items & within Heritage Conservation Areas

16.8 Signs on Heritage items and within Heritage Conservation Areas

Objectives:

- Minimise the impact of signs on the heritage significance of heritage items and heritage conservation areas.
- Ensure that the size, colour, location and design of signs do not dominate the architectural elements of heritage items and heritage conservation areas.

a) Advertising signs on heritage items and within heritage conservation areas shall be in harmony with the character of the heritage item or place and its heritage setting.

b) Only the following types of signs shall be permissible on land occupied by a heritage item or on land located within a heritage conservation area (subject to Council's consent):

   i) wall sign (only on buildings that are not heritage listed);

   ii) top hamper sign;

   iii) fascia sign;

   iv) under awning sign; and

   v) window sign.

c) The number of signs is limited to those necessary to display the name of the business and/or proprietor and the name of the building (if applicable).

16.8.1 Wall Signs

a) Wall signs shall:

   i) not be constructed or installed on a heritage item;

   ii) not exceed 2sqm in area;

   iii) be limited to one sign per building;

   iv) not exceed a height of 600mm; and

   v) not project beyond the parapet or eaves of the building to which it is attached, but in any case shall not project more than 100mm;

16.8.2 Top hamper Signs

a) A top hamper sign shall:

i) not be more than 2.5sqm in area;

ii) not be more than 600mm in height;

iii) not project below the transom of any doorway;

iv) not project below the top of the doorway or display window;

v) be permitted on heritage buildings only where a specified advertising space has been provided within the building fabric;

vi) be flush to the external face of the elevation, but in any case shall not project more than 100mm; and

vii) not cover any window or architectural features of the building;and

viii) not be illuminated

16.8.3 Fascias Signs

a) Fascias signs shall:

i) be permitted on heritage buildings where a specified advertising space has been provided within the building fabric;

ii) be permitted providing architectural features are not painted over or obscured;and

iii) not project above or beyond the edges of the facia.

16.8.4 Under Awning Signs

a) Under awning sign shall:

i) be permitted on heritage buildings where a specified advertising space has been provided within the building fabric;

ii) have a minimum clearance of 2.6 metres above the footpath;

iii) not be more than 2.5 metres in length;

iv) be erected with the lower edge at least 2.6 metres above ground level (existing);

v) be suspended at right angles to the building; and

vi) not project beyond the awning fascia.

16.8.5 Window Signs

a) Window signs shall:

i) not dominate or clutter the shop front window;and

ii) not cover more than 20% of the surface of the window in which it is displayed or 6sqm, whichever is the lesser.

16.9 Service Station Signs

Given the location of service/petrol stations within various land use zones within the City, specific controls are required. This Section sets out the requirements for signs on service stations across the Campbelltown LGA.

Objectives:

- Allow service stations the opportunity to advertise, whilst minimising any visual impact.

a) Freestanding pylon signs on sites used as a service station (including petrol price pole signs and advertising pole signs) shall:

   i) be limited to one per street frontage;

   ii) be no more than 6.0 metres in height,

   iii) not exceed a total area of 8.0 square metres ;

   iv) contain only corporate identity and pricing details; and

   v) be located adjacent to vehicular entrance to the site.

b) Canopy fascia signs shall be limited to trade name and corporate identification only.

c) Illuminated signs and floodlighting of work and service areas shall not be permitted for use outside of approved trading hours.

Part 17
Boarding Houses and Co-Living Housing

17.1 Application

This Part of the Plan sets out development controls relating to boarding house and co-living housing including newly proposed boarding houses and co-living housing or the conversion or adaptation of an existing building to either of these land uses within the Campbelltown LGA.

Note:

All boarding house and co-living housing developments shall be subject to annual fire safety and compliance inspections by Council.

The Boarding House Act 2012 (BH Act) sets out registration requirements and occupancy principles for 'registrable boarding houses' (as defined under the BH Act) to ensure delivery of quality accommodation services and protection of the wellbeing and living amenity of residents.

The BH Act is available for view the NSW legislation website at:

www.legislation.nsw.gov.au

Note:

This Part shall be read in conjunction with the provisions of the State Environmental Planning Policy (Housing) 2021 (Housing SEPP).

Building Code of Australia

Boarding houses may be classified as Class 1b or Class 3 under the BCA, depending on the number of residents. Class 3 buildings are subject to more stringent fire safety requirements. For further information refer to the BCA.

Note:

Under the CLEP, and the ARH SEPP boarding houses are permissible within the following zones:

- R3 Medium Density Residential;
- R4 High Density Residential;
- B1 Neighbourhood Centre
- B2 Local Centre; and
- B4 Mixed Use;

Fig 17.1 A boarding house in Campbelltown

17.2

General Requirements for Boarding Houses and Co-Living Housing

17.2 General Requirements for Boarding Houses and Co-Living Housing

Objectives:

- Ensure that boarding house and co-living housing developments are of high quality design and consistent with the desired future character of the locality;
- Ensure that boarding houses and co-living housing developments do not adversely impact on the residential amenity of adjoining residents.
- Provide appropriate levels of amenity (internal and external) for residents within boarding houses and co-living housing.
- Ensure that boarding house and co-living housing developments are designed to provide sufficient communal facilities for the occupants in terms of communal indoor and outdoor areas, kitchen and laundry facilities.

17.2.1 Site and Size Requirements

a) Boarding houses located within land zoned R2 Low Density Residential zone under the CELP or land zoned Zone 2(b) Residential B Zone under LEP 2002 shall have a maximum of 12 boarding rooms.

b) Any sites proposing the construction of a boarding house or co-living housing development must have a minimum road frontage of 15 metres and a minimum site area which meets the following requirements, for both land uses, in the R3 (Medium Density) and R4 (High Density) zones: -

   i) R3 - Minimum lot size of 800 sqm;

   ii) R4 - Minimum lot size of 1,200 sqm.

c) No boarding house or co-living housing development is permitted to be erected on a battle-axe allotment.

d) No boarding house or co-living housing development shall be permitted on properties where any part of the allotment is within 50 metres of the commencement of the head of a cul-de-sac to which vehicular access to the site is obtained.

e) No Boarding house or 'co-living housing' development shall be permitted on any

Note

For the purpose of this Part:

Low and medium density residential areas shall be taken to mean any land zoned R2 Low Density Residential, R3 Medium Density Residential, under the CLEP, or where relevant, any land zoned Zone 2(b) Residential B Zone under LEP 2002.

High density residential areas shall be taken to mean any land zoned R4 High Density Residential under the CLEP, or where relevant any land where residential apartment buildings are permissible under LEP 2002.

Local and neighbourhood centres shall be taken to mean any land zoned B1 Neighbourhood Centre or B2 Local Centre under the CLEP or where relevant areas zoned Zone 3(c) Neighbourhood Business Zone under LEP 2002.

Mixed use areas shall be taken to mean any land zoned B4 Mixed Use under the CLEP, or where relevant areas zoned Zone 10 (a) Regional Comprehensive Centre Zone under LEP 2002.

streets/roads etc. that are unable provide on-street parking.

f) Boarding houses or 'co-living housing' development within local, neighbourhood centres and mixed use areas are not permitted to be located at the ground floor level.

17.2.2 Streetscape

Design Requirements

Development consent will not be granted to any new 'boarding house' and /or 'co-living housing' development unless Council is satisfied that: -

a) the design of the 'boarding house' or 'co-living housing' development will be compatible with –

   i) the desirable elements of the character of the local area, or

   ii) for precincts undergoing transition—the desired future character of the precinct.

b) The design of new purpose built buildings (including facade treatments, building massing, roof design and entrance features, setbacks and landscaping) shall complement the scale of the surrounding development.

c) New buildings on corner sites shall incorporate facade treatments that address both street frontages and achieve positive articulation in building design.

d) Clothes lines and air conditioning units shall be screened and not visible by the public when viewed from a public area.

17.2.3 Setbacks - Low and medium density Residential Areas

a) All boarding house and co-housing living developments shall be set back a minimum of:

Boarding Houses (as defined under the CLEP) means a building that:

i) is wholly or partly let in lodgings, and

ii) provides lodgers with a principal place of residence for 3 months or more, and

iii) may have shared facilities, such as a communal living room, bathroom, kitchen or laundry, and

iv) has rooms, some or all of which may have private kitchen and bathroom facilities, that accommodate one or more lodgers,

but does not include backpackers' accommodation, a group home, hotel or motel accommodation, seniors housing or a serviced apartment.

i) 5.5 metres from the primary street boundary;

ii) 3 metres from the secondary street boundary;

iii) 0.9 metres from any side boundary at the ground level;

iv) 1.5 metres from any side boundary for all levels above the ground level;

v) 5 metres from the rear boundary at the ground level; and

vi) 10 metres from the rear boundary for all levels above ground level within land zoned Zone 2(b) Residential B Zone under LEP 2002 or land zoned R2 under the CLEP.

vii) 6.5 metres from the rear boundary for all levels above ground level within land zoned R3 under the CLEP.

b) Notwithstanding 17.2.3 a) i) and ii), any garage shall be setback a minimum of 6 metres from any street boundary.

c) Any 'boarding house' or 'co-living housing' development which is constructed to at least 3 storeys in height must demonstrate compliance with the minimum building separation distances specified in the Department of Planning and Environment's 'Apartment Design Guide'.

17.2.4 Setbacks - (High density residential areas)

a) Boarding house and co-living housing developments within high density residential areas shall be setback a minimum of:

i) 5.5 metres from any street boundary; and

ii) 6 metres from any other boundary.

17.2.5 Setbacks - (Local and neighbourhood centres

a) Boarding house and co-living housing developments located on land within neighbourhood and local centres shall be setback a minimum of:

i) 3 metres from the primary street boundary;

ii) 3 metres from the secondary street boundary;

iii) 3 metres from any side boundary where it adjoins residential properties or public open space;

iv) 0.9 metres from the side boundary in any other case;

v) 6 metres from the rear boundary where it adjoins residential properties or public open space;

vi) 3 metres from the rear boundary in any other case.

b) Despite clause 17.2.5 a) iv) above, boarding house and co-living housing developments shall be permitted to be built on the side boundary where in Council's opinion the proposed development is considered as a continuation of an adjacent development within the same section of the streetscape.

c) Despite clause 17.2.5 a) vi), reduced rear setbacks shall be considered on merits.

17.2.6 Setbacks - (Mixed Use areas)

a) Boarding house or co-living development within mixed use areas shall be setback a minimum of:

i) zero metres from any street boundary; and

ii) 6 metres from any other boundary.

17.2.7 Shared facilities

Development consent will not be granted unless Council is satisfied that: -

a) No 'boarding house' or 'co-living housing' room shall be occupied by more than 2 adults or have a gross floor area, excluding an area, if any, used for the purposes of private kitchen or bathroom facilities, which does not exceed more than 25m2 and is not less than—

i) 12sqm for a private room intended to be used by a single occupant, or

ii) otherwise— 16sqm

b) Adequate bathroom, kitchen and laundry facilities shall be provided within the 'boarding house' or 'co-living housing' development for the use of each resident, in the following manner.

c) Where shared bathroom facilities are proposed, they shall be provided at the following rates:

   i) A minimum of 1 bath or shower for each 10 occupants or part thereof;and

   ii) in addition, one accessible toilet and one accessible shower where the number of residents exceeds 5 or more;and

   iii) a closet pan and a washbasin with hot and cold running water for each toilet provided; and

d) Where the number of residents is 5 or less, the common toilet/shower shall also be accessible for people with disabilities.

e) Toilets shall be able to be accessed separately from the shower, so that toilet and the shower may be used by two separate people at the same time.

f) Where communal kitchen facilities are proposed, they shall be provided at the following rates:

   i) a minimum area of 8sqm for up to 10 occupants and 1sqm additional area for every 2 occupants thereof.

g) Laundry and clothes drying facilities are to be provided at a rate of:

   i) 1 washing machine and washing tub for every 10 occupants or part thereof; plus

   ii) 1 clothes dryer for every 10 occupants or part thereof and;

   iii) 1 fixed clothesline of at least 30 metres for every 10 occupants or part thereof.

17.2.8 Indoor Communal living areas

a) Indoor communal living areas for a boarding house or co-living housing development containing 6 boarding rooms shall be –

i) a total of at least 30sqm of communal living area, and

ii) minimum dimensions of 3m for each communal living area,

b) Indoor communal living areas for a boarding house or co-living housing development containing more than 6 boarding rooms shall be-

i) a total of at least 30sqm of communal living area plus at least a further 2sqm for each boarding room in excess of 6 boarding rooms, and

ii) minimum dimensions of 3m for each communal living area.

c) Co-living housing developments shall also provide an appropriate workspace for the manager, either within the communal living area or in a separately designated area.

17.2.9 Solar Access

a) A minimum 3 hours of direct solar access shall be provided into at least one (1) of the proposed communal living areas between 9:00am and 3:00pm on 21 June.

b) Dwellings on adjoining properties are to receive a minimum of 3 hours sunlight in habitable rooms and in at least 50% of the private open space between 9:00am and 3:00pm on 21 June. a) A minimum 3 hours of direct solar access shall be provided into at least one (1) of the proposed communal living areas between 9:00am and 3:00pm on 21 June.

c) Where existing adjoining development currently receives less sunlight than this requirement, this should not be unreasonably reduced. In order to demonstrate what can be achieved, shadow diagrams may be required with the development application.

17.2.10 Site Services Boarding Houses and Co-Living Housing

a) The location, design and construction of utility services shall satisfy requirements of

the relevant servicing authority and Council.

b) Adequate provision shall be made available for all essential services (i.e water, sewerage, electricity, gas, telephone, internet and stormwater drainage).

c) All site services shall be placed underground.

d) All communication dishes, antennae and the like shall be located to minimise visual prominence.

17.2.11 Visual Privacy

a) No window of a habitable room or balcony shall directly face a window of another habitable room, balcony or private open space of another dwelling located within 6 metres of the proposed window or balcony unless appropriately screened.

b) Notwithstanding Clause 3.4.3.2 a) any window of a living room located on an upper level shall:

i) be offset by 2 metres to limit views between windows and balconies; or

ii) have a sill height 1.7 metres above the floor level; or

iii) be splayed to avoid direct views between windows; or

iv) have fixed translucent glazing in any part of the window within 1.7 metres of the floor level.

c) Notwithstanding 17.2.11 a), a balcony will only be considered where the private open space area of any adjacent dwelling is screened from view.

17.2.12 Signage

a) Signage shall be limited to a maximum of 1 sign per building, detailing only the name and address of the premises and contact details of the managing agent.

b) Signage must be affixed to the front elevation and not to the fence.

c) The sign shall have a maximum area of 0.25sqm

and a maximum height of 0.5 metres.

d) Signage shall be non-illuminated.

17.2.12 Private Open Space

a) A minimum of one communal private open space area shall be provided for use by all lodgers which is at least 20% of the total site area in size, with a minimum dimension in each direction of 3m.

b) A minimum of one communal private open space area of 20 m^2 with a minimum dimension in each direction of 3 m shall to be provided for use by lodgers.

c) Where the boarding house or co-living housing development is not within walking distance (400 m) to a public park the communal private open space shall have a minimum area of 30 m^2 with a minimum dimension in each direction of 3 m^2.

d) The area of the communal private open space shall be directly adjacent to, and accessible from, the main indoor communal living area.

17.3 Car Parking and Access

Objectives:

- Ensure that the location and design of driveways and parking areas, waste access and collection areas are practical, easily maintained, convenient, safe and suitably landscaped.
- Ensure that the surrounding street network and intersections continue to operate safely and effectively.
- Minimise parking arising from boarding houses on local streets.

17.3.1 Car Parking

Design Requirements

a) Car parking areas shall be setback a minimum of 3 metres from the front boundary and any secondary boundary.

b) Off street parking and loading shall be designed in accordance with *Australian Standards 2890* (*as amended*), except as otherwise provided by this Plan.

c) No required car parking space shall be designed in a stacked configuration.

d) A boarding house or co-living housing development shall have a maximum of one ingress and one egress driveway.

e) The minimum width of a driveway serving a boarding house shall be 3 metres.

f) Driveways shall :

   i) be located a minimum distance of 6 metres from the tangent point of any unsignalled intersection; and

   ii) be sealed.

Note: In circumstances where an intersection is controlled by lights, a roundabout or the like, applicants are requested to contact Council for specific requirements, as the location

Note:

Clauses 24 (2) (i) and 68 (2) (e) of the Housing SEPP states that the following on-site car parking rates shall respectively apply for any proposed boarding house or co-living housing development : -

(i) in the case of development in an accessible area—at least 0.2 parking spaces are provided for each boarding room, and

(ii) in the case of development not in an accessible area—at least 0.4 parking spaces are provided for each boarding room, and

(iii) in the case of any development—not more than 1 parking space is provided for each person employed in connection with the development and who is resident on site,'.

Additionally, clauses 25 (2) (d) and 69 (2) (d) of the Housing SEPP states that:

'(d) at least one parking space will be provided for a bicycle, and one will be provided for a motorcycle, for every 5 boarding rooms or co-living housing rooms'.

Please note:Car parking requirments for boarding houses except where provided by a social housing provider is 0.5 spaces per bedroom in all locations.

of the driveway may vary.

g) Sufficient space shall be provided on site so that no vehicle shall be required to make more than a three-point turn to exit the site in a forward direction.

h) All car parking spaces shall be line marked and delineated with appropriate signage and pavement marking.

i) Car parking areas shall be designed and sized so that only one three-point turn is required for exiting/entering the site in a forward direction.

17.3.2 Access for People with Disabilities

Design Requirements

a) Boarding houses and co-living housing developments shall comply with the minimum access requirements contained within the BCA and *Australian Standard 1428 – Design for Access and Mobility* (as amended).

17.4
Landscaping

17.4 Landscaping

Objectives:

- To encourage the planting of native and low water consumption plants and trees.
- To enhance the existing streetscape and promote a scale and density of planting that softens the visual impact of buildings, while maintaining opportunities for passive surveillance.

Design Requirements

a) Landscaping shall be provided to a minimum of a:

   i) 3 metre wide strip along the primary and secondary street frontage (other than vehicle driveways); and

   ii) 1.5 metre wide strip along the full width of the rear setbacks.

b) Native mature trees on site shall be retained.

c) Car parking areas located in the front building setbacks must be screened by appropriate hedging plant species at suitable spacing.

d) Development applications for boarding houses and co-living housing shall include a Landscape Plan and report, prepared by a suitably qualified consultant, that addresses the following: species, location and mature height of proposed planting;

   i) a detailed landscape design plan including the proposed driveway areas and fencing height/materials;

   ii) a minimum of 20 per cent of the total site area shall be available for deep soil planting; and

   iii) no more than 30 per cent of the area forward of any building line shall be surfaced with impervious materials.

17.5 Waste Management

Objectives:

- Ensure that appropriate facilities are provided for the storage and collection of waste generated by boarding houses and co-living housing developments.

17.5.1 Boarding Houses, Co-Living Housing and Waste Management

a) Boarding house' and 'co-living housing' developments shall make provision for waste storage, allocated behind the primary and secondary setbacks and out of public view. Provision shall be made for the following rates of waste generation:

   i) Garbage: 1 x 240-litre bin for every 3 boarding house/co-living housing rooms per week if bins are to be used on a shared basis, or 1 x 140-litre bin for every boarding / co-living housing room per week if bins are to be allocated to individual boarding / co-living housing rooms.

   ii) Recyclables: 1 x 240-litre bin for every 3 boarding / co-living housing rooms per fortnight if bins are to be used on a shared basis, or 1 x 240-litre bin for every boarding house or co-living housing room per fortnight if bins are to be allocated to individual boarding rooms.

b) All boarding house and co-living housing developments shall make provision for an appropriately sized waste/recycling bin storage facility that is centrally located and provides convenient access for occupants and collection contractors:

   i) provide for storage of a sufficient number of bins, as outlined under Section 17.5.1 a) above;

   ii) be no more than 30 metres from the collection point;

Note:

Refer to Section 2.15 of Part 2 of Volume 1 for additional requirements on Waste Management.

iii) be covered;

iv) contain a hose connection;

v) have an impervious floor that is connected to the sewer;and

vi) incorporate design and construction (including colours, materials and finishes) that complement the development.

c) The bin storage facility shall have sufficient capacity to allow for:

i) Access, manoeuvring, cleaning and maintaining all bins by providing an extra 30% of the footprint of each waste container to the overall size of the storage area;

ii) Spacing of at least 50cm between all bins allocated for the development;

iii) All bins to be arranged side by side within the bin storage room (no stacking);

iv) A minimum 1.5m aisle between rows of bins to minimise potential obstructions; and

v) Future modifications of services, bin sizes and/or configurations by minimising the installation of fixed structures within bin storage areas.

d) The communal waste/recycling bin storage facility shall not be located in such a place that requires any bins to be transported through any habitable part of the boarding house or co-living housing development to reach the collection point.

e) All bins located within waste/recycling bin storage facility shall be presented to the kerbside for collection by a site manager, no earlier than the evening prior to scheduled collection and returned directly to the communal bin storage area within four hours of collection.

f) Any development containing 20 or

more bedrooms , and/or when the number of bins proposed cannot be accommodated within 50% of the development's frontage width on collection day, the development shall be designed to accommodate forward-in, forward-out, drive-on vehicular collection for on-site servicing by a heavy rigid vehicle. For the purpose of calculating the minimum area behind the kerb and gutter required for bin placement, each bin shall be provided a clear width of 1.0 metre which allows for a 300mm separation distance either side of each bin.

g) Developments must make provision for the storage of bulky waste (kerbside clean-up) materials, ensuring that:

   i) a minimum area of ten (10) square metres per building is provided;

   ii) the area is secure and caged for visibility into the enclosure;

   iii) the area is accessible to all residents and has a minimum doorway width of 1.5m; and

   iv) the area is not more than ten (10) metres from the waste collection point.

17.6 Management Plan

17.6 Management Plan

Objectives:

- Ensure that boarding houses maintain the residential amenity of adjoining neighbours.
- Ensure that the residents of boarding houses are provided with a satisfactory level of residential amenity.

Design Requirements

a) A management plan shall be prepared and lodged with the Development Application for any proposed Boarding House or Co-Living Housing development.

b) The management plan shall provide the following information:

i) A written statement confirming that the boarding house will always be used in perpetuity as 'affordable housing';

ii) Written details of the registered community housing provider that will manage the day-to-day operations of the completed boarding house;

iii) 24 hour contact details of the manager / caretaker (including phone number and mobile phone number);

iii) proposed staffing arrangements during the daytime and at night-time;

iv) proposed measures to control any potential noise or amenity impacts within the building and upon the surrounding locality;

v) proposed safety and security measures to be employed within the boarding house including prominent display boards within the building containing emergency telephone numbers and other essential telephone numbers;

Note:

All boarding houses shall be subject to annual fire safety and compliance inspections by Council.

The Boarding House Act 2012 (BH Act) sets out registration requirements and occupancy principles for 'registrable boarding houses' (as defined under the Act) to ensure delivery of quality accommodation services and protection of the wellbeing and living amenity of residents.

The BH Act is available for the NSW legislation website at:

www.legislation.nsw.gov.au

vi) proposed management practices to prevent the use of outdoor common open space areas between 10.00pm and 7.00am.; and

vii) professional cleaning and vermin control arrangements for at a minimum, the shared facilities, such as kitchens, bathrooms, laundries and indoor and outdoor common areas.

Part 18
Tattoo Parlour Premises

18.1 Application

This part sets out control for tattoo parlour premises within the City of Campbelltown. This part should be read in conjunction with the relevant LEP/IDO applying to the site to determine the zoning of the land and the permissibility of any proposed tattoo parlour premises.

Note:

Tattooing is defined under the Public Health Act 2010 as a skin penetration procedure.

For the purpose of this part tattooing includes:

Body art tattooing business(Tattoo Parlours Act 2012) means a business involving the carrying out of body art tattooing procedures (whether or not in combination with other tattooing procedures or with other activities).

Body art tattooing procedure (Tattoo Parlours Act 2012) means a tattooing procedure performed for decorative purposes, but does not include a cosmetic tattooing procedure.

Note:

For the purpose of this part tattoo parlour premises include:

- Body art tattooing business;
- Body art tattooing procedure.

Note:

This part does not apply to Cosmetic tattooing procedures. Cosmetic tattooing procedures include procedures performed for the purpose of providing eyeliner, eyebrow, or any permanent make up effect, or by a medical practitioner for a medical reason (eg hide, disguise or cover a medical condition or post-operative outcome).

18.2

General Requirements forTattoo Parlour Premises

18.2 General Requirements for Tattoo Parlour Premises

Objectives:

- Ensure tattoo parlour premises are appropriately located so as to minimise any potential adverse social or economic impacts upon surrounding locality.
- Identify relevant public health and safety standards that are required for all tattoo parlour premises.

18.2.1 Requirements for a development application

a) All tattoo parlour premises within Campbelltown Local Government Area require development consent issued under the Environmental Planning and Assessment Act 1979 (The Act) to legally operate.

b) Campbelltown City Council is the consent authority for the assessment and determination of development applications for skin penetration/ tattoo parlour premises.

18.2.2 Location requirements

a) The tattoo parlour premises shall not adjoin areas that are zoned residential.

18.2.3 Tattoo Parlour Registration and General Requirements

a) All tattoo parlour premises are required to be registered with Council under the provisions of the Public Health Act and the Local Government ant Act 1993 for on going health surveillance and regulatory purposes.

b) All tattoo parlours shall comply with the Tattoo Parlours Act 2012 and the Tattoo Parlours Regulation 2013. This Act and Regulation is governed by the Police and Department of Fair Trading and requires all tattoo parlours and tattoo artists to be licensed. For

Note:

Council's role in applying the planning controls for tattoo parlour premises is in addition to the regulatory functions of other Government agencies that contribute to the safe and legal operations of such premises. This Includes:

a) NSW Health who are responsible for safe health practices in any workplace;

b) SafeWork NSW regarding occupational health and safety issues in the workplace;

c) NSW Police Service with respect to complaints and issues relating to criminal behaviour; and .

d) Department of Fair Trading with respect to licensing of operators and tattoo artists.

further information please visit the following website: http://www.fairtrading.nsw.gov.au/Businesses/Specific_industries_and_businesses/Tattoo_parlours.html

c) A condition of any development consent issued for tattoo parlour premises shall require:

   i) written notification to Council of the person responsible for operating the premises (proprietor/licensee); and

   ii) environmental health inspection by Council to ensure compliance with construction/hygiene standards prior to commencement of the use of the premises.

18.2.4 Construction requirements

a) The internal walls of the premises shall be constructed to provide a smooth, even, and impervious surface that is capable of being easily cleaned.

b) The floor construction shall be finished in a smooth, non-slip, impervious material that is capable of being easily cleaned.

c) The ceiling of a tattoo treatment room/bay shall be constructed with rigid, non-absorbent, smooth faced material free from open joints, cracks and crevices and be painted with a light coloured washable paint.

d) The intersection of the walls and ceiling must be tight-jointed, sealed and dust proofed. Drop in panels are not permitted.

e) All gaps, open joints, cracks and crevices within the walls and floors which may allow dust, hair, lint and other residue to collect shall be sealed in all walls and floors to enable easy cleaning.

f) All service pipes and electrical

conduit shall be contained in the floor, walls or ceiling.

g) The internal and external surfaces of storage cabinets, cupboards, preparation benches and the like shall be finished in a smooth impervious material that is capable of being easily cleaned.

h) All surfaces of chairs and treatment beds must be finished in a smooth impervious material that is capable of being easily cleaned.

i) Provide appropriate ventilation to eliminate odours and fumes.

18.2.5 Sanitary Facilities

a) A hand washbasin shall be installed in all treatment rooms/bays.

b) The hand washbasin shall be serviced with a continuous supply of potable hot and cold water through a single outlet and fitted with a hands-off type tap set (portable handwash basins are not permitted).

c) The hand washbasins shall be provided with an adequate supply of soap and disposable handtowels from a dispenser at all times.

d) A toilet shall be provided for the client and all employees .

e) All toilets and wastewater collection facilities shall be connected to the sewer in accordance with the local authorities' requirements.

f) The toilet shall be provided with a hand washbasin serviced with hot and cold water through a single outlet and fitted with a hands-off type tap set (portable handwash basins are not permitted).

g) Provide an equipment wash sink of adequate size to clean and rinse all equipment and implements. The equipment wash sink shall be provided with a continuous supply of hot and cold water through a single outlet.

h) If reusable skin penetration implements are used, a designated cleaning and sterilisation work area shall be provided within the premises and designed in accordance with

AS4815:2006 Office based health care facilities - Reprocessing of reusable medical and surgical instruments and equipment and maintenance of the associated environment. This work area shall be separate from a treatment room/ lunch room and constructed so as to prevent the possibilities of contamination.

i) The cleaning and sterilisation area shall be provided with the following:

   i) A hand washbasin in an accessible and convenient location within the area. The basin shall be freestanding, serviced with hot and cold water through a single outlet, able to be mixed at a temperature of at least 40°C and fitted with a hands-off type tap set.

   ii) A double bowl wash sink of adequate capacity to clean and rinse all equipment and implements. The sinks shall be serviced with hot and cold water through a single outlet in addition to the hand basin;

   iii) All walls, floor, cabinets, cupboards, benches and the ceiling shall be provided with smooth and impervious surfaces that are free from gaps, cracks and crevices to enable easy cleaning. A drop in panel ceiling shall not be permitted

   iv) An approved autoclave operated in accordance with Australian Standard (AS) 4815:2006 Office-based health care facilities - cleaning, disinfection and sterilisation of re-usable medical and surgical instruments and equipment and maintenance of the associated environment. The autoclave shall be tested, serviced regularly and calibrated at least once a year by a qualified service technician. Details and documents of the services shall be provided and available at all times at the premises;

   v) An ultrasonic cleaner to clean all implements and equipment. An ultrasonic cleaner shall not be used as a method of sterilisation.

   vi) Sterilisation procedures must comply with

AS4815:2006 Office based health care facilities – Reprocessing of reusable medical and surgical instruments and equipment and maintenance of the associated environment.

j) A cleaner's sink shall be installed within the tattoo parlour premises and must be serviced with hot and cold water through taps fitted with hose connectors to adequately clean the premises and to dispose of all waste water.

18.2.6 Waste

a) General waste should be placed in plastic lined receptacles at the site of generation. Waste bags and containers must be tied and sealed and left in a secure waste bin to be collected by an approved waste transporter. (Protection of the Environment Operations (Waste) Regulation -1996)

b) Sharps and clinical waste must be placed into a sharps container immediately after use. The yellow sharps container must be approved by Australian Standards and comply with AS4261:1994 or AS 4031:1992. The sharps container must be collected and disposed of appropriately by an approved waste transporter to a treatment facility licensed by the EPA (Protection of the Environment Operations (Waste) Regulation 1996).

c) A Commercial Contractor Agreement for the disposal of all the generated waste from the premises shall be provided with the development application.

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Part 19
Seniors Housing and Housing for People with a Disability

19.1 Application

This part sets out controls for seniors housing and housing for people with a disability within the City of Campbelltown.

All proposed seniors housing development types are required to meet the standards for development detailed in Chapter 3 of State Environmental Planning Policy (Housing for Seniors or People with a Disability) 2004.

Objectives:

- Provide high quality seniors living developments across the LGA with dwellings and fittings designed to meet the needs of seniors and people with a disability
- Create a high quality residential environment focused on providing housing for seniors and people living with a disability
- Generate employment opportunities and economic growth across the Campbelltown LGA through the function of these facilities
- Development with a bulk and scale that is compatible with the character of the area
- Generate a good housing mix consistent with the Western District Plan and Greater Sydney Region Plan

19.2

Seniors Housing and Housing for People with a Disability

19.2 General requirements for seniors housing and housing for people with a disability

19.2.1 Requirements for a development application

a) A photomontage of the proposed development shall accompany any development application for seniors housing that is for more than 20 dwellings.

b) A detailed landscape plan prepared by an appropriately qualified landscape architect shall accompany development applications for seniors housing.

c) A detailed Waste Management Plan (WMP) prepared by an appropriately qualified waste management professional a waste audit is to be submitted as part of the waste management plan.

d) A detailed traffic and car parking assessment report that is suitably prepared by a qualified consultant report shall accompany the development application.

e) This section is to be read in conjunction with Clause 2.15 of the Campbelltown (Sustainable City) Development Control Plan. Which contains other requirements.

19.3 Additional controls relating to waste management

19.3.1 General Waste Requirements

a) The business operator must enter into a commercial agreement for general waste and recycling collection and disposal with a suitably licensed contractor. A copy of the agreement must be available for inspection upon request by Council.

All Residential Aged Care Facilities are considered to be a commercial operation, and on this basis would need to arrange commercial waste services through private contractor/s.

19.3.2 Waste Storage Areas

a) Open waste storage areas must:

i) Be appropriately covered and bunded to avoid stormwater entering the sewer;

ii) Be paved with impervious material;

iii) Be graded and drained to a waste water disposal system in accordance with Sydney Water's requirements; and

iv) Provide a hose tap connected to a water supply to enable easy cleaning.

b) Closed waste storage area/room must:

i) Be provided with smooth and impervious surfaces (walls and floors) and coved at the intersection of the floor and walls;

ii) Have floor areas that are graded and drained to a floor waste gully connected to the sewer;

iii) be well ventilated and proofed against pests; and

iv) be provided with water service hose connectors to enable easy cleaning.

c) All waste and recycling generated from the business is to be kept within an appropriate storage receptacle on the premises. Waste is not to be stored or placed outside of a waste storage receptacle or in such a manner that it

will become a litter, odour or health nuisance.

19.3.3 Residential Aged Care Facilities

a) Development shall make provision for an enclosed onsite waste storage area that provides adequate space to accommodate all streams of waste expected to be generated from the development.

b) Bin storage area to be provided for medical and cytotoxic waste, which must be separate from the bin storage area for general waste and recycling streams.

c) Bin storage areas to be constructed in accordance with clause 5.4.8.3 ((a) to (f)) of Part 5 of this plan.

d) General waste and recycling to be collected by a licensed contractor, and evidence of a service agreement to be provided to Council prior to occupation of the premises.

e) Medical and cytotoxic waste to collected by a licensed contractor, and evidence of a service agreement to be provided to Council prior to occupation of the premises.

f) Where on-site collection is proposed, the development must be designed to accommodate forward-in forward-out access for an Australian Standard heavy rigid vehicle.

g) Estimated waste generation rates are as follows:

- General waste 80L/bed/week
- Recycling 40L/bed/week
- Medical waste 1.3L/bed/week
- Cytotoxic waste 1.3L/bed/week

19.3.4 Independent Living Units and Self-contained Dwellings

a) Development shall comply with the appropriate section of the Plan DCP as follows:

i) Clause 2.15 provides the general waste requirements for all dwelling types.

ii) Clause 3.7.1.10 provides the requirements for attached dwellings (zone R3)

For independent living units and self-contained dwellings, it is assumed that no external care is provided (such as nursing for residential care facilities). On this basis, the relevant waste requirements will be determined by the development type and zone, bin storage arrangements (individual or shared) and proposed collection arrangements (kerbside or on-site collection).

iii) Clause 3.7.2.10 provides the requirements for multi dwelling housing (zone R3)

iv) Clause 5.4.8 provides the requirements for residential flat buildings and mixed use developments (zones R4, B3 and B4)

v) Clause 5.6.5 provides the requirements for mixed use developments (zones B3 and B4)

19.4 Additional controls relating to public health

a) The construction, fit-out and use of all cafes and food preparation areas must comply with the Food Act 2003, Food Regulation 2015, Food Standards Code Australia and New Zealand and Australian Standard 4674-2004: Design, construction and fit-out of food premises.

19.4.2 Public Health

a) The construction, fit out and use of all regulated systems, public swimming pools/spas, skin penetration premises, hairdresser/barber or beauty salons must comply with the Public Health Act 2010, Public Health Regulation 2010 and Local Government Act 1993.

19.4.3 Additional Requirements for Residential Aged Care Facilities

19.4.3.1 Body Holding Rooms

a) The Residential Care Facility must be provided with a Body Holding Room that is designed and constructed in accordance with the Local Government (General) Regulations 2005, Public Health Act 2010, Public Health Regulation 2012 and NSW Health Guidelines for Funeral Industry.

b) The location of the body holding room must be physically separated from

all public areas of the building in which it is situated but may be integral with the construction of the remainder of the building.

c) The body holding room must be capable of being sealed off from the remainder of the premises.

19.4.3.2 Chemical Storage Area

a) The chemical store room must be constructed with smooth and impervious floors, walls and ceiling to enable easy cleaning.

b) Appropriate ventilation, bunding and storage of the chemical must be provided within the room in accordance with SafeWork NSW and the Safety Data Sheets for each chemical to prevent any pollution incidents or risk to public health and safety.

c) All chemical waste must be collected and disposed of appropriately by a waste transporter and treatment facility licensed by the DEC – Department of Environment and Conservation (Protection of the Environment Operations (Waste) Regulation 2014).

19.4.3.3 Laundry Room

a) The laundry room must be constructed with smooth and impervious floors, walls and ceiling to enable easy cleaning.

b) Appropriate ventilation (where applicable) must be provided in accordance with Australian Standard 1668.2-2012: The use of ventilation and air conditioning in buildings - Part 2: Mechanical ventilation in buildings and Australian Standard 1668.1-1998: The use of ventilation and air conditioning in buildings - Fire and smoke control in multi-compartment buildings within the laundry room.

c) The laundry must be provided with a trade waste agreement in accordance with Sydney Water requirements. Documentation supplied by Sydney Water regarding evidence of the trade waste agreement must be provided to the certifying authority prior to issue of an Occupation Certificate. Please contact Sydney Water for information and requirements for trade waste agreement by calling 13 20 92.

19.4.3.4 Clinical Waste Rooms

a) The clinical waste room must be constructed with smooth and impervious floors, walls and ceiling to enable easy cleaning.

b) All clinical waste must be placed into an approved yellow sharps container/ bin immediately after use. All clinical waste containers/bins must comply with AS 4261:1994 or AS 4031:1992. Sharps containers/bins must be collected and disposed of appropriately by a waste transporter and treatment facility licensed by the DEC – Department of Environment and Conservation (Protection of the Environment Operations (Waste) Regulation 2014)

c) The following clinical waste guideline, plan and policy must be complied with:

   i) Guidelines for Approval of Method to Treat Clinical Waste - https://www.health.nsw.gov.au/environment/clinicalwaste/Documents/approval-method-treat-clinical-waste.pdf

   ii) Clinical and Related Waste Management for Health Services - Policy Directive 2017_026 - http://www1.health.nsw.gov.au/pds/Pages/doc.aspx?dn=PD2017_026

   iii) Generic Waste Management Plan for Health Care Facilities - https://www.health.nsw.gov.au/environment/clinicalwaste/Documents/generic-wmp.pdf

19.4

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Appendix 1 - Biodiversity Statement

A1

In circumstances where impacts on native biodiversity cannot be avoided a Biodiversity Statement shall be prepared in order to demonstrate:

a) the development has been sited, designed, constructed and managed in a manner that minimises the impact on native biodiversity and maintains habitat connectivity as much as practicable;

b) that the impact is essential for the development and limited to the extent necessary to facilitate the safe and orderly use of the land for the purpose of the development;

Proposed measures that could be employed to minimise impacts on native biodiversity include:

i) protection and enhancement of vegetation/habitats of high conservation value;

ii) the retention of a substantial amount of native vegetation/habitat of adequate size and configuration to promote the conservation of the existing flora and fauna communities;

iii) retention of habitat resources, including hollow-bearing trees, habitat logs and bush rock

iv) the retention and/or the creation of vegetation links, wildlife corridors and vegetation buffers wherever possible, subject to the appropriate bush fire risk management;

v) the minimisation of any threats to native flora and fauna and their habitats during construction and during the operational life of the development;

vi) the minimisation of habitat fragmentation;

vii) the safe movement of native fauna facilitated by implementing, where appropriate, speed controls of 40 km/h or less, traffic management measures and signage;

viii) the protection of water quality in the locality so as not to threaten the survival of native aquatic fauna and flora or fauna that rely on the watercourse for survival; and

ix) ensuring that the habitat of native vegetation is retained or enhanced by maintaining or replicating hydrological and groundwater conditions.

Note: A biodiversity statement can be incorporated into a Native Flora and Native Fauna Assessment Report

A2

Appendix 2 - Weed Management Plan

Where the site analysis identifies noxious weeds on the site, a weed management strategy (WMP) shall be submitted with any development application. A WMP shall be prepared by a suitably qualified professional and shall include:

a) a complete list of all noxious and environmental weeds on the site;

b) a site plan displaying actual weed infestation densities shown as percentages and grouped into cover classes as follows:

R = (Rare): less than 1% cover;

O = (Occasional): between 1 and 5% cover;

F = (Frequent) between 5 and 20% cover;

A = (Abundant) between 20 and 40% cover;

D = (Dominant) between 40 and 100% cover;

c) a treatment program for each weed species identified.

The treatment program for each weed species shall detail the following:

i) the method(s) of treatment of the weeds e.g. mechanical removal or herbicide application;

ii) the herbicide product name (if used), the proposed rates and method(s) of application;

iii) the timing of all treatments and control method(s) to be applied;

iv) an ongoing maintenance program detailing methods of follow up treatments to ensure all weed infestations present are contained and/or controlled; and

v) details of any weed material disposal methods (i.e. if weed material is to be removed from the development site.)

Note: It is an offence to knowingly disperse/transport or cause to be dispersed/transported from the land any animal or thing which has on it, or contains notifiable weed material or other noxious weed materials listed in Appendix 3 of the Plan.

Appendix 3 - Noxious Weeds

Weed	Class	Legal requirements
African boxthorn [Lycium ferocissimum] A Weed of National Significance	4	The growth of the plant must be managed in a manner that continuously inhibits the ability of the plant to spread and the plant must not be sold, propagated or knowingly distributed
African feathergrass [Pennisetum macrourum]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
African olive [Olea europaea subspecies cuspidata (syn. Olea europaea subspecies africana)]	4	The growth of the plant must be managed in a manner that continuously inhibits the ability of the plant to spread and the plant must not be sold, propagated or knowingly distributed
African turnip weed [Sisymbrium runcinatum]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
African turnip weed [Sisymbrium thellungii]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
Alligator weed [Alternanthera philoxeroides] A Weed of National Significance	3	The plant must be fully and continuously suppressed and destroyed
Anchored water hyacinth [Eichhornia azurea]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Annual ragweed [Ambrosia artemisiifolia]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
Arrowhead [Sagittaria calycina variety calycina (syn. Sagittaria montevidensis subspecies calycina)]	4	The plant must not be sold, propagated or knowingly distributed
Artichoke thistle [Cynara cardunculus]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
Asparagus [Asparagus species] Ex A.aethiopicus A.africanus A.asparagoides A.declinatus A.falcatus A.macowanii var. zuluensis A.officinalis A.plumosus A.racemosus A.virgatus	4	The plant must not be sold, propagated or knowingly distributed

A3

Weed	Class	Legal requirements
Asparagus fern [Asparagus virgatus (syn. Protasparagus virgatus)] A Weed of National Significance	2	The plant must be eradicated from the land and that land must be kept free of the plant
Athel tree / Athel pine [Tamarix aphylla] A Weed of National Significance	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
Balloon vine [Cardiospermum grandiflorum]	4	The growth of the plant must be managed in a manner that continously inhibits the ability of the plant to spread and the plant must not be sold, propagated or knowingly distributed
Bathurst/Noogoora/Hunter/ South American/Californian/ cockle burrs [Xanthium species]	4	The growth of the plant must be managed in a manner that continously inhibits the ability of the plant to spread
Bear-skin fescue [Festuca gautieri]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
Bitou bush [Chrysanthemoides monilifera subspecies rotundata] A Weed of National Significance	2	The plant must be eradicated from the land and that land must be kept free of the plant
Black knapweed [Centaurea xmoncktonii]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Black willow [Salix nigra] A Weed of National Significance	2	The plant must be eradicated from the land and that land must be kept free of the plant
Blackberry [Rubus fruticosus aggregate species] except cultivars Black satin Chehalem Chester Thornless Dirksen Thornless Loch Ness Murrindindi Silvan Smooth stem Thornfree	4	The growth of the plant must be managed in a manner that continously inhibits the ability of the plant to spread and the plant must not be sold, propagated or knowingly distributed This is an All of NSW declaration
Boneseed [Chrysanthemoides monilifera subspecies monilifera] A Weed of National Significance	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Bridal veil creeper [Asparagus declinatus (syn. Asparagus crispus, Myrsiphyllum declinatum)] A Weed of National Significance	4	The growth of the plant must be managed in a manner that continously inhibits the ability of the plant to spread and the plant must not be sold, propagated or knowingly distributed

Weed	Class	Legal requirements
Bridal veil creeper [Asparagus declinatus (syn. Asparagus crispus, Myrsiphyllum declinatum)] A Weed of National Significance	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Broad-leaf pepper tree [Schinus terebinthifolius]	2	The plant must be eradicated from the land and that land must be kept free of the plant
Broomrapes [Orobanche species except the native O. cernua variety australiana and O. minor]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Burr ragweed [Ambrosia confertiflora]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
Cabomba [All Cabomba species except C. furcata]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
Castor oil plant [Ricinus communis]	4	The growth of the plant must be managed in a manner that continuously inhibits the ability of the plant to spread
Cat's claw creeper [Dolichandra unguis-cati (syn. Macfadyena unguis-cati)] A Weed of National Significance	4	The growth of the plant must be managed in a manner that continuously inhibits the ability of the plant to spread
Cayenne snakeweed [Stachytarpheta cayennensis]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
Chilean needle grass [Nassella neesiana] A Weed of National Significance	4	The growth of the plant must be managed in a manner that continuously inhibits the ability of the plant to spread and the plant must not be sold, propagated or knowingly distributed
Chinese celtis [Celtis sinensis]	4	The growth of the plant must be managed in a manner that continuously inhibits the ability of the plant to spread and the plant must not be sold, propagated or knowingly distributed
Chinese violet [Asystasia gangetica subspecies micrantha]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Climbing asparagus fern [Asparagus plumosus (syn. Protasparagus plumosus)] A Weed of National Significance	2	The plant must be eradicated from the land and that land must be kept free of the plant

A3

Appendix 3 Noxious Weeds - continued

Weed	Class	Legal requirements
Climbing asparagus fern [Asparagus plumosus (syn. Protasparagus plumosus)] A Weed of National Significance	4	The plant must not be sold, propagated or knowingly distributed
Clockweed [Gaura parviflora]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
Coolatai grass [Hyparrhenia hirta]	3	The plant must be fully and continuously suppressed and destroyed and the plant must not be sold, propagated or knowingly distributed
Corn sowthistle [Sonchus arvensis]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
Dodder [All Cuscuta species except the native species C. australis, C. tasmanica and C. victoriana] Includes All Cuscuta species except the native species C. australis, C. tasmanica and C. victoriana	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
Espartillo [Amelichloa brachychaeta, Amelichloa caudata]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
Eurasian water milfoil [Myriophyllum spicatum]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Fine-bristled burr grass [Cenchrus brownii]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
Fireweed [Senecio madagascariensis] A Weed of National Significance	4	The plant must not be sold, propagated or knowingly distributed
Flax-leaf broom [Genista linifolia] A Weed of National Significance	4	The plant must not be sold, propagated or knowingly distributed
Fountain grass [Pennisetum setaceum]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration

Appendix 3 Noxious Weeds - continued

Weed	Class	Legal requirements
Frogbit / Spongeplant [Limnobium laevigatum and L. spongia]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Gallon's curse [Cenchrus biflorus]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
Gamba grass [Andropogon gayanus]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
Giant Parramatta grass [Sporobolus fertilis (syn. Sporobolus indicus variety major)]	3	The plant must be fully and continuously suppressed and destroyed
Giant reed / Elephant grass [Arundo donax]	4	The plant must not be sold, propagated or knowingly distributed
Glaucous star thistle [Carthamus glaucus]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
Golden thistle [Scolymus hispanicus]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
Gorse [Ulex europaeus] A Weed of National Significance	3	The plant must be fully and continuously suppressed and destroyed
Green cestrum [Cestrum parqui]	3	The plant must be fully and continuously suppressed and destroyed
Grey sallow [Salix cinerea] A Weed of National Significance	2	The plant must be eradicated from the land and that land must be kept free of the plant
Ground asparagus [Asparagus aethiopicus (syn. Protasparagus aethiopicus)]	4	The plant must not be sold, propagated or knowingly distributed
Groundsel bush [Baccharis halimifolia]	3	The plant must be fully and continuously suppressed and destroyed
Harrisia cactus [Harrisia species]	4	The growth of the plant must be managed in a manner that continuously inhibits the ability of the plant to spread and the plant must not be sold, propagated or knowingly distributed

Appendix 3 Noxious Weeds - continued

Weed	Class	Legal requirements
Hawkweed [Hieracium species]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Heteranthera / Kidneyleaf mud plantain [Heteranthera reniformis]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Honey locust [Gleditsia triacanthos]	4	The growth of the plant must be managed in a manner that continously inhibits the ability of the plant to spread and the plant must not be sold, propagated or knowingly distributed
Horsetail [Equisetum species]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Hydrocotyl / Water pennywort [Hydrocotyl ranunculoides]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Hygrophila [Hygrophila costata]	2	The plant must be eradicated from the land and that land must be kept free of the plant
Hymenachne [Hymenachne amplexicaulis and hybrids] A Weed of National Significance	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Karroo thorn [Acacia karroo]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Kochia [Bassia scoparia (syn. Kochia scoparia) except B. scoparia subspecies trichophylla] except Bassia scoparia subspecies trichophylla	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Koster's curse / Clidemia [Clidemia hirta]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Kudzu [Pueraria lobata]	2	The plant must be eradicated from the land and that land must be kept free of the plant

Appendix 3 Noxious Weeds - continued

Weed	Class	Legal requirements
Lagarosiphon [Lagarosiphon major]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Lantana [Lantana species] A Weed of National Significance	4	The growth of the plant must be managed in a manner that continuously inhibits the ability of the plant to spread
Leafy elodea / Dense waterweed / Egeria [Egeria densa (syn. Elodea densa)]	4	The growth of the plant must be managed in a manner that continuously inhibits the ability of the plant to spread This is an All of NSW declaration
Lippia [Phyla canescens]	4	The plant must not be sold, propagated or knowingly distributed except incidentally in hay or lucerne This is an All of NSW declaration
Long-leaf willow primrose [Ludwigia longifolia]	3	The plant must be fully and continuously suppressed and destroyed and the plant must not be sold, propagated or knowingly distributed
Ludwigia [Ludwigia peruviana]	3	The plant must be fully and continuously suppressed and destroyed
Madeira vine [Anredera cordifolia]	3	The plant must be fully and continuously suppressed and destroyed
Mexican feather grass [Nassella tenuissima]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Mexican poppy [Argemone mexicana]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
Miconia [Miconia species]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Mikania vine [Mikania micrantha]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Mimosa [Mimosa pigra] A Weed of National Significance	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration

Weed	Class	Legal requirements
Ming (Pom pom / Zig zag) asparagus fern [Asparagus macowanii var. zuluensis (syn. A. retrofractus)]	2	The plant must be eradicated from the land and that land must be kept free of the plant
Montopellier broom / Cape broom [Genista monspessulana] A Weed of National Significance	3	The plant must be fully and continuously suppressed and destroyed and the plant must not be sold, propagated or knowingly distributed
Morning glory (coastal) [Ipomoea cairica]	4	The growth of the plant must be managed in a manner that continously inhibits the ability of the plant to spread and the plant must not be sold, propagated or knowingly distributed
Morning glory (purple) [Ipomoea indica]	4	The growth of the plant must be managed in a manner that continously inhibits the ability of the plant to spread and the plant must not be sold, propagated or knowingly distributed
Mossman River grass [Cenchrus echinatus]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
Mother-of-millions [Bryophyllum species] See Weed Control Order 30 for more explanation	4	The growth of the plant must be managed in a manner that continously inhibits the ability of the plant to spread and the plant must not be sold, propagated or knowingly distributed
Mysore thorn [Caesalpinia decapetala]	3	The plant must be fully and continuously suppressed and destroyed
Pampas grass [Cortaderia species]	3	The plant must be fully and continuously suppressed and destroyed and the plant must not be sold, propagated or knowingly distributed
Paper mulberry [Broussonetia papyrifera]	2	The plant must be eradicated from the land and that land must be kept free of the plant
Parthenium weed [Parthenium hysterophorus] A Weed of National Significance	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Paterson's curse, Vipers bugloss, Italian bugloss [Echium plantagineum, E. vulgare and E. italicum]	4	The growth of the plant must be managed in a manner that continously inhibits the ability of the plant to spread

Weed	Class	Legal requirements
Pond apple [Annona glabra] A Weed of National Significance	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Prickly acacia [Vachellia nilotica (syn. Acacia nilotica)] A Weed of National Significance	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Prickly pear [Opuntia species except O. ficus-indica]	4	The growth of the plant must be managed in a manner that continuously inhibits the ability of the plant to spread and the plant must not be sold, propagated or knowingly distributed
Prickly pear [Cylindropuntia species] A Weed of National Significance	4	The growth of the plant must be managed in a manner that continuously inhibits the ability of the plant to spread and the plant must not be sold, propagated or knowingly distributed This is an All of NSW declaration
Privet (Broad-leaf) [Ligustrum lucidum]	4	The growth of the plant must be managed in a manner that continuously inhibits the ability of the plant to spread
Privet (Narrow-leaf/Chinese) [Ligustrum sinense]	4	The growth of the plant must be managed in a manner that continuously inhibits the ability of the plant to spread
Red rice [Oryza rufipogon]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
Rhus tree [Toxicodendron succedaneum (syn. Toxicodendron succedanea, Rhus succedanea)]	4	The growth of the plant must be managed in a manner that continuously inhibits the ability of the plant to spread and the plant must not be sold, propagated or knowingly distributed This is an All of NSW declaration
Rubber vine [Cryptostegia grandiflora] A Weed of National Significance	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Sagittaria [Sagittaria platyphylla (syn. Sagittaria graminea variety platyphylla)] A Weed of National Significance	4	The plant must not be sold, propagated or knowingly distributed
Salvinia [Salvinia molesta] A Weed of National Significance	3	The plant must be fully and continuously suppressed and destroyed

Appendix 3 Noxious Weeds - continued

Weed	Class	Legal requirements
Scotch broom / English broom [Cytisus scoparius subspecies scoparius] A Weed of National Significance	4	The plant must not be sold, propagated or knowingly distributed
Senegal tea plant [Gymnocoronis spilanthoides]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Serrated tussock [Nassella trichotoma] A Weed of National Significance	4	The growth of the plant must be managed in a manner that continously inhibits the ability of the plant to spread and the plant must not be sold, propagated or knowingly distributed
Siam weed [Chromolaena odorata]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Sicklethorn [Asparagus falcatus]	2	The plant must be eradicated from the land and that land must be kept free of the plant
Silver-leaf nightshade [Solanum elaeagnifolium] A Weed of National Significance	4	The plant must not be sold, propagated or knowingly distributed
Smooth-stemmed turnip [Brassica barrelieri subspecies oxyrrhina]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
Soldier thistle [Picnomon acarna]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration
Spotted knapweed [Centaurea stoebe subspecies micranthos]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
St. John's wort [Hypericum perforatum]	4	The growth of the plant must be managed in a manner that continously inhibits the ability of the plant to spread and the plant must not be sold, propagated or knowingly distributed
Sweet briar [Rosa rubiginosa]	4	The growth of the plant must be managed in a manner that continously inhibits the ability of the plant to spread
Texas blueweed [Helianthus ciliaris]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration

Weed	Class	Legal requirements
Tussock paspalum [Paspalum quadrifarium]	4	The growth of the plant must be managed in a manner that continuously inhibits the ability of the plant to spread and the plant must not be sold, propagated or knowingly distributed
Water caltrop [Trapa species]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Water hyacinth [Eichhornia crassipes] A Weed of National Significance	3	The plant must be fully and continuously suppressed and destroyed
Water lettuce [Pistia stratiotes]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Water soldier [Stratiotes aloides]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Willows [Salix species except S. babylonica, S. xreichardtii, S. xcalodendron, S. cinerea and S. nigra] Includes all Salix species except S. babylonica, S. x reichardtii, S. x calodendron	4	The plant must not be sold, propagated or knowingly distributed
Witchweed [Striga species except the native Striga parviflora]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Yellow bells [Tecoma stans]	3	The plant must be fully and continuously suppressed and destroyed
Yellow burrhead [Limnocharis flava]	1	The plant must be eradicated from the land and that land must be kept free of the plant This is an All of NSW declaration
Yellow nutgrass [Cyperus esculentus]	5	The requirements in the Noxious Weeds Act 1993 for a notifiable weed must be complied with This is an All of NSW declaration

A4

Appendix 4 - Statement of Flora and Fauna Impact & Draft Koala Management Plan

The following Koala food tree species are listed in Schedule 2 of SEPP44 - Koala Habitat Protection (SEPP44):

- Eucalyptus tereticornis (Forest red gum)
- Eucalyptus microcorys (Tallowwood)
- Eucalyptus punctata (Grey Gum)
- Eucalyptus viminalis (Ribbon or manna gum)
- Eucalyptus camaldulensis (River red gum)
- Eucalyptus haemastoma (Broad leaved scribbly gum)
- Eucalyptus signata (Scribbly gum)
- Eucalyptus albens (White box)
- Eucalyptus populnea (Bimble box or poplar box)
- Eucalyptus robusta (Swamp mahogany)

In addition to those tree species listed in SEPP44, the following species must also be considered when deciding whether land contains potential koala habitat under SEPP44:

- Eucalyptus agglomerata (Blue-leaved Stringybark)
- Eucalyptus amplifolia (Cabbage gum)
- Eucalyptus consideniana (Yertchuk)
- Eucalyptus longifolia (Woollybutt)
- Eucalyptus microcorys (Tallowwood)
- Eucalyptus moluccana (Cabbage Gum)
- Eucalyptus globoidea (White Stringybark)

This above additional list has been developed based on information published in a number of local scientific studies conducted in the Campbelltown LGA.

In circumstances where the trees of the types listed in Schedule 2 of SEPP44, and those additional species outlined above constitute at least 15% of the total number of trees in the upper or lower strata component the property is considered to contain potential koala habitat under SEPP44. Further if the property has been identified as containing koala habitat in the Campbelltown Koala Habitat Planning Map it is also considered to contain Potential Koala habitat under the SEPP44.

A copy of the Koala Habitat Planning Map can be provided to applicants upon request.

Appendix 5 - Erosion and Sediment Control Plan

An Erosion and Sediment Control Plan (ESCP) shall be prepared for all construction sites and/or activities involving the disturbance of the land surface, and submitted with the development application.

Each ESCP shall be prepared in accordance with the Managing Urban Stormwater – Soils and Construction 2004, and shall contain the following information:

i) details pertaining to the location, ownership/title of the site;
ii) a scaled plan of the site showing location of property boundaries, adjoining roads and north point;
iii) existing and proposed final contours, including location of cut and fill batters;
iv) existing and final overland flow drainage paths;
v) location and description of all proposed erosion and sediment control measures;
vi) methods for minimising soil disturbance;
vii) methods for trapping sediments and preventing stormwater pollution;
viii) location of intended stabilised all-weather access point;
ix) location of material stockpile areas and control methods; and
x) any revegetation proposals.

In addition to these requirements the ESCP is to ensure the following outcomes are achieved:

i) site activities shall be managed to minimise soil disturbance;
ii) water shall be diverted around any proposed soil disturbance area with the use of catch drains or diversion banks;
iii) a sediment barrier shall be installed as close as possible to the soil disturbance, along the down slope side;
iv) stabilised all weather access points shall be constructed at all entrance and exit points to the subject land;
v) all stockpiles shall be located within the sediment control zone and shall not be located within an overland flow path;
vi) building operations such as tool washing and brick, tile or masonry cutting shall be carried out within the property boundaries, up-slope of a dam or infiltration trench;
vii) temporary or permanent downpipes shall be connected to the stormwater system as soon as the roofing is installed;
viii) the site shall be stabilised and revegetated prior to the removal of erosion and sediment control measures this includes the laying of all turf and the planting/ mulching of all garden beds;
ix) a water pollution sign, supplied with the development consent, shall be displayed on the most prominent point of the development site and be clearly visible from the street; and
x) all erosion and sediment control works shall have regard to *Council's Engineering Design Guidelines for Development available from Council's website at www.campbelltown.nsw.gov.au*.

A6

Appendix 6 - Cut and Fill Management Plan

Where an application that proposes to involve any cut and/or fill operations, the following information shall be provided (by a NATA registered laboratory) with the development application:

i) description and source of any proposed fill material;

ii) detailed plans of any proposed cut and filling;

iii) proposed method of compacting fill; and

iv) proposed method of stabilising cut and/or fill work.

Council shall be satisfied that the information provided demonstrates the following:

i) that the fill is suitable for and does not compromise the current and proposed end use of the site or any adjacent or nearby land;

ii) that the cut or fill does not compromise the structural integrity of structures on the site or on any adjacent or nearby land;

iii) that the fill material shall have similar geo-technical properties to the surrounding in-situ material;

iv) that any cut or fill does not impede the drainage characteristics (surface and subsurface) of the land external to the cut and fill boundaries and does not interfere with any adjacent or nearby land;

v) that the risk of a pollution incident or any other deleterious impact as a result of cutting or filling activities on site has been minimised;

vi) that the cut or fill does not compromise the life span of the remaining vegetation on the site or on any adjacent or nearby land; and

vii) that any increase in ground level does not unacceptably affect the privacy/ amenity of developments on any adjoining or nearby properties.

In addition to the above requirements, applicants are reminded that Council requires:

i) all construction sites and/or activities involving the disturbance of the land surface require a Erosion and Sediment Control Plan to be submitted;

ii) all filling works shall have regard to Council's current specifications for Construction of Subdivision Roads and Drainage Works and AS 3798 Guidelines for Earthworks for Commercial and Residential Development (Refer to *Council's Engineering Design Guidelines for Development available from Council's website at www.campbelltown.nsw.gov.au*} ; and

iii) all fill applied shall be Virgin Excavated Natural Material (VENM).

Appendix 7 - Unsuitable Plant Species for a Child Care Centre

Species Name	Common Name
Brassaia actinophylla	Umbrella Tree
Brugmansia spp.	Angel's Trumpet
Cestrum parqui	Green Cestrum
Caesalpinia gilliessi	Bird of Paradise
Convallaris majalis	Lily of the Valley
Dapne spp.	Daphne, Garland flower, Rose Daphne
Duranta erectal, Duranta repens	Golden Dewdrop, Aussie Gold, Sheenas Gold
Euphorbia pulcherrima	Poinsettia
Euphorbia tirucalli	Naked Lady or Pencil Bush
Euphorbia peplus	Petty Surge
Euphorbia marginata	Ghost Weed
Gloriosa superba	Glory Lily
Laburnum spp.	Golden Chain Tree
Lantana species	Lantana
Lobelia spp.	Cardinal Flower
Malus x domestica	Apple Tree
Melia azedarach	White Cedar
Oleander spp.	Oleander
Oenanthe crocata	Hemlock
Prunus amygdalus	Bitter Almond
Prunus armeniaca	Apricot Tree
Prunus dulcis	Almond Tree
Prunus oersica	Peach Tree
Rheum rhabarbarum	Rhuburb
Ricinus cummunis	Castor Oil Plant
Solanum nigrum	Black Nightside
Solanum pseudocapsium	Jerusalem Cherry
Solanum spp.	Potato
Tabernaemontana spp.	Crepe Jasmine
Carolina jasmine	Gelsemium sempervirens
Toxicodendron succedaneum	Rhus Tree
Zanthedeschia aethiopica	Calla or Arum Lily
Acacia spp.	Wattle spp. (various)
Acokantheria spp.	Wintersweet
Alnus spp.	Alder spp. (various)
Betula spp.	Birch spp. (various)

Appendix 7 Unsuitable Plant Species for a Child Care Centre- continued

Species Name	Common Name
Brassaia actinophylla	Umbrella Tree
Brugmansia spp.	Angel's Trumpet
Cestrum parqui	Green Cestrum
Caesalpinia gilliessi	Bird of Paradise
Convallaris majalis	Lily of the Valley
Dapne spp.	Daphne, Garland flower, Rose Daphne
Duranta erectal, Duranta repens	Golden Dewdrop, Aussie Gold, Sheenas Gold
Euphorbia pulcherrima	Poinsettia
Euphorbia tirucalli	Naked Lady or Pencil Bush
Euphorbia peplus	Petty Surge
Euphorbia marginata	Ghost Weed
Gloriosa superba	Glory Lily
Laburnum spp.	Golden Chain Tree
Lantana species	Lantana
Lobelia spp.	Cardinal Flower
Malus x domestica	Apple Tree
Melia azedarach	White Cedar
Oleander spp.	Oleander
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Prunus amygdalus	Bitter Almond
Prunus armeniaca	Apricot Tree
Prunus dulcis	Almond Tree
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Solanum spp.	Potato
Tabernaemontana spp.	Crepe Jasmine
Carolina jasmine	Gelsemium sempervirens
Toxicodendron succedaneum	Rhus Tree
Zanthedeschia aethiopica	Calla or Arum Lily
Acacia spp.	Wattle spp. (various)
Acokantheria spp.	Wintersweet
Alnus spp.	Alder spp. (various)
Betula spp.	Birch spp. (various)

Species Name	Common Name
Callitris spp.	Cypress Pine
Castanospremum australe	Blackbean, Moreton Bay Chestnut
Casuarina spp.	She Oak spp. (various)
Cupressus spp.	Conifer Pine spp.
Eucalyptus citriodora	Lemon Scented Gum
Grevillea spp.	Grevillea or spider flower spp. (various)
Juglans spp.	Walnut
Lagunaria petersonii	Norfolk island Hibiscus
Ligustrum spp.	Privett spp. (various)
Liquidambar styraciflua	Liquidamber
Olea spp.	Olive spp. (various)
Poinsettia	Poinsettia
Populus spp.	Populus spp. (various)
Prosopis juliflora	Mesquite
Quercus spp.	Oak spp (various)
Robinia spp.	Robinia spp. (various)
Salix spp.	Willow spp. (various)
Sapium sebiferum	Chinese Tallowood
Ulmus spp.	Elm Spp. (Various)
Brunsfelsia spp.	Yesterday, Today, Tommorrow
Clematis microphylla	Clematis
Cyclamen persicum	Cyclamen
Dieffenbachia spp.	Dumb Cane
Digitalis spp.	Foxgloves
Hedera spp.	Ivy spp. (various)
Hippeastrum spp.	Hippeastrum
Hydrangea spp.	Hydrangea
Ilex spp.	Holly spp. (various)
Juniper spp.	Juniper spp. (various)
Lomandra spp	Mat Rush spp. (various)
Lonicera spp.	Honeysuckle (various)
Macrozamia spp.	Cycads
Ochna spp.	Carnival Bush, Mickey Mouse Plant
Parietaria judaica	Pellitory, Asthma or Stick Weed
Urtica species	Stinging nettle

Appendix 7 Unsuitable Plant Species for a Child Care Centre- continued

Species Name	Common Name
Philodendron spp.	Philodendron
Raphiolepis spp.	Indian Hawthorn
Spathiphyllum spp.	Peace Lily, Madonna Lily
Vinca major	Vinca
Datura stramonium	Thornapple
Nicotiana glauca	Tree Tabacco
Wisteria sinensis	Wisteria
Agapanthus spp.	Agapanthus spp.
Amaryllis spp.	Amaryllis spp.
Cotoneaster	Cotoneaster spp.
Alocasia macrorrhiza	Cunjevoi / elephants ears
Colocasia esculenta	Elephants ears (taro)
Atropa belladonna	Deadly Nightshade
	Cotton Bush
	Mushrooms / Toadstools
	Azaleas and Rhododendrons
	Daffodils and other narcissus
	Chillies
	Cactus and other succulents with spines

Note: Child care centres must consider plant use very carefully, and omit any plants that are known to be toxic, where any parts of which can cause serious skin irritations, illness or death if taken in adequate quantities. This includes leaves, seeds, fruits, flowers, bark and sap. Planting design should also limit species with profuse flowers, sharp or spiny leaves, berries or seeds that could cause a choking hazard, or those known to shed branches in heat or windy conditions.

The above plant list includes species identified by the Australian National Botanic Gardens, the Children's Hospital Westmead, and is not exhaustive.

Appendix 8 - Aboriginal Heritage Impact Assessment

A8

An Aboriginal Heritage Impact Assessment (AHIA) is required where a development or activity is proposed on land:

i) Within a zone of archeological sensitivity;

ii) Upon which, Aboriginal sites, places, or areas where Aboriginal objects have been previously identified;

iii) Within an identified cultural landscape;

iv) Containing old growth trees;

v) That is primarily undeveloped;

vi) Containing or adjacent to rivers or creek lines;

vii) On a ridgeline; and

viii) Where sufficient information is provided to Council that leads it to conclude that the land may have potential Aboriginal heritage significance.

The AHIA report must be prepared in accordance with the Office of the Environment and Heritage (OEH) Guidelines.

Harm to Aboriginal objects should be avoided wherever possible. Where harm can not be avoided, an approval to harm Aboriginal objects must be obtained from OEH.

Information on the process for investigating and assessing Aboriginal cultural heritage in NSW can be found on the OEH web site.

A9

Appendix 9- Heritage Impact Statement

A Heritage Impact Assessment (HIA) is required for all development that is on land occupied by items of heritage and/or land in the vicinity of heritage items. And shall:

i) identify why the item, place or area is of heritage significance (the statement of heritage significance);

ii) describe the works, change of use and any physical changes to the place;

iii) identify the impact or impacts the proposed changes to the heritage item will have on its heritage significance; and

iv) identify and describe any measures being proposed to lessen negative impacts of the proposed changes.

In circumstances where the proposed changes are likely to have a detrimental affect on the item, place or area's of heritage significance, a heritage impact statement shall be prepared. The heritage impact statement shall:

i) clearly identify any change or changes that will have a negative impact on the heritage significance of the item, place or area;

ii) state why the impact or impacts cannot be avoided;

iii) state the steps being taken to minimise their effects; and

iv) be prepared in accordance with the Guidelines of the Heritage Branch as set out in Statements of Heritage Impact (prepared by the then NSW Heritage Office and the then Department of Urban Affairs & Planning 1996, revised 2002).

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A11 Appendix 11 - Arborist Report

a) The Arborist Report shall include the following details:

- The genus and species of each tree;
- Health, amenity value and the Safe Useful Life Expectancy (SULE) rating of each tree;
- ny pests or diseases that may be present on each tree;
- Any site changes and surrounding structures which may affect the health or vitality of the tree;
- Impact of the development on each tree;
- Impact of retaining trees on the proposed development;
- The Tree Protection Zone (TPZ) required for each tree proposed to be retained;
- Any root barriers necessary, type and their location;
- Any branch or root pruning which may be required for the trees;
- Any supporting evidence such as photographs, if relevant; and
- Recommendation on the preferred option and an explanation why this option is preferred.

Appendix 12 – Traffic Impact Assessment Report

A12

For large-scale developments, residential apartment buildings, mixed use developments and the like a traffic impact assessment report shall be submitted with the development application.

A traffic impact assessment report shall address the following:

i) the existing traffic environment;

ii) traffic generation anticipated from the proposed development;

iii) the cumulative impact of traffic in the locality;

iv) the need for traffic improvements in the locality;

v) proposed traffic egress/ingress to arterial/sub arterial roads; and

vi) sight distance and other safety issues.

A13

Appendix 13 - Crime Prevention Plan

For large-scale developments, residential apartment buildings, mixed use developments and the like a crime prevention plan shall be submitted with the development application.

A crime prevention plan shall address the following key principles of 'crime prevention through environmental design':

i) natural surveillance;

ii) natural access control;

iii) territorial reinforcement;

iv) activity support;

v) maintenance;

vi) target hardening;

vii) target removal;

viii) personal safety support;

ix) mixed use development;

x) elimination of pedestrian movement predictors; and

xi) natural guardianship.

Appendix 14 - Obtaining a Stormwater Easement

1. Developer to identify the downstream property/ies that can provide connection through to the Council system,

2. A sketch shall be prepared for the each property indicating location of proposed easement and other features on the property,

3. Obtain the downstream property/ies Owners name and addresses to forward the offer (sometimes Owners may have leased the property and not living there),

4. Registered valuation of proposed easement is to be obtained before offer is made to downstream property/ies,

5. Downstream property owner shall be sent signed easement offer with sketch of proposed location of easement, registered value and brief description of what is being sought, Owners rights, obligations and benefits of easement via registered mail,

6. Council shall be supplied with signed copies of all the correspondences and registered mail receipts,

Downstream property owners shall be briefed in the letter of Offer about their rights, obligations and benefits of an easement, since it is important for Owners to know before they make a decision or as required they can engage their Solicitor for the matter.

Developer shall explain in the offer that easement allows beneficiary of easement to direct stormwater through the downstream/burdened property with underground pipe, the land containing the easement still belongs to the Original Owner of Land (not sold to upstream property) but has some restrictions attached such as Land Owner will not able to build over the easement or restrict flow of water through it. Since most of the easements are alongside and or rear boundaries which are generally not allowed to build under relevant Local and State Government legislations, so the restriction of not being able to build over the easement may not be a great impact to the property.

Easement is the best method of drainage for properties falling away from Carriageway, since absorption trenches are not suited for the soil type in Campbelltown LGA, absorption trenches and level spreaders rely on future owners of the new development to maintain these to protect downstream property from negative impact. Developer to demonstrate to downstream property Owners that every effort will be made to avoid any damage during easement works and cots of easement registration, laying pipe and restoration will be covered by the developer.

Developer shall give at least 21 days before sending another registered letter following up on the offer.